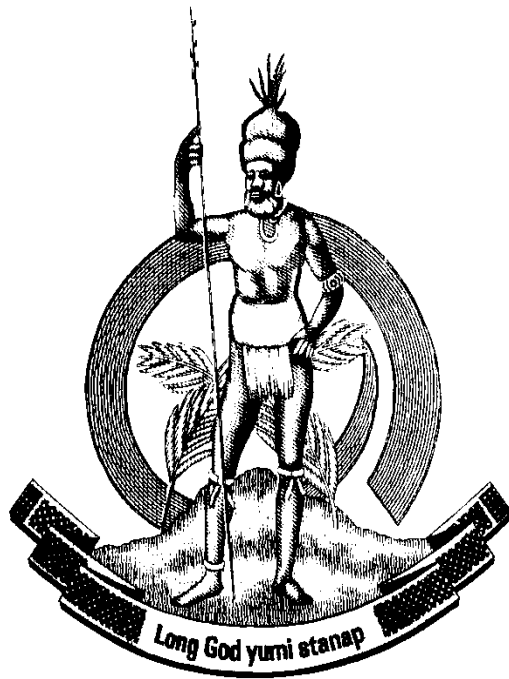
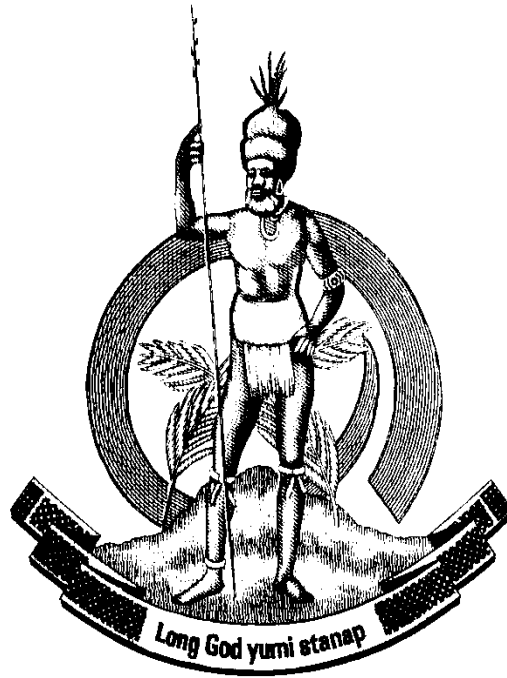






Public Service Staff Regulation Manual

This revised Public Service Staff
Regulation Manual is generously sponsored
by the USAID through its partnership with
the Vanuatu Government.



Foreword by the Chairman of the Public Service Commission



It is with great pleasure and a sense of commitment to excellence that I present to you and introduce the final Public Service Staff Regulation Manual (PSSRM). In these difficult circumstances where we continue to face disasters, we strive to determine our collective resilience and determination to attain the development aspirations we have set for in Vanuatu 2030 - The People's Plan, our National Sustainable Development Plan (NSDP). The NSDP sets down clear expectations for public service delivery to be supported through responsive and capable state institutions, delivering quality public services to benefit all Vanuatu citizens.

Following the National Planning Summit that the Government hosted in June 2023, there has been a lot that has been said in strengthening the Public Service in the National, Sub-national to Area Councils. I am also pleased to emphasize that the Public Service Commission (PSC) has worked closely with the Department of Local Authorities to produce a Decentralization Plan. The Decentralization Plan aims to achieve and accelerate the implementation of the NSDP from the National Level to the community level in respective provincial Area Councils.

The PSC remains committed to serving the Government, the people, and its employees. The revised PSSRM aims to empower the workforce and public service machinery to implement government plans and NSDP to all Vanuatu citizens. We will work to be a trusted, respected, and reliable partner to the Government, the Public Service workforce and the citizens of Vanuatu, to achieve this aspiration. This is what the PSC aspires to achieve.

As a decent employer, the PSC is responsible for carrying out a range of important functions and duties, including this review. It is therefore my sincere gratitude and acknowledgement to the staff of the Office of Public Service Commission and all stakeholders and partners of the PSC whose commitment and support enabled a successful review and the production of this PSSRM.

A handwritten signature in blue ink, likely belonging to Martin Raoul Mahe, the Chairman of the Public Service Commission.



Martin Raoul Mahe
Chairman, Public Service Commission

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DEFINITIONS

In this Staff Manual, unless the context requires otherwise;

“Appropriate Minister” in relation to a Ministry means: (1) the Minister responsible for the Ministry; or (2) where two or more Ministers are responsible for different functions of a Ministry, the Minister responsible for the relevant functions of the Ministry.

“Act or the Public Service Act” means the Public Service Act [CAP 246] including any subsequent amendments;

“Chairman” means the Chairman of the Public Service Commission appointed in accordance with Article 59(2) of the Constitution;

“Commission” and “PSC” means the Public Service Commission established by Article 59 of the Constitution;

“Contract Employee” is a person employed under the provisions of section 30 (3) of the *Public Service Act* to provide specialist services or where it is inappropriate to employ a permanent officer to perform the duties required.

“Daily Rated Worker” means a person engaged under the provisions of section 31 (1) of the *Public Service Act* to perform work which, by reason of its temporary, fluctuating, or special nature does not warrant the employment of a permanent officer.

“Department” means an entity designated as such or a division within a Ministry;

“Director of Department”, “Director,” or “Head of Department” means a person appointed as a Director of a Department within a Ministry or a position evaluated as equivalent by the Public Service Commission;

“Director-General” means the head of a Ministry or a position evaluated as equivalent by the Public Service Commission;

“Minister” means the Minister responsible for the public service;

“Ministry” means a Ministry of the Government and includes a Department within the Ministry. Where applicable, it also includes a State appointed office, agency or instrument designated by the Prime Minister under Section 9 of the *Government Act* [Cap 243] or section 50 of the *Public Service Act*;

“Office of the Public Service Commission” (OPSC) means the secretariat and administrative support services of the Public Service Commission established in accordance with section 13 the *Public Service Act*;

“officer” and “Permanent Officer” means a full-time public servant who has been appointed with tenure under the provisions of section 23(1) of the *Public Service Act*.

“prescribed” means prescribed by regulations under the *Public Service Act* or by any Instruction or any Staff Manual issued by the Public Service Commission, in accordance with the *Public Service Act*;

“Promotion” means the process of appointing an officer to another position at a higher evaluated level, in accordance with section 23(1) of the *Public Service Act*.

“Secretary” means the administrative head of the Office of the Public Service Commission appointed by the Public Service Commission in accordance with section 13 the *Public Service Act*.

“Staff” and “Staff Member” in relation to the Public Service means a person employed therein whether as a permanent officer, temporary salaried employee or a daily rated worker.

“Temporary Salaried Employee” means a person appointed under the provisions of section 30(1) of the *Public Service Act* to a post within the public service on a temporary basis for a period which does not exceed six months.

“transfer” means the process of being moved from one position to another at the same level in accordance with section 21(3) or 26(1) of the *Public Service Act*.

Chapter 1: Guiding Principles and Roles of the Public Service Commission and the Public Service

1. Guiding Principles

Pursuant to section 4 of the *Public Service Act*, the guiding principles are as set out below.

(1) The guiding principles of the Commission are to:

- (a) strengthen government institutions;
- (b) strengthen leadership skills and capacity;
- (c) ensure effective and efficient service delivery;
- (d) adopt a people-centred approach in decision-making;
- (e) be independent and perform its functions in an impartial, inclusive, and professional manner;
- (f) make employment decisions based on merit;
- (g) have the highest ethical standards;
- (h) be accountable for its decisions;
- (i) be responsive to the Government by providing timely advice and implementing the Government's policies and programs;
- (j) provide leadership of the highest quality;
- (k) foster cooperative workplace relations through consultation and communication;
- (l) focus on achieving results and managing performance;
- (m) observe and comply with the rule of law;
- (n) ensure that the enforcement of provisions under the Public Service Act is in alignment with other relevant legislations;
- (o) ensure transparency and inclusivity in the performance of its functions;
- (p) promote an inclusive workplace culture valuing diversity and ensuring equal opportunities for all staff members, regardless of their race, colour, gender, age, religion, disability and nationality;
- (q) foster an environment where a staff member is treated with fairness, dignity, and respect;
- (r) provide capacity development and guidance for staff members;
- (s) ensure the health, safety and welfare of employees;
- (t) establish the employee's Risk Management policy.

(2) The guiding principles of the Public Service are to:

- (a) establish and effectively implement government policies and programs;
- (b) provide leadership of the highest quality;
- (c) ensure effective and efficient service delivery;
- (d) implement the people-centred approach in decisions;
- (e) perform its functions in an impartial, inclusive, and professional manner;
- (f) uphold the highest ethical standards (as set out in the Public Service Act);
- (g) be accountable for its actions;
- (h) be responsive to the Government in providing timely advice;
- (i) deliver services fairly, effectively, impartially and courteously to the public and to visitors to Vanuatu;
- (j) establish cooperative workplace relations based on consultation and communication;
- (k) focus on achieving results and managing performance;
- (l) observe and comply with the rule of law;
- (m) ensure transparency and inclusivity in the performance of duties and responsibilities;
- (n) promote an inclusive workplace culture that values diversity and ensures equal opportunities for all employees, regardless of their race, colour, gender, age, religion, disability and nationality;
- (o) foster an environment where a staff member is treated with fairness, dignity, and respect;
- (p) implement the Public Service Risk Management Policy.

1.1 Implementation of Principles

To implement the principles in this Chapter, the Commission adopts a series of objectives and performs a range of functions through a co-ordinated set of reform-orientated programs. These objectives, functions and programs are described below.

2. Objectives and Function of the Commission

2.1 Objectives of the Commission

Under sections 4, 7 and 15 of the *Public Service Act*, the core objective of the Public Service Commission is to act as a fair and equal employment-opportunity-employer to hire professional individuals with good conduct to the Government and the people of Vanuatu by building a high-quality Public Service that is competent, accountable, ethical, impartial, inclusive and responsive.

2.2 Functions of the Commission

In addition to the functions set out in subsection 8(1) of the *Public Service Act*, the Commission is responsible to:

- (a) provide policy advice to the Government on matters relating to the efficiency and effectiveness of the Public Service and in human resource development;
- (b) appoint and promote employees on merit;
- (c) select or approve employees to undergo training courses, workshops, seminars, attachments, and meetings/conferences locally and overseas including scholarships, and for such purposes organise merit-based selection processes;
- (d) resolve employment disputes and discipline of employees in accordance with the Act;
- (e) promote code of conduct in Part 5 of the *Public Service Act*;
- (f) review the efficiency and effectiveness of the Public Service in employment matters;
- (g) review the establishment and approve the grading of posts;
- (h) coordinate and provide training programs and assist with the training of employees;
- (i) provide guidelines to Directors-General, Directors and the Public Service in managing or developing employee in good employer principles and obligations;
- (j) ensure the observance of the rule of law in public affairs;
- (k) ensure that the Public Service Act provisions are in line with other Acts;
- (l) ensure compliance and responsible for the administration of the Public Service Act;
- (m) set targets for the delivery of services by the Commission;
- (n) provide regular reports to the Minister on the performance of the Commission;
- (o) review, endorse and approve the Fleet Management policy and procedure;
- (p) review, endorse and approve the Housing Management policy and procedure;
- (q) oversee and manage the performance of the Public Service;
- (r) review, endorse and approve public service welfare.

2.3 Programs of the Commission

The functions referred to under section 2.2 are performed through a range of programs as outlined below:

2.3.1 Corporate Services (Executive Services):

- (a) provide secretariat and administrative support services to the Commission;
- (b) provide advice to Ministries and Departments on decisions made by the Commission.

2.3.2 *Human Resource Management:*

- (a) assists Ministries by developing effective and efficient human resources policies, practices, plans, employee performance and reporting arrangements to facilitate improved individual performance;
- (b) provides advice and directions to line Ministries and Departments on how to address the performance of their employees through the process of planning, developing, coaching, providing feedback and identify training needs based on employee's performance assessment;
- (c) assist and encourage all employees to achieve and maintain a high standard of job performance.

2.3.3 *Human Resource Development:*

Improve and develop the skills, knowledge and attributes of employees in accordance with the National Human Resource Development (NHRD) Plan so that they can increase their level of performance and service delivery in accordance with any National Government plans.

2.3.4 *Management of the Organizational Development:*

Analyse, assess, review, and endorse Ministries and Department structures, restructuring request, grading, and regrading of posts including job descriptions.

2.3.5 *Compliance Management:*

- (a) assist Ministries and Departments to prevent disciplinary issues.;
- (b) assist Ministries and Departments to settle grievances;
- (c) provide adequate advice and direction on the management of staff discipline;
- (d) address discipline through the Public Service Disciplinary Board;
- (e) provide advice to the Commission on compliance matters;

2.3.6 *Management of Public Servants Housing*

Provide clear policy directions and procedures on the management and administration of public servant's houses.

2.3.7 *Management of Government Vehicles*

Provide clear policy directions and procedures on the management and administration of government vehicles.

2.3.8 Performance Management

- (a) provide assessment on ways to improve efficiently and effectively the public service.
- (b) assist organization to sustain the continuous improvement in quality, cost, safety, and in meeting Public Service Commission Obligations.
- (c) assist in highlighting the visible performance gaps and areas of improvement in the individual employee and organizational performance.
- (d) provide timely feedback on the effect of the individual and Organizational performance assessment.

3.The Public Service

3.1 Composition of the Public Service

Under section 2 of the *Public Service Act*, the “Public Service” comprises those persons or staff member employed in:

- (a) a Ministry;
- (b) a department;
- (c) a state-appointed office;
- (d) government agencies and instruments designate by the Prime Minister in accordance with the law.

3.2 Duty to Provide Updated Copy of Public Service Act and PSSRM

A Ministry or Department within the public service must provide a staff member with an updated copy of the *Public Service Act* and the PSSRM each time the Act or the PSSRM is reviewed or amended.

CHAPTER 2 –Organizational Establishment and Management

1. Introduction

- (1) The *Public Service Act* outlines various responsibilities for a Directors-General, including:
- (a) carrying out the functions and duties of a Ministry, including the implementation of Government policies and programs (Section 20(1)(a));
 - (b) managing the activities of their Ministries in an efficient, and cost-effective, manner (Section 20(1)(e)).
- (2) In order to fulfill the requirements mentioned in subsection (1), a Directors-General and Provincial Secretary -Generals, must ensure that the proposed Organizational structures of a Ministry are appropriate and in line with the government's strategic objectives and subject to planning guidelines.
- (3) Guidelines related to the preparation of Corporate Plans, Business Plans, Annual Reports and Restructure can be accessed at the Office of the Public Service Commission (OPSC).

2. The Process

2.1 Developing or Revising a Structure or Restructure

- (1) A Ministry intending to initiate a new structure or restructure, including a provincial structure, must meet the following conditions:
- (a) the structure or restructure must align with Government policies and, or emerging priorities;
 - (b) the Ministry must have a Strategic and Corporate Plan signed by the relevant Minister;
 - (c) all vacancies in the existing structure must be filled;
 - (d) conduct a functional analysis and provide a report to OPSC on the analysis;
 - (e) a new structure or restructure is mandated by any of the following:
 - i. COM Decision; or
 - ii. Bilateral \Multilateral Agreement; or
 - iii. International Conventions; or
 - iv. Legislations.
- (2) If a new structure or restructure is necessary, the Director-General and Provincial Secretary General must, in consultation with Directors of respective Departments, develop a draft Organizational structure and variation for discussion with the Secretary of the Public Service Commission.

- (3) Head of Ministries, Departments and provincial governments must develop a structure or restructure implementation plan. The plan must provide the process, including consultation report, details of activities, costs, and timeframe.
- (4) New structure or restructure proposals must undergo comprehensive internal consultation with Directors-General and or Provincial Secretary General, Director, or equivalent positions, and all employees within the Ministry or Department concerned.
- (5) The Organizational structure or restructure should be based on a careful and detailed analysis of functions performed by the Departments within the Ministry.
- (6) The Organizational restructure should, therefore, identify variations needed.
- (7) The cost of the proposed Ministry or Departments restructure/establishment variation must be within the agreed budget of the Ministry. Any restructure cost that exceeds the current approved budget is subject to Ministry of Finance evaluation and advice.
- (8) Directors-General, Provincial Secretary-General, Director or equivalent positions, and Human Resource officers must engage in preliminary discussions of the proposed restructure with the OPSC before OPSC assessment and evaluation.

2.1.1 Preparing Individual Job Descriptions

- (1) A Directors-General, Provincial Secretary General and Directors or equivalent position must, with the assistance of the HRO, prepare the prescribed *Job Description Form- (PSC FORM 2-2)*, an individual Competency-Based Job Description for every position within his or her Ministry if:
 - (a) a new position is created; or
 - (b) a substantial change is made to the duties assigned to a position; or
 - (c) no Job Description currently exists in the current structure.
- (2) Directors-General and Directors or equivalent position must consult the relevant Provincial Secretary-General if the post is located in a province.
- (3) A Job Description must be written by a person or group of persons within the Ministry with an adequate knowledge of the job in question and be validated through consultation with persons familiar with the duties, responsibilities, and the requirements of the position. In the case of an existing position, it must be written in consultation with the present incumbent of the position.
- (4) Prior to writing the Job Description, the nature of the job must be carefully analysed to determine the major components, including Key Result Area (KRA), Key Tasks (KT) and Key Performance Indicators (KPI) of the position.
- (5) The major duties and responsibilities should not include any duties of a short-term nature.
- (6) When completing a job description, special attention must be given to Section 14 of the Job Description Form which comprises selection criteria for the post.

- (7) Directors-General, Provincial Secretary-General and Directors or equivalent position must ensure that the content of all new and upgraded Job Description is logical, easy to read and understandable.
- (8) Where jobs are very similar in nature, generic Job Descriptions may be used, but each separate job must have its own post number.
- (9) The Directors-General, Provincial Secretary General and Director or equivalent position are responsible for ensuring that the Job Description contains sufficient information to allow the position to be evaluated and graded by the OPSC.
- (10) The Job Description must be signed by the person preparing the Form and where applicable by the Directors-General or Provincial Secretary General, relevant Director or equivalent position at sections 16.1 and 16.2 of the Job Description Form before it is referred to the OPSC for evaluation.
- (11) The immediate supervisor and HROs must ensure every position incumbent have a copy and fully understands their Job Description.
- (12) Directors or equivalent positions must submit final Restructures/variations and related documents where applicable to the Directors-General or Provincial Secretary-General for assessment and endorsement before submission to OPSC. Any final Restructure proposal that has not been endorsed by the Directors-General or Provincial Secretary-General will not be accepted by OPSC. The Submission Check List must be included with the Submission to ensure all required components have been included.
- (13) Prior to final submission to the Commission, the Restructure Submission must be provided by OPSC to GRT for advice on the proposed remuneration, to the Department of Strategic, Policy, Planning and Aid Coordination (DSPPAC) for advice on planning alignment and Ministry of Finance and Economic Management (MFEM) for financial implications.
- (14) Upon receipt of submission from a Ministry, the OPSC has twenty-one (21) calendar days to make a response on the submission to the approved Restructure Guidelines and submit the completed proposed restructure or variation to the Commission for consideration.

2.1.2 Assessing Restructure/Establishment Variation Proposals and Grading Positions

- (1) A Director-General and Provincial Secretary General must submit all restructure or establishment variation proposals, along with new or significantly amended Job Descriptions, for assessment and evaluation to OPSC for consideration by the Commission.
- (2) A Directors-General, Provincial Secretary-General, Director or equivalent position or a Human Resource officer must engage in preliminary discussions of the proposed restructure with OPSC before submitting them to the OPSC for assessment and evaluation.
- (3) Both the Ministry and OPSC must maintain permanent documentation on all separate instances of job evaluation and grading.

2.1.3 Restructure/Establishment Variation Proposals

- (1) All Restructure or establishment variation proposals are to be submitted to the OPSC in both standard format and electronic format (USB)-(PSC FORM 2.1). The standard format is defined in the OPSC Restructure Guideline.
- (2) A Human resource officer must ensure that submissions, of revised Organization structures and job descriptions are prepared in accordance with the restructure guideline.
- (3) In assessing a restructure proposal submitted by a Director-General or Provincial Secretary-General, the Office of Public Service Commission must, as far as practicable and as appropriate, use the following criteria:
 - (a) government policy priorities in terms of service delivery;
 - (b) the total cost of the restructure may not exceed the general norm of 70:30 budget structure (Payroll: Operations);
 - (c) the potential to generate more revenue;
 - (d) efficiency and cost-effectiveness and within the Ministry's nominated budget;
 - (e) avoidance of duplication of functions by Ministries;
 - (f) impact on staff employed by the Ministry; and
 - (g) any other criteria as the Secretary, in consultation with a Directors-General and or Provincial Secretary General may from time to time determine.
- (4) If the Secretary requires that changes are necessary to the restructure proposals, consultation with the Director-General or Provincial Secretary-General and relevant Director or an equivalent position must occur before submission for approval by the Commission.
- (5) The Secretary should not make any significant variation or decision regarding a Directors-General or Provincial Secretary-General restructure proposal without prior consultation with them.

2.2 Evaluating Job Descriptions and Grading Positions

- (1) A Director-General or Provincial Secretary General must submit all new and substantially changed Job Descriptions to the OPSC for evaluation and remuneration grading, as an attachment to restructure or establishment variation proposal.
- (2) In evaluating and grading new Job Descriptions, the OPSC must, as far as practicable and appropriate, consider the following criteria:
 - (a) objective, purpose and responsibilities of the position;
 - (b) competencies required to carry out the role;
 - (c) Government Remuneration Tribunal (GRT) classification standard;
 - (d) the nature and complexity of the duties and responsibilities;

- (e) reporting relationships and supervisory responsibilities;
 - (f) impact of the position on financial and other resources;
 - (g) impact of decisions;
 - (h) nature of the qualifications required for the position;
 - (i) level of experience required for the position;
 - (j) skills needed for the job;
 - (k) nature and dimension of the position in relation to comparative positions within or outside of Vanuatu;
 - (l) recommended salary level and grading proposed by the Ministry;
 - (m) relativity with other positions across the Public Service;
 - (n) location of the position;
 - (o) Working conditions;
- (3) If the OPSC considers that changes are warranted to the Evaluating Job Descriptions and Grading Positions, it must consult with the Director-General or Provincial Secretary-General or relevant Government Agencies.

2.3 Obtaining the Approval of the Commission

- (1) The Commission may approve the implementation of any significant restructure proposals, including the establishment and grading of revised positions and Job Descriptions Forms.
- (2) Any administrative changes that will not affect the evaluated level of the position must be approved by the Secretary.
- (3) If the Restructure or establishment variation proposal or Job Description is not approved by the Commission, the OPSC must consult with the relevant, Director-General or Provincial Secretary-General and relevant Director or equivalent position to provide assistance in making appropriate changes to the restructured proposal or Job Descriptions for reconsideration by the Commission. Administrative changes that will not affect the evaluated level of the position must be approved by the Secretary.
- (4) In the event of a deferral by the Commission on the proposed restructure or variation, the OPSC must, within 21 working days, collaborate with the relevant Ministry to revise and make necessary adjustments to the restructure or variation proposal. The revised proposal will then be resubmitted to the Commission for reconsideration and approval.
- (5) A Ministry, through OPSC, may request an extension of the period under subsection (5) to the Commission if the timeframe of 21 working days has lapsed, providing reasons to justify the request for extension.
- (6) The Commission is to consider the request for extension and may determine whether or not to grant the extension upon conditions that it deems fit.

- (7) If the Commission does not approve a submission referred under paragraphs (2) and (5), the Ministry may recommence the process and resubmit the proposed restructure or established variation proposal.
- (8) Any submission that does not meet the OPSC requirements must be returned to the relevant Ministry. The Ministry, after meeting the requirements, is to re-submit a restructure as a new submission.
- (9) All submission must be signed off by the relevant Directors-General, Provincial Secretary-General, or a person acting on his or her behalf.

2.3.1 Implementing an Approved Restructure and Establishing New Positions

- (1) A Directors-General, Provincial Secretary -General and Directors or equivalent positions must implement the most recently approved structure or establishment variation of their Ministry or Department according to the implementation plan approved by the Commission.
- (2) Any restructure or establishment variation that has not been approved by the Commission must not be implemented.
- (3) To avoid doubt, all advertisements of positions must be advertised with an approved salary scale by the Commission.
- (4) A position funded by a project within the approved structure is limited to a maximum occupancy of 5 consecutive years.
- (5) The period mentioned under subsection (4) is subject to the terms of the agreement between the funding agency and the Commission through the relevant Directors-General and Provincial Secretary-General.
- (6) Should a newly approved position within a structure remain unfilled for six (6) consecutive years, the OPSC may recommend to the Commission the removal of the position the structure, following consultations with the relevant Directors-General and Provincial Secretary-General.

2.4 Project Funded Position Not Integrated into The Approved Structure

- (1) In cases where a position is formed and financed by a project within a department or Ministry, and the project has concluded, but the position is still necessary for implementing government policy, the Commission may, at its discretion, endorse the inclusion of the position within the existing structure.
- (2) The Commission may grant approval for the establishment of the position, as per subsection (1), contingent upon justification provided by the he Directors-General and/ or Provincial Secretary-General.

2.5 Implementing an Approved Restructure Where the Upgraded or Re-graded Positions Are Occupied

2.5.1 Occupied Position is Upgraded

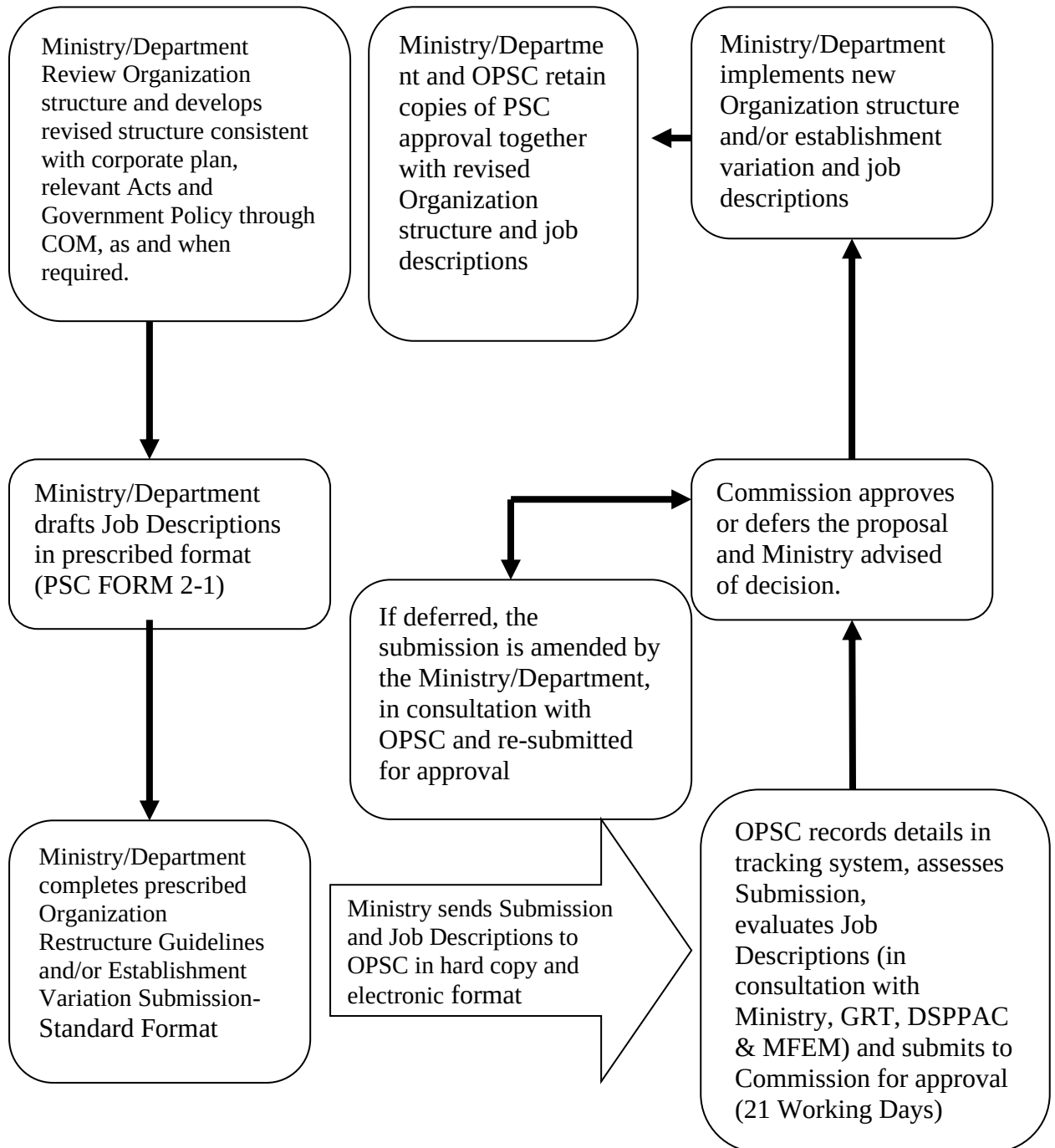
- (1) If the Commission approves the upgrading of a position currently occupied by an employee, the Director-General, Provincial Secretary General, and Director or equivalent position may approve the incumbent to act in the upgraded position for a period not exceeding six (6) months.
- (2) If, after 6 months period under subsection (1), an assessment after the first 3 months reveals that the employee is not successful in obtaining a promotion to a higher graded position and cannot be transferred to another funded position at the same level, the Commission may declare the officer redundant from the Public Service.
- (3) Within the period under subsection (1), the Director-General, the Director or equivalent position and Provincial Secretary General must substantively fill in the position. In this context, the following options are available:
 - (a) If, upon assessment by the Supervisor, the employee meets the criteria of the newly upgraded position, he or she may be recommended for appointment by the Commission;
 - (b) if the employee does not meet the criteria of the upgraded position, the position must be advertised in accordance with the policy and procedures in Chapter 3 of this Manual.
- (4) In cases where the establishment variation involves only a change in the title of the post and the salary level/grade and duties remain unchanged, the occupant of the position automatically assumes the new post title.
- (5) If the incumbent of the re-graded position is unsuccessful in securing the upgraded post following advertisement, the employee must be transferred to a vacant funded post (at the same level) within the Ministry or to another Ministry, subject to the agreement of the Directors-General or Provincial Secretary General and the approval of the Commission.
- (6) If the employee cannot be placed in a suitable position as per subsection (4), the Ministry may request the Commission's approval to declare the employee redundant only after exhausting all reasonable possibilities for reassignment. In such situations, the entitlements of the employee upon termination of employment with the public service will follow the guidelines outlined in Chapter 7 of this Manual.

2.5.2 Occupied Position is Downgraded

- (1) An employee who occupies a position that is downgraded may be transferred to a vacant funded post (at the same level) within the Ministry by the Director General or within the Department by the Director.
- (2) Subject to the approval of the Commission, an employee who occupies a position that is downgraded may be transferred to a vacant funded post (at the same level) to another Ministry.

- (3) If there is no vacant and funded position at the same level available at the time of the downgrading under subsections (1) and (2), the Commission may approve the current occupant of the position to be made redundant.
- (4) A financial visa must be obtained before a transfer is made under subsection (1) and (2).
- (5) Daily-rated, contract, and temporary employees appointed against a vacant position must not be transferred or appointed to a higher post during the restructure process of the department or Ministry. If a person is interested in a vacancy, he or she may apply for the position if advertised.
- (6) An transfer under this section requires the recommendation of the employee's Director and Director-General or equivalent position as set out in the *Permanent Appointment Report Form- (PSC FORM 3-6)*.
- (7) A Directors-General, the Secretary, a Director or equivalent position, a Provincial Secretary General, Town Clerk or any other equivalent positions must be advertised and are not subject to this section.
- (8) If the redundancy option is taken under subsection (3), the entitlements of the employee on cessation of employment with the public service specified under Chapter 7 of this Manual applies.
- (9) For the avoidance of doubt the redundancy period shall be within a period of 18 to 24 months.

3. Organization Review and/or Establishment Variation Process



FORMS AND TABLES FOR CHAPTER 2: ORGANIZATION REVIEW, ESTABLISHMENT VARIATIONS AND JOB EVALUATION

ORGANIZATION RESTRUCTURE AND/OR ESTABLISHMENT VARIATION SUBMISSION – STANDARD FORMAT

(To be typed on Ministry or Departmental letterhead)

The Office of Public Service Commission
Public Service Commission
PM Bag 9017
Port Vila

Dear [Recipient's Name],

Subject: [Insert title of proposal]

Example: *Proposal to Revise the Organization Structure for the Ministry/Department of etc.*

1. Background:

(Insert details of the reasons for seeking the restructure/establishment Variation)

Examples:

- *One of the objectives and priorities under the Pillars of the National Sustainable Development Plan (NSDP), currently being implemented by the Government, is to devolve non-core human resource functions from the PSC to Ministries and departments.*
- *To facilitate this process, the (insert the name of Ministry/Department/Agency) proposes to establish a Corporate Services Unit within the Office of the Director-General to take control of all HR functions for the whole of Ministry and to strengthen/improve the overall management of the Ministry's budget. In addition, the Corporate Service Unit will include a (insert the name of the position) to provide high-level support and policy advice to the Director-General.*
- *It is further considered that the implementation of this structure will lead to an improvement in the Ministry's overall service delivery to its clients in line with the objectives provided under the NSDP.*

2. Proposal:

(Insert details of any positions to be deleted or re-graded, the new positions being sought and their respective roles and responsibilities and also proposed grading of each position).

3. Costing:

(Insert details of the savings from funded positions to be deleted (if applicable) plus costing of new positions plus salary difference (+ or -)) in a Table, as shown hereunder. A formatted Excel Spreadsheet that includes calculations of VNPF and Allowances is available from OPSC to provide full Establishment Cost of the restructure. This Excel Spreadsheet should provide

The Comparison of fully implanted current structure & proposed Restructure. Implementation Stages must be provided.

<i>PROPOSED POSITIONS TO BE CREATED AND OR UPGRADED/DOWN GRADED</i>										
Post No.	Title/ Occupant	Level/ Grade	Salary	Salary Total	Post No.	Title /Occupant	Level/Grade	Annual Salary	Salary Total	Salary Difference (%)
Total					Total					

- In the event that a position is vacant, the Directors-General and Provincial Secretary General of the Ministry concerned must indicate whether sufficient funds have been allocated from the current financial year to enable the position to be filled, if required.
- Directors-General and Provincial Secretary General of the Ministry must Insert salary figure for proposed grade.
- Also include, below the table, a statement indicating the amount required to fill the proposed positions in the current financial year.
Example: If new position is to be filled in July, only 6/12th of the full year funding figure will be required in the current financial year.

4. Implementation Plan:

(Insert details of how the proposal, if approved by the PSC, will be implemented)

- Indicate whether funds available from the current financial year's budget to proceed with the immediate filling of the new positions if approved by PSC?
- Provide details of how it is proposed to fill the positions;
Example: indicate whether the position/s will be filled by transferring staff member at same grade, acting arrangements (pending advertisement), temporary or contract appointments

5. Recommendation:

- It is therefore recommended that the PSC approve:

(Insert details of what the Ministry/Department want the PSC to approve)

Director's Name, Signature and Date

Attachments:

- *Organization Structure – Current Structure approved by OPSC (must have OPSC stamp) & proposed structure*
- *Job descriptions- New positions only*
- *Any other supporting documents*

I support/endorse the above proposal from the Director, **(insert title of Director)**

Directors-General and Provincial Secretary General

Name:

Signature:

Date:

PUBLIC SERVICE COMMISSION JOB DESCRIPTION FORM

PUBLIC SERVICE COMMISSION JOB DESCRIPTION FORM [PSC Form 2.2]

Ministry to prepare and request approval by Public Service Commission. Please contact Organizational Development Unit (ODU) officers of the Office of the Public Service Commission (PSC) if you need assistance to complete this form Note: Not all sections need completion i.e. for junior officers

1	Position Title		
2	Remuneration Level (Proposed by Ministry but approved by PSC)		
3	Post Number Ministry to allocate number but PSC to approve.		
4	Ministry		
5	Department or Agency		
6	Location		
7	Purpose Rationale for post establishment		
8	Reports directly to: Title of post to determine reporting line clearly	9	Supervises Provide titles & levels to indicate supervisory responsibilities
10	Frequent Internal Contacts Means clients within the Ministry	11	Frequent External Contacts Means clients from other sector stakeholders & agencies
12	Contribution to Gov Planning Priorities Impact of this position on progression of NSDP targets and/or Ministry plans & policies		
13	Special Conditions (if any) Unusual or dangerous work, unusual work hours or equipment use		
14	SELECTION CRITERIA Technical Competencies, Generic Competencies and Leadership Competencies are to be considered		
14.1	Qualification Provide highest qualification i.e. Masters, Bachelors, Diploma, Certificate		
14.2	Expertise Area Provide type of Degree or Diploma i.e. Law, Public Administration, Education		
14.3	Experience Indicate years of practical experience in specific sector/s		
14.4	Technical Competencies Refer to Guidelines provided by ODU		
14.5	Generic Competencies Refer to Guidelines provided by ODU		
14.6	Leadership Competencies Refer to Guidelines provided by ODU		
14.7	Behavioural Competencies Refer to Guidelines provided by ODU		

15. CRITICAL SUCCESS FACTORS

This is an important section requiring very careful development. The KRAs, KTAs and KPIs should be designed to deliver Ministry objectives in Corporate and Business Plans and progress NSDP targets. They must be SMART (Specific Manageable Achievable Realistic & Time Bound). For lower-level JDs, only 5 KRAs may be needed but as responsibilities increase, so too will KRA numbers. This section provides for monitoring of delivery and is the basis for Performance Review Appraisals and Work Schedule Plans.

	Key Result Areas (KRAs) Indicate key work areas to deliver required results		Key Task Areas (KTAs) Indicate for each KRA general guidelines for the tasks/activities to be undertaken to deliver the KPIs for each KRA		Key Performance Indicators (KPIs) Indicate the item, action, report that proves the activity is delivered on time as specified
15.1		15.1.1		15.1.2	
15.2		15.2.1		15.2.2	
15.3		15.3.1		15.3.2	
15.4		15.4.1		15.4.2	
15.5		15.5.1		15.5.2	

Any other duties reasonably requested by Supervisor:

16 ENDORSEMENT WITH NAME, SIGNATURE & DATE All signature blocks must be signed, stamped and dated for Job Description to be valid		
16.1	Prepared in Ministry by	Signed: _____ Name: _____ Date: / / Title: _____
16.2	Certified by DG or Delegate	Signed: _____ Name: _____ Date: / / Title: _____
16.3	Certified by OPSC	Signed: _____ Name: _____ Date: / / Title: _____
17 DECISION BY PUBLIC SERVICE COMMISSION		
Decision: Approved Name: _____ Signed _____ Date of Decision: / / Title: Secretary Public Service Commission (PSC)		

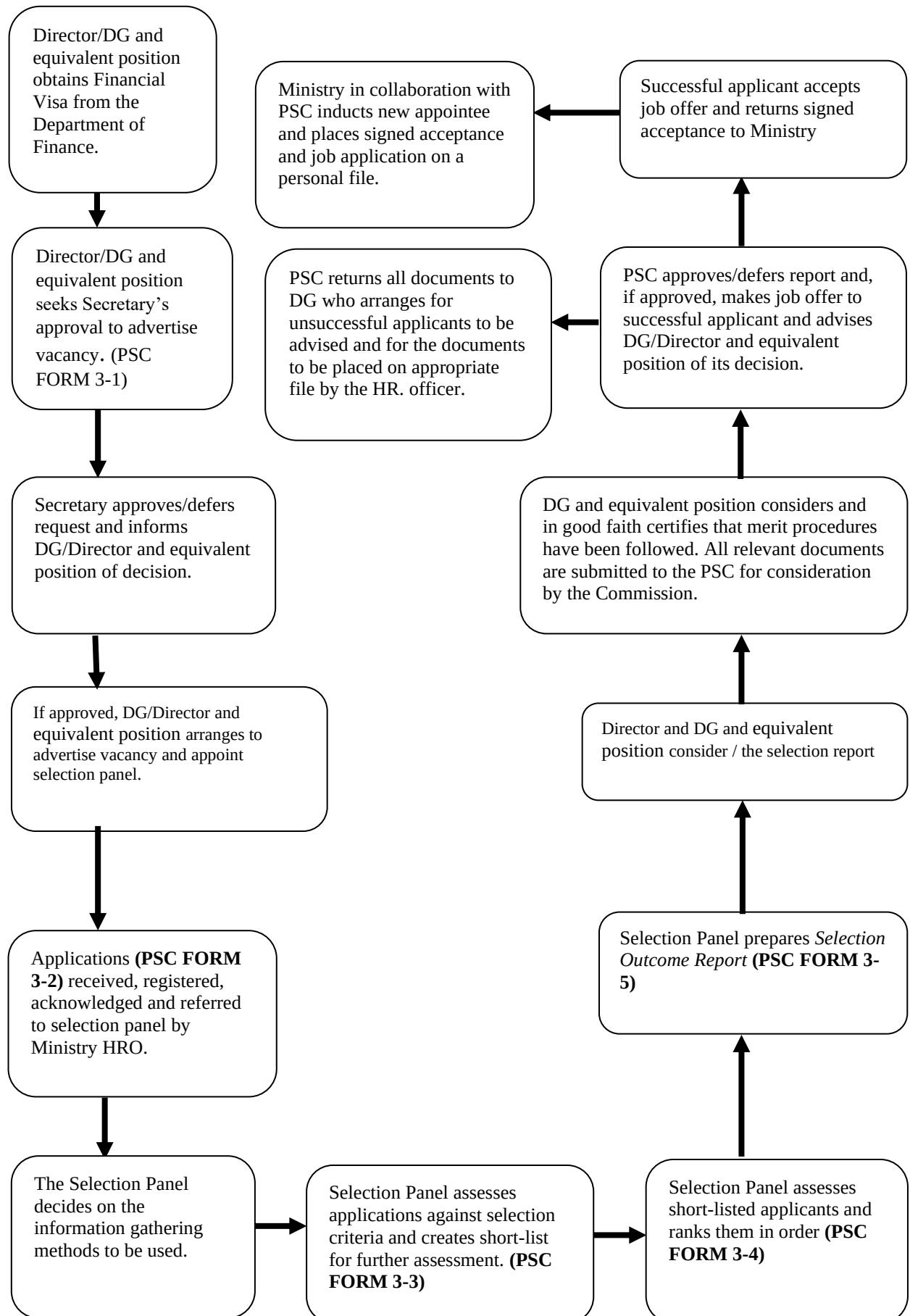
CHAPTER 3 – Recruitment

1.Introduction

- (1) The Commission must ensure that the selection of persons for appointments and promotions is based on merit, as required under subsections 15(2), (3) and (4) of the *Public Service Act*. The Commission may also approve minimum qualifications for specific positions or class of positions.
- (2) To determine the best applicant for a vacant position, transparent, accountable, impartial and fair selection procedures must be in place. These procedures should ensure:
 - (a) all potential applicants have reasonable access and opportunity to apply for vacancies;
 - (b) applicants are given consistent information about the selection process in all three official languages (English, French, Bislama);
 - (c) all applications are assessed against the same selection criteria and panel guidelines;
 - (d) recruitment panels must ensure fair and unbiased selection decisions using information gathering methods appropriate to the nature of the advertised job;
 - (e) the selection process must be unbiased, free from political interference, religious affiliation, or familial or friendship relationships and any form of discrimination.
- (3) Recruitment and selection decisions should align with the short and long-term objectives of the Ministry and Department, along with the goals set forth in the various pillars of NSDP and current government policies. The primary goal of recruitment is to build a high-quality workforce capable of efficiently delivering government programs and services, thereby enhancing overall service delivery. To achieve this, recruitment practices should be efficient, cost-effective, and free from unnecessary delays while ensuring the selection of the most qualified and meritorious candidates.
- (4) To uphold the principles of merit-based selection while ensuring cost-effectiveness in the recruitment process, the procedures outlined in this chapter must be followed for standard appointments and promotions. These procedures are also applicable for recruiting the positions of the Secretary of the Public Service Commission, a Director-General, a Director or equivalent position, a Provincial Secretary General or Town Clerk. Additionally, the prescribed procedures in Section 17B, Subsection 18(2), Section 18 B and Section 18 E of the *Public Service Act* also apply.
- (5) In specific situations, appointments may be exempted from the prescribed competitive process, as outlined in Section 2 of this chapter. However, a selection decision must, at a minimum, rely on a transparent and equitable assessment to identify a suitable person for the job. This decision must also be publicly defensible. Specific categories of people eligible for appointment are identified in Section 2.11 of this chapter.

A flow chart with an overview of the standard recruitment process required by this policy is provided on the next page. Additionally, a Recruitment Check List is provided in Section 3 of this chapter.

Overview of the Public Service Recruitment Process



2. Recruitment Process

- (1) A Ministry and the OPSC must maintain accurate records of recruitment actions conducted within the Ministry. In cases involving recruitment for positions such as Director-General, Director, or their equivalents, as well as the Secretary and Provincial Secretary General, the OPSC is responsible for maintaining appropriate records.
- (2) Job vacancies must be widely advertised by the Ministry, ensuring that job-related information is reasonably accessible to the public, both within or outside Vanuatu.
- (3) A Director-General, Director or equivalent position along with the Provincial Secretary General, must establish a selection panel for positions below the Senior Executives. The panel should have appropriate and balanced representation, as outlined in the Panel guideline, to ensure fair consideration of all applicants.
- (4) The selection panel must decide on the appropriate information gathering methods for assessing applicants for the vacancy.
- (5) The decisions of a selection panel must be based on job-related selection criteria, ensuring fairness, transparency and the absence of discrimination. All decisions must be clearly documented and publicly defensible;
- (6) After completing the selection process, selection panel must submit its recruitment outcome report to the relevant Director-General, Director and equivalent position of the Ministry or Department.
- (7) It is emphasized that a Director-General or Director or equivalent position should not alter the decision of the Selection Panel, except in situations where the Director-General alleges grounds of discrepancies in the process. In such cases, the Director-General must submit the report to the Commission for consideration.
- (8) Without limiting subsection 25(4) of the *Public Service Act*, the Commission may, based on the recommendation of a Director and Director-General, or equivalent position, appoint an officer to a higher post without advertising the position. This is contingent on the officer having acted in that post for at least six (6) months and subject to the officers' performance appraisal and good conduct.
- (9) A *Selection Outcome Report* must be submitted by a Director-General and, or equivalent position to the Commission for approval after the completion of any recruitment action within their Ministry.

These procedures are further detailed in the corresponding numbered sections below.

2.1 Criteria to fill the vacancy

- (a) For each vacant position that is to be advertised, a Director and Director-General or equivalent position must outline the selection criteria for the job vacancy on the *Request to Advertise a Vacancy Form (PSC FORM 3-1)*, and attach copies of:
 - i) Current approved Job Description; and

- ii) Current approved Ministry and Department's Organizational structure that clearly shows where the position fits; and
 - iii) Job advertisement; and
 - iv) Cooperate Plan or new government policy; and
 - v) Approved Financial Visa from the Department of Finance.
- (b) In the case where a previously occupied position becomes vacant, the Director-General must advertise the position within 15 days of it becoming vacant, without following the process outlined in paragraph (a). The advertisement should be for the first (1) level of the salary band.
 - (c) An approved and budgeted new position within a department or Ministry must be advertised and filled within the initial six (6) months (January to June) of the corresponding financial year.

2.2 Keeping Accurate Records of The Recruitment Process

- (a) A Director-General must arrange for a separate *Recruitment File* to be created in electronic and manual format by the Ministry HRO for each job vacancy. The File is to be kept in the Ministry for a period of 6 months, after which it can be put in the archive system.
- (b) In the case of the recruitment of a Director-General, Director and equivalent position, Provincial Secretary General, Secretary, and Town Clerks, the file must be created by the Office of the Public Service Commission and be kept permanently.
- (c) Each recruitment file must contain the following documentation:
 - i. a copy of the job vacancy advertisement; and
 - ii. a copy of the job description; and
 - iii. a copy of the Ministry or Department's Organizational structure that clearly shows where the position fits; and
 - iv. a register from the Ministry or Department noting down the name of each applicant and the date their application was received and acknowledged; and
 - v. all job applications received for the particular vacancy, with the prescribed *Individual Assessment Form- (PSC FORM 3-3)* attached to the applications (Note that the job application and *Individual Assessment Form* for the successful applicant should be placed on a personal file, once the Commission has approved the *Selection Outcome Report*, together with a copy of the appointment letter and the successful applicant's acceptance of the offer); and
 - vi. copies of all documentation sent to the Commission regarding the job vacancy, including the *Approval to Advertise Form- (PSC FORM 3-1)* and fill the *Comparative*

Assessment of Applicants Form- (PSC FORM 3-4) and the Selection Outcome Report Form-(PSC FORM 3-5); and

- vii. all documents relating to the job vacancy received from the Commission or others; and
- viii. any other relevant documentation (e.g. copies of the acknowledgment and unsuccessful letters).

2.3 Advertising the Job Vacancy, Providing Job Information and Acknowledging Receipt of Applications

2.3.1 Advertising the Job Vacancy

- (a) A vacancy must be advertised in a manner that ensures a reasonable number of potentially suitable applicants have the opportunity to view the advertisement and access job-related information.
- (b) Job vacancies must be advertised using methods that increase public awareness of the vacancies, such as advertising in local and regional newspapers, Government Intranet, other social media platforms (Facebook or Wok I Kik), the Ministry and Department's Website including PSC website. Additionally, consideration must be given to the following means of advertising:
 - i) placing advertisements in specialist journals or magazines relevant to the advertised position;
 - ii) circulars distributed throughout the Ministry and Departments via the Government Intranet;
 - iii) placing vacancy announcements through online advertisements;
 - iv) displaying notice of advertisements on public, community or any academic institutions notice board.
- (c) Vacancies for Directors-General, Directors or equivalent positions, Provincial Secretary General, Secretary and Town Clerk must be advertised in accordance with paragraphs 17B (a) and (b), paragraphs 18(2) (a) and (b), paragraphs 18B (a) and (b) or paragraph 18E (a) and (b) of the *Public Service Act*.
- (d) For positions other than the positions listed above, applicants are to be provided with 14 calendar days to apply from the date the vacancy is first advertised.
- (e) In urgent cases, the Secretary of the Commission may, upon request from the relevant Ministry or Department approve a shorter period of not less than five days.
- (f) A job vacancy advertisement must contain the information outlined in paragraph (b) and must inform potential applicants that applications must be made using the prescribed *Public Service Job Application Form-(PSC FORM 3-2)*.

2.3.2 Providing Job Information

An information package must be provided to all potential applicants who inquire about the job. The package, at a minimum should include, *Public Service Job Application Form- (PSC FORM 3-2)*, a copy of the approved *Job Description Form- (PSC FORM 2-1)*, a copy of the current approved Organizational structure indicating the position's placement, and any other relevant information relating to the Ministry or Department and the position.

2.3.3 Acknowledging Receipt of Applications

An application received by a Ministry or Department must be recorded in a register, and an acknowledgment should be to the applicant, confirming the receipt of their application. The acknowledgment should also indicate that his or her application will be referred to the selection panel for consideration.

2.4 Establishing a Selection Panel

- (a) The establishment of a selection panel is guided by the Panel Guideline.
- (b) If a panel member has a direct conflict of interest with an applicant, the panel member must declare the conflict in writing to the convenor of the panel, who will determine whether the panel member should be replaced.
- (c) The convenor may weigh the reasons for the declared conflict. If satisfied that it won't affect the recruitment process, the convenor must inform the panel member in writing of their continuous participation.
- (d) If a panel member does not confirm or respond to his or her nomination within 3 days, he or she should be replaced by another employee appointed in writing by the Director-General, the Director or equivalent position.
- (e) A panel member must be notified of his or her replacement made under paragraph (d).

2.5 Using Appropriate Information Gathering Methods

- (a) Prior to evaluating the applications, the Selection Panel must identify suitable information gathering methods for both shortlisting and final selection of applicants. The method chosen should be clearly noted on the *Individual Applicant Assessment Form- (PSC FORM 3-3)*.
- (b) On the application closing date, the selection panel, within 14 days, must assess all applicants for the vacancy and submit a Selection Report to the Director, Director-General, or equivalent position for endorsement.
- (c) Depending on the nature of the job being advertised, various information gathering methods may be used, including but not limited to:
 - i) assessing the written application against the selection criteria;
 - ii) assessing the applicants resume;
 - iii) examining work samples provided by applicants;
 - iv) conducting interviews of the applicants (this method must be one of the methods used in the case of appointment of Director-General and Director and equivalent position, Secretary, Provincial Secretary General and Town Clerk);
 - v) administering practical job-related tests or exercises if applicable;
 - vi) obtaining written and verbal referee reports from 2 referees, with one report from the recent employer or academic institution for new graduates and the other from a

chief, church leader, or equivalent person of standing and copies of formal qualification.

- (d) While creating a short-list of applicants, methods from subparagraphs (c) (i),(ii),(iii) and (vi) generally suffices. However, for the final selection from the shortlisted candidates, additional methods may be employed based on the nature of the advertised position, as determined by the selection panel. All of these methods need to be used, providing flexibility in the selection process.
- (e) The selection panel must apply the methods under paragraph (c) in a just, fair and transparent manner.
- (f) In establishing the shortlist of applicants, the same methods must be applied to all applicants. Similarly, the range of methods used for final selection must be consistently applied to all shortlisted applicants.
- (g) The successful candidate is to be informed of the decision of the Commission by way of a formal letter.
- (h) A Ministry or Department must acknowledge in writing any candidate that has been interviewed.
- (i) The selection outcome report must be kept confidential.

2.6 Using Appropriate Selection Criteria

The selection criteria are established by the Panel Guideline.

- (a) To identify eligible candidates for the vacant position, selection panel members must assess applicants against the specified criteria.
- (b) Applicants should not be evaluated against criteria not identified in the advertisement or the Job Description at the time that the vacancy was advertised.
- (c) For a position within the Corporate Service Unit of a Ministry, the selection panel must not consider or be influenced by directives or statements from the Minister responsible, Prime Minister, a member of parliament, a Minister's representative or Political Advisor, regarding the panel's recommendations.
- (d) In shortlisting and recommending applicants for an interview, the selection panel must be provided with relevant application materials for its assessment.
- (e) The outcome of the selection process must be clearly documented, both, in relation to individual applicants and a comparative assessment of the applicants, in the following manner:
 - i) For each separately assessed application, the selection panel must fill out the *Individual Applicant Assessment Form* (PSC FORM 3-3), identifying to what degree the applicant has met the selection criteria. After completing the form, it must be attached to the relevant job application and become part of the recruitment documentation.
 - ii) After interviewing an applicant individually and rating them in order of merit, the selection panel must fill out the *Comparative Assessment of Applicants Form* -(PSC

FORM 3-4), commenting on their decision, indicating the recommended and eligible candidate for appointment by the Commission.

- (f) An eligibility list, created after ranking applicants in order of merit, may remain in force for three (3) months from the date of approval of the Selection Outcome Report (**PSC FORM 3-5**) by the Commission.
- (g) If the recommended applicant declines the offer, the Commission shall appoint the next most eligible candidate from the eligibility list referred to under paragraph (f).
- (h) If a position becomes vacant within the three (3) months following the date of appointment, a director or equivalent position, Secretary or Director-General must inform the Commission of the vacancy in writing within seven (7) calendar days, allowing the Commission to appoint the next most suitable candidate from the eligibility list.
- (i) If the position becomes vacant after a three (3) months' period following the date of appointment, a Director or equivalent position, Secretary or Director-General must inform the Commission of the vacancy and the Commission may then approve the readvertisement of the position.
- (j) To be included on the eligibility list, an applicant's scoring must be closer (not below a 5-point difference) to the recommended applicant. Scoring below a 5-point difference from the recommended applicant should be excluded from the eligibility list.
- (k) If the Commission does not appoint the recommended applicant based on the panels to the recommendation and decides to appoint from the eligibility list, it may do so if the applicant on the eligibility list has a scoring closer to the recommended applicant as provided in paragraph (j). If the eligible applicant does not have such a scoring, the Commission may approve the re-advertisement of the position and notify the relevant Director-General or Director or equivalent position of its decision.

2.7 Submission of Selection Outcome Report

- (a) A Selection Panel established within a Ministry must submit a selection outcome report and its recommendations to the Director or equivalent position and/or Director-General for review and endorsement. The selection outcome report must include all relevant documentation, including all job applications and the *Individual Applicant Assessment Form*- (**PSC FORM 3-3**) each applicant.
- (b) The Director or equivalent position and the Director-General must endorse the *Individual Applicant Assessment Forms* (PSC FORM 3-3), including the *Comparative Assessment of Applicants Form*- (**PSC FORM 3-4**), and provide their comments. Once endorsed, these two Forms (**PSC FORMS 3-3 & 3-4**) together constitute the complete Selection Report.
- (c) Except in the case of an employee working in a Minister's Office, a Director or Director-General must not consider or be influenced by any direction or statement made by a Minister, their representative or Political Adviser, in relation to any selection recommendation they endorse or make.

2.8 Certifying That Prescribed Merit Selection Methods Have Been Followed

- (a) A Director-General is responsible for ensuring that the prescribed and appropriate merit selection procedures are in place within all Departments and agencies within their Ministry. Ministry HROs are to assist the Director-General in the overall process of recruitment.
- (b) In all cases of recruitment done within a Ministry for positions below Director's level, the relevant Director-General must certify on the *Selection Outcome Report Form (PSC FORM 3-5)* that prescribed merit selection methods have been used to undertake the selection process.
- (c) For the purpose of this certification, "prescribed and appropriate merit selection procedures" means the selection procedures outlined in this Staff Manual, including the Panel Guideline, unless a particular recruitment action has been exempted from these procedures by the Public Service Commission or the *Public Service Act*.
- (d) In the case of recruitment for Directors or equivalent positions and Directors-General, such certification must be provided by the Convener of the selection panel established by the PSC.
- (e) A Selection Outcome Report must not be approved by the Commission without this certification under this section.

2.9 Permanent Appointment of an Employee to a Higher Post Without Advertising the Vacancy and During the Restructure Process

2.9.1 Permanent Appointment of An Employee to a Higher Post Without Advertising the Vacancy

- (a) If an employee has been acting in a higher post for a continuous period of at least six (6) months, the Commission may appoint that employee to the post on a permanent basis, provided that the employee's performance has been very satisfactory to excellent during their tenure of acting appointment against the position, as indicated in their performance appraisal.
- (b) The Commission may make this appointment under paragraph (a) if it is satisfied that the merit and equity criteria under subsections 25 (3) and (4) of the Public Service Act have been met.
- (c) A Director-General, the Secretary, a Director, or an equivalent position may recommend to the Commission to directly appoint the employee referred to above in line with the succession plan of the Department or Ministry. In doing so, the Commission must scrutinize the recommendation and approve this appointment.

2.9.2 Permanent Appointment of An Employee to A Higher Post Without Advertising the Vacancy During the Restructure Process

- (a) If the Commission approves the up-grading of a position currently held by an employee, the Director or Director-General, or an equivalent position may approve the incumbent of the upgraded position to be appointed to the new position in an acting capacity for a period not exceeding six (6) months.

- (b) Within six (6) months period specified in paragraph (a), the Director-General, the Director or equivalent position must take action to substantively fill the position. Options available in this regard include:
 - (i) If, upon assessment by the Supervisor, the employee meets the criteria of the newly upgraded position, they may be recommended for appointment by the Commission; or
 - (ii) If, upon assessment by the Supervisor, the employee does not meet the criteria of the newly upgraded position, the position must be advertised in accordance with the policy and procedures contained in this Chapter.
- (c) If the incumbent of the regraded position is unsuccessful in being selected for the upgraded post following advertisement, the employee must be transferred to a vacant funded post (at the same level) within the Ministry or to another Ministry, subject to the agreement of the Directors-General or equivalent positions and the approval of the Commission. If no position can be found for the employee, approval of the Commission may be sought to declare the employee redundant. In such cases, the entitlements of the employee on cessation of employment with the public service are as specified in Chapter 7 of this Manual.

2.10 Obtaining approval of the Selection Outcome Report

- (a) A Director-General must submit all *Selection Outcome Report Form- (PSC FORM 3-5)* completed in the prescribed format to the Commission for consideration. Each *Selection Outcome Report Form- (PSC FORM 3-5)* must have attached to it the completed *Comparative Assessment of Applicants Form- (PSC FORM 3-4)* prepared by the selection panel, including job applications and *Individual Assessment Form- (PSC FORM 3-3)* for applicants interviewed for the vacancy.
- (b) If the Commission approves the recommendations made in the *Selection Outcome Report*, the Secretary must:
 - i) inform the Director-General and Director-equivalent positions in writing;
 - ii) send a written job offer to the successful applicant, along with an acceptance letter;
 - iii) notify in writing the applicants who have been placed on the eligibility list;
 - iv) return all documents as referred to in paragraph (a) above to the Director-General.
- (c) If the offer under paragraph (b) (ii) is declined, an offer should be made to the next eligible candidate as per paragraphs 2.6(j) and (k) if they are recommended in the *Comparative Assessment of Applicants Form*.
- (d) Under Section 23 of the *Public Service Act*, the Commission is the sole authority for making appointments to the Public Service. No job offer or appointment is to be made by *any* other person (in this case all heads of Ministry, Directors or equivalent positions, Secretary and political appointees) or Organization, either within or outside the Public Service. In exercising this function, the Commission may:
 - (i) consult and take into consideration the views and requirements of the Director-General and/ or Director or equivalent position affected by the appointment; or

- (ii) act independently but have regard to its obligation to act as a good employer.
- (e) The successful applicant must be provided with the terms and conditions of employment and a copy of the Code of Conduct along with the job offer letter. The applicant is required to formally accept the offer and the specified terms and conditions by signing the acceptance letter of offer and returning it to the Ministry HRO prior to commencing duties.
- (f) The Director-General, Director or equivalent position must arrange for:
 - (i) unsuccessful shortlisted applicants to be advised in writing of the outcome of the selection process;
 - (ii) the induction of the new staff member (once the appointment has been confirmed);
 - (iii) the creation of a personal file for the new staff member, which, at this stage, should contain the person's job application form, the *Individual Applicant Assessment Form (PSC FORM 3-3)*, the job offer letter signed by the Secretary, and the signed acceptance of the job offer;
 - (iv) the placement of all other documents relating to the recruitment process on the Recruitment file created at the commencement of the process.
- (g) The Recruitment file can be archived after 12 months of the financial year from the date of appointment. However, the Personal file of the staff member must be retained permanently.
- (h) If a staff member is transferred from one Ministry or Department to another Ministry or Department, HRO of the Ministry or Department must ensure that the personal file of the staff member is transferred accordingly to the relevant Ministry or Department at a later date, and a copy of the same must be kept.
- (i) If the Commission does not approve the *Selection Outcome Report's* recommendations, the Secretary must:
 - (i) inform in writing all interviewed applicants of the Commission's decision; and
 - (ii) inform in writing the relevant Director or Director-General or equivalent position of the Commission's decision; and
 - (iii) transfer the recruitment file to the relevant Ministry or Department.

2.10.1 Recruitment Process Checklist

(To be completed by Ministry HRO and retained on the top of each Recruitment File)

	YES	NO
1. When requesting approval to advertise and fill a vacancy, has the relevant Director-General provided appropriate documentation in the prescribed format?	☐	☐
2. Has the Secretary of the Commission, approved the filling of the vacancy (PSC FORM 3-1) and the relevant Director-General been informed?	☐	☐
3. Has the vacancy been advertised at a level appropriate to the nature of the job and has the Director-General established an appropriate Selection Panel?	☐	☐
4. Have all applications received been on (PSC FORM 3-2) , signed by the applicant, registered, acknowledged and the applications forwarded to the Selection Panel?	☐	☐
5. Has the Selection Panel agreed on which information-gathering methods to use appropriate to the nature of the job vacancy in relation to shortlisting and final selection?	☐	☐
6. Have all the applications been assessed and short-listed against the selection criteria using appropriate information gathering methods?	☐	☐
7. Has an <i>Individual Applicant Assessment Form</i> (PSC FORM 3-3) been completed for each applicant and attached to job application?	☐	☐
8. Have the short-listed applicants been assessed against the selection criteria using appropriate information gathering methods?	☐	☐
9. Has a <i>Comparative Assessment of Applicants Form</i> (PSC FORM 3-4) been completed in the prescribed PSC format recommending the successful applicant?	☐	☐
10. Has the <i>Selection Outcome Report Form</i> (PSC FORM 3-5) been endorsed by the relevant Director of Department and Director-General?	☐	☐
11. Has the <i>Selection Outcome Report</i> been <i>deferred</i> or <i>approved</i> by the PSC and the Secretary of OPSC advised the Director-General of the decision and/or offered the position to the successful applicant?	☐	☐
12. If <i>deferred</i> by the PSC, has the Secretary of the Commission consulted with the relevant Director-General on any appropriate action required?	☐	☐
13. If <i>approved</i> by the PSC, has the successful applicant accepted the job offers by signing a copy of the job offer letter and all relevant documents placed on a Personal file?	☐	☐
14. Have all eligible and unsuccessful shortlisted applicants been advised	☐	☐

and all relevant documents placed on the Recruitment file?

15. All formal qualification from the applicants needs to be certified by Commissioner of Oath.

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2.11 Special Cases of Recruitment

(a) Unless otherwise determined by the Commission from time to time, the recruitment policy specified in this Manual does not need to be applied in full to the following categories of staff members, subject to any merit requirements of the Public Service Act being met:

- (i) any person engaged temporarily to work in a position in a Ministry's office;
- (ii) temporary salaried employees engaged under Section 30 of the *Public Service Act* for a period no longer than six (6) months;
- (iii) contract employees must not be engaged more than four (4) years, as per section 15 of the Employment Act [CAP 160];
- (iv) daily-rated workers must not be engaged more than four (4) years, as per section 15 of the Employment Act [CAP 160];
- (v) acting in the position at the same salary level is to be filled by an employee (outside appointments remain subject to this policy);
- (vi) an acting appointment at a higher salary level where the duration of appointment, or series of appointments, will not exceed six (6) months;
- (vii) the permanent appointment of an employee to a higher post in circumstances specified in section 2.9 of this chapter;
- (viii) a transfer authorized under section 21(3) and 26(1) of the *Public Service Act* where the position is at the same salary level;
- (ix) an employee appointed or transferred to another position as a result of actions taken under section 27 of the *Public Service Act*. Such appointments should be at the same salary level;
- (x) an expatriate engaged on a contract basis to meet a local staff shortage, subject to the original request and appointment being approved by the Commission;
- (xi) an expatriate engaged through *Government Contracts and Tenders Act* [Cap. 245].

(b) All appointments under paragraph (a)(i)(ii)(iii) and (iv) above must be engaged under contract of employment if service is to be provided for more than 14 calendar days.

2.11.1 General Conditions of Eligibility for Appointment

- (a) A person may not be appointed to a position in the Public Service unless he or she:
 - (i) is a citizen of Vanuatu.
 - (ii) fulfills the physical requirements for the appointment, if applicable.
 - (iii) is at least 18 years of age.
 - (iv) is under 60 years of age, except for appointment on contract.

- (v) has a working knowledge of English, French, and Bislama.
 - (vi) is of good and acceptable character.
- (b) Despite paragraph (a), a person:
- (i) with a criminal conviction may be considered for appointment if he or she has not been convicted of an offence for a period of at least four (4) years from his or her previous conviction, and there is no reason to believe that he or she is not fit for appointment to the Public Service, or as the Commission may determine;
 - (ii) who is dismissed on a compulsory basis or resigned from the Public Service as a result of a disciplinary matter may be considered for reappointment if the date of dismissal or resignation is two (2) years from the new proposed appointment date, or as the Commission may determine.
 - (iii) who voluntarily resigns from the Public Service in good faith may be reappointed after one (1) year from the date of his or her resignation.
- (c) The PSC may establish a pool of retired employees to retain and utilise their skills and knowledge for future employment.
- (d) The Commission may determine any other general conditions of eligibility under this section.

2.11.2 Temporary Salaried Employees

- (a) The eligibility of a temporary salaried employee to become a permanent employee must be based on a Distinguish Performer or High Performer assessment for six (6) months;
- (b) If a position is vacant and budgeted for, and a Director-General, Director, or equivalent position intends to employ a person on permanent basis against the vacant position, the person may be engaged directly as a temporary salaried employee.
- (c) For the avoidance of doubt, a contract employee must not be directly appointed to a permanent position.
- (d) Under no circumstances are contract employees to commence duty prior to the approval of the Commission. The Commission may terminate any contract made without its prior approval.
- (e) Temporary salaried employees may be engaged for a period not exceeding six (6) months if there is an approved established position. The engagement is typically to cover the absence of an employee during periods of leave or to fill a temporary vacancy pending recruitment process.
- (f) Paragraph (a) does not apply to the following categories:
 - i) Secondment;
 - ii) Study leave;
 - iii) Sabbatical leave;

- iv) Leave without pay.
- (g) All requests to engage temporary salaried employees must be submitted to the Commission for approval on the *Request to Employ a Temporary Salaried Employee, a Daily Rated Worker or a Contract Employee Form* -(PSC FORM 3-7) and be supported by a Financial Visa, a *Job Application Form* -(PSC FORM 3-2) completed by the proposed employee, and the approved *Job Description Form* -(PSC FORM 2-1) for the position to be occupied. Under no circumstances should temporary salaried employees commence duty prior to the approval of the Commission.
- (h) If approved by the Commission, the Secretary is to make an offer of employment to the recommended applicant, including his or her contract of employment.
- (i) The code of conduct is to be provided with the job offer letter. The applicant must sign and return the acceptance of offer letter, including the contract of employment, to the Ministry or Department HRO, acknowledging acceptance of the offer under the terms and conditions advised prior to taking up duty.
- (j) The Secretary is to inform the Ministry or Department HRO of the decision by providing the original approved *Request to Employ a Temporary Salaried Employee, a Daily Rated Worker or a Contract Employee Form* - (PSC FORM 3-7). Copies of these documents are to be retained by the OPSC and placed on a personal file.
- (k) A person must not be employed as temporary salaried employee unless he or she is:
 - (i) able to perform the requirements of the job; and
 - (ii) under 18 years of age; and
 - (iii) over 60 years of age; and
 - (iv) of good character; and
 - (v) employed for a period of more than six (6) months.

2.11.3 Recruitment of Daily Rated Workers

- (a) Daily rated workers are employed in situations where the work required, due to its temporary, fluctuating, or special nature does not justify the permanent employment of an individual.
- (b) Daily rated workers are not required to undergo the formal recruitment processes outlined in this Manual.
- (c) Whenever the need arises to employ daily rated workers for more than 14 calendar days, it is mandatory to invite applications from multiple individuals. A comparative assessment of the applicants against the Job Description criteria should be conducted by a representative of the Department or Ministry with technical knowledge, in collaboration with the Ministry or Department HRO.
- (d) Daily rated workers may be employed for a maximum period of 30 calendar days, provided there is adequate budgetary provision by the Department or Ministry.
- (e) Requests to employ daily rated workers must be submitted to the Commission for approval using the *Request to Employ a Temporary Salaried Employee, a Daily Rated Worker or a*

Contract Employee Form -(PSC FORM 3-7). This submission must be supported by a *Job Application Form -(PSC FORM 3-2)* completed by the staff member, a *Job Description Form- (PSC FORM 2-1)*, and an approved financial visa in cases where the proposed duration of the employment exceeds six (6) months. Under no circumstances should daily rated workers commence duty before Commission approval.

- (f) If approved by the Commission, the Secretary shall make an offer of employment to the recommended applicant, including the contract of employment.
- (g) The code of conduct should be provided with the job offer letter. The applicant must sign and return the acceptance of the offer letter, including the contract of employment, to the Ministry or Department HRO, acknowledging acceptance of the offer under the terms and conditions advised prior to taking up duty.
- (h) The Secretary shall inform the Ministry or Department HRO of the decision by providing the original approved *Request to Employ a Temporary Salaried Employee, a Daily Rated Worker or a Contract Employee Form - (PSC FORM 3-7)*. Copies of these documents will be retained by the OPSC and placed on a personal file.
- (i) To be employed as a daily-rated worker, a person must:
 - i) be able to perform the requirements of the job;
 - ii) be at least 18 years of age or older;
 - iii) be under 60 years of age;
 - iv) exhibit good and acceptable behaviour; and
 - v) be employed for a period not exceeding four (4) years.

2.11.4 Engagement of Contract Employees

- (a) Contract employees other than a Director General or equivalent position may be engaged for a period of 6 months at intervals for up to a maximum of four (4) years for normal contract positions. This is applicable when the nature of the work to be performed involves short-term specialist services with specific Terms of Reference.
- (b) A person employed under contract is not an employee.
- (c) Any change of status of employment from contract to temporary and to permanent status is to be referred to the Commission for consideration and approval.
- (d) The Commission may consider and approve changes of status of employment from contract to temporary and to permanent status based on a formal request from a Director or equivalent position or Director-General. The requesting party must provide the following information:
 - (i) the person has a proven employment record and necessary qualification and experience for the position; and
 - (ii) Performance appraisal with the rating of 80% or above; and
 - (iii) Copy of Job descriptions of relevant existing position.
- (e) All requests to engage contract employees are to be submitted to the Commission for approval on the *Contract Employee Form -(PSC FORM 3-7)*. The Submission must be

supported by a *Job Application (PSC FORM 3-2)* completed by the person and Terms of Reference.

- (f) If approved, the relevant Director-General, Director or equivalent position, and the person must sign the Agreement of Service. Copies of these documents will be retained by the OPSC and placed on a personal file.

2.11.5 Minimum Content of Job Vacancy Advertisements

The Job Vacancy Advertisement must include the following:

- (a) name of the relevant Ministry, Department, and Section/Unit related to the job vacancy.
- (b) the job title, recently approved salary level, appropriate checked position number, and the location of the advertised job.
- (c) the duties of the position appearing in the advertisement should be based on the approved Job Description. The advertisement should cover the duties of the position in the form of a general or abbreviated statement. [NOTE: *This is not required if an information package is available providing this information*].
- (d) the selection criteria should summarise the essential skills, competencies, knowledge, qualifications and experience required for the position. A distinction needs to be made between those requirements considered essential to perform the duties of the position and those which are desirable. [NOTE: *This is not required if an information package, including the job description form and a PSC job application form is available providing this information*].
- (e) essential qualifications are educational and professional qualifications that must be possessed by the occupant to discharge the duties and responsibilities of the position (e.g. solicitor or lawyer, medical practitioner etc.). These qualifications should be included in the advertisement if the qualifications are required for the position.
- (f) the HRO's within the Ministry or Department shall be the contact employee to provide additional information about the position and an information package, including the job description form and a PSC job application form to prospective applicants.
- (g) the advertisement must inform potential applicants that they have to submit a completed *Public Service Job Application Form* when applying for a vacancy in the Public Service.
- (h) in most cases, the closing date should be fourteen (14) calendar days after the day of first publication of the job vacancy advertisement and twenty-one (21) calendar days for senior executive positions. When setting a closing date, consideration needs to be given to the access of all prospective applicants to the advertisement (e.g. those in remote areas). In such cases, an extended closing date should be considered.
- (i) the postal and email address of Ministry or department must be included in all advertisements to enable applicants to address their applications.
- (j) applications may be submitted in English, French or Bislama.

2.11.6 Code Of Conduct

The "Code of Conduct" governing the actions and behaviour of a staff member of the public service is contained in Part V, Sections 32, 33, and 34 of the *Public Service Act*. It is compulsory that all

staff members appointed to any position within the public service must sign a *Non Disclosure Form (PSC Form 3-8)* and *Code of conduct Form (PSC Form 3-9)*.

FORMS FOR CHAPTER 3: RECRUITING AND SELECTING STAFF

APPROVAL TO ADVERTISE A VACANCY FORM

JOB TITLE: _____ POST NO. _____

SALARY VT. _____ GRADE: _____ LOCATION: _____

MINISTRY: _____ DEPARTMENT: _____

ADDITIONAL INFORMATION AND DOCUMENTS REQUIRED:

- 1 Has a Job Description been developed for the position? (The Job Description must be an accurate description of the duties of the post. Please attach a copy to this form).
- 2 Has an Organization chart been developed that clearly shows where the position fits into the Department's structure? *(Please attach a copy of the PSC approved Organization chart and circle the vacant position for which approval is being requested to this form).*
- 3 What are the selection criteria for the position? (Please list the selection criteria from section 17 of the job description form.).
 1. _____
 2. _____
 3. _____
 4. _____
 5. _____
 6. _____
- 4 Has a Job Advertisement been developed for the vacancy? (Please prepare a Job Advertisement for advertising the vacancy and attach a copy. Please note that the selection criteria placed in the advertisement must be the same as the selection criteria identified in section 3 above).
- 5 Has a Financial Visa from the Department of Finance been obtained for this vacancy, stating that there is sufficient funding available for the position? *(Please attach a copy).*

I certify that the attached *Job Description* is accurate and up-to-date and that there is sufficient funding available in the Department/Ministry's budget for this position.

Name of Director of Department_____
Signature of the Director of Department**Date:** __________
Name of the Director –General of Department_____
Signature of the Director-General of Ministry**Date:** __________
[for OPSC use only]

Date request received: _____

Approved/Not approved - Secretary, OPSC, Signature: _____ **Date:** _____

Ministry informed on: _____ **Position Advertised on:** _____

PUBLIC SERVICE JOB APPLICATION FORM

A separate application must be submitted for each job you apply for.

1. DETAILS OF JOB VACANCY:

JOB TITLE: _____ POST NO: _____

LOCATION: _____ MINISTRY: _____

DEPARTMENT: _____

2. PERSONAL DETAILS:

NAME: _____

ANY OTHER NAME YOU ARE KNOWN AS: _____

MAILING or EMAIL ADDRESS: _____

DATE OF BIRTH: _____ (Attach certified copy of birth certificate)

MALE: _____ FEMALE: _____ NATIONALITY: _____

3. ACADEMIC QUALIFICATION:

(List Three Highest RELEVANT Academic Qualification you have attended in chronological order starting with the latest. Attach certified copies of Academic qualifications.)

NAME OF ACADEMIC INSTITUTION	FROM	TO	QUALIFICATION OBTAINED

4. TRAININGS:

*(List **RELEVANT** trainings you have attended and include any short courses in chronological order starting with the latest. Attach certified copies of training certificates that you have.*

NAME OF INSTITUTION / ORGANIZATION	FROM	TO	RECOGNITION / CERTIFICATION OBTAINED

5. LANGUAGE ABILITY: *(Please tick the appropriate box. DO NOT attach any certificates).*

LANGUAGES	WRITTEN			SPOKEN		
	Good	Basic	None	Good	Basic	None
English						
French						
Bislama						

6. PREVIOUS EMPLOYMENT:

(Please list recent, relevant previous employment in chronological order starting with your latest job. Attach a separate piece of paper if more space is required. Please also attach your resume or CV and any work or personal references you want us to see).

Organization	Position	From	To	Reason for leaving

6. SUPPORTING STATEMENT: Please attach a written statement of up to 3 pages stating how you satisfy the selection criteria specified in the job description/advertisement.

Wherever possible you should relate this statement to the duties, responsibilities and qualifications required for the position, so please be as specific as possible in describing how your experience and qualifications make you suitable for the job. You must show the Selection Committee how you are specifically suited to the job and the best applicant. If you do not provide this statement, your application may not be considered by the Selection Committee.

7. REFEREES: Please provide the names and phone numbers of three relevant work referees:

1. Name: _____ Daytime Phone: _____

2. Name: _____ Daytime Phone: _____

3. Name: _____ Daytime Phone: _____

8. CRIMINAL RECORDS CHECK: Do you have a criminal record; any criminal convictions; or any current legal proceedings against you?: NO YES *(please CIRCLE answer).*
If yes, please provide details on a separate piece of paper in a sealed envelope and attach it to this form. This information will be kept confidential and only be seen by the Selection Committee.

9. CERTIFICATION AND AUTHORISATION: I hereby certify that the information given in my job application is true and correct. I also acknowledge that if I am appointed on the basis of any false information that I provide, my appointment will be revoked by the Public Service Commission. I also authorise the Selection Committee for the job or the relevant Ministry to undertake any necessary checks to confirm the information provided by me.

10. SIGNATURE: _____ **DATE:** _____

INDIVIDUAL APPLICANT FIRST ASSESSMENT FORM

This form is to be filled out by the Selection Committee for the purpose of short-listing and any further assessment. A completed form is to be attached to each separate job application.

JOB TITLE: _____ GRADE: _____ POST No: _____

MINISTRY: _____ DEPT: _____ LOCATION: _____

APPLICANT'S NAME: _____

SECTION 1: ASSESSMENT OF APPLICANT AGAINST SELECTION CRITERIA

(In each row, write down one of the selection criteria. Generally, there should be no more than six)

1.											Score
Poor	fair			good		excellent		outstanding			
0	1	2	3	4	5	6	7	8	9	10	
2.											Score
Poor	fair			good		excellent		outstanding			
0	1	2	3	4	5	6	7	8	9	10	
3.											Score
Poor	fair			good		excellent		outstanding			
0	1	2	3	4	5	6	7	8	9	10	
4.											Score
Poor	fair			good		excellent		outstanding			
0	1	2	3	4	5	6	7	8	9	10	
5.											Score
Poor	fair			good		excellent		outstanding			
0	1	2	3	4	5	6	7	8	9	10	
6.											Score
Poor	fair			good		excellent		outstanding			
0	1	2	3	4	5	6	7	8	9	10	
											TOTAL SCORE:
47											

SECTION 2: GENERAL COMMENTS ON THE APPLICANT

SECTION 3: SELECTION METHOD USED TO ASSESS APPLICANT

Tick the box of the methods used to assess the applicant. You do not have to use all the methods, but only those the Selection Committee considers suitable for the nature of the job vacancy.

☐ Written application	☐ Resume	☐ Work samples
☐ Interviews	☐ Practical test	☐ Referee checks
☐ Other (Please describe) _____		

SECTION 4: To be short-listed for further consideration?: YES ☐ NO ☐

SECTION 5: Further consideration through referee reports?: YES ☐ NO ☐
(Generally Referee Reports would only be obtained on those applicants considered for appointment to the position)

SECTION 6: Selection Committee authorisation:

Representative: **Name** **Signature:** **Date:** _____

Department: _____
(Chair Person)

OPSC OR
Nominee: _____
(Convenor)

Independent (Other Department or Organization): _____

INDIVIDUAL APPLICANT INTERVIEW ASSESSMENT FORM

This form is to be filled out by the Selection Committee for the purpose of Interview Assessment and any further assessment.

JOB TITLE: _____ GRADE: _____ POST No: _____

MINISTRY: _____ DEPT: _____ LOCATION: _____

APPLICANT'S NAME: _____

SECTION 1: INTERVIEW QUESTIONS

(Ministry, Department to insert Questions for Interview)

1.											Score
<i>Poor</i> <i>fair</i> <i>good</i> <i>excellent</i> <i>outstanding</i>											
0	1	2	3	4	5	6	7	8	9	10	
2.											Score
<i>Poor</i> <i>fair</i> <i>good</i> <i>excellent</i> <i>outstanding</i>											
0	1	2	3	4	5	6	7	8	9	10	
3.											Score
<i>Poor</i> <i>fair</i> <i>good</i> <i>excellent</i> <i>outstanding</i>											
0	1	2	3	4	5	6	7	8	9	10	
4.											Score
<i>Poor</i> <i>fair</i> <i>good</i> <i>excellent</i> <i>outstanding</i>											
0	1	2	3	4	5	6	7	8	9	10	
5.											Score
<i>Poor</i> <i>fair</i> <i>good</i> <i>excellent</i> <i>outstanding</i>											
0	1	2	3	4	5	6	7	8	9	10	
6.											Score
<i>Poor</i> <i>fair</i> <i>good</i> <i>excellent</i> <i>outstanding</i>											
0	1	2	3	4	5	6	7	8	9	10	

SECTION 2: GENERAL COMMENTS ON THE APPLICANT

**TOTAL
SCORE:**

SECTION 3: SELECTION METHOD USED TO ASSESS APPLICANT

Tick the box of the methods used to assess the applicant. You do not have to use all the methods, but only those the Selection Committee considers suitable for the nature of the job vacancy.

☐ Written application	☐ Resume	☐ Work samples
☐ Interviews	☐ Practical test	☐ Referee checks
☐ Other (<i>Please describe</i>) _____		

SECTION 4: Further consideration through referee reports?: YES ☐ NO ☐

(Generally, Referee Reports would only be obtained for those short listed for Interview)

SECTION 5: Selection Committee authorisation:

Representative: **Name** _____ **Signature:** _____ **Date:** _____

Department: _____
(Chair Person)

OPSC OR
Nominee: _____
(Convenor)

Independent
(Other Department or Organization): _____

PSC FORM 3-4

COMPARATIVE ASSESSMENT OF APPLICANTS FORM

To be filled out and signed by the Selection Committee members and attached to the Selection Outcome Report form (PSC FORM 3-5).

JOB TITLE: _____ GRADE: _____ POST No: _____

MINISTRY: _____ DEPT: _____ LOCATION: _____

SELECTION PANEL: *(Ministry/Department Responsible for Recruitment should directly be the Panel Convener)*

Representative:	Name	Signature	Date
-----------------	------	-----------	------

Department: _____

OPSC or
Nominee: _____

Independent: _____
Other Department or Organization)

COMPARATIVE RANKING OF APPLICANTS: *(Place recommended applicant first)*

Name of Applicant	Comments
1.	
2.	
3.	
4.	
5.	
6.	

RECOMMENDED APPLICANT: _____

ELIGIBLE CANDIDATE:1. _____

2. *(if any):* _____

SELECTION OUTCOME REPORT

(NOTE: This form **MUST** be attached to the Comparative Assessment of Applicants Form (PSC FORM 3-4) completed by the Panel).

JOB TITLE: _____ GRADE: _____ POST NO: _____

MINISTRY: _____ DEPT: _____ LOCATION: _____

RECOMMENDED APPLICANT: _____

ELIGIBLE APPLICANT1. _____

2. (if any): _____

(Ranked in order of merit commencing with the next most suitable applicant)

1. **DIRECTOR OF DEPARTMENT or PSC CONVENOR** (if Director General, Director or Equivalent Position)

Comments: _____

Recommendation Supported

(Please circle) Yes/No

I certify that the merit selection procedures set out in the Staff Manual have been followed.

Name: _____

Signature: _____ Date: _____

2. **DIRECTOR-GENERAL OF MINISTRY or PSC CONVENOR** (if Director General, Director or Equivalent Position)

Comments: _____

Recommendation endorsed

(Please circle) Yes / No

I certify that the merit selection procedures set out in the Staff Manual have been followed and that sufficient funding is available in the Department's budget to fill this position.

Name: _____

Signature: _____ Date: _____

3. **Decision of PUBLIC SERVICE COMMISSION**

(This section is for OPSC records (CSU))

Date of PSC Meeting: _____ Decision: _____ Approved/Not Approved
(Please circle)

Comments: _____

PERMANENT APPOINTMENT REPORT

NOTE: This form is to be used in accordance with sections 23 and 25 of the *Public Service Act* and section 2.6.1 of Chapter 2 and section 2.9 of Chapter 3 of this Manual for the permanent appointment of a staff member who has been acting in a higher post for at least 6 months. A copy of the job description for the acting post, a financial visa, and performance appraisal is to be attached to this form.

The information in this form shall be used by the Commission to assist in satisfying itself that merit and equity criteria have been satisfied.

Staff Members Name: _____

Staff Members Substantive Position: _____ Post No: _____ Grade: _____

Staff Members Acting Position: _____ Post No: _____ Grade: _____

Employment Status: Officer/Daily Rated Worker/Temporary Salaried Employee
(Please circle relevant status)

Period the staff member has been Acting in the Position - FROM: _____ TO: _____

Does the staff member have the Required Qualifications and experience as per the job description Yes ☐ No ☐ (Attach required documents)

What languages, other than English, French, and Bislama, does the staff member speak:

What is the staff members Island or Country of Origin: _____

Gender Male ☐ Female: ☐

Why was the staff member selected to Act in the Post: Please attach report setting out reasons including experience to why the staff will occupy the Position on Permanent Basis by Director General or Director.

Are there any other staff within the Ministry below the level of the grade of the acting post who would be capable of performing the duties of the position: _____

I recommend the staff member be appointed to the Position on a permanent basis

Signature of Director Date: _____

Signature of Director-General Date: _____

Public Service Commission Decision:
(This section is for OPSC records (CSU))

Approved/Not Approved at PSC Meeting No: _____ Held on: _____

Date Director-General Advised of Decision: _____

Date Letter of Appointment issued to staff member (if approved by Commission):

REQUEST TO EMPLOY A TEMPORARY SALARIED EMPLOYEE, A DAILY RATED WORKER OR A CONTRACT EMPLOYEE

NAME OF PROPOSED EMPLOYEE: _____
(Person MUST complete and attach a Job Application (PSC Form 3-2))

IS THE PERSON EMPLOYED IN AN ESTABLISHED POST: YES ☐ NO ☐

IF YES, PLEASE PROVIDE THE FOLLOWING DETAILS:

POST TITLE: _____

POST NO: _____ POST LEVEL: _____
(Please attach a copy of the approved job description form)

IF NOT AN ESTABLISHED POST, PLEASE PREPARE TERMS OF REFERENCE AND
ATTACH TO THIS REQUEST FORM

REASONS WHY IT IS NECESSARY TO EMPLOY THIS ADDITIONAL STAFF
MEMBER:

HOW WAS THE PROPOSED EMPLOYEE SELECTED?

IS THE PERSON TO BE EMPLOYED AS A (Place a cross in the appropriate box)

TEMPORARY SALARIED EMPLOYEE ☐ (generally applicable where there is an established position and a person is required to cover the absence of an officer on leave or to fill a temporary vacancy pending recruitment action— maximum period of employment is 6 months—an approved financial visa is to be attached to this Request Form)

DAILY RATED WORKER ☐ (Applicable where there is no established position and the work to be performed by reason of its temporary, fluctuating or special nature does not warrant the employment of a permanent officer – maximum period of employment is 3 years – an approved financial visa is to be attached to this Request Form for proposed periods of employment in excess of 6 months)

CONTRACT EMPLOYEE ☐ (Applicable where it is necessary to employ short term specialist services; generally where there is no established position and where it is inappropriate for a person to be employed on a permanent basis – maximum period of employment is 6 months—an approved financial visa is to be attached to this Request Form.)

Note: If it is proposed to employ the person as a contract employee, please complete an unsigned Agreement of Service and attach to this Request Form.

PROPOSED PERIOD OF EMPLOYMENT: FROM _____ TO _____
NOTE: EMPLOYEE MUST NOT COMMENCE DUTY PRIOR TO OBTAINING THE APPROVAL OF THE PUBLIC SERVICE COMMISSION

PROPOSED SALARY LEVEL: VT _____)

CERTIFICATION

I hereby certify that:

- (1) The employment of this person is essential for the Department to maintain an adequate level of service delivery to our clients;**
- (2) Funds are available to cover the cost of salary for the full period of the proposed period of employment; and**

DIRECTOR

Name of Director: _____

Signature: _____

Name of Department: _____

Date: _____

DIRECTOR-GENERAL

I support the Director's request.

Name of Director-General: _____

Signature: _____

Name of Ministry: _____

Date: _____

TO BE COMPLETED BY THE SECRETARY, OPSC

Approved: Yes ☐ No ☐ (Place a cross in the appropriate box)

SECRETARY

Name: _____

Signature: _____ **Date:** _____

OPSC OFFICE USE ONLY (CSU)

Ministry advised of decision on: _____

Temporary Salaried Employee or Daily Rated Worker Job Offer Letter issued and a copy forwarded to the Ministry on: _____

OR

Signed Agreement of Service (for contract employee) forwarded to Ministry on: _____

Non-disclosure Agreement

This Nondisclosure Agreement (the "Agreement") is entered into by and between *the Employer and the Employee* for the purpose of preventing the unauthorized disclosure of Confidential Information as defined below. The parties agree to enter into a confidential relationship with respect to the disclosure of confidential information.

1. Definition of Confidential Information. For the purpose of this Agreement, "Confidential Information" shall include all information or materials that have or may be used against the employer.

2. Employer. For the purpose of this Agreement, the Employer refers to the Public Service Commission and may devolve its function to the Director General of the Ministry or the Director of the Department;

3. Exclusions from Confidential Information. The Employees obligations under this Agreement do not extend the information that is publicly known at the time of disclosure or subsequently becomes publicly known through no fault of the Employee;

4. Obligations of Employee. The Employee shall hold and maintain the Confidential Information in strictest confidence for the sole and exclusive benefit of the employer.

5. Time Periods. The nondisclosure provisions of this Agreement shall survive the termination of this Agreement and the employee's duty to hold Confidential Information in confidence shall remain in effect until the Confidential Information no longer qualifies.

6. Severability. If a court finds any provision of this Agreement invalid or unenforceable, the remainder of this Agreement shall be interpreted so as best to effect the intent of the parties.

This Agreement and each party's obligations shall be binding on the representatives, assigns, and successors of such party.

Employer (PSC Secretary/DG/Director)

Printed Name: _____

Title: _____

Ministry/Department: _____

Dated: _____

Signature: _____

Employee

Printed Name: _____

Title: _____

Ministry/Department: _____

Dated: _____

Signature: _____

Code of Conduct

The “Code of Conduct” governing the actions and behaviour of staff of the public service is contained in Part V, Sections 32 to 34 of the *Public Service Act*. Details of the code are as follows:

Private Employment and Elections

- (1) Except with the express written permission of the Commission, which must consult with the Director-General affected, and which may at time be withdrawn, no staff member, Director-General or Director, shall accept or continue to hold or discharge the duties of any other paid office outside the public service, which in the opinion of the Commission is incompatible with the due performance and proper discharge of his or her duties as a member of the public service, provided that a Director-General, Director or staff member shall have the right to bring a complaint under the Trade Disputes Act [CAP. 162] in respect of a decision pursuant to this section.
- (2) A person who intends becoming a candidate for election to Parliament must resign from the public service before accepting a nomination as a candidate for election to Parliament.

Fees for Official Services

- (1) Unless otherwise provided, in the performance of any service on behalf of the Government no fee, reward or remuneration of any kind whatsoever, beyond the remuneration and approved allowances of a person employed in the public service may be received by that person or other person for that person’s own use or benefit.
- (2) Where a staff member is required to perform a service for which a charge would lawfully be payable, then that charge must be levied and the amount paid into the Public Fund, or into the account of the Ministry concerned.
- (3) Subsections (1) and (2) of this section shall apply to Directors-General and Directors.

Staff Members Obligations

- (1) Every staff member, Director-General, Director or senior administrator (as the case may be), must in the course of his or her employment in the public service:-
 - (a) comply with generally accepted behaviour in the conduct of his or her employment;
 - (b) comply with any reasonable direction given by a Director-General, Director or the Commission;
 - (c) behave honestly and with integrity;

- (d) act with care and diligence;
 - (e) treat everyone with respect and courtesy and without coercion or harassment of any kind;
 - (f) observe and comply with all applicable laws;
 - (g) comply with all lawful and reasonable directions given by someone employed in the Ministry for which the staff member works and who has authority to give the direction;
 - (h) maintain confidentiality about dealings that the staff member has with any Minister or members of staff of a Ministry;
 - (i) disclose and take reasonable steps to avoid any conflict of interest (real or apparent) in connection with his or her employment;
 - (j) use resources and public money in a lawful and proper manner;
 - (k) not provide false or misleading information in response to a request for information;
 - (l) not make improper use of information or his or her duty, status, power or authority in order to gain a benefit or advantage for himself or herself or for any other person; and
 - (m) Comply with any other requirements imposed by this or any other Act, Regulation or Instruction.
- (2) This code of conduct applies to all categories of staff within the public service i.e. permanent officers, temporary salaried employees and daily rated workers and persons engaged on a contract basis.

I..... hereby fully accept to comply with the PSC Code of conduct.

Signature: -----

Date: -----

CHAPTER 4 – Terms and Conditions of Employment

1. Introduction

- (1) Section 15 of the *Public Service Act* places a duty on the Public Service Commission to act as a good employer. The objective of the terms and conditions outlined in this chapter is to offer appropriate remuneration, cover work-related expenses incurred by a staff member and address their social needs effectively.
- (2) An essential component of being a good employer is to provide a range of terms and conditions that are fair, equitable and meet the needs of staff members while being simple and cost-effective to administer. The following terms and conditions apply to all categories of employment in the Public Service (i.e. permanent employees, contract officers, temporary employees and daily-rated workers) except where exceptions are noted or have been authorized by the Commission.

2. Salary and Incremental Payments

2.1 Salary payments

- (1) A staff member is entitled to a salary set out in the Public Service Salary Structure as determined by the Government Remuneration Tribunal corresponding to the grade of position specified by the Commission.
- (2) The Public Service Salary structure is as set in (**Table 4-1**).

2.1.1 Incremental Progression

- (1) The Secretary, a Directors-General, Director or equivalent position may approve standard increments in accordance with this section.
- (2) If a staff member is refused an increment on the grounds of unsatisfactory performance, he or she has the right to appeal to the Commission.
- (3) Except in circumstances specified in subsection (4) and subject to any restriction on increment in the Letter of Appointment, an employee is entitled to be assessed for the next increment point increase within the salary band in which he or she is permanently appointed. This assessment should be based on certification in writing of Distinguish Performer or High Performer by relevant Director or equivalent position, Director General or the Secretary.
- (4) Incremental progression must occur every two (2) years of continuous employment if the employee maintains a performance level of Distinguish Performer or High Performer.
- (5) In exceptional cases of outstanding performance, a Director-General may recommend to the Commission that a staff member be granted an increment increase before the end of the two (2) year period of continuous employment. In this circumstance, it is recommended that only a staff member who earns a rating of **High Performer (80-99%)** or **Distingusihed Performer (100%)** would be eligible for a form of high performing recognition as approved by the Commission. The high performing recognition referred to above may be monetary or non-monetary.

- (6) A staff member who is demoted as a result of a disciplinary case must not receive any increment for a period of 2 years from the date of the Commission decision.
- (7) A salary increment must be within the same band and any increase of the salary band must be approved by the Commission.
- (8) A staff member who attends a short-term training for a period of six (6) months within a two (2) years period on a full salary is eligible for an incremental progression review.
- (9) If a staff member has undertaken full-time study, whether in-country or overseas, over a period of 12 months must not be considered for incremental progression if not physically present at the place of work to carry out his or her duties and responsibilities. However, a staff member is eligible for an incremental progression review after 12 months from the return-to-work date.

3. Hours of Work

3.1 Starting and Finishing Times

- (1) The standard hours of work per week in the public service are forty (40) hours.
- (2) A staff member must normally work between the following starting and finishing times: 8:00AM to 12:00 PM and 1:00 PM to 5:00 PM.
- (3) Despite subsection (2), a staff member may obtain the prior consent of his or her Director-General, Director, equivalent position or the Secretary (where applicable) to vary the starting and finishing times to best enable his or her Ministry or Department to deliver its services outside the normal standard hours of work each week.
- (4) The Secretary must be notified of any variation under subsection (3) made by the Director General, Director or equivalent position.

3.2. Attendance Management

(1) High attendance culture

As part of their contractual obligation to the government and the people of the Republic of Vanuatu, it is obligatory for all staff members to maintain a high attendance work culture by attending to their duties and responsibilities during the normal working hours under subsection 3.1(2).

(2) Monitoring and recording absence

All forms of absences from official duties by any staff member must be monitored and recorded by the immediate supervisor using prescribed form under this manual and reported to the Director-General, Director or equivalent position or the Secretary, to ascertain the staff member's absence and to apply appropriate action.

(3) Attendance monitoring device

All public service owned or rented premises must install appropriate attendance monitoring device(s) that is effective in registering attendance of all its staff members (through the clock in machine device)

(4) Tardiness of one hour

A staff member who arrives one (1) or more hours late to work after the official starting time or departs earlier than the official finishing time without permission of his or her immediate superior is required to make-up the lost hours.

(5) Accumulated hours of lateness

Staff members who demonstrated continuous lateness will have their hours of absence recorded by their supervisor. Continuous lateness that accumulates for up to 8 hours will be regarded as 1 absent incident.

(6) Excessive number of unauthorized absence incident

(1) Staff members who have reached ten (10) or more unauthorized absence incidents are regarded as reaching an excessive absence point.

(2) A staff member who has reached ten (10) or more absence incidents commit a disciplinary offence.

(7) Absence trigger points

To ensure consistency, a supervisor will conduct a counselling session with a staff member who has a record of three (3) or more absence incidents within any six (6) months period.

(8) Attendance improvement form

The attendance improvement form will be used as part of management intervention to support a staff member who has a record of three (3) or more absence incidents. The purpose is to record attendance improvement resolutions and to monitor until the next absence review meeting.

4. Work Related Allowances

4.1 Overtime payments or time off In Lieu of Overtime payments

- (1) Overtime refers to hours worked beyond the actual number of standard working hours in the calendar month, calculated as the number of working days multiply by 8 hours per day.
- (2) An employee in level or grade PS1.1 to PS 6.4 or equivalent to this salary scale of the Public Service is eligible for overtime payment or time off in lieu provisions on the basis of 1 ¼ hours off for each additional hour worked. If an employee selects to take time off in lieu of overtime payment, such time must be taken within 3 months of the date approved.
- (3) An employee in level or grade of PS 7.1 and above or equivalent to this salary is eligible for time off in lieu provisions on the basis of 1 ¼ hours off for each additional hour.
- (4) For purposes of calculating the extent of overtime or time off in lieu of overtime payments due to an employee at the end of each calendar month, the total hours of work actually performed or hours during which an employee is required to be in attendance at the place of work are to be determined by a timesheet.
- (5) Any hours in excess of the standard working hours for the calendar month that have been worked at the direction of a supervisor constitute the employee's overtime entitlement. However, an employee must work a minimum of one hour in excess of the standard hours during a working day in order to qualify for overtime payment or time off in lieu provisions.
- (6) All claims for overtime payment must be made using prescribed *Overtime Claim Form (PSC FORM 4-2)* and be endorsed by the employee's immediate supervisor and Director,

or equivalent position, Director-General or the Secretary. A staff member must only claim for overtime if directed by a supervisor to work overtime. No claim is payable where an employee works overtime without his or her supervisor's written approval.

- (7) All claims for overtime must be assessed under the following conditions:
 - (i) verification with timesheet provided by an employee;
 - (ii) overtime is settled during the same financial year;
 - (iii) immediate additional tasks performed after standard working hours; and
 - (iv) a written approval of the superior and director before performing the task (**PSC FORM 4-2**) must be filled for this purpose).
- (8) The *Overtime Claim Form* (**PSC FORM 4-2**) must be forwarded to the responsible manager to consider the claim before submitting it to the Director-General, Director, Secretary or equivalent position for approval.
- (9) If an employee elects to take time off in lieu of overtime payment, every effort is to be made for the time to be taken within the financial year.
- (10) A Ministry or Department must ensure that all overtime claims submitted before the end of a financial year are settled within that period.
- (11) A Director, Director-General, Secretary, or equivalent position must ensure that no work is performed as overtime unless it is essential to be performed outside of the standard working hours.
- (12) The rate of the allowance is as specified in the attached *Allowances and Additional Payments Table* (**Table 4-16**).
- (13) A person who fails to comply with a provision of this section commits a disciplinary offence.

4.1 Unsocial Hours Payments

- (1) Unsocial hours bandwidth means 18:00 hours to 6:00am on Monday to Friday and any hour worked on Saturdays, Sundays and Official Public Holidays.
- (2) Except for staff members employed on regular alternating or regular rotating night shifts, all categories of staff members are entitled to additional unsocial hours' payment for work performed during unsocial hours, regardless of whether it falls within their normal working hours or is overtime. (In other words, regular working hours within the unsocial hours bandwidth are compensated at the ordinary hourly rate plus the unsocial hours' payment, while overtime during unsocial hours is paid at the overtime rate plus the unsocial hours' payment.)
- (3) Eligibility for unsocial hours' payments aligns with that of overtime payments, as specified in this chapter. Work conducted during unsocial hours must be at the direction of a supervisor and is payable to a staff member on Salary Scale Grade/Level PS1.1 to PS 6.4 or equivalent to this salary scales and all daily-rated workers.
- (4) The rate of the allowance is as specified in the attached *Allowances and Additional Payments Table* [**Table 4-16**].

4.2 Allowance Payments

4.2.1 Acting Allowance for Director-General, Directors, Secretary, Provincial Secretary, Town Clerk and, Equivalent Position

- (1) Using the prescribed *Acting Allowance Form (PSC FORM 4-3)* a Director or equivalent position a Director-General or the Secretary may, subject to subsection (4), approve an employee being appointed to act in another position and be paid an acting allowance, if the other position is remunerated at a higher level than the employee's substantive salary/position.
- (2) Acting appointments must be for a relatively short period, minimum of six (6) months only, and, except for circumstances specified in subsection (3), no staff member may be appointed to act in a position for a period exceeding six continuous months.
- (3) A staff member who undertakes a sabbatical leave, leave without pay, secondment or is on full-time education and training programs or if a position becomes vacant for a period exceeding 6 months, the relevant Director General, Director or equivalent position or the Secretary may appoint an employee to act in the vacant position for the full period of the absence of the incumbent, subject to the merit and equity requirements being satisfied.
- (4) All acting appointment for a Director-General position must be assessed by OPSC prior submission to the Commission for consideration.
- (5) Any continuous period of acting appointments to the position of Secretary or Director-General, Director or equivalent position for at least 5 calendar days may be approved by the Director of the Department or Director-General of the Ministry in which the employee is located. The acting allowance is to be calculated at the rate specified in the *Allowances and Additional Payments Table (Table 4-16)*.
- (6) An employee acting in a Director-General position must be an employee performing in the Director-level position or equivalent position. In the case of a Director-level position or equivalent position, an employee acting must be an officer performing in a managerial level. A nomination of acting position must be approved by the Secretary prior to the employee undertaking the responsibilities.
- (7) If an employee from the Office of the Public Service Commission (OPSC) is acting in a Secretary-General position at the provincial level, they must be based in the province. In the absence of such an employee, the Provincial Secretary-General has the authority to appoint a member from the Provincial Technical Advisory Committee (PTAC) as an acting substitute.
- (8) If an employee is acting in a Town Clerk position at the municipality, they must be a public servant nominated by the Director-General of the relevant Ministry and endorsed by the Commission.
- (9) In the case of Director-General, Director, Provincial Secretary General, Town Clerk or equivalent position, any continuous period of acting exceeding five (5) calendar days must be submitted to the Commission for approval. This submission should use the prescribed *Acting Allowance Form*, accompanied by a report explaining how the merit and equity requirements have been satisfied.

- (10) During any periods of leave (maternity leave, annual leave, compassionate leave, sick leave) more than five (5) continuous days, an acting allowance must not to be paid.

4.2.2 *Acting Allowance For Employee Below Secretary, Director or Equivalent Position, Director-General, Provincial Secretary General and Town Clerk*

- (1) The Secretary, Directors-General, Director or equivalent position may, subject to the conditions specified in subsection (2), approve acting appointments for a period exceeding (6) months to fill a temporary vacancy caused by officers below Director level who are on sabbatical leave, leave without pay, secondment or full-time training.
- (2) Acting appointments must be for a relatively short period, a minimum of (6) months only and, except for circumstances specified in subsection (1), no staff member may be appointed to act in a position continuously for a period exceeding six (6) months.
- (3) Subject to the requirements of the Act and this manual, an employee who acts continuously against a vacant position for six (6) months or more, the Commissoin may confirm his or her appointment to the position.
- (4) An employee performing a managerial role must provide a report explaining how the merit and equity requirements have been satisfied including the prescribed *Acting Allowance Form (PSC Form 4.3)*, prior to submission for approval.
- (5) If a position becomes substantively vacant and it is necessary to appoint an employee to the position in an acting capacity, options for the permanent filling of the position must be considered at the time of making the initial acting appointment.
- (6) Options under subsection (5) include:
- (a) obtaining the Secretary's approval to advertise the vacant position; or
 - (b) transferring an employee from within the Ministry, who is at the same salary level as the vacant position, to fill the position on an acting capacity.
- (7) The level of the acting allowance is to be determined by taking into account the difference between the employee's substantive incremental salary point and the first increment point of the salary level of the position being acted in and the extent to which the employee is performing the full range of duties of the position.
- (8) The level of the allowance must not exceed the difference between an employee's incremental salary point and the first incremental salary point of the acting position.
- (9) During any period of leave exceeding five (5) continuous days, an acting allowance must not be paid.
- (10) An employee must not receive an acting and extra responsibility allowance concurrently.
- (11) Where an employee is in receipt of an extra responsibility allowance and is also to be paid an acting allowance for performing duties of a higher graded post, payment of the extra responsibility allowance must be ceased. In this case, the Director or Director-General must reassign the extra responsibility duty to another employee.

4.2.3 *Extra Responsibility Allowance*

- (1) Using the prescribed *Responsibility Allowance Form (PSC FORM 4-4)*, a Director or equivalent position, through their Director-General or Provincial Secretary General, may recommend that the Secretary approve payment of an *Extra Responsibility Allowance*.
- (2) Extra responsibility must be approved by the Directors or equivalent position and Director-Generals or Provincial Secretary-General or the Secretary before undertaking the extra responsibility.
- (3) The payment of the Extra responsibility allowance must not exceed twelve (12) months.
- (4) An Extra Responsibility Allowance that is paid for a period exceeding twelve (12) months must be approved by the Secretary. However, the position must be re-evaluated and a new Job Description incorporating the additional responsibilities must be submitted to OPSC for assessment and, if appropriate, approval from the Commission.
- (5) An employee performing the duties of a vacant position with the same salary level but a different job description under another section within a Department or Ministry is entitled to claim Extra Responsibility Allowance. The rate of the allowance is as specified in the *Allowances and Additional Payments Table (Table 4-16)*.
- (6) Extra Responsibility Allowances must not be paid to an employee:
 - (a) during any period of leave (maternity leave, annual leave, compassionate leave, sick leave) taken in excess of five (5) continuous days of work done; or
 - (b) during any period where he or she is appointed to another position in an acting capacity and is paid an acting allowance.

4.2.4 *Permanent Posting Allowance and Associated Costs.*

- (1) If an employee is *permanently* posted to a position at another work locality that requires the employee to change their place of residence, a one-off *Permanent Posting Allowance* and an *Establishment Allowance*, both of which are payable to assist with the incidental costs of removal and setting up home in the new locality.
- (2) The rate of the allowances is as specified in the attached *Allowances and Additional Payments Table (Table 4-16)*.
- (3) In addition, an employee's reasonable transportation and removal fees, including those for immediate family, must be paid by the Department in which the employee is or will be employed, upon production of genuine quotes for such costs. This payment covers costs for transporting the employee's personal motor vehicle or small boat.
- (4) If a husband and wife, are both permanent officers and are posted to a new locality, both officers are eligible to claim and be paid the permanent posting allowance and associated costs.
- (5) To avoid doubt, *Permanent Posting Allowances* and associated costs are only payable to permanent employees.

4.2.5 Domestic Duty Travel Allowance and Associated Costs

- (1) An employee who is directed to travel for work purposes within Vanuatu or is away from their normal work location and required to stay overnight away from their normal place of residence is entitled to be paid a Domestic Travel Allowance upon application using the prescribed *Domestic Travel Allowance Claim Form (PSC FORM 4-5)*.
- (2) Subject to subsection (1), the Domestic travel allowance is applicable on the commencing date of travelling.
- (3) The domestic travel allowance must not cover the cost of accommodation, transportation and communication. No additional amounts are payable, unless the employee establishes through written receipts that reasonable subsistence costs are higher than the prescribed amount.
- (4) An accountable imprest is to be committed against the budget of the Ministry or Department to meet the cost of accommodation, transportation, communication, and any other miscellaneous cost of the employee during the period of his or her official duty and away from his or her usual work location and residence.
- (5) The use of an accountable imprest to meet the cost under subsection (3) above must be receipted in accordance with a standardised receipt book.
- (6) Subject to the approval of the Director or equivalent position, Director-General, or the Secretary, these costs may be paid in advance upon production of reasonable quotes or in urgent and unforeseen circumstances after the employee has returned from the official travel.
- (7) The rate of the travel allowance is as specified in the attached *Allowances and Additional Payments Table (Table 4-16)*.
- (8) An employee on official duty must retire the accountable imprest as per the Public Finance and Economic Management Act [CAP 244] after returning from his or her travel mission.
- (9) An employee is subject to the provision of the Public Finance and Economic Management Act [CAP 244] if they fail to retire the impress.
- (10) An employee who fails to comply with this section commits a disciplinary offence.
- (11) In the case where the cost of accommodation is above VT12,000, the travelling officer is to be responsible for the additional cost.

4.2.6 Daily Subsistence Allowance

- (1) An employee is entitled to a Daily Subsistence Allowance for meals and other living expenses during domestic duty travel away from their normal work location and residence.
- (2) The rate of Daily Subsistence Allowance for domestic duty travel is VT 7,000 per night, payable for a period not exceeding three (3) weeks.
- (3) If the period of domestic duty travel is extended beyond three (3) weeks but does not exceed five (5) weeks, a total allowance of VT150,000 allowance is payable to the employee.

4.2.7 Overseas Mission Travel Allowance and Associated Costs

- (1) A Director, equivalent position, or Director-General must submit any proposed overseas travel on official duty by an individual officer or a group of officers participating in a Mission Group, regardless of the funding source for the proposed travel, to the Secretary for approval using the prescribed *Individual Overseas Travel Approval Form (PSC FORM 4-6)* or the *Mission Group Overseas Travel Approval Form (PSC FORM 4-7)*, as appropriate.
- (2) If the Mission Group consist of officers from more than one (1) Ministry, the Director-General of the Ministry where the Mission Group Leader is located is responsible for submitting the form on behalf of the other Directors-General.
- (3) No significant expenditure must be incurred or firm travel arrangements made before the Secretary's approval.
- (4) The cost of accommodation, transportation, communication, and other miscellaneous costs are to be covered by an accountable imprest.
- (5) It is the responsibility of the employee on overseas duty mission to retire the accountable imprest as per the Public Finance and Economic Management Act [CAP 244] after returning from his or her overseas mission.
- (6) An employee is subject to the provision of the PFEM Act [CAP 244] if he or she fails to retire the imprest.
- (7) The rate of the allowance is as specified in the attached *Allowances and Additional Payments Table (Table 4.16)*.
- (8) If the cost of accommodation, transportation, or subsistence allowance is met by another party or sponsor, the Government must cover the difference between the actual cost and the applicable DSA rate, if applicable.
- (9) In the event that the sponsor or third party is only providing the cost of accommodation or airfare, the Government must fund the other relevant expenses. The employee, the Director, or the Director-General must confirm the portion of funding that will be provided by the sponsor or third party to the OPSC and the Department of Finance.
- (10) An employee must not claim an *Overseas Mission Travel Allowance* if the overseas travel is fully funded.
- (11) An employee who fails to comply with this section commits a disciplinary offence.

4.2.8 Official Overseas Mission Daily Subsistence Allowance

- (1) An employee on approved official overseas travel is entitled to an Overseas Mission daily subsistence allowance in the *Allowances and Additional Payments Table (Table 4-16)* to cover the costs of subsistence, food and other incidentals.

- (2) The official overseas Mission Daily Subsistence Allowance is to be provided by the relevant Ministry or Department to the employee.
- (3) The rate of Overseas Mission Daily Subsistence Allowance payable to an employee for official overseas mission travel is as specified in the *Allowances and Additional Payments Table (Table 4-16)*.
- (4) In the event that the sponsor or the third party is only providing the cost of accommodation or airfare, the Government must fund the other relevant expenses. The employee, the Director or the Director-General must confirm to the OPSC and the Department of Finance on the portion of funding that is to be provided by the sponsor or the third party.
- (5) An employee must not claim an *Official Overseas Mission Daily Subsistence Allowance* if the overseas trip is fully funded.
- (6) An employee who fails to comply with this section commits a disciplinary offence.
- (7) The rate of the allowance is specified in the attached *Allowances and Additional Payments Table (Table 4-16)*.

4.2.9 Allowance For Sitting on Boards/Committees

An employee who is a member of a Board or a Committee and is performing duties on behalf of the government is not entitled to receive an allowance as required by section 33 of the *Public Service Act* unless it is provided for under any other Act or regulation order.

4.2.10 Special Skills Allowance

- (1) An employee who performs a duty that requires special and critical skills is entitled to a Special Skills Allowance upon approval of the Commission. The annual rate of the allowance ranges from VT 120,000 to a maximum of VT 2,000,000. The allowance is to be calculated using *Point Matrix System (Table 4-17)* to determine the appropriate level of allowance payable.
- (2) The matrix rates of the allowance are as specified in the attached *Allowances and Additional Payments Table (Table 4-16)*.

4.2.11 Risk Allowance

- (1) A risk allowance is considered as a type of allowance payable to staff members on merit, as an entitlement to recognise their hardship and commitment in performing duties or responsibilities under all or any of the following conditions:
 - (a) during a state of emergency;
 - (b) when engaged in hazardous situation;
 - (c) when highly exposed to danger or risk due to climate change or natural disaster (cyclone, earthquake, landslide, volcanic eruption, flooding) or

unforeseen circumstances;

(d) when highly exposed to danger.

- (2) A claim for risk allowance by a staff member must be submitted to the relevant Director, equivalent position, Director-General or Secretary, for consideration and approval prior to payment. Additionally, all periods of risk allowance claims must be based on working days.
- (3) A staff member whose normal duties and responsibilities require exposure to risks may claim a risk allowance.
- (4) Risk allowance claims referred to under subsections (2) and (3) must be submitted to OPSC by using the prescribed *Risk Allowance* form (**PSC FORM 4-14**) including relevant documentation for assessment.
- (5) The amount of risk allowance that is to be paid to a staff member is as prescribed under the *Allowances and Additional Payments Table* (**Table 4-16**).
- (6) A risk allowance must not be paid to an employee during any period of leave (maternity leave, annual leave, compassionate leave, sick leave) taken in excess of five (5) continuous days of work done.

4.2.12 *Temporary Transfer Allowance*

- (1) If an employee is temporarily transferred to a position at another work locality within Vanuatu, away from his or her normal work location and residence for a period of more than 7 days but less than 30 days, he or she is entitled to be paid a *Temporary Transfer Allowance* at the rate of VT 2,000 per day prior to the transfer.
- (2) The rate of the allowance is specified in the *Allowances and Additional Payments Table* (**Table 4-16**).
- (3) An employee who is to spend more than thirty (30) to sixty (60) calendar days away from his or her work locality and residence, is to be paid a lump sum amount of VT 100,000 before the transfer occurs.
- (4) A temporary transfer must not exceed sixty (60) calendar days. In the event that the period in subsection (3) is exceeded, the Director, or equivalent position and Director-General or the Secretary may decide whether to recall the employee to his or her substantive work locality or pay an addition monthly lump sum referred to under subsection (3).
- (5) The timeframe of the temporary transfer must not exceed three (3) months.
- (6) An accountable imprest must be paid by the relevant Department or Ministry.

4.2.13 Panel Member Allowances

- (1) If an employee is appointed to a Selection Panel, to assess and/or interview applicants for a vacancy within the Public Service, they are to be paid a *Panel Member Allowance* using the prescribed form **(PSC FORM 4-12)**.
- (2) If an employee is appointed to Preliminary Assessment or an Investigation Panel, the employee is to be paid a *Panel Member Allowance* using the prescribed form **(PSC FORM 4-12)**.
- (3) The rate of the allowances is as specified in the *Allowance and Additional Payments Table* **(Table 4-16)**.

4.3 Social Benefit Allowances

4.3.1 Child Allowance

- (1) Upon application using the prescribed *Child Allowance Form* **(PSC FORM 4-8)** and approval by a Director-General, Director or equivalent position or Secretary, an employee is entitled to the payment of a child allowance for natural or adopted children for which the employee has legal custody and has financial responsibility.
- (2) The application must be submitted to the Human Resource Officer within three (3) months from the date of birth or adoption. The payment of the allowance must be backdated to the date of birth or adoption.
- (3) If the application is submitted later than 3 months after the date of birth or the date of adoption, the allowance must be paid from the date the application is submitted by the Human Resource Officer.
- (4) Adoption in accordance with native custom is to be treated for the purpose of these rules as legal adoption (any certificate signed by a local Custom Chief must be countersigned by a Magistrate) to confirm the adoption.
- (5) The rate of the allowance is as specified in the *Allowances and Additional Payments Table* **(Table 4-16)** of this Chapter.
- (6) A child allowance must be paid until the child reaches eighteen (18) years of age.
- (7) A child allowance is to be paid fortnightly in addition to the employee's normal salary.
- (8) If a husband and wife or de facto partners including divorced parents are both employed as permanent officers in the Vanuatu Government, both spouses or de facto partners are eligible to be paid the child allowance.
- (9) An employee must inform the OPSC of any reason which affects their eligibility for the child allowance. This includes but is not limited to the following reasons:
 - (a) Death of a child; or
 - (b) The child reaches 18 years of age.

- (10) An employee who makes a false declaration in order to obtain or to attempt to obtain child allowances to which they are not entitled commits a disciplinary offence and is subject to disciplinary process under Chapter 6 of this manual.
- (11) To avoid doubt, child allowances is only payable to a permanent employee. A Temporary salaried employee and daily-rated worker is not entitled to receive this benefit unless specified under the terms and conditions of their employment of contract.

5. Leave Conditions

5.1 *Annual Vacation Leave*

- (1) An employee is entitled to annual vacation leave based on the number of years they have been employed in the public service.
- (2) An employee or temporary salaried employee who has not completed a full year of service is entitled to leave proportional to the service completed at the rate of 1.75 working days for each completed month of service.
- (3) In accordance with the *Employment Act* [CAP 160], the rate of the annual leave entitlement is increased to two (2) working days for each completed month of employment after twenty (20) years, four (4) working days after twenty-five (25) years and to six (6) working days after thirty (30) years of service.
- (4) A contract officer and temporary salaried employee is entitled to leave proportional to 1.25 working days for each completed month in service.
- (5) Using (**PSC FORM 4-10**), an employee may apply to take leave, up to the limit of their accrued entitlement, in the course of the year in whole or in several parts, according to the needs of the employee's need.
- (6) An employee who does not return to duty at the end of a period of approved leave (or fail to report for duty on any given workday) is regarded as being absent without approval. Accordingly, immediate action may be taken to stop payment of their salary by the Secretary upon written request from the relevant Director-General of the Ministry concerned until such time the employee resumes duty.
- (7) The Secretary, Directors-General, Director, or equivalent position must in writing require at least twice, the employee to immediately resume duties after his or her salary has been ceased.
- (8) The Secretary must reinstate the salary of an employee upon written request from the Director-General of the Ministry upon the employee's return to official duties.
- (9) An employee who contravenes subsection (7) commits a disciplinary offence and is subject to a disciplinary process under Chapter 6 of this manual.
- (10) An employee is not permitted to accrue annual leave beyond the maximum limit specified in the table below.

Category of staff member	Prescribed rate of annual leave
Contract employees and temporary salaried employees;	1.25 working days for each completed month in service.
All employees with 1 to 19 years' consecutive service	1.75 working days for each completed month in service.
All employees with 20 years' consecutive service (commencing 1 August 1980) but less than 25 years' service	3 working days for each completed month in service.
All employees with 25 years' consecutive service (commencing 1 August 1980) but less than 30 years' service	4 working days for each completed month in service.
All Employees with of 30 years' consecutive service (commencing 1 August 1980)	6 working days for each completed month in service.

- (11) An employee with leave balances exceeding the maximum limit prescribed as of 31st December of each year must submit a request to the Director or equivalent position, Director-General, or Secretary, indicating how they propose to reduce the leave balance to below the prescribed limit and over what period of time the balance will be reduced. The Commission, after consultation with Director-General, Director, or equivalent position, or Secretary, may either:
- (a) approve that the employee proceeds on immediate leave for a designated period to reduce the accrued balance; or
 - (b) approve a one-off retention of the excess leave.
- (12) Any accrued annual vacation leave within the prescribed limit must be paid out when the staff member ceases employment with the Public Service.
- (13) A staff member may, upon written request, be paid their annual leave salary in advance for the total period of leave they are taking, providing the leave application is submitted in sufficient time for the advance payment to be processed.

5.2 Annual Leave Claim

- (1) An employee taking annual leave is to be reimbursed 75% of the cost of transportation for their immediate family within Vanuatu.
- (2) For the purposes of this entitlement, the employee must undertake the travel in order to submit his or her claim by using (**PSC FORM 4-10**) and must produce original receipts, and tickets for the transportation.

- (3) To avoid doubt, cost must not be paid in advance but only upon the employee's return to work.
- (4) An employee is eligible to claim **ONLY** once a year.
- (5) If both the de facto partner or spouse are employed in the Public Service, only one claim per family is to be paid.
- (6) Temporary salaried employees and daily-rated workers are not entitled to this benefit.
- (7) A contract officer is not entitled to an annual leave claim unless specified under the terms and conditions of their contract of employment.

5.3 *Sabbatical Leave*

- (1) Using the prescribed form (**PSC FORM 4-9**), a Director General, Secretary, a Director or equivalent position or Town Clerk may recommend an employee to the Commission for approval to take up to one (1) year *sabbatical leave* to perform duties or functions outside the Public Service which are in the public and national interest and linked to the priorities provided by the NSDP.
- (2) Subsection (1) does not apply in circumstances where an employee takes the initiative to apply for an employment advertised in an open market and is accepted.
- (3) An employee who, in their own initiative, applies for an employment advertised in an open market and is accepted is deemed to have voluntarily resigned from their position and on own accord.
- (4) During sabbatical leave, an employee is to receive the salary for the post to which they are temporarily appointed in the receiving Organization. The receiving Organization is to pay the salary of the employee as well as the contribution to the National Provident Fund (VNPF). If the salary is less than the salary scale of his or her substantive position, the Commission may grant an allowance of the difference between their substantive position emoluments and the total emoluments to be paid by the receiving Organization.
- (5) The Commission has the obligation to consider each individual case based on merit in carrying out its duties under subsection (4).
- (6) Sabbatical leave must be counted as effective service for continuity of employment, but no form of leave may be earned by the officer while on sabbatical leave.
- (7) During the period of sabbatical leave, the employee continues to occupy his or her substantive post in the Public Service and must not be replaced by another employee or permanent appointment, although such acting appointment, or a series of acting appointments of different employees, can be made to the position.
- (8) Any acting appointment made to relieve the employee on sabbatical leave automatically ceases at the end of the period of the sabbatical leave granted to the employee.
- (9) An employee is eligible for Sabbatical Leave for a period not exceeding one (1) year.

- (10) If the employee fails to return to his or her substantive position at the end of the sabbatical leave period, they commit a disciplinary offence and are subject to disciplinary process under Chapter 6.

5.4 Secondment

- (1) Secondment applies in circumstances where it is in the interests of the national government for the secondment to occur.
- (2) The Commission may approve an employee for secondment for a period not exceeding three (3) years upon receiving a written recommendation from the relevant Director-General and the or Secretary and may be renewed only once.
- (3) All recommendations must be undertaken by the Director General and the Secretary based on merit.
- (4) An employee must not take up a secondment posting prior to the Commission's approval upon recommendation of his or her Director-General and the Secretary.
- (5) The Commission may initiate the release of an employee to other Public Service Departments, Ministries, State Agencies, Overseas Missions, Regional or International Organizations, or any other Public Sector Organization or Institution pursuant to section 32A of the *Public Service Act* as amended.
- (6) Where an employee takes his or her own initiative to apply for employment advertised in an open market and is accepted, they are deemed to have voluntarily resigned from their position on their own accord.
- (7) The status of an employee during the Secondment period continues as a public servant.
- (8) If the employee fails to return to his or her substantive position at the end of the secondment period, they commit a disciplinary offence.
- (9) During the secondment period, the Commission may consider the recommendations from the Provincial Secretary-General, Director-General, Director or equivalent position and the Secretary to ensure the vacant position is filled. This can be done wither through the transfer of an employee or advertising the position through the normal recruitment process to recruit a temporary officer against the position. The staff member on temporary basis will fill the position until such time the permanent officer resumes his or her position after the secondment period lapses and the period of the temporary appointment ceases.
- (10) Unless determined otherwise by the Commission, the receiving Organization is responsible for the payment of the employee's salary, pension contribution, severance, leave payout, and any other payments or benefit received by the employee during the period of secondment.
- (11) A secondment period is counted as an effective service for purposes of continuity of employment and leaves entitlement is to be accrued at the normal rate for secondments to the Public Service Organizations.

- (12) In the event that an employee is seconded to other public sector or other Organizations, his or her annual leave ceases, and they may take leave in accordance with the provisions applying in that Organization.

5.5 Leave Without Pay

- (1) Upon application using the prescribed form (**PSC FORM 4-9**), the Secretary may grant leave without pay for a period of not more than three (3) months. This can be done on grounds of urgent private affairs, compassionate grounds, or any other urgent unforeseen circumstances to an employee.
- (2) Applications for a leave without pay more than 3 months must be referred to the Commission for approval.
- (3) Leave without pay does not constitute a break in service for the purpose of continuity of service but must not be counted as leave earning service.
- (4) During the period of leave without pay, an employee continues to occupy their Public Service post and must not be replaced by another permanent appointment. However, acting appointments or a series of acting appointments of different staff may be made to the position.
- (5) To avoid doubt, leave without pay is only applicable to an employee.
- (6) In the event that an employee has not returned to their substantive position after twelve (12) months of leave without pay, they commit a disciplinary offence.

5.6 Sick Leave

5.6.1 General Sick Leave Provisions

- (1) A staff member is entitled to sick leave on full salary for a maximum period of twenty-one (21) *working* days for each consecutive period of twelve (12) months.
- (2) A staff member who is absent from work due to illness must provide a medical certificate from a registered medical practitioner within 24 hours of his or her absence. This certificate requires approval by the Secretary, Director-General, Director or equivalent position.
- (3) An application for sick leave must be submitted on *Application for Leave Form (PSC FORM 4-9)*.
- (4) If a staff member is sick during his or her annual leave vacation, the staff member is eligible for sick leave, upon production of a medical certificate (irrespective of the duration of the sickness) and the period of sick leave granted must be re-credited to the staff member's annual leave entitlement.
- (5) In the case where the twenty-one (21) working days entitlement under subsection (1) is exhausted, the period of sick leave may subject to medical advice be extended to thirty (30) working days on full salary. Under these circumstances, the Secretary may require the

employee to be examined by a registered medical practitioner and provide a written medical certificate to be considered by the Commission.

- (6) Unless the employee medically retires under chapter 7 of this manual, in cases of serious illness requiring extension of sick leave beyond thirty (30) working days, the following provisions apply:
- (a) aggregated periods of absence due to sickness exceeding thirty (30) working days in a period of twelve (12) consecutive months shall be treated as annual vacation leave and deducted from the staff member's annual vacation leave entitlement.
 - (b) an employee, who is absent from duty due to sickness for a period exceeding thirty (30) working days shall be examined by two (2) registered medical practitioners, one (1) registered medical practitioner at his or her own cost and one (1) registered health practitioner nominated and paid by the Commission.
 - (c) pursuant to paragraph (b) the Commission may grant further sick leave of an additional thirty (30) working days on half-pay.
 - (d) on the expiry of the sick leave granted under paragraph (c), the employee shall be re-examined by one (1) registered medical practitioner who shall report to the Commission on the employee's fitness to resume duty.
 - (e) the Commission shall decide whether the employee shall resume duty or be granted further sick leave without pay, up to a maximum of six (6) months (from the end of the period of sick leave on half pay), after which the employee shall be directed to resume duty or retired in accordance with the cessation of employment policy in Chapter 7 of this Manual.
 - (f) any sick leave without pay granted under these provisions shall count as effective service but shall not be leave earning.
 - (g) this provision shall not prohibit or limit the case where an employee with serious illness, certified in writing by a registered medical practitioner, proceeds with medical retirement without following the process under this Chapter.

5.6.2 Sick Leave to care or a sick child or spouse

- (1) Staff members may utilise a proportion of their annual sick leave entitlement to care for their sick children who are under 18 years of age and spouse who is incapable of looking after themselves when they are sick.
- (2) To apply for sick leave, a staff member must provide a medical certificate for absences of one (1) day or more, certifying that the child or spouse is ill.
- (3) A failure to provide medical certificate as per subsection (2) may result in the deduction of annual leave.

5.6.3 Maternity Leave

- (1) Upon application using the prescribed *Application for Leave Form (PSC FORM 4-9)*, a female employee is entitled to 12 weeks maternity leave on full pay. The doctor's certificate must be attached to the prescribed application form.
- (2) A temporary female salaried employee is entitled to 12 weeks of maternity leave on full pay. The doctor's certificate must be attached to the prescribed application form.
- (3) In circumstances where there is stillbirth (death before or during delivery) or neonatal death (less than 28 days after delivery) in accordance with subsection (1) or (2), after her confinement, a female staff member is entitled to twelve (12) weeks maternity leave and an additional ten (10) working days compassionate leave.
- (4) In the event of complication arising during the delivery of the child (caesarean /operation), a female staff member is entitled to ten (10) additional working days of maternity leave upon production of a Medical Registered Practitioner's certificate.
- (5) A female staff member who is nursing a child is entitled to a break of one (1) hour twice a day or 30 minutes four times a day during normal working hours for this purpose. Such break must be counted as working hours and forms part of the staff member's 38 standard weekly work hours.
- (6) Subject to the Employment Act [CAP 160], the entitlements under subsection (5) are applicable until a child reaches twenty-four (24) months from the date of his or her birth.

5.6.4 Paternity Leave

- (1) Upon application using the prescribed *Application for Leave Form (PSC FORM 4-9)*, a male staff member is entitled to two (2 days) working days of paternity leave on full salary on the occasion of the birth of his child, upon production of the Medical Registered Practitioner's certificate.
- (2) In the event of complication arising during the delivery of the child (caesarean /operation), a male staff member (father of the child) is entitled to five (5 days) working days of paternity leave upon production of a Medical Registered Practitioner's certificate.

5.6.5 Compassionate Leave

- (1) Upon application using the prescribed *Application for Leave Form (PSC FORM 4-9)*, an employee is entitled to five (5) working days Compassionate Leave on full salary in the event of the death of a parent, child, brother, sister, husband or wife.
- (2) In the event where the staff member's extended family dies, the staff member must apply for annual leave to attend the funeral of the deceased.

5.6.6 Special Leave

- (1) Special Leave applies to the following events:
 - (a) a National, Provincial and International sporting event, a cultural or religious event;
 - (b) a National, Provincial or International meeting.
- (2) Upon application using the prescribed *Application for Leave Form (PSC FORM 4-9)*, if an employee is selected as a member of an international or provincial sporting team (which

term for the purpose of these rules may include not more than one official and one trainer), or a representative of a cultural or religious body to represent Vanuatu, with the approval in writing of the appropriate governing authority for the sports, cultural or religious activity in Vanuatu, the Commission may grant special leave on full salary to an employee in accordance with the following provisions:

- (a) For major international, national meetings, conferences, or conventions involving more than one (1) other country- special leave for the duration of the event but not more than two (2) months.
 - (b) For participation as a competitor or official in the Vanuatu Provincial Games- special leave up to fourteen (14) calendar days, but no more than the actual duration of the sports event.
- (3) To avoid doubt, special leave may be requested by an employee on his or her own initiative and submitted for approval of the relevant Director, equivalent position, Director-General or the Secretary prior to submitting to Commission for consideration and final approval.

6. Medical expenses

6.1 Within Vanuatu

- (1) Subject to the approval of the Secretary and subsection (2), a 100% refund of medical and dental cost incurred by an employee is to be reimbursed to him or her for a medical or dental treatment taken domestically upon the production of receipts for such medical treatment and on application by the employee using the prescribed *Medical Expenses Claim Form (PSC FORM 4-11)*.
- (2) If a registered medical practitioner certifies that a treatment is necessary but is unavailable in a public health facility, the medical practitioner may refer the employee or his or her immediate family (father, mother, spouse or child) to the private health care provider.
- (3) In the case of an immediate family under subsection (2), he or she is entitled to claim 50% refund of the total medical cost.
- (4) To avoid doubt, a contract employee is not entitled to claim medical refunds under subsections (2) and (3) unless specified in the terms and conditions of his or her employment contract.
- (5) A daily rated employee is not entitled to claim for medical refunds.
- (6) Subject to the approval of the Secretary, the cost of medically necessary items such as glasses and other medical and dental prosthesis certified as necessary by a registered medical practitioner or registered optometrist is to be reimbursed to an employee only. A Temporary salaried employee is not entitled to reimbursement of these costs.
- (7) All claim for medical refund must be settled to an employee within the same financial year.

6.2 Medical Check-Up

- (1) The Secretary, a Director-General, Director or equivalent positions must ensure that all staff members undertake basic medical check-up, at least once a year.

- (2) For serious health issues that needs immediate medical attention, it is the responsibility of the staff member concerned to report the matter to the Secretary, his or her Director-General, Director or equivalent position who is responsible for making a final report on the matter to the Commission for its determination.
- (3) A Heads of Ministry must ensure that all medical check-ups under subsection (1) are organised with Registered Medical Practitioners.
- (4) The cost of a medical check-up under subsection (3) is to be met by the relevant Ministry or Department.
- (5) A medical check-up under subsection (1) may be conducted by a private medical practitioner in Vanuatu or overseas for further treatment.

6.3 Overseas Medical Treatment

- (1) Subject to the approval of the Commission, an employee is eligible for full payment or full refund of any overseas medical treatment, including medical check-up if applicable, based on a medical practitioner's report certifying that the treatment or medical check up is necessary and is unavailable in Vanuatu at a reasonable cost.
- (2) An immediate family of an employee is entitled to claim a 50% refund of any medical or dental cost incurred overseas subject to a registered medical practitioner's report certifying that the treatment is necessary and is unavailable in Vanuatu at a reasonable cost.
- (3) For purposes of subsection (1), the relevant Ministry or Department of the employee may make an upfront or full payment of 100% of the total cost of the medical treatment.
- (4) An employee who receives an upfront or full payment under subsection (3) is not entitled to claim any medical refund.
- (5) The Commission must nominate a second registered medical practitioner to confirm the first medical report provided by an employee under subsection (1).
- (6) Depending on the serious medical condition of the employee, the Commission may not apply subsection (5).
- (7) An employee who is entitled to make a claim under this section is also entitled to claim a refund of the costs of the return air fares, and accommodation for a period not exceeding one (1) month. For any period of medical treatment exceeding (1) one month, a claim for for the cost of accommodation is subject to the approval of the Commission.
- (8) An immediate family of the employee may within one (1) month from the date of return from overseas medical treatment submit a claim for refund of return air fares to and from the place of medical treatment, accommodation and transportation.
- (9) The claim for refund of overseas medical treatment under this section must be submitted within one (1) month from the date of return from the oveaseas medical treatment.

FORMS AND TABLES FOR CHAPTER 4: TERMS AND CONDITIONS OF EMPLOYMENT

REVISED PUBLIC SERVICE SALARY STRUCTURE

2017 DETERMINATION ON THE SALARY OF THE DIRECTOR GENERALS (DGs)

Table 2 – Classification Structure and Annual Salary

Level	Pay Grade	Annual Salary
Level 1	4	7,580,600
	3	7,151,500
	2	6,738,300
	1	6,356,900
Level 2	4	7,151,500
	3	6,738,300
	2	6,356,900
	1	5,989,600

CLASSIFICATION STANDARD AND SALARY STRUCTURE FOR THE DIRECTORS APPOINTED BY PUBLIC SERVICE COMMISSION

Determination 7 of 2017: Table A2 – Salary Structure for Directors appointed to positions by the Public Service Commission.

1. Table A2 – Salary Structure for Directors

VANUATU GOVERNMENT – GOVERNMENT REMUNERATION TRIBUNAL		
PUBLIC SERVICE COMMISSION – HIGH PERFORMANCE BASED		
CLASSIFICATION SCALE		
DIRECTOR		
Level	Grade	Salary
DIR 3	DIR 3.3	5,560,500
	DIR 3.2	5,324,100
	DIR 3.1	5,000,400
DIR 2	DIR 2.3	5,324,100
	DIR 2.2	5,000,400
	DIR 2.1	4,682,900
DIR 1	DIR 1.4	4,682,900
	DIR 1.3	4,444,800
	DIR 1.2	4,206,700
	DIR 1.1	3,968,600

2. A public servant when acting Director should be paid the salary of the Director.

CLASSIFICATION STANDARD AND SALARY STRUCTURE FOR THE PUBLIC SERVANTS APPOINTED BY PUBLIC SERVICE COMMISSION

Determination 8 of 2017: Table A2 – Salary Structure for persons employed by or appointed to positions by the Public Service Commission or the Police Service Commission.

3. Table A2 – Salary for Public Servants

VANUATU GOVERNMENT – GOVERNMENT REMUNERATION TRIBUNAL		
PUBLIC SERVICE COMMISSION – HIGH PERFORMANCE BASED		
CLASSIFICATION SCALE		
PUBLIC SERVANT		
Level	Grade	Salary
PS 9	PS 9.4	3,739,300
	PS 9.3	3,623,500
	PS 9.2	3,527,600
	PS 9.1	3,408,300
PS 8	PS 8.6	3,220,900
	PS 8.5	3,135,600
	PS 8.4	3,029,600
	PS 8.3	2,863,000
	PS 8.2	2,787,200
	PS 8.1	2,693,000
PS 7	PS 7.4	2,489,500
	PS 7.3	2,393,800
	PS 7.2	2,298,000
	PS 7.1	2,202,300
PS 6	PS 6.4	2,106,500
	PS 6.3	2,042,700
	PS 6.2	1,974,600
	PS 6.1	1,906,500
PS 5	PS 5.6	1,815,700
	PS 5.5	1,755,200
	PS 5.4	1,694,700
	PS 5.3	1,634,100
	PS 5.2	1,573,600
	PS 5.1	1,513,100
PS 4	PS 4.6	1,434,600
	PS 4.5	1,386,800
	PS 4.4	1,345,000
	PS 4.3	1,291,200
	PS 4.2	1,243,400
	PS 4.1	1,195,500

Table 4-1

PS 3	PS 3.4	1,094,600
	PS 3.3	1,058,000
	PS 3.2	1,029,600
	PS 3.1	1,001,300
PS 2	PS 2.6	944,600
	PS 2.5	890,000
	PS 2.4	839,700
	PS 2.3	813,500
	PS 2.2	791,100
	PS 2.1	768,800
PS 1	PS 1.6	723,100
	PS 1.5	703,200
	PS 1.4	683,300
	PS 1.3	663,400
	PS 1.2	642,800
	PS 1.1	625,100

CLASSIFICATION STANDARD AND SALARY STRUCTURE FOR MEDICAL OFFICERS APPOINTED BY PUBLIC SERVICE COMMISSION

DETERMINATION 9 of 2017 – TABLE 1 – ANNUAL SALARY FOR MEDICAL OFFICERS.

Pursuant to section 13 (1) of the Government Remuneration Tribunal Act, the annual salary payable to a Medical Officer is set out hereunder.

1. Table 1 – Annual Salary payable to a Medical Officer and a Medical Practitioner.

VANUATU GOVERNMENT – GOVERNMENT REMUNERATION TRIBUNAL PUBLIC SERVICE COMMISSION – PERFORMANCE BASED CLASSIFICATION SCALE					
MEDICAL OFFICER					
CAREER PATHWAY FOR A MEDICAL OFFICER AND A MEDICAL PRACTITIONER			GRADE		
			Minimum	Midpoint	Maximum
POSITION	VQF LEVEL	BAND	1	2	3
Superintendent	9	MO 8	5,989,600	6,356,900	6,738,300
Chief Medical Officer or Chief Registrar	9	MO 7	5,000,400	5,324,100	5,650,500
Senior Consultant	9	MO 6	3,968,600	4,206,700	4,444,800

Table 4-1

Consultant	9	MO 5	3,408,300	3,527,600	3,623,500
Senior Registrar	8	MO 4	3,029,600	3,135,600	3,220,900
Registrar	7	MO 3	2,693,000	2,787,200	2,863,000
Medical Officer	7	MO 2	2,489,500	2,489,500	2,489,500
Intern	7	MO 1	2,298,000	2,298,000	2,298,000

Abbreviation: VQF – Vanuatu Qualifications Framework

2. An officer, other than an Intern, when acting on a position higher than her or his substantive position should be paid the salary for that position until such time she or he is no longer acting.

CLASSIFICATION STANDARD AND SALARY STRUCTURE FOR DENTAL OFFICERS APPOINTED BY PUBLIC SERVICE COMMISSION

DETERMINATION 10 OF 2017 – TABLE 1 – ANNUAL SALARY FOR DENTAL OFFICERS

Pursuant to section 13 (1) of the Government Remuneration Tribunal Act, the annual salary payable to a Dental Officer is set out hereunder.

1. Table 1 – Annual Salary payable to a Dental Officer and a Registered Dental Officer.

VANUATU GOVERNMENT – GOVERNMENT REMUNERATION TRIBUNAL					
PUBLIC SERVICE COMMISSION – PERFORMANCE BASED CLASSIFICATION SCALE					
DENTAL OFFICER					
CAREER PATHWAY FOR A DENTAL OFFICER AND A REGISTERED DENTAL OFFICER			GRADE		
			Minimum	Midpoint	Maximum
POSITION	VQF LEVEL	BAND	1	2	3
Chief Dental Officer	9	DO 8	5,000,400	5,324,100	5,650,500
Senior Consultant	9	DO 7	3,408,300	3,527,600	3,623,500
Consultant	8	DO 6	3,029,600	3,135,600	3,220,900
Senior Registrar	8	DO 5	2,693,000	2,787,200	2,863,000
Registrar	7	DO 4	2,202,300	2,298,000	2,393,800
Dental Officer	7	DO 3	2,042,700	2,042,700	2,042,700
Intern	7	DO 2	1,906,500	1,906,500	1,906,500

Abbreviation: VQF – Vanuatu Qualifications Framework

2. An officer, other than an Intern, when acting on a position higher than her or his substantive position should be paid the salary for that position until such time she or he is no longer acting.

CLASSIFICATION STANDARD AND SALARY STRUCTURE FOR ALLIED HEALTH OFFICERS APPOINTED BY PUBLIC SERVICE COMMISSION

DETERMINATION 11 of 2017 – TABLE 1 – ANNUAL SALARY FOR ALLIED HEALTH OFFICERS.

Pursuant to section 13 (1) of the Government Remuneration Tribunal Act, the annual salary payable to Allied Health Officer is set out hereunder.

1. Table 1 – Annual Salary payable to an Allied Health Officer.

VANUATU GOVERNMENT – GOVERNMENT REMUNERATION TRIBUNAL PUBLIC SERVICE COMMISSION – PERFORMANCE BASED CLASSIFICATION SCALE					
ALLIED HEALTH OFFICER					
CAREER PATHWAY FOR AN ALLIED HEALTH OFFICER			GRADE		
			Minimum	Midpoint	Maximum
POSITION	VQF LEVEL	BAND	1	2	3
Principal Officer	9	HO 7	3,408,300	3,527,600	3,623,500
Officer-In-Charge	8	HO 6	3,029,600	3,135,600	3,220,900
Section Head	7	HO 5	2,585,300	2,693,000	2,787,200
Senior Registered Health Practitioner	7	HO 4	2,202,300	2,298,000	2,393,800
Registered Health Practitioner	7	HO 3	1,838,400	1,906,500	1,974,600
General Health Officer	7	HO 2	1,694,700	1,694,700	1,694,700
Intern	7	HO 1	1,573,600	1,573,600	1,573,600

Abbreviation: VQF – Vanuatu Qualifications Framework

2. An officer, other than an Intern, when acting on a position higher than her or his substantive position should be paid the salary for that position until such time she or he is no longer acting.

CLASSIFICATION STANDARD AND SALARY STRUCTURE FOR NURSES APPOINTED BY PUBLIC SERVICE COMMISSION

DETERMINATION 12 of 2017 – TABLE 1 – ANNUAL SALARY FOR NURSES.

Pursuant to section 13 (1) of the Government Remuneration Tribunal Act, the annual salary payable to a Nurse is set out hereunder.

1. Table 1 – Annual Salary payable to a Nurse.

VANUATU GOVERNMENT – GOVERNMENT REMUNERATION TRIBUNAL PUBLIC SERVICE COMMISSION – PERFORMANCE BASED CLASSIFICATION SCALE					
NURSE					
NURSE CAREER PATHWAY			GRADE		
			Minimum	Midpoint	Maximum
POSITION	VQF LEVEL	BAND	1	2	3
Principal Nursing Officer	9	NS 10	3,408,300	3,527,600	3,623,500
Nursing Services Manager (NSM)	9	NS 9	3,029,600	3,135,600	3,220,900
Assistant NSM OR Clinical Nursing Supervisor	7	NS 8	2,585,300	2,693,000	2,787,200
Nurse In Charge	7	NS 7	2,202,300	2,298,000	2,393,800
Senior Specialist Nurse OR Senior Nurse Practitioner	5	NS 6	1,906,500	1,974,600	2,042,700
Specialist Nurse OR Nurse Practitioner	5	NS 5	1,694,700	1,755,200	1,815,700
Senior Registered Nurse	5	NS 4	1,513,100	1,573,600	1,634,100
Registered Nurse	5	NS 3	1,345,000	1,386,800	1,434,600
General Nurse	5	NS 2	1,243,400	1,243,400	1,243,400
Intern Nurse	5	NS 1	1,158,300	1,158,300	1,158,300

2. An officer, other than an Intern, when acting on a position higher than her or his substantive position should be paid the salary for that position until such time she or he is no longer acting.

CLASSIFICATION STANDARD AND SALARY STRUCTURE FOR ANCILLARY CARE STAFF APPOINTED BY PUBLIC SERVICE COMMISSION

DETERMINATION 13 of 2017 – TABLE A2 – Salary Structure for persons employed by or appointed to positions by the Public Service Commission.

1. Table A2 – Salary Structure for Ancillary Care and Support Staff of Government Clinical Sector.

VANUATU GOVERNMENT – GOVERNMENT REMUNERATION TRIBUNAL		
PUBLIC SERVICE COMMISSION – HIGH PERFORMANCE BASED		
CLASSIFICATION SCALE		
ANCILLARY CARE AND SUPPORT STAFF OF GOVERNMENT CLINICAL SECTOR		
Level	Grade	Salary
ACS 7	ACS 7.4	2,042,700
	ACS 7.3	1,974,600
	ACS 7.2	1,906,500
	ACS 7.1	1,838,400
ACS 6	ACS 6.4	1,755,200
	ACS 6.3	1,694,700
	ACS 6.2	1,634,100
	ACS 6.1	1,573,600
ACS 5	ACS 5.4	1,482,500
	ACS 5.3	1,434,600
	ACS 5.2	1,386,800
	ACS 5.1	1,345,000
ACS 4	ACS 4.4	1,243,400
	ACS 4.3	1,195,500
	ACS 4.2	1,158,300
	ACS 4.1	1,126,500
ACS 3	ACS 3.4	1,094,600
	ACS 3.3	1,058,000
	ACS 3.2	1,029,600
	ACS 3.1	1,001,300
ACS 2	ACS 2.4	944,600
	ACS 2.3	890,000
	ACS 2.2	890,000
	ACS 2.1	864,900
ACS 1	ACS 1.4	813,500
	ACS 1.3	791,100

Table 4-1

	ACS 1.2	768,800
	ACS 1.1	746,400

2. An Officer, other than an Officer serving her or his probationary period, when acting on a position higher than her or his substantive position should be paid the salary for that position until such time she or he is no longer acting.

CLASSIFICATION STANDARD AND SALARY STRUCTURE FOR SECRETARY GENERALS AND TOWN CLERKS APPOINTED BY PUBLIC SERVICE COMMISSION

Determination 21 of 2017: Table A2 – Salary structure for Secretary General and Town Clerks

1. Table A2 – Salary Structure for Secretary Generals and Town Clerks.

VANUATU GOVERNMENT – GOVERNMENT REMUNERATION TRIBUNAL		
PUBLIC SERVICE COMMISSION – HIGH PERFORMANCE BASE CLASSIFICATION SCALE.		
Secretary General, Town Clerk, Deputy Secretary General, Deputy Town Clerk and Assistant Secretary General.		
Level	Grade	Salary
SG 3	SG 3.3	5,324,100
	SG 3.2	5,000,400
	SG 3.1	4,682,900
SG 2	SG 2.3	4,444,800
	SG 2.2	4,206,700
	SG 2.1	3,968,600
SG 1	SG 1.4	3,739,300
	SG 1.3	3,623,500
	SG 1.2	3,527,600
	SG 1.1	3,408,300

2. An Officer, other than Officer serving her or his probationary period, when acting on a position higher than her or his substantive position should be paid the salary for that position until such time she or he is no longer acting.

OVERTIME AND UNSOCIAL HOURS CLAIM FORM

Overtime/Unsocial Hours Claim for the Month of:					
Name:			Department of Finance Use		
Department:			Date Received:		
Payroll No:			Date Paid:		
Rate 1 – Unsocal Hours x 0.25 (b):			Checked By		Approved By
Rate 2 – Overtime hours x 1.25 (d):					
(In hours and part hours to the nearest quarter of an hour) Part hours are expressed in decimals eg. 1h ¼ = 0.25 2h ½ = 2.50 and 2h ¾ = 2.75 NOTE: - Unsocal hours (Column (b)) means: 1800 hrs to 06.00 hrs Monday to Friday and any hours worked on Saturday, Sunday and Public Holidays.					
Date	Day of Week	Start and Finish Time	Hours Worked		
			(a) In Normal Hours	(b) In Unsocal Hours	(c) Total hours Worked (a) +(b)
1					
2					
3					
4					
5					
6					
7					
8					
9					
10					
11					
12					
13					
14					
15					
16					
17					
18					
19					
20					
21					
22					
23					
24					
25					
26					
27					
28					
29					
30					
31					

	Total Hours Worked in Month	(a)	(b)	(c)
--	------------------------------------	------------	------------	------------

NOTE

Staff who are employed on regular alternating or regular rotating night shifts and are in receipt of a Shift work Allowance are not entitled to unsocial hours payments for any **standard** hours worked i.e. within the first 8 hours each day of the shift.

If employed on a regular rotating or regular rotating night shift, please specify the start and finish times of the shift/s worked this month and the applicable dates:			
Start:	Finish:	Dates: From:	To:
Start:	Finish:	Dates: From:	To:
Start:	Finish:	Dates: From:	To:

CALCULATION OF OVERTIME HOURS DUE TO BE PAID

Total Hours Worked (c)

Less Standard Hours for month (no of working days x 8)

Overtime Hours Due (d)

SIGNATURES	NAMES
STAFF MEMBER:	NAME:
DATE:	
SUPERVISOR:	NAME:
DATE:	
MANAGER:	NAME:
DATE:	
DIRECTOR:	NAME:
DATE:	

ACTING ALLOWANCE APPLICATION FORM

I certify that the following officer will be absent from duty, from the dates indicated below and that it will be necessary for the post to continue to be filled during his/her absence.

Name of absent officer: _____ **Payroll No:** _____

Post Title: _____

Post No: _____ **Grade:** _____

Reason for Absence: _____

Date of absence: **From** _____ **to** _____

I recommend that the following officer, who is the most suitable officer, should be appointed to the above post on an acting basis for the period from: _____ to _____
(This period must not exceed 6 months, except in the case of acting arrangements to cover the absence of an officer on sabbatical leave, secondment, leave without pay or full-time training program)

Name of Acting Officer: _____

Substantive Post Title: _____ **Post Number:** _____

Grade: _____ **Salary Level of Acting Officer:** _____

The Acting appointment is essential because _____

(Note: Acting appointments will only be approved where a clear priority need has been established and funding is available).

The Acting Officer will assume the duties and responsibilities of the post to the following extent (*tick one box only*):

S
In full (100%) ☐ About 75% ☐

About 50% ☐ About 25% ☐

Is funding available to pay acting allowance: Yes ☐ No ☐ (*Please tick appropriate box*)

Manager: Name: _____ **Signature:** _____

Name of Section: _____ **Date:** _____

Approval is granted /withheld (Please circle decision) for the abovementioned officer to be appointed on an acting basis to the post detailed above and to receive, in addition to his/her substantive salary, an acting allowance on a per annum basis of VT. _____

Director - Name: _____ Signature: _____

Name of Department: _____ Date: _____

OR

Director-General - Name: _____ Signature: _____

Name of Ministry: _____ Date: _____

NOTE: Acting arrangements for all posts up to the maximum period of 6 months, other than Director-General and Directors positions, may be approved by either a Director General or Director. Acting arrangements to cover an officer (*below Director level*) on sabbatical leave, secondment, leave without pay or on a fulltime training course for a period in excess of six months may be approved by a Director-General, subject to the provisions specified in section 4.5 of Chapter 4 of this manual. Acting arrangements to cover a Director who has been approved to proceed on sabbatical leave, secondment, leave without pay or on a fulltime training course for a period in excess of six months must be submitted to the PSC for approval as specified in section 4.5 of Chapter 4 of this manual.

OR

Approval is granted /withheld (Please circle decision) for the above-mentioned officer to be appointed on an acting basis to the post detailed above and to receive, in addition to his/her substantive salary, an acting allowance on a per annum basis of VT. _____

Decision taken at PSC meeting held on: _____

Secretary - Name: _____ Signature: _____

Office of the Public Service Commission Date: _____

NOTE: PSC approval is only required for Directors-General and Director posts, where the acting arrangements proposed exceeds 20 days.

EXTRA RESPONSIBILITY ALLOWANCE FORM

Name of Officer: _____ Payroll No: _____

Post Title: _____ Grade: _____

Post No: _____

Additional responsibility/ies to be given to the Officer in addition to his/her normal duties and responsibilities *(Please attach a copy of the officer's job description):*

Are these additional responsibilities currently being undertaken within the Department: Yes or No (Please circle) If Yes, who is currently undertaking the duties:

Name of Officer: _____ Post Title: _____

Post No: _____ Grade: _____

(Please attach a copy of this officer's job description)

Why are these responsibilities being transferred to the officer nominated to receive the allowance: _____

I recommend that the Officer should receive a responsibility allowance of VT. _____ per annum, in addition to his/her substantive salary for the period from _____ to _____.
(This period is not to exceed six months)

Is funding available to pay extra responsibility allowance? Yes ☐ No ☐ *(Please tick appropriate box)*

Director - Name: _____ **Signature:** _____

Name of Department: _____ **Date:** _____

I support the Directors recommendation

Director-General - Name: _____ **Signature** _____

Name of Ministry: _____ **Date:** _____

TO BE COMPLETED BY THE SECRETARY, OPSC

APPROVED: YES or NO (Please circle decision) **Date of Approval:** _____

Secretary - Name: _____ **Signature:** _____

DOMESTIC TRAVEL ALLOWANCE FORM

Name of Claimant: _____ Payroll Number: _____

Post Title: _____ Post No: _____

Employment Status: _____

Normal Work Location: _____

1. PURPOSE OF TRAVEL (Please indicate by ticking the appropriate box)	
Duty Travel	
Workshop/Training	
Temporary Transfer	
Others (Please specify)	

2. ITINERARY & ACCOMODATION EXPENSES						
Place to Visit	Arrived		Departed		Type of Accommodation	Cost
	Date	Time	Date	Time		
					TOTAL AMOUNT (VT.)	

I certify that to the best of my knowledge the information provided above is correct and true. And in the event that it is found to be intentionally incorrect or misleading I can be discipline for breaching Employees obligation as provided for in Section 34 (1) (k) of the Public Service Act 1998. I also undertake to reimburse any amount paid to myself as a result of the incorrect or misleading information.

Travelling Staff members Signature: _____

Date: _____

I certify that the above staff member will attend the Duty Travel/ In-service workshop /training at the location indicated, on dates and times specified in the above information. The above staff member will be on official duty away from his/her normal work location.

Head of Department: _____

(print name)

Date: _____

INDIVIDUAL OVERSEAS TRAVEL APPROVAL FORM

1. INFORMATION ON APPLICANT:

Name: _____ Payroll No: _____

Post title: _____ Post No: _____

Department: _____ Ministry: _____

Has applicant been overseas on official duty on previous occasions: Yes/No
(If yes, please attach details)

2. JUSTIFICATION AND DURATION OF ABSENCE:

Purpose of the travel: _____

Duration of proposed Travel: From: _____ To: _____

What benefit will Vanuatu get from your travel? _____

3. PLACES TO BE VISITED-DETAILS AND DATE *(Please attach a complete itinerary)*

Places/institutions	Dates - from/to	Brief details of purpose at each place

4. ACTING ARRANGEMENTS DURING THE OFFICER'S ABSENCE (IF ANY)

Name: _____ Post title: _____

Post No: _____ Salary: _____

5. COST OF PROPOSED TRAVEL

(a) How will the proposed travel be funded eg. Ministry or Departmental Budget or Donor etc _____

(b) Total estimated travel cost: _____

(c) Total Acting Allowance to be paid: _____

(d) Will you be travelling with Imprest?

Yes ☐ No ☐

(e) Total amount of Government Imprest: _____

6. I agree to submit:

- (a) Report on the outcome of my training/workshop/seminar etc.
- (b) Retire my government imprest within 5 Calendar days of my return

7. I agree that I may be disciplined for failing to provide either of 6. (a) or (b).

I hereby apply for approval for overseas travel and agree to submit a detailed report on the benefits to Vanuatu to my Director and Director-General within one week of my return.

Applicant's Name: _____ **Signature:** _____

Date: _____

TO BE COMPLETED BY DEPARTMENT/MINISTRY

I certify that:

- the proposed travel is business related and will be of benefit to the Government of Vanuatu;
- funds are available to cover the cost of travel and the payment of an acting allowance, if applicable; and
- I will ensure that the officer submits a detailed report of the benefits of the travel to the Government of Vanuatu.

Accordingly, I recommend approval be given for the officer to travel overseas for the purpose indicated.

Director - Name: _____ Signature: _____

Name of Department: _____ Date: _____

I SUPPORT THE DIRECTOR'S RECOMMENDATIONS.

Director-General - Name: _____ Signature: _____

Name of Ministry: _____ Date: _____

FOR PURPOSE OF A DIRECTOR GENERAL, THE MINISTER'S APPROVAL IS REQUIRED.

Minister - Name: _____ Signature: _____

Name of Ministry: _____ Date: _____

TO BE COMPLETED BY THE PUBLIC SERVICE COMMISSION

The travel above is: Approved ☐ **Not approved** ☐

Name of Secretary of PSC: _____

Signature: _____ Date: _____

MISSION GROUP OVERSEAS TRAVEL APPROVAL FORM

This form is to be completed by the Ministry proposing the mission, and no expenditure must be committed in respect of the proposed mission until approval has been given for the mission.

1. DESCRIPTION OF MISSION

Purpose of Mission	Please indicate what benefits to Vanuatu will be derived from the mission <i>(If insufficient space, provide supporting paper)</i>

2. MEMBERS OF PROPOSED MISSION *(If insufficient space, please attach full details)*

Proposed members of Mission group		Justification for including this person on the Mission Group	Acting arrangements to be made to cover the duties of absent officers	
Name	Post Title		Name	Post Title

Have any of the applicants been overseas on official duty on previous occasions: Yes/No (If yes, please attach details)

3. PLACES AND ORGANIZATIONS TO BE VISITED - DETAILS AND DATES

(If insufficient space, please attach full details)

Place/Organization	From/to	Brief details of purpose at each place and Organization

4. COST OF PROPOSED MISSION GROUP TRAVEL

How will the proposed travel be funded eg. Ministry or Departmental Budget or Donor etc

Total estimated travel costs:(Vt)_____Total Acting Allowances to be paid:(Vt)_____

I hereby apply for approval for mission group overseas travel and agree to coordinate the preparation of a detailed report on the benefits to Vanuatu to my Director and Director-General within one week of the groups return.

Note: Failure to provide report on time will result to restrictions for future overseas travel.

Mission Leaders Name:_____ **Signature:**_____
Date:_____

TO BE COMPLETED BY DEPARTMENT/MINISTRY

I certify that:

- the proposed travel is business related and will be of benefit to the Government of Vanuatu;
- funds are available to cover the cost of travel and the payment of an acting allowance, if applicable; and
- I will ensure that the officer submits a detailed report of the benefits of the travel to the Government of Vanuatu.

and accordingly, I recommend approval be given for the officer to travel overseas for the purpose indicated.

Director - Name: _____ Signature: _____

Name of Department: _____ Date _____

I support the Directors recommendation.

Director-General - Name: _____ Signature _____

Name Ministry: _____ Date _____

I support the Director General recommendation.

Prime Minister / Minister Responsible

Name: _____ Signature _____

Name Ministry: _____ Date _____

TO BE COMPLETED BY PUBLIC SERVICE COMMISSION

The travel above is approved/not approved

Name of Secretary of PSC: _____

Signature: _____ Date _____

CHILD ALLOWANCE CLAIM FORMApplication on new appointment ☐Application for additional child allowance ☐Name of officer: _____ Payroll No: _____

Post Title: _____ Post No: _____

Ministry: _____ Department: _____

Location: _____ Employment Status: _____

(N.B. Must be a permanent officer or **no** entitlement exists)

Is your spouse or de-facto partner a Public Servant employed under the Public Service Commission?

Yes ☐ No ☐If your answer is yes, please state name of spouse: _____

What Department does he or she work in: _____

Does Your Spouse or de facto partner receive a Child Allowance from the Government? Yes ☐ No ☐

(Only one spouse can claim the child allowance)

Has Ministry HRO confirmed this with other Ministry: Yes ☐ No ☐
(Ministry HRO use only)**NAMES AND DATE OF BIRTH OF YOUR CHILDREN:**

Name of children	Date of birth	Natural or adopted child

DOCUMENTS REQUIRED:

(Please attach copies of these documents relating to the child)

- Birth Certificate
- Adoption certificate (if certified by chief, needs to be countersigned by magistrate).

CERTIFICATION:

I hereby certify that the information provided above is true and correct.

I also certify that I have legal custody of the above children and I am financially responsible for them.

I also understand that any false declaration made by me to obtain a child allowance to which I am not entitled may be subject to disciplinary action by the Public Service Commission.

SIGNATURE: _____ **DATE:** _____

APPLICATION SHOULD BE MADE WITHIN THREE MONTHS OF COMMENCING EMPLOYMENT OR FOLLOWING THE BIRTH OF A NEW CHILD FOR THE ALLOWANCE TO BE BACK DATED.

APPROVED/NOT APPROVED BY DIRECTOR/DIRECTOR GENERAL:

Name: _____ Signature: _____

Name of Department: _____ Date _____

Name of Ministry: _____

OR IN THE CASE OF DIRECTORS-GENERAL AND STAFF OF THE OPSC**APPROVED/NOT APPROVED BY SECRETARY, OPSC:**

Name: _____ Signature: _____

Date _____ Name of Ministry (if applicable): _____

For Office Use Only

OFFICER INFORMED ON: _____

DEPARTMENT OF FINANCE INFORMED ON: _____

APPLICATION FOR LEAVE FORM

Name: _____ VNPF No: _____

Post title: _____

Post No: _____ Grade: _____

Department: _____ Ministry: _____

ENTRY DATE OF SERVICE: _____

TYPE OF LEAVE TO BE TAKEN: _____

DESTINATION OF LEAVE TO BE TAKEN: _____

FIRST DATE OF LEAVE: _____ LAST DATE OF LEAVE: _____

TOTAL NUMBER OF WORKING DAYS LEAVE: _____

ADVANCE LEAVE SALARY REQUIRED: YES NO Date required: _____

(Please circle the appropriate answer and submit at least three weeks in advance)

Signature of Staff Member: _____ Date: _____

LEAVE APPLIED FOR IS SUPPORTED: YES/NO *(please circle the appropriate answer)*

Signature of Supervisor: _____ Date: _____

COMMENTS: _____

DIRECTOR GENERAL/DIRECTOR OR SECRETARY, OPSC APPROVAL:

LEAVE APPROVED: YES/NO *(please circle the appropriate answer)* Date: _____

COMMENTS: _____

Name: _____ Signature: _____

(For annual vacation, standard sick leave, maternity, family, compassionate, international/provincial sporting, cultural and religious events only. A medical certificate is to be attached where the period of sick leave is more than 2 days and the staff member lives within the boundaries of Port Vila or Luganville or more than 4 days for all other areas)

PUBLIC SERVICE COMMISSION APPROVAL: (For sabbatical, secondment, leave without pay and non-standard sick leave only)

APPROVED/NOT APPROVED *(please circle decision)* PSC Meeting held on: _____

SECRETARY, OPSC - Name: _____ Signature: _____

HRO USE ONLY

Date entered into HRMIS: _____

ANNUAL LEAVE TRAVEL CLAIM

Name: _____ Payroll No: _____

Post title: _____

Post No: _____ Grade: _____

Department: _____ Ministry: _____

Is your spouse or de-facto partner a government employee? Yes ☐ No ☐

If your answer is yes, please state name of spouse/de facto: _____

What Department does he or she work in? _____

Has your spouse/de facto partner submitted a claim for Annual
Leave Travel? Yes ☐ No ☐Have you or your spouse/de facto partner submitted a claim for
Annual Leave Travel in the current leave year? Yes ☐ No ☐Has Ministry HRO confirmed this with other Ministry: Yes ☐ No ☐
(Ministry HRO use only)**NAME AND AGE OF CHILDREN**

Name: _____ Age: _____

Name: _____ Age: _____

Name: _____ Age: _____

Name: _____ Age: _____

TRAVEL ARRANGEMENTS:

Describe the most direct route between work station location and home island location:

State the actual route to be undertaken with dates and method of transport:

If the shortest route is not being undertaken, please state why:

TRAVELLING OFFICERS CERTIFICATION:

I certify that the above information is correct and true and undertake to obtain receipts/produce ticket stubs for every journey made.

Name: _____

Signature: _____ Date: _____

DIRECTOR/DIRECTOR-GENERAL OR SECRETARY, OPSC CERTIFICATION

I certify that the above details are correct and authorise the officer to undertake the route shown.

Signature: _____ Date: _____

UPON RETURN FROM ANNUAL LEAVE

DETAILS OF ACTUAL JOURNEYS UNDERTAKEN TO AND FROM DURING THE ANNUAL LEAVE

DATE OF JOURNEY	FROM (PLACE)	TO (PLACE)	METHOD OF TRANSPORT	COST VT.	RECEIPT NO. (attached)
SUMMARY	TOTAL COST _____ VT		100% ☐	☐	
			CLAIM. _____	VT	

TRAVELLING OFFICER'S CERTIFICATION

I certify that I have incurred the expenses detailed above, that all attached receipts are genuine and that I (or my spouse/de facto partner) have not previously submitted a claim for re-imburement.

Name: _____

Signature: _____ Date: _____

DIRECTOR/DIRECTOR-GENERAL OR SECRETARY, OPSC CERTIFICATION

I certify that the above actual journeys and expenses are reasonable, that the details have been recorded in the Ministry/OPSC and that the officer and/or spouse has not made a previous claim for these expenses.

Name: _____

Signature: _____ Date: _____

Officer and Department of Finance advised on: _____

MEDICAL EXPENSES CLAIM FORM

NAME OF STAFF MEMBER: _____

PAYROLL NO: _____ Grade: _____

EMPLOYMENT STATUS: _____ (N.B. Must be permanent officer or
(Daily rated worker or no entitlement exists)

POST TITLE: _____ POST No: _____

MINISTRY: _____ DEPARTMENT: _____

(To be used by permanent officers only – Members of daily rated workers families are not entitled to re-imburement)

NAME OF THE PERSON RECEIVING TREATMENT,
IF NOT THE OFFICER: _____

RELATIONSHIP TO THE OFFICER _____

FULL DETAILS OF MEDICAL EXPENSES BEING CLAIMED – INCLUDE NAME AND LOCATION OF HOSPITAL(S) AND OTHER PLACES OF TREATMENT, A LIST OF MEDICINE (ATTACH MEDICAL CERTIFICATE IF PRIVATE)	TOTAL AMOUNT PAID IN VT
(SEE ATTACHED ORIGINAL RECEIPTS) TOTAL AMOUNT PAID OUT VT	

Please attached referral note from a certified medical officer from a public health facility if services received from a private health practitioner.

CLAIMING STAFF MEMBER'S CERTIFICATION

I certify that I have necessarily incurred and paid for the above medical treatment, that I have attached original receipts and that I now wish to claim reimbursement from the Government.

NAME: _____ SIGNATURE: _____

Date: _____

DIRECTOR/DIRECTOR-GENERAL CERTIFICATION

I certify that the above information is correct and that he/she is a permanent officer or daily rated worker (*circle whichever is correct*) employed in my Department/Ministry on the above salary level.

NAME: _____ **SIGNATURE:** _____

DATE: _____

DEBIT TO CHAPTER HEAD: _____

SECRETARY OF OPSCS CERTIFICATION

I certify the personal details of the officer/daily rated worker are correct and that the person receiving treatment is entitled to reimbursement in accordance with the *Staff Manual*.

NAME: _____ **SIGNATURE:** _____

DATE: _____

Staff member and Department of Finance advised on: _____

PANEL MEMBER ALLOWANCE APPLICATION FORM

Name of Officer: _____ Payroll No: _____

Post Title: _____ Post Level: _____

Post Number: _____

Department/Ministry _____

Indicate in the box below by ticking the appropriate type of panel you have been appointed to:

Type of Panel	
Investigation/Inquiry	
Recruitment Selection	
Other <i>(Please specify)</i>	

Describe the task(s) you have been appointed to carry out *[Please attach a copy of your appointment letter and copy of Terms of Reference (if any)]*:

I certify that I had done my part as a panel member to complete the task allocated to me and had submitted a report and/or relevant papers to the Department/Ministry/Authority concerned.

Name: _____ Signature: _____

Date: _____

I recommend that the Officer should receive a Panel Member Allowance of (Vt) _____ in addition to his/her substantive salary for the work done.
(The appropriate amount is found in the Allowance and Additional Payments Table PSC Table 4-2)

Director - Name: _____ **Signature:** _____

Name of Department: _____ **Date:** _____

I endorse the Directors recommendation.

Director-General - Name: _____ Signature: _____

Name of Ministry: _____ Date: _____

TO BE COMPLETED BY THE SECRETARY, OPSC

APPROVED: YES or NO (Please circle decision of PSC)

Date of PSC Meeting: _____

Secretary - Name: _____ Signature: _____

Date: _____

Checklist Investigation

Criteria													
Period: from ____ to ____													
☐ Yes ☐ No													
<table border="1" style="width: 100%; border-collapse: collapse;"> <tr> <th style="background-color: #FFD700; padding: 5px;">Level of quality of report produced</th> <th style="background-color: #FFD700; padding: 5px;">Description</th> <th style="background-color: #FFD700; padding: 5px;">Percentage of payment rate</th> </tr> <tr> <td rowspan="6" style="text-align: center; vertical-align: middle; padding: 10px;">High quality</td> <td style="padding: 5px;">Completion and production of a high quality investigation report resulting from assessment of relevant information collected from relevant sources</td> <td rowspan="6" style="text-align: center; vertical-align: middle; padding: 10px;">100%</td> </tr> <tr> <td style="padding: 5px;">Excellent organization of investigation report content in a way that is comprehensive and easy to understand</td> </tr> <tr> <td style="padding: 5px;">Effective time management that leads to completion and submission of report in due time</td> </tr> <tr> <td style="padding: 5px;">Good collection of information relating to allegations raised</td> </tr> <tr> <td style="padding: 5px;">Good analysis of information collected</td> </tr> <tr> <td style="padding: 5px;">Good recommendations proposed as a result of the findings</td> </tr> </table>	Level of quality of report produced	Description	Percentage of payment rate	High quality	Completion and production of a high quality investigation report resulting from assessment of relevant information collected from relevant sources	100%	Excellent organization of investigation report content in a way that is comprehensive and easy to understand	Effective time management that leads to completion and submission of report in due time	Good collection of information relating to allegations raised	Good analysis of information collected	Good recommendations proposed as a result of the findings		
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Level of quality of report produced	Description	Percentage of payment rate											
Medium quality													
	Completion and production of quality investigation report resulting from assessment of relevant information collected from relevant sources	50%											

	Proper organization of investigation report content in a way that is comprehensive and easy to understand	
	Effective time management that leads to completion and submission of report in due time	
	Good collection of information relating to allegations raised	
	Good analysis of information collected	
	Good recommendations proposed as a result of the findings	

Level of quality of report produced	Description	Percentage of payment rate
Satisfactory level	Completion and production of investigation report resulting from assessment of relevant information collected from relevant sources	30%
	Organization of investigation report content is acceptable	
	Investigation carried out and report produced	
	Collection of information relating to allegations raised is acceptable	
	Analysis of information collected is acceptable	
	Recommendations proposed as a result of the findings are acceptable	

☐☐

Yes

No

Letter Attached:

☐☐

Yes

No

High quality	☐	100,000
Medium quality	☐	50,000
Satisfactory level	☐	30,000

Checked and verified

☐☐

Yes

No

Signature Manager-Compliance Unit:

☐

Approved

☐

Not Approved

Signature:

Risk Allowance

Components	Criteria
1. Name of Ministries/Department	
2. Frequency of Payment	☐ Daily ☐ Fortnightly
3. Duration	Date/period _____
4. Degree of exposure	☐ High ☐ Medium ☐ Low
5. Attendance of Staffs	Date: Time: Hours/Days/Weeks: Number of officers:
6. Workplan	☐ Details of work plan /task carried out
7. Whether or not Officer has been on leave	If yes provide copy of leave document take: ☐ 1-3 days ☐ 3-5 days ☐ More than 5 days

8. Province	☐ Penama ☐ Torba ☐ Malampa ☐ Tafea ☐ Sanma ☐ Shefa
9. Source of Funding	☐ ☐ Yes No Details of Cost Center pay out from:
10. Certification and Approval from Supervisor, Director General, Directors	☐ ☐ Yes No Letter Attached: ☐ ☐ Yes No
11. Allowance rate	VT 18,000/fortnight ☐ VT 1,800/daily/per day ☐ Total amount to be paid:
12. Outcome	Checked and verified ☐ ☐ Yes No Signature Manager-Compliance Unit:
13. Approval of Secretary OPSC	☐ ☐ Approved Not Approved Signature:

Checklist Preliminary Allowance

Components	Criteria																					
14. Name Officers, Ministries/Department																						
15. Duration	Period: from _____ to _____																					
16. Report Attached	☐ Yes ☐ No																					
17. Criteria	<table border="1" style="width: 100%; border-collapse: collapse;"> <thead> <tr style="background-color: #FFD700;"> <th style="width: 30%;">Level of quality of report produced</th><th style="width: 40%;">Description</th><th style="width: 30%;">Amount to be paid 10,000vt</th></tr> </thead> <tbody> <tr> <td></td><td>Completion and production of a high quality assessment report resulting from assessment of relevant information collected from relevant sources</td><td></td></tr> <tr> <td></td><td>Excellent organization of preliminary assessment report content in a way that is comprehensive and easy to understand</td><td></td></tr> <tr> <td></td><td>Effective time management that leads to completion and submission of report in due time</td><td></td></tr> <tr> <td></td><td>Good collection of information relating to allegations raised</td><td></td></tr> <tr> <td></td><td>Good analysis of information collected</td><td></td></tr> <tr> <td></td><td>Good recommendations proposed as a result of the findings</td><td></td></tr> </tbody> </table>	Level of quality of report produced	Description	Amount to be paid 10,000vt		Completion and production of a high quality assessment report resulting from assessment of relevant information collected from relevant sources			Excellent organization of preliminary assessment report content in a way that is comprehensive and easy to understand			Effective time management that leads to completion and submission of report in due time			Good collection of information relating to allegations raised			Good analysis of information collected			Good recommendations proposed as a result of the findings	
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	Effective time management that leads to completion and submission of report in due time																					
	Good collection of information relating to allegations raised																					
	Good analysis of information collected																					
	Good recommendations proposed as a result of the findings																					

5. Appointment Letters to be part of the Preliminary/Investigation Team	☐ ☐ Yes No Letter Attached: ☐ ☐ Yes No
6. Outcome	Checked and verified ☐ ☐ Yes No Signature Human Resource Manager/officer
7. Approval of Director or Director General	☐ ☐ Approved Not Approved Signature:

ALLOWANCES AND ADDITIONAL PAYMENTS

This Table has the allowances and additional payments identified in Chapter 4 *Terms and Conditions of Employment*.

NOTE: In all calculations, fractions or decimals in final figures should be rounded upwards to the nearest whole VT. Total time worked should be rounded off to the nearest quarter hour.

Allowance & extra payments	Current rate
Overtime rates	Time and a quarter with a minimum payment of one hour of overtime work.
Unsocial hours rates	A quarter of the time.
Shift allowances: (1) Regular alternating	(1) 1,500 VT per month
(2) Regular Night Shift	(2) 3,500 VT per month
On call allowance	Time and a quarter for actual hours worked (25 % on top of normal working hrs) plus 7.5% for on call / waiting time
Acting allowance	Percentage of difference between salaries determined by PSC with a set scale
Extra Responsibility allowance	Percentage of set band: (1) PS 1.1 to PS 6.4: 60,000 to 120,000 VT per annum (2) Above PS 6.4: 120,000 to 180,000 VT per annum
Permanent posting requiring moving to a different locality	(1) VT 50,000 one-off payment (2) VT 30,000 establishment allowance
Domestic duty travel allowance	(1) 7,000 VT per day. If domestic duty travel will last more than 30 days, the rate of Temporary transfer allowance will be applicable. (2) Cost of accommodation and transport to be provided through accountable imprest.
Domestic In- Service Training Allowance (excluding accommodation)	(1) 2,000 VT per day commencing from date workshop or training begins and ends when workshop ends. (2) Accommodation shall be the responsibility of the Department.

Temporary Transfer Allowance	1) 2,000 VT per day commencing from date of temporary transfer for 7 days 2) 100,000 VT Lump sum for more than 30 days but less than 60 days Accommodation shall be the responsibility of the Department.
Selection Panel Member's Allowance	(1) VT5, 000 for a member of the Recruitment Selection Panel to assess and/or interview applicants for a vacancy in the Public Service. (2) VT40,000 for a member of the Recruitment Selection Panel to assess and/or interview applicants for a vacancy of DG, Directors and equivalent positions in the Public Service. (3) In the event that a panel member does the first assessment and he/she is not available for the interview and replace by another panel member, the allowance should be shared at 50 percent.
Overseas Mission Travel Allowance:	
(1) Southern Pacific	(1) VT17,000
(2) Australia- Asia, New Zealand, North Pacific	(2) VT25,000
(3) Europe Countries, US, Africa, South America, Middle East	(3) VT40,000
	Note: These rates applicable only when no other Donors funds the cost
Child allowance	VT 3,000 VT per Child
Housing allowances and rent deductions	(1) Standard allowance of VT 360,000 pa for officers not entitled to Government house subject to government Housing Policy.

	(2) 30% of current market value rate for officers not entitled to, but occupying a government house.
Medical expenses	100% payment but conditions apply. See policy details at section 8 of chapter 4 of this manual.
Special Skills Allowance	Technical. VT 120,000 to 2.0 million per annum Allowances will be calculated using Point Matrix System according to the following range: (1) 120,000 - 333,000 (2) 334,000 - 667,000 668,000 - 1,000,000 (3) 1,000,001 - 1,333,000 (4) 1,334,000 – 1,666,000 (5) 1,667,000 - 2,000,000
Death while performing services	(1) For those officers or employees employed for 1 to 5 years continuous service – 6 month's salary and Funeral expense (2) For those employed for 6 years and more 1 year's salary plus Funeral expense.
Risk Allowance	(1) VT18,000/ fortnight (2) VT1,800/ per working day

POINT MATRIX SYSTEM

A point system Matrix, a guide to determining salary grade, with the 14-scale level

	Comparable Critical Factors	Minimum	Low	Moderate	High
1	Responsibility				
	a) Policy & Corporate Planning	0 – 25	50	75	100
	b) Financial Management & Accountability	0 – 25	50	75	100
	c) Supervision/responsibility for others	0 – 30 (0 – 10 staff)	60 (11 – 20 staff)	90 (20 – 50 staff)	200 (50 plus)
	d) Equipment's and Materials/assets	0 - 20	45	60	80
	e) Training/assisting others	0 – 5	20	35	50
	f) Risk and extend of risk/impact	0 – 15	25	45	60
2	Skill				
	a) Experience	0 – 20	45	60	80
	b) Education/Training Qualification	25	50	75	100
3	Effort				
	a) Physical	5	20	35	70
	c) Mental	0 – 15	30	45	60
4	Working condition				
	a) Unpleasant/hazard Condition	5	20	35	50
	b) Work Load	5	20	45	50
	Total points				

DEPARTMENT SPECIFIC CONDITIONS

1. Department of Ports and Marine

1.1 Sea-Going Allowance

- | | | |
|-----------------|----------|------------------------|
| • Captains | VT. 975) | |
| • Engineers | VT. 975) | per period of 24 hours |
| • Bosun & Below | VT. 450) | |

1.2 Victualling Allowances

	<u>Breakfast</u>	<u>Lunch</u>	<u>Dinner</u>
• Captains:	VT: 225	VT: 375	VT: 375
• Engineers:	VT: 225	VT: 375	VT: 375
• Bosun & Below:	VT: 90	VT: 180	VT: 180

Note: For absences of less than 24 hours an allowance is paid for meals provided.

Chapter 5: Management of Education and Training

1. Introduction

The Public Service Commission recognises the pivotal role of well-trained employees in enhancing service delivery which contributes to the overall development of Vanuatu. Under paragraphs 8(1)(c) and (i) of the *Public Service Act*, the Commission is entrusted with the responsibility of acting as a good employer while promoting and enhancing work-related development and education training opportunities for employees. The selection and approval process for employees undergoing education and training must be made fairly, efficiently, and transparently by the VIPAM Board and the Commission. By doing so, all requirements have to be met and all selection and approval must be dealt with in accordance with this chapter.

To ensure quality service delivery, the Commission plays a crucial role in ensuring that all directives set under Society Pillar 6 of the Vanuatu 2030 The Peoples Plan including the National Human Resource Development Plan are implemented.

Education and training of all employees are an integral part of the Commission's planning. In this regard, the Commission is committed to:

- (a) encouraging a culture of life-long learning, knowledge sharing, innovation, and creativity to build a robust human resource for public service;
- (b) fostering knowledge sharing among employees from different Ministries and Departments by encouraging employees to participate in cross-departmental placement programs within Statutory bodies, Non-Government Organization training programs, and workshops that allow them to work together and learn from one another;
- (c) ensuring all employees have equal opportunities for accessing relevant training without discrimination;
- (d) maintaining updated baseline information of priority occupation and skills demand within the Public Service;
- (e) implementing prioritized and demand-driven programs that are cost-effective;
- (f) continuously upgrading core competencies, knowledge, skills, and attributes of employees including their ability to assimilate technology for career growth, social advancement, economic growth and development;
- (g) promoting collaboration and linkages between stakeholders, training institutions, development partners, industries, and scholarship agencies for exchange programs both nationally and regionally, and
- (h) ensuring effective career pathways for all employees.

The Commission, in alignment with the National Human Resource Development Plan (NHRDP) and the Ministry Human Resource Development Plan (MHRDP), may effectively manage and enhance employee capacity through education and training to address skill gaps prescribed under the MHRDP.

2. Values:

In carrying out its functions and responsibilities in a fair and transparent manner, the Commission through VIPAM embraces the following core values:

- (a) Passion;
- (b) Respect;
- (c) Integrity;
- (d) Determination; and
- (e) Excellence.

3. Managing and Coordination of Education and Training

3.1 Responsibilities

3.1.1 Composition of the Human Resource Development Committee within a Ministry

- (a) All ministries must establish a Human Resource Development Committee (HRDC).
- (b) The HRDC consists of the Human Resource Manager, a Human Resource Development Officer where applicable, and a Manager of each Unit under a Ministry or Department.

3.1.2 Responsibilities of the Director-General:

The Director-General is responsible for ensuring that:

- (a) The Ministry Human Resource Development Plan (MHRDP) is developed and that it aligned with the NHRDP.
- (b) A budget is allocated for the implementation of the MHRDP.
- (c) Proper arrangements are in place to cover the employee's responsibility for the duration of the employee's study period.

3.1.3 Responsibilities of the Director

The Director is responsible for the following:

- (a) ensuring the proper implementation of the Ministry's Professional Development Plan (MPDP) in his or her department to be effectively and efficiently carried out.

- (b) reporting all issues relating to the implementation of the MPDP to the relevant Director-General.

3.1.4 Responsibilities of a Supervisor within a Ministry or Department

A Supervisor within a Ministry or department is responsible for ensuring that:

- (a) each employee is properly assessed before recommending him or her for the necessary education and training using the *Training Need Assessment Form-(PSC Form 5.5)*.
- (b) upon returning from education and training, the supervisor must, in collaboration with the employee, develop a work plan to enable the transfer of skills and knowledge from the education and training to add value to the Organization.

3.1.5 Responsibilities of a Human Resource Management Officer

A Human Resource Management officer must ensure that:

- (a) Proper coordination and facilitation of human resource development are carried out.
- (b) Performance appraisals for an employee is closely monitored.

3.1.6 Responsibilities of a Human Resource Development Officer

A Human Resource Development officer must ensure that:

- (a) The coordination of all training activities, including work-based attachments and talent management programs, is carried out effectively and efficiently.
- (b) The records of their implementation of HRDP are properly kept.
- (c) The coordination and development of annual training plans for their Department and Ministry includes conducting Training Needs Assessments in the relevant Ministry and Department to:
 - (i) provide professional guidance on the HRD matters;
 - (ii) prepare the training budget in liaison with Human Resource Management Unit;
 - (iii) develop, update, and maintain the Ministry's and Department's records for education and training;
 - (iv) develop HRD update Baseline Data and report to VIPAM;
 - (v) ensure that staff members within the Ministry and department have a clear understanding of the HRDP and the NHRDP;
 - (vi) work in collaboration with VIPAM on education and training matters;
 - (vii) provide a quarterly report to VIPAM on Education and training activities and training job performance for staff members who have completed an education or training program.

3.1.7 Responsibilities of the Human Resource Development Committee

The Human Resource Development Committee must ensure that:

- (a) the development and coordination of MPDP is carried out effectively and efficiently.
- (b) the recommendation of employee to undertake education and training is submitted to Ministry's senior management as per section 8(1)(c) of the *Public Service Act*.
- (c) the recommendation of post-education and training job performance is facilitated for approval at the Ministry's senior management level-
- (d) a quarterly report of education and training is submitted to the Ministry's Senior Management.

3.1.8 Responsibilities of a Staff Member

A staff member must ensure that he or she:

- (a) is self-assessed against his or her job description, to identify technical skills and to determine education and training needs.
- (b) has a clear understanding of his or her responsibilities in achieving the goals and objectives of the Ministry, Department or Unit.

4. Training Needs Analysis

4.1 Training Needs Assessment (TNA)

A Training Needs Assessment (TNA) is an audit process or method of determining if a training need exists, and if it does what training is required to fill the gap. In order to identify skills gaps throughout the public service, a TNA will be conducted in consideration of the following conditions:

- (a) Government priorities from the NHRDP through the Vanuatu Qualification Authority (VQA);
- (b) Performance appraisal as per Chapter 10 of this Manual;
- (c) Technical requirements of the job description as per standardised regulatory requirements (if applicable); and
- (d) Job description requirements.

4.1.1 Conducting the TNA

The TNA should be carried out annually as per the conditions in this section..

4.1.2 Completing the Training Needs Assessment Form

The *Training Need Assessment Form- (PSC Form 5.5)* must be completed.

4.2 Training Prospective

4.2.1 VIPAM Prospectus

VIPAM prospectus will be developed and circulated throughout the Public Service to attract employees to apply for admissions. The prospectus will contain information about the institution and the available courses, including advice on how to apply and training benefits.

4.2.2 Training Calendar

A training calendar will be developed by VIPAM and circulated to line agencies annually for Inductions and In-service Trainings.

4.2.3 Monitoring and Evaluation of Trainings

There must be monitoring and evaluation of trainings carried out before (pre) and after (post) every training.

5. Type of Education and Training

5.1 Classification

- (1) **Long-Term Training (LTT)** is defined as “a self-sponsored or sponsored face-to -face, online, or blended training course that exceeds twelve months duration”
- (2) **Short-term training (STT)** is defined as “a self-sponsored or sponsored face-to-face, online, or blended course of twelve months duration or less”.
- (3) **Development Actions** are a set of appropriate learning and development tools, in addition to STTs and LTTs, that can be used to further enhance employee performance.

The required type of education and training within the Public Service are as follows:

5.2 Long-term Training

(a) **Quality Assured Training:**

- (i) **National Recognised Trainings:** Employees will attend an accredited course that will be nationally recognised and meet quality assurance requirements and standards set by VQA.
- (ii) **International Recognised Training:** Employees will attend an accredited course that is internationally recognised by a quality assurance agency.

5.3 Short-Term Training

(a) **Onboarding and Orientation:**

On-boarding and orientation are conducted by line agencies through the HRMU with the

objective of integrating new employees and making them understand the systems and procedures of the Ministry/Department.

(b) Induction:

Induction is mandatory training for all new employees to familiarise themselves with the policies and procedures of this Manual. The induction is facilitated and conducted by OPSC through VIPAM.

(c) Professional Development within the Department/Ministry:

Line Ministries are encouraged to design and implement work-related in-house and group training programs to address identified training needs, taking into account the following factors:

- (i) Ministerial/Departmental needs and priorities;
- (ii) Availability of professionally qualified and experienced trainers/facilitators;
- (iii) Funding;
- (iv) Cost-effectiveness vis-à-vis expected benefits.

(d) Job Rotation:

Job rotation is the systematic movement of employees from one job to another within the Organization to achieve various human resources objectives such as orienting new employees, training employees, and enhancing career development.

(e) Workshops:

- (i) **Non-Formal Workshop:** learning that takes place outside formal learning environments but within some kind of Organizational framework.
- (ii) **Formal Workshop:** follows a syllabus, and that learning is the goal of all the activities learners engage in. Learning outcomes may or can be measured by tests and other forms of assessment.

(f) Recognition of Prior Learning (RPL):

- (i) (RPLQ) Qualification,
- (ii) (RPLCT) Credit Transfer
- (iii) (RPLA) Admission

(g) Quality Assured Training:

- (i) **National Recognised Trainings:** Employees will attend an accredited training that is nationally recognised and meets quality assurance requirements and standards set by VQA.
- (ii) **International Recognised Training:** Employees will attend an accredited course that is internationally recognised by a quality assurance agency.

5.4 Development Action

Development Action	Explanation
1. Mentorship	Have the employee periodically “interview” a specialist to discuss and enhance the ability to make good judgment.
2. Leadership opportunity	Have the employee lead meetings, presentations, task force, etc. to enhance their knowledge, and experience, and assume leadership responsibility in professional conferences, community service, business tours, etc.
3. Training assignment or presentation	Arrange for the employee to cross-train others or present ideas, plans, and findings to build knowledge, credibility, and confidence.
4. Study materials	Provide manuals, books, reports, audio-video, and/or other self-learning reference materials. Follow up to share interests and reinforce learning.
5. Professional development programmes	Have the employee attend in-house and/or external workshops, conferences, and academic programs to develop specific skills and knowledge.
6. Cohorts	A group of individuals or entities assembled based on their specific, current, and anticipated needs or demands. The selection of participants in a demand-driven cohort is guided by the principle of aligning their capabilities, expertise, or resources with the requirements and requests of the target audience or market, ensuring that the cohort can effectively meet the identified demands.

5.5 Nomination of Officers for Education and Training

This section outlines the basis for nominating employees to go for training, the eligibility criteria, the training approval process, and the required supporting documents. Nominations for training opportunities should be guided by the following principles:

1. Gender equality, transparency, meritocracy and relevance of the employee's job description and tasks;
2. The training is relevant in addressing the performance gap;
3. Cost-effective and availability of funds;
4. Consistency with results of the TNA, Performance Appraisals, and Ministerial Human Resource Development Plan;

5. Recommendations and approvals from Director-Generals and Directors.

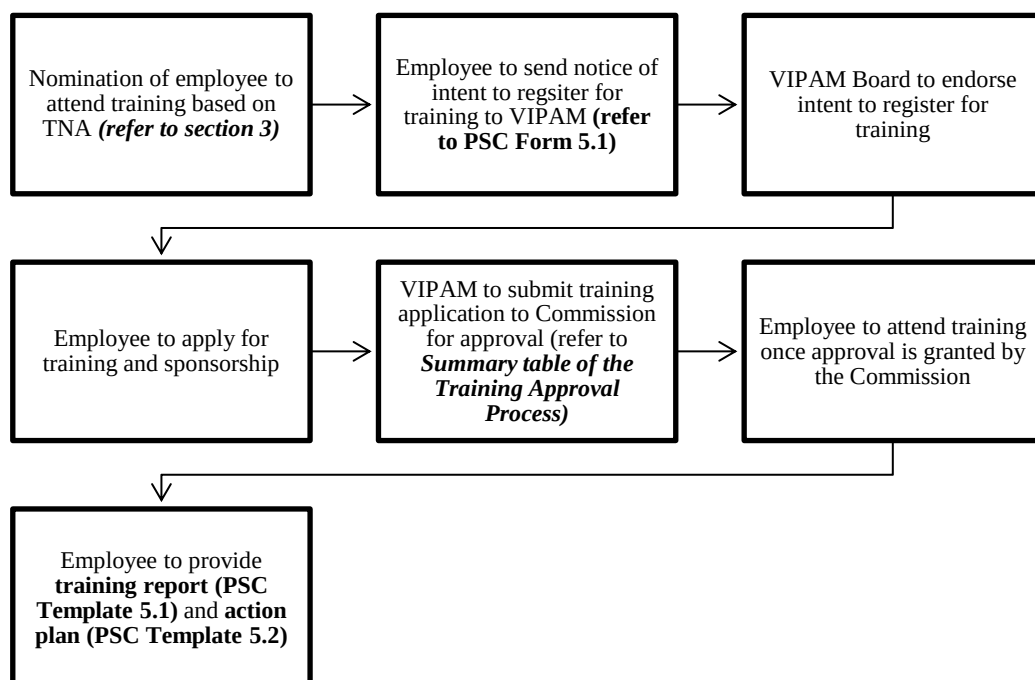
5.6 Education and Training Application and Approval Procedures

5.6.1 Applications for long-term training

The processing time for all long-term training applications is six (6) weeks from the date of submission to VIPAM.

(a) Approval Process:

The approval process for long-term training applications is set out below:



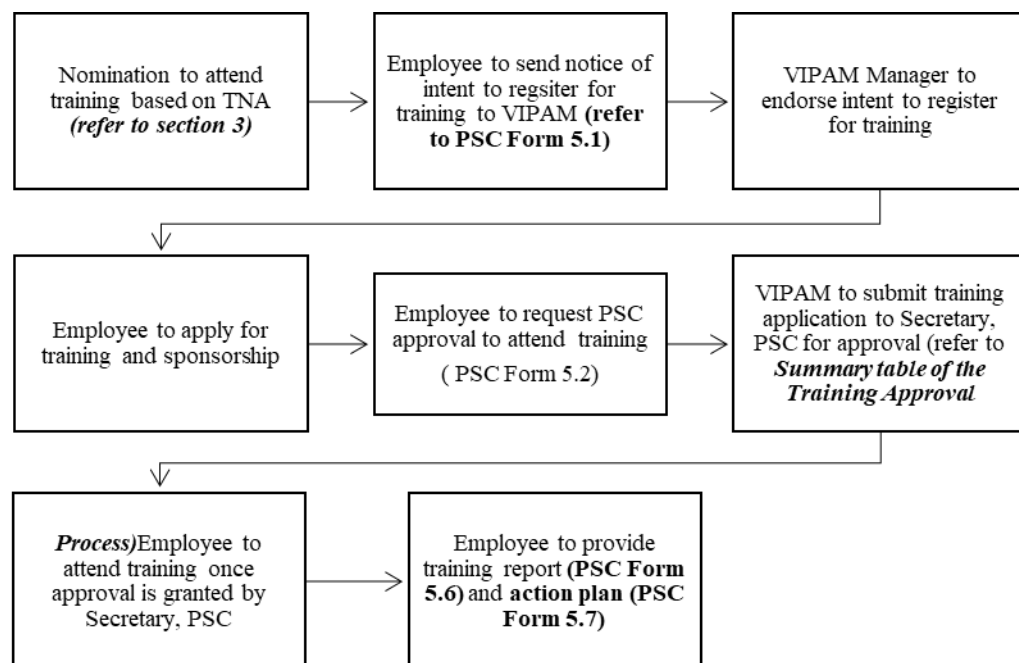
5.6.2 Short-Term Training

(a) Application for short term training

The processing time for all short-term training applications is ten (10) working days from the date of submission to VIPAM.

(b) Approval Process:

The approval process for short-term training applications is set out below:



5.6.3 A Summary Table of the Training Approval Process:

Competent authority	Type of Training	Duration	Responsibility	Required Form
Commission	Long- Term Training	12 months above	Approve training	PSC Form 5-2 (Training Approval Form) PSC Form 5.4 (Bonding Agreement Form)
	Short-Term Training	12 months below	Approve attendance to Quality Assured Training	
Secretary	Short-Term Training	15 days or more and less than 6 months	Approve trainings for all employees	PSC Form 5-2 (Training Approval Form)
		15 days or more and less than 6 months	Approve study leave for all employees (Semester/ Trimester)	PSC Form 5-3 (Study Leave Form)
VIPAM Board	Long-Term Training	1 year or more	Endorse and nominate officers to attend a formal workshop or Quality Assured Training to the Commission	PSC Form 5-2 (Training Approval Form) PSC Form 5.4 (Bonding Agreement)
	Short-Term Training	15 days or more and 1 year or less	Endorse and nominate officers to attend a formal workshop or Quality Assured Training to the Commission	PSC Form 5-2 (Training Approval Form) PSC Form 5.4 (Bonding Agreement)
Director General	Short-Term Training	Less than 15 days	Approve in-country training for Directors and CSU officers	PSC Form 5-2 (Training Approval Form)
Director	Short-Term Training	Less than 15 days	Approve in-country training for Department officers	PSC Form 5-2 (Training Approval Form)

5.7 Terms and Conditions of Education and Training

5.7.1 Eligibility criteria to undergo Education and Training

Training classification	Training type	Eligible Officers	Maximum Years/months in service	Minimum duration of training
Long-Term Training	Quality Assured Training	Permanent - New Officers	4 years	Above 12 months
		Permanent - Serving Bonding Agreement	3 years	
Short-Term Training	On-boarding (Department)	Probation Contract including Interns Apprentice Cadet	1 week	1 week
	Induction (VIPAM)	Permanent officers and after confirmation	4 months	1 week
	Formal Workshop	Permanent	1 year	6 months
	Non-Formal Workshop	Contract including interns	4 months	6 months
	Quality Assured Training	Permanent	6 months	Below 1 year
Professional Development	Recognition of Prior Learning (RPL (Q) Qualification, RPL (CT) Credit Transfer and RPL (A) Admission)	Permanent	5 years	2 years
	Development Activities	Permanent	6 months	Above 1 year
		Probation	6 months	6 months
		Contract	6 months	

5.7.2 Conditions for VIPAM Board Endorsement

A staff member may engage in short or long-term education and training on the following conditions:

(a) *Sponsorship or Private sponsorship with full entitlements*

Criteria:

- (i) Education and Training is in line with the line ministry HRDP and NHRDP;
- (ii) Employee is fully committed;
- (iii) The Director-General or Director or equivalent position has provided support for the proposed education and training;
- (iv) Employee has valid health and safety Insurance Cover;
- (v) Employee is free from any form of Government debt or liability;
- (vi) Education and Training must be provided by a recognised institution;
- (vii) Employee is free from any pending disciplinary matter.

(b) *Sponsorship or private sponsorship pursued by employee for personal interest*

The following criteria outline the conditions for sponsorship or private sponsorship with full entitlements, ensuring alignment with educational and training objectives:

- Individual initiative;
- Focus on personal interests;
- The officer must resign unless the education and training are in line with the nature of their employment.

5.7.3 A Table of the Summary Entitlements While on Training

Entitlements	Short Term Training (On-the-job)	Long Term Training (On-the-job)	Short Term Training (Off-the-job)	Long Term Training (Off-the-job)
Salary	100%	100%	100%	Refer to training allowance Scheme Rates
Leave	Accrued	Accrued	Accrued	No accrual
Housing Allowance	Paid	Paid	Paid	Paid
Child Allowance	Paid	Paid	Paid	Paid
Available days to attend class	Based on timetable	Based on timetable	N/A	N/A
Allocated hours for study	Maximum of 3 hours	Maximum of 3 hours	N/A	N/A
Reimbursement of cost-related fees (self-sponsored)	100%	100%	100%	100%
Reimbursement of cost-related fees (sponsored)	N/A	N/A	N/A	N/A

5.7.4 Allowances for Education and Training and Capacity Development Conducted Overseas and of Six (6) Months Duration or Less

- (a) If the accommodation (housing rent, hotel costs) and subsistence allowance (includes meal and living allowances and local travel costs) is completely funded by a donor agency or other party, no top-up or additional allowances are payable by the government to the selected and shortlisted employee to attend the education and training.
- (b) If accommodation or subsistence costs are partially funded by a donor agency or other party, the VIPAM may liaise with the donor agency to establish a reasonable daily allowance rate that will cover the accommodation and/or subsistence costs.
- (c) In cases where accommodation or subsistence costs are not funded by a donor agency or other party, the employee will be entitled to claim this daily allowance rate outlined in this chapter. No additional allowance is payable unless approved by DoFT through imprest.
- (d) In cases where accommodation or subsistence costs are partially funded by a donor agency or other party, the employee will be entitled to claim the difference between this daily allowance rate outlined in this chapter and the partially funded donor allowance.

5.7.5 Determination of Salary and Benefits During Training

- (a) An employee attending training will receive their full salary during the full period of his or her award.
- (b) The Housing Allowance and Child Allowance will be at the discretion of the PSC.
- (c) Human Resource Officers will advise the Department of Finance of the appropriate training allowance to be paid to the officer in accordance with the *Training Allowance Scheme Rates- (Table 5-9)*.
- (d) The training allowance referred to under paragraph (c) will not be limited to one year and will be considered a charge against the Ministry or Departmental budget.
- (e) To qualify for a training allowance, the applicant must fully disclose the employee's personal financial commitments, and the value of any scholarships and other allowances granted by any other agency in connection with the training.

5.7.6 Bonding Agreement

- (a) All employees attending a Long-Term Training of more than one-year duration will be required to sign a *Bonding Agreement Form- (PSC Form 5-4)* requiring them to return to the Public Service, occupy their substantive position with the same salary level, and serve in their respective department for a period of three years as bonding term.
- (b) The *Bonding Agreement Form- (PSC Form 5-4)* must be signed in the presence of the Director-General and the Secretary of the Public Service Commission.

- (c) This bonding agreement is a legally binding contract between the employee and the Public Service Commission.
- (d) All employees approved to participate in this scheme will be required to refund a proportion of the Government's training cost from his or her entitlements, including leave, if they are breach this bonding agreement.
- (e) The Severance payment will be deducted as part of the Bonding Agreement.
- (f) The *Bonding Agreement Form- (PSC Form 5-4)* should be submitted as part of the application for training.
- (g) Notwithstanding paragraph 6.7 (a)-(f), an employee on a short-term training of less than twelve (12) months is required to sign a Bonding Agreement if his or her education or training is for an advanced or specialised qualification.

5.7.7 Determination of Training Allowance

- (a) For the first year of training, an officer will be paid their full salary. For any period in excess of twelve months, a percentage of the officer's salary will be paid. The employee will continue to be paid the training allowance until they complete their training. The Housing Allowance and Child Allowance will be at the discretion of the PSC.
- (b) For any period in excess of twelve months, if a spouse, child, housing or other equivalent allowances are covered by the donor agency, the matter is to be referred to the Commission and the salary may be abated according to the amount of the allowances.
- (c) Human Resource Officers within each Ministry or Department will advise the Department of Finance of the appropriate training allowance to be paid to the officer in accordance with the *Training Allowance Scheme Rates- [Table 5-9]*.
- (d) The allowance will not be limited to one year only, and it will form a charge against the Ministry or Departmental budget.
- (e) In order to qualify for a training allowance, the applicant must fully disclose the officer's personal financial commitments, and the value of any scholarships and other allowances granted by any other body in connection with the training.

5.7.8 Extension or Deferment

Scholarship recipients applying for an extension or deferment of their training course should notify the HRD Unit.

- (i) The HRD Unit will refer the matter to the Commission.
- (ii) Approvals for extensions or deferments will be subject to approval by the Commission. Automatic approvals will not be granted, and the Commission may impose certain conditions, including a return to work during academic vacations.

5.7.9 Termination or Withdrawals of Education and Training

- (a) In the event of the termination or withdrawal of a scholarship, the recipient must immediately notify the HRD Unit and their Department Head. Failure to comply with this requirement will subject staff members to disciplinary proceedings.
- (b) The recipient is required to resume duty within one working day of the termination or withdrawal date as specified in the termination or withdrawal letter.
- (c) No additional allowance, as outlined in **Table 5.9**, is payable after the termination or withdrawal date.
- (d) Scholarship recipients terminated or withdrawn will not be considered for new scholarship applications until a period of three years has elapsed. During this time, the officer must demonstrate their capacity and commitment through the successful completion of local or other short-term courses.

5.7.10 Reimbursement of Short-Term and Long-Term Course-Related Expenses:

Upon successful completion of the study program, a self-sponsored employee may claim full reimbursement of tuition fees and the cost of required textbooks (if applicable) from the Commission. The claim must be accompanied by receipts and a transcript of results for the subjects undertaken and approval by the Director-General or Director or equivalent position.

5.7.11 Return to Work After Long-Term Education and Training Activities:

- (a) Employees undertaking long-term education and training are not required to return to work during vacation periods unless this requirement is specified by the Commission.
- (b) Upon completing the education and training period, the employee must promptly notify VIPAM.
- (c) After finishing the approved course of study, employees must return to duty within five (5) working days unless leave arrangements have been approved, as specified in this chapter, with the assistance of the HRO of line agencies.
- (d) After completion of education and training, an employee is required to provide an action plan for development of an innovative product/idea to advance processes and skills in the workplace.
- (e) Failure to implement the plan after undergoing education and training, may subject the employee to the provision outlined in this Chapter.
- (f) Despite paragraph (e) above, nothing in this paragraph prohibits an employee from seeking further long-term education and training upon an improved performance appraisal.

5.8 Disciplinary Process for Staff Attending Training

A staff member or employee who fails to comply with any paragraph under this Chapter commits a disciplinary offence and is subject to disciplinary proceedings under Chapter 6 of this Manual.

5.9. Monitoring and Evaluation Reporting

All Public Service Ministries through HRM/HRD shall continuously carry out M&E and report quarterly. The reports will include, among other things:

1. Distribution of training opportunities in terms of gender, age, ethnicity, persons with disabilities, and sponsor.
2. Number and types of trainings and education programmes/course organised.
3. Cost of the training & education programme(s) if Ministry is to refund.
4. Relevance of the training and education programme(s).
5. Names of officers bonded, the cost and the defaulters.
6. VIPAM to produce quarterly report to VIPAM Board and the Commission.

5.10 Development Programs

5.10.1 Work-Based Attachment and Talent Management

(a) Work-Based Attachment

- i. Work-Based attachment targets secondary students and tertiary non-graduates seeking work experience and skills development.
- ii. Talent Management focuses on attracting potential candidates to recruit, retain, and develop the capacity of young and potential employees.

Classification	Program	Target Participants	Placement Duration	Extension Period
Work Based Attachment	Cadetship	Senior Secondary School Student	2 months	Below 6 months and applicable only on special circumstances approved by Secretary of the PSC
	Career exploration	Senior Secondary School Students	2 months	N/A
Talent Management	Apprenticeship	PSET Institution Students	Depend on program requirement	Depend on Training Provider's requirements and must be approved by the Secretary of the PSC

	Internship	Graduates	1 year. Health sector placement, duration will depend on career pathway.	Must be justified by the Intern Performance Assessment and approved by the Commission
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(b) Cadetship Program

- i. The placement of cadets is to be coordinated by VIPAM. Students are to be allocated to relevant Ministries and Departments through a cadetship contract. The placement must be in line with the student's career pathway.
- ii. Cadet's placement will be organised only during school breaks. Extensions of cadetship work attachments are not permitted;
- iii. On successful placement, all placed students must attend an induction facilitated by VIPAM;
- iv. A training allowance of VT1,000 per day is the recommended rate for all students undertaking the cadetship program for those Organizations who have budgeted for it;
- v. A student undertaking the cadetship program must attend for purposes of gaining work experience and skills development;
- vi. The duration of the cadetship placement can range from two (2) weeks to two (2) months.

(c) School Work Based Placement

This program aims at accommodating short-term work experience relevant to students pursuing their career path or field of study.

- i. Placement of these students is to be coordinated by VIPAM. Students are allocated to the relevant Ministry and Department through a School work-based contract. The placement must be in line with the student's career pathway.
- ii. Students under the School Work Base Placement are to be placed for a period of up to six (6) months. Extension of this period is not permitted.
- iii. On successful placement, all placed students must attend an induction facilitated by VIPAM.
- iv. A training allowance of VT 1,000 per day is the recommended rate for all students undertaking the school work-based placement program for those Organizations who have budgeted for it.

- v. A student undertaking the cadetship program must attend for purposes of gaining work experience and skills development;

(d) Industrial Attachment Program

- i. The apprenticeship program is based on an arrangement between an institution or training provider and the head of Ministries. This arrangement should be treated as a training agreement.
- ii. All students must provide a student practical logbook to keep record of all activities undertaken during the attachment period.
- iii. Workplace supervisors are responsible to ensure students are allocated relevant task and properly supervised, including the sign-off of logbooks.
- iv. Placements are to be organised by VIPAM in consultation with the line agency to meet specific Human Resource needs.
- v. Students are placed based on a recommendation from an institution or training provider in line with the student's school program requirement.
- vi. On successful placement, all placed students must attend an induction facilitated by VIPAM.
- vii. A training allowance of VT 1,760 per day is the recommended rate for all students undertaking the apprenticeship program for those organizations who have budgeted for it.
- viii. A student undertaking the apprenticeship program must attend for purposes of completing the institutional program requirement.
- ix. Apprenticeship activities must be assessed using prescribed the performance appraisal template under this Chapter.
- x. If a training provider provides a training allowance, section (vii) is not applicable.
- xi. The duration of the apprenticeship placement depends on the institution or training provider's requirement as per section (i).

(e) Internship Program

- i. The Internship program targets graduates from recognised tertiary institutions and PSET providers.

- ii. Despite the requirement under paragraph (i), nothing in this paragraph is to prevent the program from recognising those with specialised skills and knowledge.
- iii. Placements are to be organized by VIPAM in consultation with Ministries and Departments to meet specific Human Resource needs.
- iv. Internship attachment must be assessed by VIPAM.
- v. On successful placement all interns must attend an induction organised by VIPAM.
- vi. Prior to nominating an intern, line-agencies must submit a Employment contract outlining the terms and conditions of the internship.
- vii. Intern, Director-General or Director must sign the employment contract before the commencement of the internship.

The following internship remuneration will be applied:

VQF Level	Salary Grade
Level 10 - Doctorate	PS 4.6
Level 9 - Master	PS 3.4
Level 8 – Post Graduate Diploma, Certificate & Bachelor with Honour	PS 3.1
Level 7 – Bachelor Degree, Graduate Diploma, Graduate Certificate	PS 2.6
Level 6 & 5 - Diploma & Advance Diploma	PS 1.6
Level 4 - Certificate IV	PS 1.1

(f) Monitoring and Evaluation

Line Agency will be responsible to provide report to VIPAM following the timeframe shown in the table below:

Development Programs	Reporting Period
Cadetship Program	End of cadetship placement
Apprenticeship Program	End of apprenticeship placement
Internship Program	End of internship placement

FORMS AND TABLES FOR CHAPTER 5: EDUCATION AND TRAINING

Notice of Intent to Register for Training

Name: _____

Employee National ID No.: _____ VNPF: _____

Employee Email Address: _____

VOIP No.: _____ Ministry Landline: _____

Post Title: _____ Post No.: _____

Location: _____

Permanent Status: ☐ Yes ☐ No

Department: _____ Ministry: _____

Commencement date in the Public Service: ____/____/____

Program Information:

Course Title:

Course Description:

Training Institution: _____ Course Location: _____

Start Date: ____/____/____ End Date: ____/____/____

Length of Course: _____ Hrs per Day: _____

Describe how this is directly related to your job description or part of our career pathway:

Required action plan for development of an innovative product/idea to advance processes and skills in the workplace:

Employee Signature: _____ **Date:** ____/____/____

Training Required Documents:

These are required documents to be provided by the applicant before endorsement from the Directors and OPSC:

- i. Line Agency HRD Plan
- ii. Job Description
- iii. Training Needs Assessment
- iv. Copy of Passport (If needed)

Training Endorsement:

Director General/Director

Name: _____ **Date:** ____/____/____

Signature: _____

Reviewed by:

Manager VIPAM

Name: _____ **Date:** ____/____/____

Signature: _____

PSC Approval:

APPROVED ☐

NOT APPROVED ☐

Chairman/Secretary, PSC

Name: _____ **Date:** ____/____/____

Signature: _____

Training Approval Form

Employee Information

Name: _____

Employee National ID No.: _____ VNPF: _____

Employee Email Address: _____

VOIP No.: _____ Ministry Landline: _____

Post Title: _____ Post No.: _____

Location: _____

Permanent Status: ☐ Yes ☐ No

Department: _____ Ministry: _____

Commencement date in the Public Service: ____/____/____

Program Information

Course Title: _____

Course Description: _____

Type of Sponsorship					
Fully Funded ☐	Partially Funded ☐	Private Sponsor ☐			
Training Classification (tick the appropriate box)					
Long-term Training ☐	Short-term Training ☐	Professional Development ☐			
Training Type					
Quality Assured Training ☐	Induction ☐	Formal Workshop ☐	Non-Formal Workshop ☐	RPL ☐	Development Activity ☐

Training Institution: _____ Course Location: _____

Start Date: ____/____/____ End Date: ____/____/____

Length of Course: _____

Funding Information *(To be completed by Department/Ministry)*

Estimated costs for study duration: _____ VUV

Salary costs of applicant: _____ VUV

Tuition Fees: _____ VUV

Accommodation, travel & subsistence cost of the applicant (If not covered by sponsor):
_____ VUV

Who will pay these costs? _____

Training Required Documents

These are required documents to be provided by the applicant before endorsement from the Directors and OPSC:

- i. *Supporting letter from Director General or Director*
- ii. *Offer letter from the Institution*
- iii. *Sponsorship letter if sponsored*
- iv. *Confirmation letter if private sponsored*
- v. *Copy of Performance Appraisal*
- vi. *Training Needs Assessment Form (PSC FORM 5.5)*
- vii. *Line Agency HRD Plan*
- viii. *Copy of Passport*
- ix. *Police Clearance (long-term training)*
- x. *Medical Report*

Employee Agreement

I have read, understand, and accept the terms and conditions of my proposed application:

Employee Name: _____ **Signature:**

Date: ____/____/____

Training Endorsement:

Director General/Director

Name: _____ **Date:** ____/____/____

Signature: _____

Reviewed by:

Manager VIPAM

Name: _____ **Date:** ____/____/____

Signature: _____

PSC Approval:

APPROVED ☐

NOT APPROVED ☐

Chairman/Secretary, PSC

Name: _____ **Date:** ____/____/____

Signature: _____

Study Leave Form

Employee Information

Name: _____

Employee National ID No.: _____ VNPF: _____

Employee Email Address: _____

VOIP No.: _____ Ministry Landline: _____

Post Title: _____ Post No.: _____

Location: _____

Permanent Status: ☐ Yes ☐ No

Department: _____ Ministry: _____

Commencement date in the Public Service: ____/____/____

Course Title:

Study Leave Plan *(Complete below study plan in accordance with your study requirement)*

Year	Months	Weeks	Day	Time

Employee Agreement

I have read, understand, and accept the terms and conditions of my proposed application:

Employee Name: _____ Signature: _____

Date: ____/____/____

Training Endorsement:

Director General/Director

Name: _____ Date: ____/____/____

Signature: _____

Bonding Agreement

Section A - Employee Information

Name: _____
 Employee National ID No.: _____ VNPF: _____
 Employee Passport Registration No.: _____
 Employee Email Address: _____
 VOIP No.: _____ Ministry Landline: _____
 Post Title: _____ Post No.: _____
 Location: _____
 Permanent Status: ☐ Yes ☐ No P.S Scale: _____
 Department: _____ Ministry: _____
 Commencement date in the Public Service: ____/____/____

Training Course:

Training Institution:

Study Program:

Date of Completion: ____/____/____

Date of departure from Vanuatu Public Service: ____/____/____

Date of expected return to the Vanuatu Public Service: ____/____/____

Section B - Contribution from the Government of Vanuatu

<i>Please specify contributing sponsoring agency/agencies (if any)</i>			
Expenditure	Amount in Vatu	Sponsor or Private	Vanuatu Government
Tuition fees (VUV)			
Accommodation (VUV)			
Travel (VUV)			
Subsistence (Meals etc – VUV)			
Salary (VUV)			
Other (Please specify – VUV)			
Total (VUV)			(CVG)

Section C - Special Bonding

Bonding Period is for long term studies for both undergraduate and postgraduate studies. In the case, where you do not serve your three years bonding term, you will be required to reimburse

the Vanuatu Government an equivalent to your training allowance paid during the duration of your studies.

Section D – Employee Obligation

(1) I accept the contribution from the Government of Vanuatu under the Training Scheme and hereby agree to abide to the following conditions:

- (a) I will attend the training course for its duration, in good faith and will not be absent without reasonable excuse.
- (b) I will complete all academic requirements of the training course in good faith and will immediately submit any formal results obtained to my ministry and PSC.
- (c) I will immediately inform my ministry and PSC if I become aware of any circumstances which may lead to me not completing the training course by the date of completion specified in Section A, (for example, if I fail an academic requirement of the training course or there is a change to the training schedule).
- (d) Any extension of time will require a separate request for approval in accordance with **(PSC Form 5-2 or 5-3)** as the case may be.
- (e) Upon completion of the training course, I will immediately return to Vanuatu to resume my position within the Vanuatu Public Service to serve the Bonding Period specified in Section C.
- (f) While serving my bonding term, if I decide to apply for another position, then, I must draw and implement a succession plan
- (g) I will immediately inform my ministry and PSC if I receive financial assistance (including from any employment) from any sources other than those specified in Section B.
- (h) I will maintain regular contact (at least every 6-month) with my ministry and PSC in regards to my progress and study program.

Note: The Approving Authority is the person responsible for approving the attendance at the training course as specified in the Public Service Staff Regulation Manual, Chapter 5.

(2) If I fail to comply with any of the above conditions:

- (a) I will be required to reimburse, as a debt, the training and other costs incurred by the Government of Vanuatu from my severance entitlement and Annual Leaves.
- (b) The Government of Vanuatu will terminate Training allowance assistance (study leave or any other form of financial assistance provided) to me.

Employee Agreement

I have read, understand, and accept the terms and conditions of my proposed application:

Employee Name: _____ Signature: _____

Date: ____/____/____

Training Endorsement:	
Director General/Director	
Name: _____ Date: ____/____/____	
Signature: _____	
Reviewed by:	
Manager VIPAM	
Name: _____ Date: ____/____/____	
Signature: _____	
PSC Approval:	
APPROVED ☐	NOT APPROVED ☐
Chairman/Secretary, PSC	
Name: _____ Date: ____/____/____	
Signature: _____	

Training Needs Analysis

Employee Information

Name: _____
 Employee National ID No.: _____ VNPF: _____
 Employee Email Address: _____
 VOIP No.: _____ Ministry Landline: _____
 Post Title: _____ Post No.: _____
 Location: _____
 Permanent Status: ☐ Yes ☐ No
 Department: _____ Ministry: _____
 Commencement date in the Public Service: ____/____/____

Section 1: Employee Personal Information

Family Name		Given Names	
Date of Birth		Island of Origin	
Language		Marital Status	
Ministry		Department	
Position Title		Post Number	
Employee NID		Employee VNPF	
Date commenced in Public Service		Previous Work	
Certificates & Copies of Qualifications on File?			Yes No

Section 2: Educational Background

Primary School		Level	
Secondary School		Level	
Tertiary		Level	
Other Training		Level	

Section 3: Skills Gap

Look at your Job Description. What is the required qualification? Is there a difference?
 What training do you need to bridge this gap or to do your job better? Remember to
 think about possible promotion to a higher position if you had better qualifications?

Supervisor's comments:	
Signature:	Date:
Director General / Director's Comments:	
Signature:	Date:

Training/Workshop Report

Cover Page

Title of the Training

Employee:

Ministry/Department:

Position:

Date of submission of Report

Add the logo of training providers and sponsors

Content Table

- 1. Introduction**
- 2. Location of Training**
- 3. Venue and dates of training/workshop**
- 4. Attendance**
- 5. Opening of trainings/workshops**
- 6. Training/Workshop Outcomes/Objectives**
- 7. Training/Workshop Sessions & Discussions**
- 8. Way-forward/Application of Workshop content/Challenges/ to
Department/Ministry/Vanuatu**
- 9. Closing**
- 10. Annex**
 - Programme**
 - Profile of Participants**
 - Profile of Facilitators**
 - Photos**

Supervisors Signature

Date:

Director General/Directors Signature

Date:

Action Plan Template

Cover Page

Title of the Training

Employee:

Ministry/Department:

Position:

Date of submission of Report

Add the logo of training providers and sponsors

Content

- 1. Outcomes of Training/Course (LTT/STT)**
- 2. Action Plan Summary**

Activity	Action Steps	Requirements/ Materials	Responsible		Budget

Supervisors Signature

Date:

Director General/Directors Signature

Date:

DEVELOPMENT PROGRAMS APPLICATION

REG N^o:

SECTION 1: CATEGORY

CADETSHIP ☐ <i>Senior Secondary Level</i>	APPRENTICESHIP ☐ <i>Program Requirement</i>	INTERNSHIP ☐ <i>Graduate</i>
--	--	---

SECTION 2: PERSONAL INFORMATION

Name		Family Name		Date of Birth	
Residence		Contact		Email	

SECTION 3: EDUCATIONAL BACKGROUND

Highest Qualification	Secondary ☐	Certificate ☐	Diploma ☐	Bachelor ☐	Master ☐	Doctorate ☐
School						
Field of Study						
Status of Qualification	Incomplete ☐		In Progress ☐		Complete ☐	

SECTION 4: PROFESSIONAL BACKGROUND

Date	Organization	Nature of Employment

SECTION 5: CAREER PATH

Option 1		
Option 2		
Option 3		

Certification

I certify that the above information are true. I understand too that any false information provided in this application can disqualify me from the Vanuatu Public Service Commission Development Programs.

Name: _____ Signature: _____ Date: _____

Please attach the following when submitting your application:

1. A one-page statement of the reasons why you should be selected.
2. Curriculum Vitae (CV)
3. Birth Certificate
4. Certified copies of your highest certificate and or current transcripts

VIPAM USE ONLY

Received Date:

Officer:

Signature:

_____/_____/_____

Should you have any query, please feel free to contact via email and telephone below:

vipam@vanuatu.gov.vu / opsc@vanuatu.gov.vu /33195 / 33360

Training Allowance Scheme Rates Table

This schedule contains the “Training Allowance Rates” referred to in section 3.6 of Chapter 5 of Education and Training.

Salary Grade	New Current GRT Grades	Annual Salary (VT)	Percentage of salary to be paid
A	DG1.4	7,580,600	CONTRACTED POSITIONS
	DG1.3	7,151,500	
	DG1.2	6,738,300	
	DG1.1	6,356,900	
	DG2.4	7,151,500	
	DG 2.3	6,738,300	
	DG2.2	6,356,900	
	DG2.1	5,989,600	
B	DIR 3.3	5,560,500	
	DIR 3.2	5,324,100	
	DIR 3.1	5,000,400	
	DIR2.3	5,324,100	
	DIR 2.2	5,000,400	
	DIR2.1	4,682,900	
C	DIR 1.4	4,682,900	Deputy Directors
	DIR1.3	4,444,800	
	DIR1.2	4,206,700	48%
	DIR1.1	3,968,600	
D	PS9.4	3,739,300	
	PS9.3	3,623,500	
	PS9.2	3,527,600	50%
	PS9.1	3,408,300	
E	PS8.6	3,220,900	
	PS8.5	3,135,600	
	PS8.4	3,029,600	55%
	PS8.3	2,863,000	
	PS8.2	2,787,200	
	PS8.1	2,693,000	

F	PS7.4	2,489,500	
	PS7.3	2,393,800	
	PS7.2	2,298,000	60%
	PS7.1	2,202,300	
G	PS 6.4	2,106,500	
	PS6.3	2,042,700	
	PS6.2	1,974,600	65%
	PS6.1	1,906,500	
H	PS5.6	1,815,700	
	PS5.5	1,755,200	
	PS5.4	1,694,700	70%
	PS5.3	1,634,100	
	PS5.2	1,573,600	
	PS5.1	1,513,100	
I	PS4.6	1,434,600	
	PS4.5	1,386,800	
	PS4.4	1,345,000	75%
	PS4.3	1,291,200	
	PS4.2	1,243,400	
	PS4.1	1,195,500	
J	PS3.4	1,094,600	
	PS3.3	1,058,000	
	PS3.2	1,029,600	80%
	PS3.1	1,001,300	
K	PS2.6	944,600	
	Ps2.5	890,000	
	Ps2.4	839,700	85%
	PS2.3	813,500	
	PS2.2	791,100	
	PS2.1	768,800	
L	PS1.6	723,100	
	PS1.5	703,200	
	PS1.4	683,300	90%
	PS1.3	663,400	
	PS1.2	642,800	
	PS1.1	625,100	

CHAPTER 6 - MANAGING STAFF DISCIPLINE

1. Introduction

- (a) Staff members of the Public Service are expected to uphold highest ethical standards, be accountable for their actions and observe all applicable laws. Maintaining the highest standards of appropriate and ethical behaviour is crucial and when a staff member commits a disciplinary offence, it should be promptly and effectively addressed in accordance with the disciplinary procedures under this chapter, relevant regulations, policy decisions of the Commission, the employment contract, and the Public Service Act.
- (b) Disciplinary actions must be taken by the relevant authorities in a manner that recognises the rights of staff members without any form of discrimination. The Commission, as a responsible employer under the Public Service Act, ensures that staff members are treated fairly in all employment-related matters, including discipline. To meet these requirements, all discipline matters must be handled according to the procedures specified in this chapter. The Commission also acknowledges customary practices as a mitigating factor in its disciplinary process.
- (c) The procedures in this chapter are based on the requirements of the Public Service Act and additional procedures authorized by the Commission. Unless otherwise stated, these procedures are applicable to employees, temporary salaried, contract employees, daily rated workers and interns are employed through employment contract, and their discipline procedures must be in line with the terms and conditions stipulated in their respective contracts of employment.
- (d) This chapter also outlines the process for addressing complaints or grievances raised by a staff member against his or her superior concerning any unfair or ill- treatment against him or her.
- (e) Despite the requirements set out in this chapter for dealing with disciplinary offences, these procedures are not to be used as a substitute for proper and effective management action. In this regard, an effective manager should identify and deal with issues such as poor performance or unacceptable conduct before they become disciplinary matters.
- (f) It is encouraged that discipline management practices are observed and applied at Ministry and Department level first by a Director-General, Director or equivalent position before referral to the Commission which should be the last resort to be involved in any discipline case of a staff member.

2. Resolving Grievances

2.1 *Procedure for resolving grievances*

2.1.1 *Reasons for Initiating Grievance Process*

- (1) A staff member may initiate a grievance process in this chapter for any of the following reasons:
 - (a) an unresolved issue exists between a Director-General, Director or equivalent position and the staff member; or

- (b) there has been a direct conflict in the decision making by a Director-General, Director or equivalent position which adversely affects the staff member; or
 - (c) an unresolved issue exists between a Director General, Director or equivalent position and the staff member affecting the working environment; or
 - (d) any other reason or issue as may be determined by the Secretary.
- (2) In addition to subsection (1), the list of disciplinary offences that may be dealt with under this section is specified under **Appendix C (b)**.
 - (3) The affected parties must in writing reach a mutual agreement to resolve the issue under this process.

2.1.2 Appointment of a Mediator

- (1) Subject to subsection (3), once an official complaint of allegation is received by the OPSC, the Secretary may, within five (5) calendar days from the date of receiving the complaint, appoint a Mediator if the official complaint concerns a Director General, a Director, equivalent position or between both or between a staff member.
- (2) A person appointed as the Mediator must have the necessary experience including, good mediation and negotiation skills, good written and communication skills and a sound knowledge of applicable laws.
- (3) The Secretary must inform both parties of the mediation process before making the appointment of the Mediator.
- (4) Upon receiving his or her appointment, the Mediator is to settle the dispute or conflict between the affected parties within the period of not more than 10 working days from the date of his or her appointment.
- (5) Subject to sections 2.1.3 and 2.1.4, the Secretary may mediate an issue if:
 - (a) he or she is requested to do so by a Director General; or
 - (b) the issue has not been dealt with by a Director General; or
 - (c) there is a likelihood of financial or legal implications arising from the issue to be mediated.

2.1.3 Procedure for Mediation

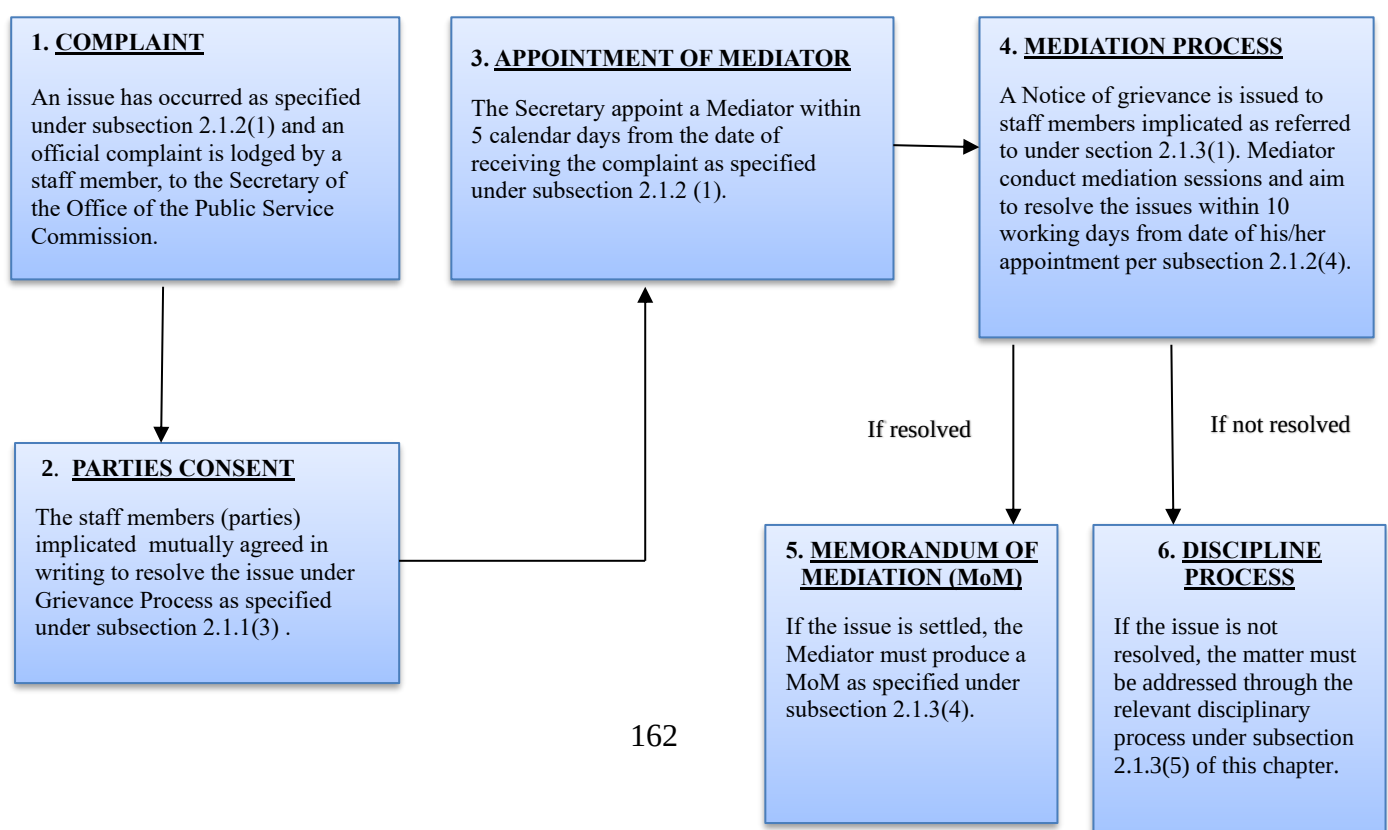
- (1) The Mediator is to issue a notice of grievances and its particulars to affected parties including the date, time and venue of the mediation.
- (2) The mediation is to be scheduled for a period referred to under subsection 2.1.2 (4).

- (3) The affected parties must attend the mediation session scheduled by the Mediator and must not be represented by a legal counsel or any other person in this process.
- (4) The Mediator must produce a Memorandum of Mediation (MoM) in the prescribed *Memorandum of Mediation Form (PSC Form 6.8)* outlining the discussions and whether or not the parties have reached a settlement. The MoM must be signed by both parties and the Mediator and submitted to the Secretary, with a copy placed on the Ministry or Department files.
- (5) If the conflict cannot be resolved through the mediation process within the period under subsection 2.1.2(4), the matter must be addressed pursuant to the relevant PSC disciplinary process under this chapter.
- (6) If a similar dispute or conflict reoccurs within 3 years from the date of the MoM reached between the affected parties, the matter must be addressed pursuant to the PSC disciplinary process under this chapter.
- (7) The Mediator is entitled to an allowance specified by the Commission upon production of the MoM. The relevant Ministry or Department is responsible to meet the allowance of a Mediator.
- (8) The Commission is to determine the procedure of mediation not provided under this chapter.

2.1.4 Functions of a Mediator

The mediator must be neutral and impartial in order to promote social dialogue and assist in negotiating a dispute settlement between parties with the aim of achieving amicable and mutual resolution.

Mediation process flow chart



2.1.5 General procedures to be followed in discipline matters

Unless the Commission determines otherwise, the following general procedures in dealing with disciplinary matters must be followed by a Ministry and the Secretary, Director-General, Director or equivalent position or a staff member who has supervisory responsibilities:

- (a) a Ministry must establish a management system for preventing a disciplinary matter from arising and is to ensure that concerted effort is made to resolve any performance or conduct related issues at the first instance.
- (b) any internal disciplinary management system developed by a Ministry in collaboration with its respective departments must be submitted to the Commission for validation.
- (c) a disciplinary matter must only be referred to the Commission for consideration after an attempt has been made to resolve it within the Ministry in accordance with its internal disciplinary management system and the procedures set out under this chapter have failed.
- (d) a staff member may be suspended by the Director General, Director or equivalent position on half salary from service if he or she commits an act of serious misconduct listed under **Appendix C (a)**.
- (e) prior to issuing a notice of suspension, the Director General, Director or equivalent position must ensure that a preliminary assessment is carried out by the MDC to establish grounds for the alleged serious misconduct. The preliminary assessment must be completed within one (1) week.
- (f) if the nature of the offence is serious and warrants a preliminary assessment of the allegations, the Director General may temporarily transfer the employee at level to another department or Division within the Ministry for a period of not more than two (2) weeks to allow a proper assessment to take place.
- (g) if a matter is referred to the Disciplinary Board by the Commission, the OPSC must provide at least 28 days' notice of hearing to the staff member.
- (h) the Commission must confirm, vary or quash the Disciplinary Board's decisions within 45 days after the decision is notified to a staff member under subsections 37(11) and (12) of the Act.
- (i) the Public Service Disciplinary Board may in the exercise of its functions make a decision that is to be recommended to the Commission for its consideration.
- (j) the Commission may vary or quash the PSDB's decision recommended under paragraph (i) only if it obtains new evidence that has not been considered at the hearing during the PSDB on the staff member's discipline case or has substantial grounds to vary or quash the decision of the PSDB.
- (k) the aggrieved staff member may appeal to the Supreme Court within 14 days after being given notice of the Commission's final decision in relation to his or her disciplinary matter.
- (l) if the Commission intends to terminate the employment of a staff member, a fourteen (14) days' notice must be issued to him or her as an opportunity to provide written response as to why the Commission should not terminate his or her employment.
- (m) the removal from office of a Director General and Director must be made in accordance with sections 19A and 19B of the *Public Service Act (as Amended)* and the terms and conditions of the employment contract on disciplinary procedures.

- (n) a person must not attempt to influence the Commission or the Disciplinary Board in relation to a discipline case except as provided in the Public Service Act and these procedures.
- (o) customary practice is recognised as a mitigating factor for a disciplinary matter. However, the customary practices do not limit the operation of the disciplinary process in this chapter.
- (p) the Secretary may suspend a staff member temporarily if he or she considers it appropriate and where there has not been any action taken by a Director-General, Director or equivalent position to discipline the staff member.
- (q) to avoid doubt, a temporary suspension under paragraph (p) only applies to a staff member below a Director's position.
- (r) a disciplinary case must be resolved within 6 months from the date of suspension by the Commission, the Secretary, a Director General, Director or equivalent position.

2.2 *Unlawful Disciplinary Action*

- (1) A disciplinary action taken by the Secretary, Director-General, Director or equivalent position against a staff member must be done in good faith, with a fair and transparent process and in compliance with the principles of natural justice.
- (2) A disciplinary action that is taken by the Secretary, a Director-General, Director or equivalent position against a staff member with malicious intent or bad faith is subject to disciplinary process.
- (3) Before taking a disciplinary action by the Secretary, Director-General, Director or equivalent position, an adequate opportunity must be given to the staff member to respond to the allegations made against him or her and to gather all documentary evidence in support of his or her response.
- (4) A staff member aggrieved by the decision made under this section may appeal to the Commission within 7 working days from the date in which a decision is made.

OVERALL DISCIPLINARY PROCESS FOR FOR STAFF MEMBERS



2.3 Internal Disciplinary Management System

2.3.1 Attempting to first resolve misconduct or poor performance within the Ministry and Department

- (a) The Secretary or a Director General is responsible for ensuring that appropriate internal disciplinary management systems are in place within his or her respective Ministry.
- (b) In complying with paragraph (a), the Secretary or a Director General must ensure that a staff member within the relevant Ministry understand the different types of behaviour that amounts to a disciplinary offence under the Public Service Act. The disciplinary offences are as listed in **Appendices A, B and C** of this chapter.
- (c) If a staff member commits an offence that does not meet any element of serious misconduct under this chapter, his or her supervisor must attempt to resolve the matter first with the staff member directly through the Ministry's internal disciplinary management system or informal discussions and counselling in accordance with this chapter. The aim is to resolve the matter within the Ministry's level and avoid it becoming a disciplinary case that may be referred to the Commission.
- (d) If Director General, Director or equivalent position commits an offence that does not meet any element of serious misconduct, the Secretary must attempt to resolve the matter first directly through the Ministry's internal disciplinary management system or informal discussions and counselling in accordance with this chapter. The aim is to resolve the matter within the Ministry's level and avoid it becoming a disciplinary case that may be referred to the Commission.

- (e) If the Secretary commits an offence that does not meet any element of serious misconduct, the Chairman of the Commission must attempt to resolve the matter first directly through the Ministry's internal disciplinary management system or informal discussions and counselling in accordance with this chapter. The aim is to resolve the matter within the Ministry's level and avoid it becoming a disciplinary offence that may be referred to the Commission.
- (f) The Chairman is to manage the Secretary's grievance and any disciplinary offence committed by the Secretary that does not meet any element of serious misconduct under subsection 2.4.6(2).

2.3.2 Notice Of Allegations, First and Second Warnings

- (1) A Director General, Director or equivalent position must be informed by an immediate supervisor if a staff member continues to commit a disciplinary offence.
- (2) A staff member who continues to commit a disciplinary offence of the same nature may be issued up to two (2) warnings in writing by his or her Director General or Director. A Notice of Allegation is to be issued to a staff member followed by a first and second warning if the staff member continues to re-offend, (*"Notice of Allegation" 'First Warning' and "Second Warning" model letter template for department use at the end of this Chapter*).
- (3) A warning issued by the Secretary, a Director General, Director or equivalent position for a specific type of offence remains effective for a period of 3 years from the date on which it is issued.
- (4) The Commission may revoke a warning that was issued in bad faith or not in accordance with this chapter, upon production of sufficient evidence by a staff member, to justify the non-compliance.
- (5) If a staff member is served with a warning, he or she must undergo a counselling and restorative behaviour process with his or her immediate supervisor. The details of which must be recorded in writing using the *Progressive Disciplinary Action Form (PSC FORM 6-4)*. A copy of the document must be kept in the staff member's personal file.
- (6) Customary practises may be considered in addressing a disciplinary matter and is to be regarded as a mitigating factor but does not prevent or limit the PSC disciplinary process to operate under this Manual or the Act.
- (7) To determine whether to issue a 'First Warning' to a first-time offender or a 'Second Warning' to second time-offender, the Secretary, a Director-General, Director or equivalent position must properly notify the staff member of the allegations and provide him or her 5 (five) working days to respond to the allegations.
- (8) If a staff member fails to respond to the allegations within 5 (five) working days, the Secretary, a Director-General, Director or equivalent position is to proceed to issue a warning, if in his or her opinion the staff member did commit the disciplinary offence. The Secretary, Director General, Director or equivalent position may only issue a First or Second Warning after having received a response from the staff member within the specified timeframe.

- (9) A copy of the written warnings issued by the Secretary, Director General, Director or equivalent position and written response of a staff member must be placed in the staff member's personal file within the Ministry or Department and another copy must be forwarded to OPSC for record-keeping purposes.

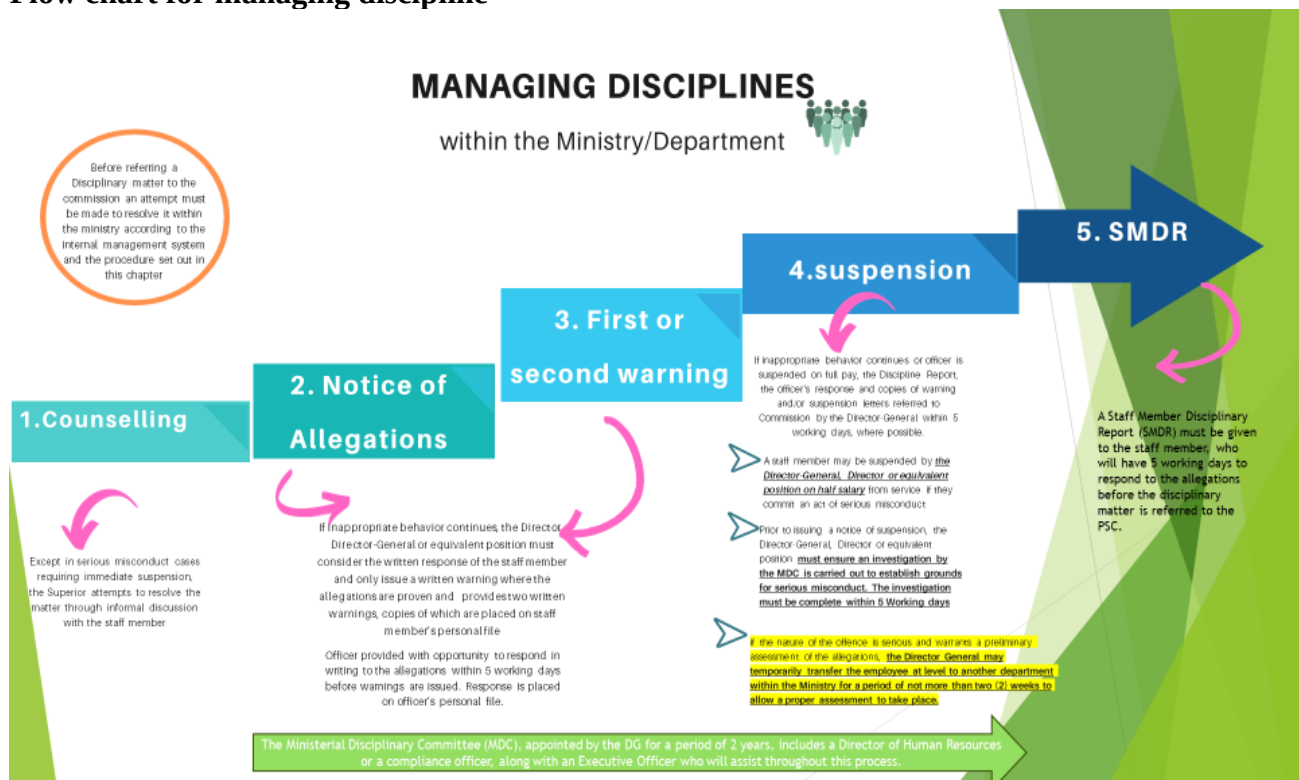
2.3.3 Ministerial Disciplinary Committee

- (1) A Ministerial Disciplinary Committee (MDC) is established.
- (2) Subject to subsection (10), the MDC consists of the following persons appointed in writing by the relevant Director General:
- (a) a Director who is to be the chairperson; and
 - (b) the Human Resource Manager or a Compliance officer; and
 - (c) the Executive Officer.
- (3) A person appointed under paragraph 2(a) holds office for a period of 2 years and may be reappointed.
- (4) The persons appointed under paragraphs (2) (b) and (c) hold office ex-officio.
- (5) Subject to subsection (10), the Director is to preside at all meetings of the MDC and may call the meeting if it is necessary to do so.
- (6) The MDC is responsible to investigate and make determination on allegations made against a staff member who continues to commit a disciplinary offence despite concerted efforts made to manage the disciplinary offence.
- (7) In making a determination on an allegation in subsection (6), the MDC may make the following recommendations to the Director General, Director or equivalent position:
- (a) require the staff member to undergo a rehabilitation; or
 - (b) direct that the matter is resolved internally.
- (8) Upon receiving a recommendation under subsection (7), the Director General, Director or equivalent position may consider the recommendation and endorse the recommendation based on the findings of the MDC or refuse the recommendation and give reasons for his or her refusal and must liaise with the Compliance unit of the Office of the Public Service to resolve the issue.
- (9) A process initiated under this section must be completed within 5 working days from the date in which the MDC receives a written notice from a Director General, Director or equivalent position to investigate the alleged disciplinary offence committed by a staff member.
- (10) If a Director General commits a disciplinary offence, the Secretary automatically becomes the Chair of the MDC to resolve the issue.

2.3.4 Efforts must be made to resolve all matters

- (1) All effort must be made to resolve disciplinary matters and instances of poor performance for all staff members within a Ministry or Department through informal discussions and counselling.
- (2) If a staff member continues to commit a disciplinary offence after the MDC process, the Secretary, Director General, Director or equivalent position may suspend the staff member and submit a Staff Member Discipline Report (SMDR) using the *Staff Member Discipline Report form (PSC FORM 6 -1)* on the alleged misconduct to the Commission for a decision regarding the staff member's employment.
- (3) The report provided under subsection (2) must include detailed information about the disciplinary offence and efforts made to resolve the issue within the Ministry or Department.

Flow chart for managing discipline



2.3.5 Suspension of a staff member temporarily for a disciplinary offence

- (1) The Secretary may temporarily suspend a staff member who has committed a disciplinary offence that amounts to any element of serious misconduct or as specified in **Appendix C (a)** of this Chapter.
- (2) A temporary suspension under subsection (1) may be issued by the Secretary only if the Director General, Director or equivalent position fails to manage the staff member's alleged misconduct.

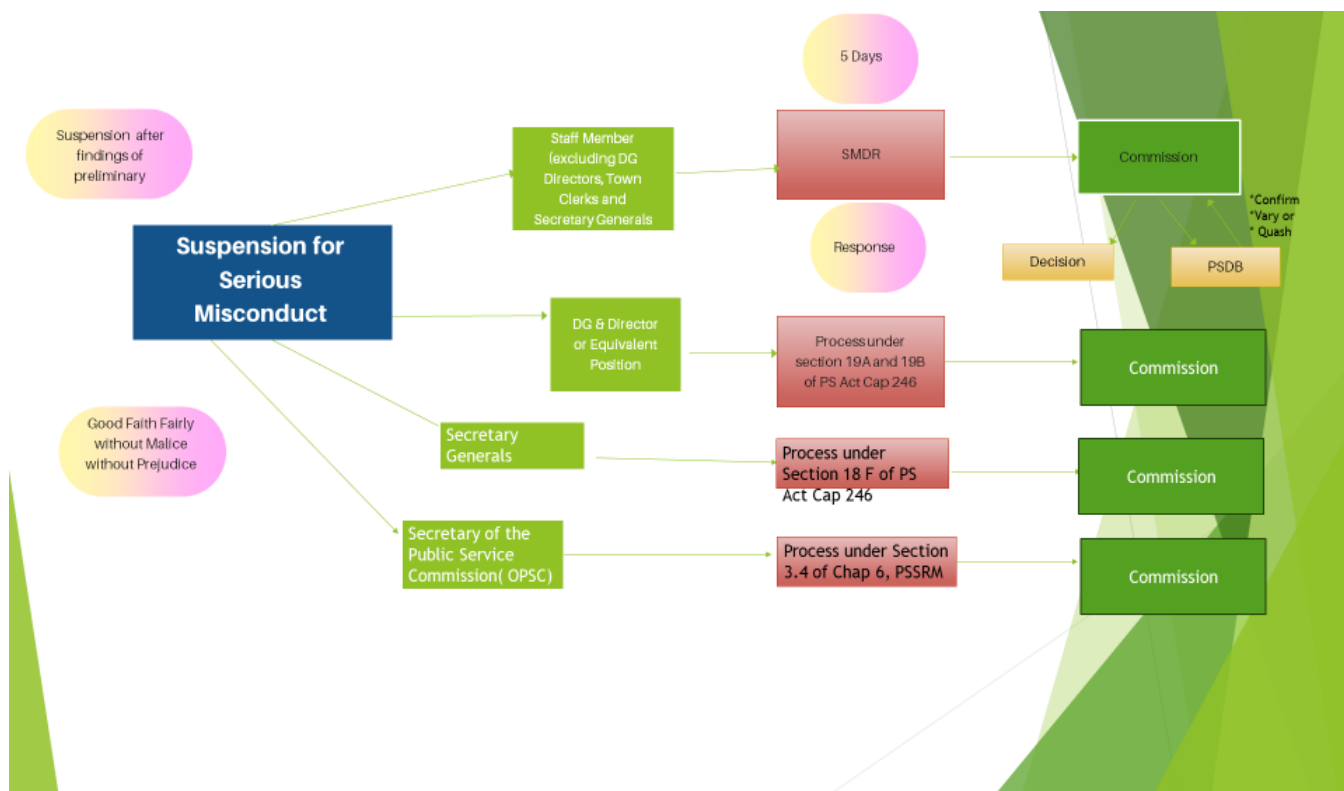
- (3) A staff member may be temporarily suspended for a period of not more than 2 months, during which the staff member is on half salary.
- (4) A staff member who is temporarily suspended must be issued with a SMDR within 3 calendar days from the date of his or her suspension.
- (5) A staff member who is issued with the SMDR under subsection (4) must provide his or her response including justifications and documentary evidence to OPSC within three (3) calendar days from the date of receiving the SMDR.
- (6) Upon receipt of the staff member's response under subsection (5), the OPSC is to assess the response including documentary evidence to justify whether or not the salary arrears that is being ceased during the period of the suspension may be reimbursed to the staff member upon reinstatement.
- (7) If a staff member provides his or her response without submitting any supporting documents or evidences, the staff member's salary that is being ceased during the period of the temporary suspension must not be reimbursed to the staff member.
- (8) All documents relating to a staff member's temporary suspension must be kept in the personal file of the staff member for record purposes within OPSC and the relevant Ministry or Department.
- (9) The Commission must be notified of any temporary suspension made under this section.
- (10) A staff member who is temporarily suspended under this section is deemed to be reinstated on full salary at the expiry of the period of the temporary suspension.
- (11) If a staff member commits the same nature of offence for which he or she was temporarily suspended for, the staff member commits a serious misconduct and may be further suspended for an unspecified period subject to the disciplinary process under this chapter.
- (12) To avoid doubt, all temporary suspension issued under this section does not warrant a termination from service.

2.3.6 Immediate Suspension for Serious Misconduct Cases

- (1) No prior written warnings or verbal counselling may be given if a staff member commits a serious misconduct as specified under **Appendix C(a)** requiring immediate suspension.
- (2) Serious misconduct is defined to include an unethical and unreasonable behaviour or action that consists of any of the following element:
 - (a) serious breach of trust between the employer, Director General, Director or equivalent position and a staff member; or
 - (b) a continuous behaviour of a staff member that cannot be rehabilitated through the grievance process or through internal disciplinary management system; or
 - (c) an unacceptable or improper conduct of a very serious nature as specified under **Appendix C(a)**.

- (3) In deciding to suspend a staff member, the person having authority must act in good faith, resolving the matter fairly, without malice and without prejudice, based on an element of serious misconduct.
- (4) The MDC may consult a staff member referred to under subsection (1) on the allegation of serious misconduct.
- (5) If the MDC is not satisfied with the staff member's response on the allegation of serious misconduct after consultation in subsection (4), the MDC may recommend suspension of the staff member by the Director General, Director or equivalent position.
- (6) If the MDC is satisfied with the staff members response, the MDC may recommend that the matter be resolved pursuant to section 2 or 2.4 of this chapter or recommend that the matter be closed.
- (7) A staff member may be suspended for an act of serious misconduct listed under **Appendix C (a)** after the findings of the preliminary assessment conducted by the MDC within the period under paragraph 2.1.5(e).
- (8) A Director General, Director or equivalent position may consult a staff member who is suspicious of committing an allegation of serious misconduct prior to any suspension of the staff member.
- (9) In the case of a Director or equivalent position committing a serious misconduct, the Director-General must immediately inform the Secretary and the matter is to be dealt with in accordance with sections 19A and 19B of the Public Service Act.
- (10) To avoid doubt, a Director General does not have any authority to suspend a Director other than the Commission.
- (11) In the case of a Director General committing a serious misconduct, the Secretary must immediately inform the Commission and the matter must be dealt with pursuant to sections 19A and 19B of the Public Service Act and the disciplinary process specified in the terms and conditions of his or her employment contract.
- (12) If the Commission dismisses a disciplinary matter under paragraphs 2.4.9(a) and (b), the balance of the salary arrears of a staff member for the period of suspension must be reimbursed upon reinstatement to duty.
- (13) If the Commission dismisses or demotes a staff member under paragraph 2.4.9 (c) or (d), the balance of his or her salary arrears for the period of suspension must not be reimbursed.

Flow chart for serious misconduct



2.3.7 Referring the matter to the Commission

Documentation required for discipline cases

- In all discipline offences, the Secretary, a Director General, Director or equivalent position must issue a SMDR using the *Staff Member Discipline Report (PSC FORM 6 -1)* to the staff member setting out the detailed allegations including documentary evidence for the staff member's response.
- Prior to issuing the SMDR to a staff member under paragraph (a), the Secretary, a Director General, Director or equivalent position through the MDC must collect all sufficient documentary evidence on the allegations within the period in paragraph 2.1.5(e)
- If the Director General, Director or Secretary is satisfied with the evidence gathered on the allegations levelled against the staff member, he or she may proceed to issue an SMDR to the staff member.
- A staff member must provide his or her written response to the allegations specified in the SMDR within five (5) working days from the date of being served with the SMDR.

- (e) If a staff member commits a serious misconduct that is listed under **Appendix C (a)**, the relevant Director General, Director or equivalent position must consult with each other on the matter before referring the SMDR to the OPSC.
- (f) The Director General must in writing refer the matter to the OPSC, providing a fully completed SMDR within five (5) working days from receiving the employee's response. This report should include copies of the "First" and "Second" warning letters attached to the SMDR (if any), the staff member's written responses to the allegations, and all documentary evidence supporting the allegations, including a copy of any temporary suspension (if applicable).
- (g) If a staff member fails to submit a written response within the timeframe under paragraph (d), the Director General must in writing refer the matter to the Secretary including SMDR. This submission should include details of any attempt made to obtain a written response from the staff member. The OPSC is to determine whether the staff member should be given a final opportunity to respond before submitting the matter to the Commission.
- (h) Upon receiving the SMDR and all documentary evidence in support of the allegations including the staff member's response, the OPSC must assess the SMDR and relevant evidence within five (5) working days. This is to ascertain whether there is sufficient proof of the allegations against the staff member in question.
- (i) After assessing the SMDR and all relevant documentary evidences, if the OPSC finds that the evidence supplied with the SMDR does not substantiate the allegations against the staff member, the OPSC will advise the relevant Ministry or Department on these findings and may require them to provide additional documents. The Ministry or Department must provide the OPSC with any additional documentation requested within five (5) working days.
- (j) In the event that the Ministry or Department fails to comply with the timeframe under paragraph (i) to provide additional documents, the matter is to be referred to Commission for consideration.
- (k) To avoid doubt, once the SMDR of a staff member is submitted to OPSC, it will not be referred back to the relevant Ministry or Department for further investigation or to withdraw the allegations.

2.3.8 Time Limits for Referring Discipline Cases To The Commission

- (a) In the case of serious misconduct, if a staff member is suspended on half salary, the Director General must refer the matter to the OPSC within the period specified under paragraph 2.4.7 (f).
- (b) A Ministry or Department must manage the process as a matter of importance and urgency by considering the time limits specified under paragraph (a).
- (c) If a Director General fails to refer the matter within five (5) working days under paragraph 2.4.7(f), the Secretary must summon the Director General to explain and give reasons for failing to do so.
- (d) If the Director General fails to submit the SMDR to the OPSC within the period under paragraph (a), the Commission may issue a warning to a Director General.

2.3.9 Consideration of discipline cases by the Commission

- (1) After assessing the SMDR and all relevant documentary evidence under paragraph 2.4.7(h), if the OPSC is satisfied that there is sufficient information to substantiate the allegations against a staff member, the OPSC must refer the matter to the Commission for its consideration with copies of all documentary evidence.
- (2) The Commission, upon receiving the SMDR and all documentary evidence, including the staff member's response may subject to the Public service Act:
 - (a) dismiss the matter and reinstate a staff member; or
 - (b) dismiss the matter and transfer the staff member; or
 - (c) demote the staff member due to a failure to comply with the transfer; or
 - (d) immediately dismiss the staff member pursuant to section 29 of the *Public Service Act*; or
 - (e) refer the matter to the Ombudsman; or
 - (f) refer the matter to the Police; or
 - (g) refer the matter to the Public Service Disciplinary Board.
- (3) The Commission must decide whether to complete the public service disciplinary process before referring the matter to the Police under paragraph 2(f).
- (4) Following a final decision of the Commission on a disciplinary matter and where a final court judgement is pending, the Commission must not make any decision on the matter.
- (5) In considering the employment of a staff member who has been convicted of a criminal offence, the Commission may:
 - (a) pursuant to section 29A of the Public Service Act, terminate the employment of an employee who is serving a term of imprisonment; or
 - (b) terminate the employment of any staff member; or
 - (c) terminate or maintain the services of a staff member who is serving a suspended sentence; or
 - (d) where the Commission decides to maintain the services of a staff member under paragraph (c), it must consider the seriousness and nature of the offence and where applicable, provide close supervision and monitoring of that staff member under suitable conditions.
- (6) If a staff member is convicted of a criminal offence that attracts a penalty of a lesser fine or community service, the Commission may decide not to apply section 29A of the Public Service Act.
- (7) Paragraphs (5) (c) and (d) do not apply to a staff member who is employed on contract basis and is convicted of a criminal offence unless otherwise stated in the staff member's employment contract.
- (8) If the Commission decides to dismiss an employee for serious misconduct pursuant to subsection 29(1) of the Public Service Act, a written notice of fourteen (14) working days must be provided as an adequate opportunity for the employee to provide reasons as to why the Commission should not terminate his or her employment.

- (9) An employee must provide his or her reasons within the period under subsection (8).
- (10) If the Commission considers that the matter be referred to the Public Service Disciplinary Board (PSDB), it must do so as soon as practicable within 10 working days from the date of the Commission decision.
- (11) The OPSC must in writing inform the respective Director General, Director or equivalent position, on the decision of the Commission on the staff member's disciplinary case.
- (12) A copy of a Commission decision, the Staff Member Discipline *Report* and all relevant documents must be placed on the staff member's personal file within the Ministry or department and the OPSC.

3. Hearing of discipline offences by the PSDB

- (1) The PSDB must hear and determine all disciplinary matters referred to it by the Commission.
- (2) The composition and the filling of vacancies on the PSDB must be determined in accordance with section 37 of the *Public Service Act*.
- (3) The commencement of a proceeding before the PSDB requires the issuance of a written notice of the offence to the offender pursuant to subsection 37(5) of the Public Service Act. This notice must include the following:
 - (a) the full particulars of the offence; and
 - (b) the date on which the hearing will be held; and
 - (c) the place where the hearing will be held; and
 - (d) any other matter the PSDB may consider relevant.
- (4) The date of the hearing must not be less than 28 days from the date of service of notice on the offender pursuant to subsection 37(5) of the Public Service Act.
- (5) The procedure at the hearing will be determined by the PSDB as specified in subsection 37(6) of the Public Service Act and any applicable regulations.
- (6) A copy of the notice of offence must be forwarded to the relevant Director General or Director or the Secretary for his or her information.
- (7) A staff member reserves the right to call one or more witness to provide an oral or written statement in support of his or her discipline case
- (8) A staff member residing outside Port Vila is required to attend a PSDB hearing and the relevant Ministry or Department is responsible for paying the staff member's expenses, including airfares, accommodation and subsistence.
- (9) At the request of a staff member, the expenses under subsection (8) may be paid in advance by the staff member. However, receipts must be provided to the relevant Ministry or

Department for reimbursement.

- (10) A PSDB hearing under this section may be conducted virtually.
- (11) The Director General, Director or equivalent position of a staff member must be present at the PSDB hearing as required under subsection 37(8) of the *Public Service Act*. In the absence of a Director General, Director or equivalent position, an authorized representative must attend the hearing.

3.1 Functions of the PSDB

- (1) For the purpose of carrying out its functions in relation to disciplinary offences, the PSDB is vested with the powers and authority to summon witnesses and admit and receive evidence as as the Supreme Court pursuant to section 39 of the Public Service Act, .
- (2) Under subsection 37(9) of Public Service Act the PSDB may:
 - (a) dismiss the notice; or
 - (b) issue a warning or reprimand to the offender; or
 - (c) demote the employee; or
 - (d) suspend the offender from the public service without pay; or
 - (e) order compulsory retirement; or
 - (f) dismiss the offender from the Public Service.
- (3) In addition, the PSDB may also make the following recommendations:
 - (a) transfer and demote; or
 - (b) reinstate the staff member; or
 - (c) issued warning; or
 - (d) deduction of earnings; or
 - (e) restrict a staff member from similar duties and responsibilities; or
 - (f) recommend close monitoring plan; or
 - (g) recommend staff members compensation if applicable; or
 - (h) impose any other measure as it deems fit but in accordance with the Public Service Act.
- (4) A demotion under paragraph 3(a), pertains to the staff member being demoted from his or her salary scale, position or job description.
- (5) If an employment ceases before a disciplinary hearing is held, the PSDB must hold a hearing and make a decision on the disciplinary matter.
- (6) In cases where the Commission identifies an unfinished disciplinary case undermining its statutory obligation, the Commission may authorize the completion of the case in accordance with due process to ensure proper closure of the disciplinary matter.

3.2 Confirmation by the Commission of the PSDB decision

- (1) The Commission may confirm a decision of the PSDB. In doing so, the OPSC must inform the staff member in writing of Commission decision that is effective from the date of the determination by the Commission.
- (2) The Commission may only vary or quash a decision of the PSDB based on a new evidence that is not previously considered or if the Commission determines that the existing evidence was not fully or carefully considered by the PSDB.
- (3) The Commission must confirm, vary, or quash a decision of the Board within 45 calendar days specified under subsection 37(11) of the Act. A failure to comply with this timeframe results in the PSDB decision being quashed.
- (4) A member of the Commission who sits on the PSDB must not participate nor confer with other members of the Commission when the Commission is exercising its function under subsections 37 (11),(12) and (13).
- (5) The Commission may require the PSDB to reconsider its decision on a particular disciplinary case within 45 days pursuant to section 37 of the Act if the Commission is not satisfied with decision of the PSDB and must give reasons for making such decision.

Flow chart for PSDB process



3.3 Statutory right of appeal against a decision of the Commission

A staff member who is not satisfied with the final decision of the Commission on his or her disciplinary case may lodge an appeal to the Supreme Court within fourteen (14) days of receiving a written notice of the decision.

3.4 Serious misconduct disciplinary procedure for the Secretary of the Public Service Commission

- (1) Where the Chairman or in his or her absence an Acting Chairman suspects the Secretary of committing a serious misconduct, the Chairman or Acting Chairman must immediately after he or she becomes aware of the alleged serious misconduct, report the matter by way of a complaint letter with relevant supporting documentary evidence to the Commission for its consideration.
- (2) Based on the report from the Chairman or Acting Chairman, the Commission must immediately suspend the Secretary and shall refer the matter to the PSDB for hearing or appoint an independent investigative panel which shall comprise of senior officials from the Public Service and other government institutions or private sector to investigate the allegation(s) raised.
- (3) The Secretary must provide his or her written response to the allegations raised against him or her before a referral is made to the PSDB under subsection (2).
- (4) The investigation panel appointed under subsection (2) must complete its investigation into the alleged serious misconduct within 30 working days as determined by the Commission.
- (5) The investigative panel must compile a report of its findings and submit it to the OPSC within 7 working days after the expiry of the 30 working days period under subsection (3).
- (6) The Deputy Secretary of the OPSC must submit the report under subsection (5) to the Commission for its consideration to note the report before releasing it to the Secretary for his or her response on the allegations and findings of the report.
- (7) The Secretary must immediately upon receiving the report and all documentary evidence, submit his or her written response within five (5) working days to the Commission.
- (8) Upon receiving the written response from the Secretary, the Commission must summon the Secretary to appear before an independent panel consisting of three persons (other than the members of the Public Service Disciplinary Board) as appointed by the Commission for hearing.
- (9) The hearing shall commence with Notice of charges, detailing the particulars of the charges raised, time, venue and date of hearing, including a copy of his or her disciplinary file.
- (10) In the event that the Secretary does not respond within five (5) working days under subsection (7), the Commission must summon the Secretary to appear before the independent panel to

address the allegations or findings of the Investigation Report and provide reasons for his or her lack of response.

- (11) The Secretary may call potential one or more witnesses to appear before the independent panel to give evidence in support of his or her case.
- (12) The decision of the independent panel must be documented in minutes, signed by the panel members and copies served on the Secretary and the Commission.
- (13) To avoid doubt, if the Chairman or the Acting Chairman of the Commission is implicated on that matter, he or she must not participate or confer with other members of the Commission when the Commission is considering and making a determination on the matter.
- (14) The Commission may consider the minutes reflecting the decision of the independent panel, including the investigation report with all the relevant documentary evidence on the matter as well as the written response of the Secretary under subsection (7) and may:
 - (a) reinstate the Secretary; or
 - (b) issue a warning to the Secretary; or
 - (c) demote the salary of the Secretary; or
 - (d) demote the Secretary to a lower position; or
 - (e) terminate the employment of the Secretary based on the evidence as appeared in the investigation report and his or her responses; or
 - (f) transfer the Secretary subject to the requirements of transfer under the Act; or
 - (g) take any other actions as deems fit but in accordance with the law.

3.5 Attempt to influence the Commission or the PSDB

- (1) The Secretary, Director General, Director or equivalent position or staff member must not attempt to influence the Commission or any member of the Commission or PSDB in respect of any disciplinary case or matter.
- (2) Nothing in this section prohibits any person under subsection (1) from giving or making representations in respect of any case or appeal at the request or invitation of the Commission or the Board or as a witness or as a defendant or appellant or the representative of a Director-General, Director or officer appearing at a hearing before the Commission or PSDB as specified under subsection 46(3) of the Act.
- (3) A person who contravenes subsection (1) commits a disciplinary offence.

3.6 Disciplinary procedures checklist

YES NO

- | | | |
|--|--------------------------|--------------------------|
| 1. Informal and Formal Counselling? | ☐ | ☐ |
| 2. Notice of Allegations? | ☐ | ☐ |
| 3. Notice of first warning? | ☐ | ☐ |
| 4. Notice of second warning? | ☐ | ☐ |
| 5. Suspension letter? | ☐ | ☐ |
| 6. EDR is signed by the Director or equivalent position and endorsed by the Director General? | ☐ | ☐ |
| 7. Has the staff member been given the opportunity to respond in writing to the Notice of allegations made against them? | ☐ | ☐ |
| 8. In the case of a serious disciplinary offence, has the Secretary, the Director General and the Director of the Department where the staff member works consult each other before issuing "suspension" letter? | ☐ | ☐ |
| 9. Grievances Process has been observed | ☐ | ☐ |
| 10. Has the EDR and required documents supporting the allegations including the Officer's response been referred to the OPSC within 5 working days? | ☐ | ☐ |
| 11. Has the Commission considered the Director's General, Director or Equivalent position Report and the officer's response to the allegations in a timely manner? | ☐ | ☐ |
| 12. Has the Commission dismissed the matter, dismissed the employee with cause or referred the matter to the Disciplinary Board for hearing? | ☐ | ☐ |
| 13. If referred to the Board, has the employee been provided with at least 28 days of notice of the day the matter will be heard? | ☐ | ☐ |
| 14. Upon receipt of the decision of the Disciplinary Board, whether or not the staff member has lodged an appeal to the Supreme Court within 14 days? | ☐ | ☐ |
| 15. After hearing the matter, has the Board's decision been referred to Commission to confirm, vary or quash the Disciplinary Board's decision within 45 days of the date of the notification of the decision to the employee concern? | ☐ | ☐ |
| 16. Has a final decision from the Commission made on this matter? | ☐ | ☐ |

4. Appendix A - Disciplinary offences

4.1 *Disciplinary offences under Section 36 (1) of the Public Service Act*

An officer commits a disciplinary offence who:

- (a) by any wilful act or omission fails to comply with the requirements of the *Public Service Act* or of any order hereunder or of any official instrument made under the authority of the Commission or of the Director-General of the Ministry in which the officer is employed;
- (b) in the course of his or her duties disobeys, disregards or makes wilful default in carrying out any lawful order or instruction given by any person having authority to give the order or instruction or by word or conduct displays insubordination;
- (c) is negligent, careless, indolent, inefficient, or incompetent in the discharge of his or her duties;
- (d) behaves in a manner calculated to cause unreasonable distress to other staff or to affect adversely the performance of their duties;
- (e) uses intoxicating liquors or drugs (including for the avoidance of doubt, kava) to excess or in such manner as to affect adversely the performance of his or her duties;
- (f) improperly uses or removes property, stores, monies, stamps, securities or negotiable instruments for the time being in his or her official custody or under his or her control, or fails to take reasonable care of any such property, stores, monies, stamps, securities or negotiable instruments;
- (g) whilst in the proper discharge of his or her duties directly or indirectly discloses or for private purposes uses any information acquired by him or her either in the course of his or her duties or in his capacity as an officer;
- (h) absents himself or herself from his or her office or from the official duties during hours of duty without leave or valid excuse, or is habitually irregular in the time of his or her arrival or departure from his or her place of employment;
- (i) is guilty of any improper conduct in his or her official capacity, either inside or outside of working hours, or of any other improper conduct which is likely to affect adversely the performance of his or her duties or is likely to bring the Public Service into disrepute;
- (j) is guilty of any other offence prescribed from time to time by regulations made under this Act [*Public Service Act*, section 36(1) (a-j)].

5. Appendix B - Criminal charges

Section 5.1 and 5.2 shall not apply to any decision of a custom court, but only to a decision of a full judicial court.

5.1 Procedure in the case of employee or any other person employed under the Public Service is convicted of a criminal offence

- (a) Employees are required to inform the Secretary, Director General, Director or equivalent position the Commission, within 24 hours or the next working day (whichever is the latest) if they are charged with a criminal offence. After the trial, the employee is to inform the Secretary, Director-General, Director or equivalent position of the Commission of the decision of the Court, again within 24 hours or the next working day, of the judgment. The advice provided by the employee will be confirmed by reference to the judgment in the case Court Register.
- (b) Under section 29A of the Public Service Act 1998, the Commission may dismiss an employee who is convicted by Court of a criminal offence as if it were a disciplinary offence.
- (c) A temporary salaried employee, contract officer or a daily rated worker or interns may also be dismissed by the Commission if convicted of a criminal offence.

5.2 Procedure in the case of an employee or any other person employed under the Public Service sentenced to a term of imprisonment

- (a) If an employee or any other person employed within the Public Service is sentenced to a term of imprisonment or fails to pay a fine, he or she may be dismissed and must not receive any remunerations or payments from the date of the decision of the Commission or the date he or she is serving a custodial sentence.
- (b) The Director-General, Director or equivalent position must report each case to the Secretary, OPSC who must report it to the Commission.
- (c) The Commission may issue a final warning to a staff member under paragraph (a) who is reinstated to his or her substantive post after making a pecuniary payment as ordered by the court.

6. Appendix C- Offences

- (a) The following offences constitute acts of **serious misconduct** that warrant immediate suspension of a public servant from office, if occurred:
 - (i) Serious offence against government property or asset;
 - (ii) Misappropriation;
 - (iii) Use of government vehicle without valid driving licence and causing an accident;
 - (iv) Fraudulent activity;
 - (v) Sexual offences or Harassment;
 - (vi) Serious negligence in performance of duties;
 - (vii) Excessive use of alcohol and illegal use of drugs;
 - (viii) Endanger safety and health of other staff members;
 - (ix) Accident to government vehicle while under the influence of alcohol;
 - (x) Dishonesty;
 - (xi) Unauthorised disclosure of classified information;
 - (xii) Providing misleading information to influence the Commission decision;

- (xiii) Attending training without approval of the PSC;
- (xiv) Convicted of a criminal offense in the country of training or employment;
- (xv) Extra marital affair between staff members;
- (xvi) Representing a political party during election campaign;
- (xvii) Physical assault within workplace;
- (xviii) Forging of official documents or signature.

(b) The following are offences that may be managed through the grievance process or internal disciplinary management system prior to suspension:

- (i) Use of government vehicle without proper authorisation;
- (ii) Unauthorised removal of government assets of value up to VT50,000
- (iii) Use of Government vehicle by unauthorized person
- (iv) Involvement in private business during official working hours
- (v) Insubordination and failing to comply with lawful instructions
- (vi) Poor performance
- (vii) Absence from official duty without valid reasons or unauthorised
- (viii) Continuous lateness
- (ix) Use of inappropriate language
- (x) Misuse of Government assets
- (xi) Mismanagement of time
- (xii) Personal excessive use of social media during working hours
- (xiii) Conflict of interest
- (xiv) Chewing of betal nuts
- (xv) Use of government vehicle without valid driving licence
- (xvi) Use of abusive language
- (xvii) Use of social media to directly tarnish reputation of government officials and policies
- (xviii) Fails to appraise an appraisee

(c) Any other offences as may be determined from time to time by the Commission.

FORMS FOR CHAPTER 6: MANAGING STAFF DISCIPLINE

STAFF MEMBER DISCIPLINE REPORT

Section 1 - Details of Staff Member:

Name: _____ Payroll No: _____

Position Title: _____ Post No: _____

Ministry: _____ Department: _____

Contact Details (Phone Number\Email, Address of domicile): _____

Section 2 – Type of offence:

(The alleged offence(s) should be an offence identified from Section 36 26 29A 29B and 46 of the Public Service Act or an identified offence listed in Appendix A of Chapter 6 of the Public Service Staff Regulation Manual).

- Theft on government assets, and theft on personal properties within government premises
- Use of government vehicle without proper authorization
- Use of government vehicle without valid driving licence
- Removal of GPS installations
- Use of G vehicle by unauthorized persons
- Removal of government assets
- Negligence
- Misappropriation of Government Fund
- Misuse of Government properties (Government vehicle, government email, government Office etc...)
- Accident to government vehicle while under the influence of alcohol
- Dishonesty,
- Inability to carry out work due to consumption of non-prescription drugs, kava or alcohol, and other toxic substances
- Breach of confidentiality,
- Insubordination,
- Insolence,
- Physical assault within workplace
- Use of abusive language within workplace
- Sexual harassment within workplace
- Breach of implied duties such as fidelity and trust
- Extra marital affairs during official working hours or use of government assets (phones, vehicle, email) to entertain such affair
- Forging of official documents
- Misuse of Government assets
- Suspension of scholarship
- Is terminated by a training institution

- Is terminated by sponsor if training is funded
- Commits a criminal offense in the country of training
- Use of social media to directly tarnish reputations of government officials and policies
- Poor Performance
- Attending training without approval of the PSC
- Attempt to influence recruitment panel decisions during selection process
- Failure to comply with PSC tenancy agreement
- absence from official duties without valid reasons
- Providing false information
- Others

Date of suspension (if applicable): (Day)_____ **(Months)**_____ **(Year)** _____

Date(s) the alleged offence occurred: _____

Facts of the alleged offence: *(In this section, please describe carefully exactly what has happened. Attach a separate report if there is insufficient space here and clearly label it ATTACHMENT A.)*

Complete Evidence for the alleged offence in the table below:

Evidences

- ☐ Copy of complain
- ☐ Statement from Witness
- ☐ Copy of receipt
- ☐ Pictures
- ☐ Email
- ☐ Text Messages
- ☐ Others

- ☐ Police report
- ☐ Medical Report
- ☐ Cost of repair(vehicle)
- ☐ Copy of minute (counselling, meeting...)
- ☐ Copy of court Judgment

Past Attempts to resolve the matter

Verbal/Written reminder Disciplinary Action

Date _____ written report prepared Yes ☐ No ☐

Detail _____

1st Warning Disciplinary Action

Date _____ written report prepared Yes ☐ No ☐

Detail _____

2nd Warning Disciplinary Action

Date _____ written report prepared Yes ☐ No ☐

Detail _____

Process of grievance

SECTION 3 - PROVIDING THIS DISCIPLINE REPORT TO THE EMPLOYEE

After the above sections have been completed by the Director General, the Director or equivalent position this Discipline Report is to be provided to the employee for his or her certification and response. The employee is to be given five (5) working days inclusive for this purpose. If posting form, provide additional days for mail delivery on top of the five working days.

Date this Discipline Report provided to employee: _____

Date this Discipline Report is to be returned to the Director or Director General : _____

SECTION 4 - EMPLOYEE AND RESPONSE:

This section is to be filled in by the employee and then this Discipline Report is to be returned to the Director General, the Director or equivalent position within five (5) working days by the Employee. Failure to return the report may constitute a new disciplinary offence.

I, _____ (name) certify by signing below that:

- (1) I have been shown and provided with this *Discipline Report*;
- (2) I have been provided with seven days to respond to it;
- (3) If I choose to make a response it is noted below or attached to this form;
- (4) I understand that if I do not provide a response to this report, it may be assumed by the Public Service Commission that I agree with the allegations made in this report; and
- (5) I will return this *Discipline Report* to the Director or the Director General or the two days after receiving it.

By ticking the appropriate box, I also certify that: (*Please tick only box only, either 1, 2, or 3*)

1. I accept that all allegation(s) made against me in this report are true; **OR**

☐

2. I partially accept that all allegations made against me in this report are true
(*If there is more than one allegation and you accept one or more but not all of them, please indicate which allegations you accept and which ones you reject in the space provided below*); **OR**

☐

3. I do not accept any of all the allegation(s) made against me in this report are true.

☐

Details of my response:

(Please provide a written response to the allegations contained in this report. If there is insufficient space here, attach a separate report and label it ATTACHMENT B. Attach evidence, if any in support of your response to the allegations raised against you).

Name: _____ Signature: _____

Date this report returned to the Director General, the Director or equivalent position: _____
(This date must be no later than seven calendar days after receiving the report. If posting it back, do so seven days after receiving it).

SECTION 5 - DIRECTOR'S CERTIFICATION:

- I certify that to the best of my knowledge the above allegations made by me are true.
- I certify that I have provided the staff member concerned with this *Discipline Report* and provided him or her with five (5) working days to return it to me with his or her response.

Name: _____ Signature: _____ Date: _____

SECTION 6 - DIRECTOR-GENERAL'S OR PROVINCIAL SECRETARY GENERAL'S CERTIFICATION:

- I certify that to the best of my knowledge the above allegations made in this report are true.
- I certify that this *Discipline Report* has been provided to the staff member and that he or she has been provided with five (5) working days to respond to it.

Name: _____ Signature: _____ Date: _____

SECTION 7 – SECRETARY OF THE PUBLIC SERVICE COMMISSION:

- I certify that to the best of my knowledge the above allegations made in this report are true.
- I certify that this *Discipline Report* has been provided to the staff member and that he or she has been provided with five (5) working days to respond to it.

Name: _____ Signature: _____ Date: _____

Public Service Commission only

SECTION 8- PUBLIC SERVICE COMMISSION CONSIDERATION:

Date *Discipline Report* received from Ministry: _____

Date *Discipline Report* considered by the Commission: _____

Outcome of PSC consideration:	1.	Suspension <u>removed</u> :	☐
	2.	Suspension <u>confirmed</u> :	☐
	3.	Matter dismissed	☐
	4.	Staff member dismissed	☐
	5.	Matter referred to Police	☐
	6.	Matter referred to Disciplinary Board	☐

Chairman of the Public Service Commission:

Name: _____

Signature: _____ **Date:** _____

Staff member and Ministry informed of PSC decision on: _____

If confirmed, matter referred to Police or Disciplinary Board on: _____

WITNESS FORM*[TO BE REPRODUCED ON DEPARTMENT OR MINISTRY LETTERHEAD]***Station:**

Date: _____ Venue: _____ Time: _____

Surname: _____ Name: _____

Marital Status: Single ☐ Married ☐ Separate/ Divorced ☐De facto ☐ Widow ☐

Nationality: _____ Ethnic origin: _____

Residential Status: Ni-Vanuatu ☐ Expatriate ☐ Other ☐*(*Note: If tick 'other', please specify or provide details below)*_____

_____Age: _____ Sex: Male ☐ Female: ☐ Statement in: _____

Occupation/ Profession: _____

Home Island _____ Village: _____

Business Address: _____

Residential address: _____

Interpreter: _____

I hereby declare that my statement is the expression of the truth to the best of my knowledge and belief and is made by me, knowing that I am liable to be prosecuted if I wilfully give information, which I know to be false or I do not believe to be the truth.

Signature: _____

*(*Note: details of statement to be provided below)*_____

Statement received by: _____

At (Place) _____ on _____ at/a _____ Hrs

The witness not knowing to sign his statement was read out to him or her in the presence of _____
now has signed his statement with us.

Investigation Officer/ Preliminary Assessment Officer

The Witness

Signature

[TO BE REPRODUCED ON DEPARTMENT OR MINISTRY LETTERHEAD]

[Date]

[Name]

[Address]

Dear [Name]

NOTICE OF ALLEGATIONS OF DISCIPLINARY OFFENCES AGAINST YOU

Please be advised that it has been alleged that you committed the following disciplinary offences:

1. [nature of offence and degree of involvement with dates and places]
2. [nature of offences and degree of involvement with dates and places]

You are required to respond to these allegations within five (5) working days from today's date. Failure to do so may result in the Director General, Director or equivalent position determining the matter without a response from you and you may receive a warning letter that will be place in your Personal File.

If you wish to discuss this matter, you may make an appointment to see me.

Yours faithfully

[Name]

Secretary Director General, Director or Equivalent Position

[TO BE REPRODUCED ON DEPARTMENT OR MINISTRY LETTERHEAD]

```
[name]
[address]
```

PROGRESSIVE DISCIPLINARY ACTION FORM

(Section 35 of the Public Service Act)

Name of Employee: _____ **Employee ID:** _____

I. Disciplinary Action

- ☐ Tardiness ☐ Absenteeism ☐ Insubordination ☐ Work Performance ☐ Negligence
☐ Dress Code ☐ Safety ☐ Abuse of power ☐ Misappropriation ☐ other

IF applicable, please list the Public Service Staff Regulation Manual (PSSRM)/ and Public Service Act PS Act) provisions breached:

II. Details of Occurrence (Attached additional sheet if necessary) Date of Occurrence

[illegible]

III. Has this or a similar infraction occurred before?

- ☐
- No
- ☐
- Yes

if yes, please provide the details below and attach prior disciplinary actions.

First Occurrence Date: _____

Action Taken: _____

Second Occurrence Date: _____

Action Taken: _____

Third Occurrence Date: _____

Action Taken: _____

IV. Corrective action to be taken

- ☐ Verbal Counselling ☐ Written Warning ☐ Disciplinary Suspension ☐ Final Warning
☐ Counselling with Supervisor/representative

V. Expected Improvement

Consequence for unsatisfactory improvement and/or further disciplinary actions:

- ☐ Verbal Counselling ☐ Written Warning ☐ Disciplinary Suspension ☐ Final Warning
☐ Termination

Supervisor Signature: _____ **Date:** _____

VI. Employee Statement

I acknowledge by my signature below that I have been given the opportunity to present my views and explanations and I am signing this review prior to it being placed in my personnel file. I also understand the corrective actions to be taken by my supervisor and consequences if my improvement is unsatisfactory or I receive further disciplinary actions.

Employee Signature: _____ **Date:** _____

Witness Signature: _____ **Date:** _____
(If employee understands Warning but refuses to sign)

[TO BE REPRODUCED ON DEPARTMENT OR MINISTRY LETTERHEAD]

[Date]

[Name]

[Address]

Dear [Name]

FIRST WARNING LETTER

This letter serves to formally warn you for the first time regarding the allegations outlined below.

1. [nature of offence and degree of involvement with dates and places]
2. [nature of offences and degree of involvement with dates and places]

The allegations were put to you by way of a letter on . You responded to them on . Upon investigation by the department and considering the response from you it is determined that the allegation/s is/were true.

Should this behaviour continue or be repeated it may lead to a second and final warning; having a formal disciplinary charge against you and the matter to be referred to the Public Service Commission. A copy of this “First Warning” letter and your responses will be placed in your Personal File

Yours faithfully

[Name]

Director General, Director or Equivalent Position

[TO BE REPRODUCED ON DEPARTMENT OR MINISTRY LETTERHEAD]

[Date]

[Name]

[Address]

Dear [Name]

SECOND AND FINAL WARNING

This letter serves to formally warn you for the second time regarding the allegations outlined below;

1. [nature of offence and degree of involvement with dates and places]
2. [nature of offences and degree of involvement with dates and places]

The allegations were put to you by way of a letter on You responded to them on Upon investigation by the department and considering the response from you it is determined that the allegation/s is/were true.

Should this behaviour continue or be repeated it will be considered as serious misconduct and will to your suspension from duty; having a formal disciplinary offence against you and the matter to be referred to the Public Service Commission. A copy of this “Second and Final Warning” letter and your responses will be placed in your Personal File.

Yours faithfully

[Name]

Secretary, Director General, Director or Equivalent Position

[TO BE REPRODUCED ON DEPARTMENT OR MINISTRY LETTERHEAD]

[name]
[address]

SUSPENSION LETTER

Dear [name]

This letter is to inform you that you are suspended on half pay [*immediately or from date*].

I am taking this action because it is alleged that you have committed the following disciplinary offence(s):

1. [*nature of offence and degree of involvement with dates and places*]
2. [*nature of offence and degree of involvement with dates and places*]

A full Employee *Disciplinary Report* will be prepared on this matter and provided to you for your consideration and response within 5 working days.

Until the above matter is resolved, you are suspended from duty and you must not enter any premises belonging to this Department\Ministry except with my permission.

You are required to return all Public Service property (including any Government vehicle) in your possession to me immediately. You are also required to return all office or vehicle keys to me.

The Director-General and the Office of the Public Service Commission have been informed of this action. If you wish to discuss this matter, you may make an appointment to see me.

Yours faithfully

[Name]
Director General, Director, or Equivalent Position

MEMORANDUM OF MEDIATION

BETWEEN

EMPLOYER AND EMPLOYEE / EMPLOYEE AND EMPLOYEE

This Memorandum of Mediation is entered into on the.....day of..... between Employer/Mr/Mrs.....as Officer Occupying the position of.....and Mr/Mrs.....as Officer Occupying the position of.....;

The above parties agree to appoint Mr/Mrs.....hereinafter referred to as the Mediator.....;

AND WHEREAS the aforementioned parties wish to enter the herein described agreement, in which they shall cooperate to resolve issues listed below:

- 1.....
- 2.....
- 3.....

AND WHEREAS the parties further wish to set out arrangements that they both agree shall constitute the terms and conditions of this mediation.

1. Background Details on Issues

.....

2. Purpose and Scope

The Parties intend for this memorandum to be entirely bound by its terms and Conditions.

A. Terms of Mediation

- (1)
- (2)
- (3)

B. Attachments

- 1.....
- 2.....
- 3.....

C. Execution

By the signature below Parties, agree that this Memorandum Of Mediation shall be enforceable on the day in which it is made.

Dated at Port Vila this _____ day of _____

Mr/Mrs (Employees)

Mr/Mrs (Mediator)

Mr/Mrs (Employees)

Mr/Mrs (Employer)

Mr/Mrs (Employee Witness)

Mr/Mrs (Employee Witness)

CHAPTER 7 – MANAGING CESSATION OF EMPLOYMENT

1. Introduction

Under paragraph 15(2)(a) of the *Public Service Act*, the Commission is obliged to ensure the fair and proper treatment of all staff members in all aspects of their employment. This obligation extends to how a staff member's employment ceases. Cessation of employment should be conducted in a manner that is appropriate, transparent and fair. To fulfil this obligation, the following directives are to be applied when a staff member's employment with the Public Service ceases.

2. General principles of cessation of employment

The general principles of cessation of employment of a staff member are as follows:

- (a) The Commission may terminate a staff member's employment in accordance with the *Public Service Act*, adhering to its duty to act as a good employer.
- (b) In executing the function of terminating the employment of a staff member, the Commission must act independently, free from the direction or control of any other person or Organization.
- (c) The Commission is required to consult the Director-General of the Ministry where the staff member is employed before terminating the employment of a staff member. Subsequently, the relevant Director-General must consult on the termination with the Director or equivalent position where the staff member is employed.
- (d) Unless circumstances specified in this Manual where dismissal without notice is required, a staff member must be given a notice period of 14 days, as specified in subsection 50(4) of the Employment Act.
- (e) Subject to the *Public Service Act*, where termination is warranted or allowed, a staff member must be provided with the appropriate period of notice as specified in this Manual.

2.1 General Period of Notice for Cessation of Employment

2.1.1 Employee

- (1) Subject to the express provisions of any written contract or unless specified otherwise in this Manual, the general period of notice specified in section 28 of the *Public Service Act* is to apply when every employees employment ceases or *payment in lieu* is paid. The period of notices are as follows:
 - (a) an employee who has been continuously employed for a period of less than (12) twelve months must be given (2) two weeks' notice or *payment in lieu*;

- (b) an employee who has been continuously employed for (12) twelve months or more but less than two years must be given (1) one month's notice *or payment in lieu*;
 - (c) an employee who has been continuously employed for (2) two years but less than (3) three years must be given (2) two months' notice *or payment in lieu*;
 - (d) an employee who has been continuously employed for (3) three years or more must be given (3) three months' notice *or payment in lieu*;
 - (e) an employee who resigns must give notice in accordance with the period of notice specified in section 49 of the *Employment Act* [CAP 160].
- (2) At any time during a probationary period, an employee's employment may be terminated by either party without notice on the basis of serious misconduct and subject to subsection 50 (4) of the *Employment Act* (CAP 160).

2.1.2 Temporary Salaried Employee

- (1) Subject to the express provisions of any written contract or unless specified otherwise in this Manual, the general period of notice specified in subsection 30 (1) of the *Public Service Act* applies when the temporary salaried employee's employment ceases, or *payment in lieu* is made. This requires that a temporary salaried employee be provided with not less than (1) one week's notice, or, in the case of misconduct or inability to perform their duties and responsibilities, without notice.
- (2) A temporary salaried employee who resigns before the end of the specified period of employment in his or her job offer letter is required to give a minimum of (1) one week's notice.
- (3) A temporary salaried employee may be terminated at any time by either party without notice for *serious* misconduct and subject to subsection 50(4) of the *Employment Act* [CAP 160].

2.1.3 Daily Rated Workers

- (1) Subject to the express provisions of any written contract or unless specified otherwise in this Manual, the general period of notice for a daily rated worker is as specified in section 49 of the *Employment Act* [CAP 160].
- (2) A daily rated worker who resigns before the end of the period of employment specified in his or her offer letter must give notice in accordance with the period of notice specified in the *Employment Act* [CAP 160].
- (3) A daily rated worker's employment may be terminated at any time by either party without notice for *serious* misconduct and subject to subsection 50(4) of the *Employment Act* [CAP 160].

2.1.4 Persons engaged on a Contract including Intern Officer

- (1) Any period of notice for termination of employment contract for persons engaged on a contractual arrangement including intern officer for a specified period shall be in accordance with the Employment Act [CAP 160].
- (2) A person engaged on a contractual arrangement including an intern officer may be terminated at any time by either party without notice for *serious* misconduct and subject to subsection 50(4) of the Employment Act [CAP 160].

3. General Entitlements

Subject to any written contract providing additional or other entitlements, there are standard payments that a staff member is entitled to when his or her employment with the Public Service ceases. In particular type of cessation, additional payments may be payable to a staff member.

3.1 Standard payments

The standard payments include:

- (a) salary accrued to the date a staff member's employment ceases; and
- (b) accrued allowances rounded up to the end of the month in which the staff members employment ceases; and
- (c) accrued annual recreation leave.

4. Additional payments due in particular case of cessation

4.1 Severance Payment

A Severance entitlement is to be paid as follows:

- (a) If applicable, severance payments calculated at the rate of two (2) months' salary per year of service employed for twelve (12) continuous months or more.
- (b) Despite paragraph (a), the severance payment of an employee who is dismissed for serious misconduct is subject to the discretion of the Commission.

4.2 Payment in lieu of notice of termination

- (1) If applicable, *payment in lieu* of any required notice of termination is to be paid to a staff member.
- (2) A staff member is not entitled to any payment in lieu of notice if the terms and conditions of his or her employment contract do not provide for a notice of cessation of employment.
- (3) If the terms and conditions of a daily rated worker's employment contract do not provide for notice of termination, the daily rated worker is not entitled to payment in lieu of notice of termination pursuant to the Employment Act [CAP 160].
- (4) A temporary salaried employee is entitled to one (1) week payment in lieu of notice of termination of his or her employment contract. However, in cases of serious misconduct

or inability to perform duties and responsibilities, a temporary salaried employee is not entitled to any payment in lieu of notice.

- (5) If the terms and conditions of an employment contract of an intern officer do not provide for notice of cessation of employment, the intern officer is not entitled to any payment in lieu of notice.

4.3 Payment in lieu of notice of resignation

- (1) A staff member, including an intern officer must serve the period of notice of his or her resignation pursuant to the *Public Service Act* and the *Employment Act*.
- (2) If a staff member or an intern officer fails to serve notice to the employer and has vacated the position, a deduction amount equivalent to the period of notice of resignation must be deducted from his or her standard payments.
- (3) Upon the request of a Director-General, Director or equivalent position, the Secretary may authorise the cessation of payment of salary for a staff member if the staff member vacates his or her office without giving notice of resignation of employment to the Commission and subsequently engaged in an alternative employment.
- (4) The cessation of salary under subsection (3) is subject to the Commission's final decision on the status of employment of the staff member
- (5) Subject to the Commission's decision, a staff member who fails to resume duties after five (5) working days without a valid reason given in writing to his or her supervisor (by email, SMS, or social media applications) after the expiry of the period of his or her approved annual leave is deemed to have voluntarily resigned from his or her position.
- (6) A Director General, Director or equivalent position must inform the Secretary of the staff member's absence and voluntarily resignation under subsection (5).
- (7) The Secretary may authorize the Director of the Department of Finance to cease payment of salary of a staff member under subsection (5) until such time the Commission makes a final decision on the matter

4.4 Repatriation Payment

- (1) A repatriation payment consisting of reasonable transportation, subsistence, and removal costs, must be paid to a staff member or an intern officer who leaves his or her ordinary place of residence to another place of employment pursuant to section 58 of the *Employment Act*.
- (2) The payment referred to under subsection (1) must cover for a staff member or an intern officer's immediate family as required under section 59 of the *Employment Act*.
- (3) If both spouses are employed by the Commission and ceases to be employed at the same time, only one of the spouses is entitled to claim for the repatriation payment. The relevant Ministry or Department is responsible to meet the repatriation costs upon the request of the entitled employee.
- (4) To avoid doubt, a repatriation payment must be made only if an employment of a staff member or an intern officer is terminated, dismissed or ceased by the Commission or pursuant to the *Public Service Act*.

- (5) A staff member is deemed to have forfeited his or her entitlement to the repatriation payment if he or she does not request such payment within 6 months from the date of his or her cessation of employment.
- (6) In the event where a staff member, contract employee, spouse or child of a staff member or contract employee is deceased during active employment of the staff member away from the normal place of residence, the relevant Ministry or Department shall be responsible for the repatriation cost of the deceased to his or her home island or place of residence.

4.5 Required Periods of Notices and Staff Entitlements

Category of cessation	Period of notice	Entitlements
1. Age retirement	Two weeks to three months depending on length of service	- Standard payments - Severance payment - If applicable, repatriation payments
2. Medical retirement	Depends on medical advice	- Standard payments - Severance payment - If applicable, repatriation payments
3. End of temporary salaried employment	One week or as specified in employee's written contract	- Standard payments or as specified in written contract - If applicable, payment in lieu of notice of termination - If applicable, repatriation payments
4. End of daily-rated employment	As per subparagraph 49 (3) (b) (ii) of the Employment Act	- Standard payments - Severance payment if applicable - If applicable, repatriation payments - payment in lieu of notice of termination if applicable.
5. End of contract employment period	(a) Less than 12 months- 2 weeks notice (b) Not less than 12 months but not more than 2 years- 1 month notice (c) Not more than 3 years- 2 months' notice (d) 3 years or more- 3 months' notice.	- Standard payments or as specified in the written contract - Severance Payment - If applicable, repatriation payments
6. Voluntary resignation	2 weeks to 3 months depending on length of service	- Standard payments - Severance payment, if one year or more service - If applicable, repatriation payments
7. Compulsory retirement	At the discretion of the Commission	- Standard payments - Severance Payment - If applicable, repatriation payments
8. Dismissal as the result of a disciplinary offence	At the discretion of the Commission	- Standard payments - If applicable, repatriation payments - Severance Payment at the Discretion of the Commission
9. Immediate dismissal with cause	No notice	- Standard payments - If applicable, repatriation payments - Severance Payment at the Discretion of the Commission.

10. Standing for General election to Parliament, Municipal and Provincial election.	9 months before election year	- Standard payments. - Severance payment, if one year or more in service
11. Standing for Snap Election to Parliament, Municipal and Provincial Government Council	Two weeks before polling day	- Standard payments. - Severance payment, if one year or more in service
12. By -election to Parliament, Municipal or Provincial Government Council	30 days before polling day	- Standard payments. - Severance payment, if one year or more in service
13. Refusal to accept a transfer	No notice, but subject to good employer obligations	- Standard payments - Severance payment - If applicable, repatriation payments
14. Redundancy	2 weeks to 3 months depending on length of service	- Standard payments - Severance payment - If applicable, repatriation payments - payment in lieu of notice of termination
16. Death in service	Not applicable	- 6 months one off salary Payment; - a goodwill payment equivalent to 1 year salary for a staff member subject to Commission decision; - Standard payments; - Severance payments; - If applicable, repatriation payments
17. The operation of law	As per transition period or as required by law	- Standard payments - Severance payment
18. Termination during probation period	Not applicable	- If applicable, standard payments.

5. Categories of Cessation of Employment

5.1 Specific Categories of Cessation

Subject to Article 57 of the Constitution, the *Public Service Act [CAP 246]*, *Employment Act [CAP 160]* and this manual, a staff member's employment in the Public Service is to be ceased in any of the following circumstances:

- (a) age retirement;
- (b) early age retirement;
- (c) medical retirement;
- (d) end of temporary salaried employment;
- (e) end of daily-rated employment;
- (f) end of contract employment period;
- (g) voluntary resignation;
- (h) compulsory retirement;
- (i) dismissal as the result of a disciplinary offence;
- (j) immediate dismissal with cause;
- (k) standing for election to Parliament, Municipal Council or Provincial Council;
- (l) redundancy;
- (n) death in service;
- (o) the operation of law;
- (q) dismissal for criminal conviction;
- (r) Termination during probation period.

5.2 Age of Retirement

- (1) Subject to the *Employment Act [CAP 160]*, the normal retiring age is 60 years. However, in the case where a staff member reaches an age between 45 to 59 years, they are eligible to request an early age retirement.
- (2) A staff member retiring on the basis of age under subsection (1) is eligible for the standard entitlements specified in section 3.1 of this chapter including:
 - (a) a severance payment of two (2) month's salary per year of service (and a pro-rata amount for any period less than 12 months);
 - (b) if applicable, repatriation payments as specified in subsection 4.4 (1) of this chapter.

5.3 Medical Retirement

5.3.1 Medical Retirement Initiated by a Staff Member

- (1) A retirement initiated by a staff member on medical grounds is subject to the standard period of notice under section 2.1 of this chapter, as determined by the Commission based on a medical advice.
- (2) A staff member may apply for medical retirement at any time if two (2) registered medical practitioners, at least one nominated by the Commission, certify in writing that the staff member is unfit to carry out normal duties.
- (3) In case of conflicting medical reports, the Commission may require the staff member to undergo a further medical examination at the department's expense.
- (4) If a staff member is certified under this section as unable to perform his or her normal duties, the last day of service of the staff member is the date specified by the registered medical practitioner providing the medical advice in relation to the staff member.

5.3.2 Medical Retirement Initiated by The Commission

- (1) Medical retirement initiated by the Commission is not subject to the standard period of notice under section 2.1 of this chapter, but is determined by the Commission on the basis of medical advice provided in accordance with this section.
- (2) The Commission may, on the advice of the Director-General of the Ministry in which a staff member is employed, require a staff member to attend two medical examinations conducted by two (2) different medical practitioners to determine if the staff member is fit to continue his or her normal duties. At least one (1) registered medical practitioner must be nominated by the Commission and another nominated by the staff member.
- (3) If both registered medical practitioners certify that a staff member is unfit to continue his or her normal duties, the Commission must retire the staff member on medical grounds and the last day of service is to be determined by the Commission taking into account the advice of the registered medical practitioners.
- (4) If a staff member indicates a willingness to continue his or her employment, and an alternative suitable position is available in the Public Service at a salary level not higher than the staff member's current salary, the Commission may, at its own discretion and based on medical advice provided by the staff member's registered medical practitioner, transfer him or her to that position.

5.3.3 Entitlements and Confidentiality of staff member retiring on medical grounds

- (1) A staff member retiring due to a medical condition is eligible for standard entitlements specified in Section 3.1 of this chapter, including:
 - (a) a severance payment of two months' salary per year of service (and a pro-rata amount for any period less than 12 months); and

- (b) if applicable, repatriation payments as specified in subsection 4.4 (1) of this chapter.
- (2) All medical reports, assessments and related documentation concerning a staff member who has applied for medical retirement must be treated with utmost confidentiality and accessed only by authorised employee of the Commission and the relevant Ministry.

5.4 Temporary Salaried Employees

- (1) A Temporary salaried employee is to be employed for a period of not more than six (6) months and must be provided with one (1) week notice of termination.
- (2) In the case of serious misconduct or inability to perform his or her duties, the employment of a temporary salaried employee may be terminated without notice but subject to the Commission's obligation to act as a good employer under subsection 50 (4) of the Employment Act.
- (3) A temporary salaried employee is entitled to the standard range of entitlements specified in Section 3.1 of this chapter or as specified in his or her contract of employment.

5.5 Daily-rated Workers

- (1) A Daily-rated worker is entitled to the standard range of entitlements specified in section 3.1 of this Chapter including if applicable, :
 - (a) a severance payment; or
 - (b) a repatriation payment.
- (2) Subject to the express provisions of any written contract or unless specified otherwise in this Manual, in cases of serious misconduct or inability to perform his or her duties, the employment of a daily rated worker can be terminated without notice.

5.6 Persons Engaged on Contract basis

- (1) The engagement of a staff member under a written employment contract must be terminated only in accordance with the termination condition and notice provisions under his or her employment contract.
- (2) A person engaged on a contract basis is, upon cessation of his or her engagement, entitled to such benefit as specified in his or her employment contract. If no benefit is specified in his or her employment contract, the person is entitled to the standard payments specified in section 3.1 of this chapter.
- (3) A staff member who has reached 60 years of age may enter into an employment contract with the Commission for a period of not more than 3 years, but subject to the requirements of the Public Service Act.

- (4) Subject to the requirements of the Public Service Act, a staff member who has reached 60 years of age may enter into a contract with the Commission for a period of not more than 3 years.
- (5) A staff member under subsection (4) must provide a medical certificate from a medical practitioner certifying that he or she is fit to be employed.

5.7 Voluntary Resignation

- (1) A staff member may voluntarily resign from the Public Service at any time, in accordance with the notice provisions prescribed in section 2.1 of this chapter. The resignation takes effect from the date of the resignation letter.
- (2) A staff member with one or more years of service is entitled to the standard payment of entitlements in section 3.1 including severance, notice and repatriation if applicable as specified in of this chapter.
- (3) In the event where an employee is appointed to another position within the same Ministry or Department or to another ministry or department, the employee is taken to have vacated his or her incumbent position.
- (4) Subject to section 11 of the Employment Act, in the event where an institution changes its statutory nature, the Commission must ensure to have a written consent of the staff member affected on that change.

5.8 Compulsory Retirement

- (1) A staff member who has compulsorily retired from the Public Service by the Commission, on the advice of the Disciplinary Board as a result of a disciplinary hearing under section 37 of the *Public Service Act*, may receive a period of notice, if any, as determined by the Commission.
- (2) The staff member who is compulsory retired under subsection (1) is entitled to a standard payment of entitlements specified in section 3.1 including:
 - (a) a severance payment of two months per year of service (and a pro-rata amount for any period less than 12 months); and
 - (b) if applicable, repatriation payments as specified in subsection 4.4 (1) of this chapter.

5.9 Dismissal as the result of a Disciplinary Offence

- (1) The Commission in considering a disciplinary offence and intending to terminate a staff member from the public service as a result of a disciplinary offence under sections 36

and 37 of the Public Service Act, must give 14 days' notice to the staff member to give reasons why he or she should not be terminated from his or her employment.

- (2) A staff member who is terminated under subsection (1) is entitled to the standard payment of entitlements specified in section 3.1 and if applicable, repatriation payment and severance payments subject to the discretion of the Commission.

5.10 Immediate Dismissal with Cause

- (1) Under section 29 and subsections 30 (1) and 31 (2) of the *Public Service Act*, in exceptional circumstances, the Commission may dismiss a staff member at any time for serious misconduct or inability to perform his or her duties but subject to its obligations to act as a good employer under section 15 of the *Public Service Act* must give 14 days' notice to the staff member and require the staff member to give reasons why he or she should not be terminated from employment.
- (2) A staff member who is dismissed with cause under subsection (1) is entitled to standard payments and may, at the discretion of the Commission, receive severance payment.

5.11 Standing for Election to Parliament

- (1) A staff member who intends to stand as candidate for election to the national Parliament, Municipal Council or Provincial Government Council must resign from his or her employment within nine (9) months before the election year.
- (2) In the case of a Snap election to national Parliament, Municipal Council or Provincial Government Council, the staff member must provide 2 weeks' notice before the opening date of the submission of application of candidature.
- (3) In the case of a by-election to national Parliament, Municipal Council or Provincial Government Council, the staff member must give 30 days' notice to resign from his or her employment before the polling day.
- (4) A staff member referred to in this section with one or more years in service is entitled to the standard payment of entitlements in section 3.1 including severance payment and notice specified in this chapter.

5.12 Redundancy

- (1) If at any time the Commission finds a greater number of staff member employed in a Ministry than is considered necessary for the efficient working of that Ministry, the Commission may, subject to the *Public Service Act*, declare a staff member, as the case may be, redundant and terminate his or her employment accordingly.
- (2) A staff member who is declared redundant and unsuccessful in being placed in another position must be given a *letter of Termination*.
- (3) A staff member who is made redundant under this section is entitled to the standard payment of entitlements, severance, notice and repatriation if applicable.

5.13 Death in Service

- (1) In the event of the death of a staff member or an intern during the course of his or her service, the government must pay to the legal administrator of probate of the deceased estate where applicable, the following entitlements:
 - (a) standard payment of entitlements that a staff member has accrued up to the date of his or her death; and
 - (b) a sum equivalent to six (6) months total yearly remuneration (including any allowances the staff member receives) including in the case of citizens of Vanuatu, repatriation costs of the deceased back to his or her home island and place of residence; and
 - (c) a goodwill payment equivalent to 1 year salary for a staff member subject to Commission decision; and
 - (d) Severance payments; and
 - (e) if application repatriation payments.
- (2) In the event of the death of a temporary salaried employee during the course of the period of employment, the determination of entitlements, if any, at the discretion of the Commission.
- (4) All death benefits payments are to be paid from the budget of the respective department or agency where the deceased staff member was employed.

6. Cessation of employment check list

	YES	NO
1. Has the form or type of cessation been determined by the Commission?	☐	☐
2. If necessary, has the Department or the staff member provided the appropriate documentation for this form of cessation?	☐	☐
3. Has the prescribed period of notice for this form of cessation been provided to the staff member by the Commission or in the case of resignation, by the staff member to the Commission?	☐	☐
4. Has the full range of entitlements for this form of cessation been calculated and paid to the staff member?	☐	☐
5. Has the Department of Finance been informed of the last day of service for the staff member so that they can be removed from payroll?	☐	☐
6. Has the staff member returned all Public Service property in his or her possession and checked for damage? (For example, official car; office keys; electronic devices; files; official uniform and official papers; etc.)	☐	☐
7. Has the Housing Officer of the Commission been informed of the last day of service of the staff member so that appropriate action may be taken in relation to any provided housing or housing allowances?	☐	☐
8. Has the Secretary or Chairman of the Commission written to the staff member thanking him or her for their service?	☐	☐
9. In the case of the death of staff member in service, has a letter from the Relevant Director General been sent to the family expressing the condolences of the Commission and offering appropriate assistance in accordance with this policy?	☐	☐
10. Has the OGCIO been informed to cease all Government ICT access	☐	☐
11. Has the Ministry/Department provided evidence of financial capacity to meet this cessation of employment or an agreed payment plan.	☐	☐

CHAPTER 8- MANAGING GOVERNMENT RESIDENTIAL HOUSING

1. Duty to manage government residential housing

- (1) The Commission has a duty and is responsible to manage government residential houses properly to enhance good service delivery throughout the Republic of Vanuatu.
- (2) In carrying out its duties under subsection (1), the OPSC must provide clear directions and procedures on housing issues, to manage and allocate fairly government residential houses and improve the government expenditure. This entails close working collaboration amongst public service line agencies.
- (3) The housing directions and procedures must reinforce the following objectives:
 - (a) develop housing policy on construction of residential premises for Public Servants;
 - (b) provide a secure and fully furnished house for public servants with basic requirements;
 - (c) allocate government residential houses to foster good work performance, commitment and incentives for staff members;
 - (d) foster good asset management principles;
 - (e) increase the return on investment from the Government residential housing Portfolio through-rent deduction of 12% of a staff members fortnightly salary or unless provided otherwise as per terms and condition of any contract of employment;
 - (f) improve maintenance of government residential housing by working in collaboration with MFEM to establish a specific maintenance budget;
 - (g) establish a prioritized maintenance program to improve the housing asset base;
 - (h) ensure staff members are housed by providing the option for an equitable housing allowance which would be budget neutral for Government;
 - (i) establish appropriate guidelines for the rental of surplus Government houses;
 - (j) carry out annual inspections and enforce the provisions of Housing Policy;
 - (k) establish Housing Insurance Policy in line with the *Public Service Act* or any other relevant Act;

- (l) ensure all current and new government residential housing are given a unique numbering or code.
- (4) In this Chapter ‘government residential housing or houses’ refers to all government houses administered and governed by the Public Service Commission.

2. Establishment of Housing Management Committee (HMC)

2.1 Establishment of HMC

The HMC is to be established by the Commission.

2.2 Composition of the Committee

- (1) The HMC consists of the following members:
 - (a) the Secretary who is to be the Chairperson of the HMC and during his or her absence, the Deputy Secretary of the OPSC is to preside at a meeting;
 - (b) a representative of the Ministry of Finance and Economic Management (MFEM);
 - (c) a representative of the Public Works Department;
 - (d) a representative of the Department of Lands;
 - (e) a representative of the Office of the Prime Minister;
 - (f) a representative of the Ministry of Internal Affairs.
- (2) The HMC meeting procedures is to be determined by the Commission.
- (3) All members of the HMC are to be appointed by the Commission.

2.3 Functions of the Housing Management Committee

- (1) In addition to other duties delegated by the Commission, the functions of the HMC are to:
 - (a) conduct meetings on a regular basis to discuss housing matters;
 - (b) coordinate housing matters between Public Service line Agencies;
 - (c) coordinate the development of housing policy;
 - (d) implement the Housing Policy and monitor its implementation;
 - (e) allocate government residential houses, and carry out a periodic review of

housing allowances and rent deductions;

- (f) inspect and take furniture inventory stock of Government residential Houses on a quarterly basis;
- (g) renovate or repair existing government residential houses;
- (h) ensure houses are distributed fairly upon demand of public service line agencies;
- (i) ensure government residential housing are properly recorded, mapped and documented;
- (j) ensure effective implementation of the Housing Insurance Policy;
- (k) to carry out research and make recommendations to address the government residential housing issues.

2.4 Secretarial duties to the HMC

- (1) The Manager of the Housing Unit within the OPSC is to provide the secretarial duties to the HMC.
- (2) The OPSC is responsible to ensure that the HMC is fully resourced with the capacity to perform its functions effectively and efficiently.

2.5 Formulation of Housing Policy

- (1) The OPSC through the Housing Unit must take full responsibility for the formulation and administration of the housing policy.
- (2) The Housing Unit may review the housing policy whenever it deems fit and must submit to the Commission for approval.

2.6 Allocation of government residential houses

- (1) The HMC may make recommendation to the Commission for the allocation of Government residential houses pursuant to the Government Housing Policy.
- (2) Complaints relating to the housing allocation or housing rent payment must be directed to the HMC in writing.

2.7 Review of rent deductions

The HMC is to make recommendation to the Commission for review, on an annual basis rent (housing deductions) payable by a staff member who is occupying a Government

residential house taking into account the market rent fluctuations and advise of the Government Remuneration Tribunal.

3. Entitlement and Eligibility for Government Residential Housing

3.1 Criteria for entitlement and eligibility

- (1) The criteria for entitlement and eligibility for a government residential housing is to be determined by the Housing Policy.
- (2) The Commission through the HMC must work in collaboration with Public Service line agencies for allocation of government residential house to staff members or entitled Public Servant under the *Official Salary Act*.

3.2 Staff Members entitled to government residential housing

- (1) The following staff members are entitled to government residential housing:
 - (a) a Directors General;
 - (b) a Registered Medical practitioner, upon approval of the Director General of the Ministry of Health;
 - (c) a Provincial Secretary General;
 - (d) a Town Clerk;
 - (e) the Secretary of the Public Service Commission;
 - (f) any other staff member as may be determined by the Commission.
- (2) In addition to subsection (1), a staff member who is required to reside outside of his or her normal place of residence and work outside of his or her normal place of work and who has been certified by his or her relevant Director General as required to live at or near his or her workplace is deemed to be entitled to a government residential house.
- (3) Overseas-recruited staff member is entitled to a government housing allowance, to cover the cost of his or her accommodation pursuant to the terms and conditions of his or her Contract of Employment (entered into after the approval of this policy). The Ministry or Department engaging the service of the overseas-recruited staff member is responsible to meet his or her housing allowance.
- (4) A staff member who is employed on a contract basis and is entitled to a government residential house and if no such house is available, a housing allowance must be paid to him or her pursuant to the terms and conditions of his or her employment contract.

- (5) A staff member, who is entitled to a government residential housing and who is residing in a private rented house where the market value exceeds the standard rate of the housing allowance prescribed under his or her contract of employment, must pay the difference of the rent payments.
- (6) Any such agreement entered into under subsection (5) is to be considered as a private tenancy agreement between the staff member and the Land Lord. As such, the staff member will be responsible for the payment of any associated bond and the reclaiming of such a bond at the termination of the lease.
- (7) If a staff member occupies a government house, his or her immediate family or relatives must vacate the premises upon the staff members death, after 3 months' notice is served to them.
- (8) The relatives of the staff member who fails to vacate the government house after the expiry of the notice period under subsection (7), may upon endorsement of the Commission be evicted through order of the Court.
- (9) The Commission must work in collaboration with the Attorney General's Office to initiate court eviction order process for any other related housing issues.
- (10) An entitled Staff member must be given priority in terms of the allocation of government houses.

3.3 Eligible employees

- (1) An employee who is not listed in subsection 3.2(1) and (2) are only eligible for a government residential house if there is a surplus for that purpose.
- (2) In the event where an eligible employee's employment is ceased, he or she must vacate the government residential house upon receipt of 3 months' notice.
- (3) To avoid doubt, the relatives of the eligible employee who is occupying the government house must vacate the house upon receipt of 3 months' notice upon the death of the employee.
- (4) Failure to comply with the 3 months' notice to vacate under subsection (3) may result in a court eviction order upon endorsement of the Commission.
- (5) The Commission must work in collaboration with the Attorney General's Office to initiate eviction order process referred to under subsection (4) or for any other related housing issues.
- (6) An eligible employee who is currently occupying a government house must be served with 3 months' notice to vacate a government house upon the commencement of this Manual.

- (7) The following staff *members* who are permanently employed with PSC are eligible for Government Housing;
- (a) a Director;
 - (b) an Executive officer;
 - (c) a Manager;
 - (d) a Principal;
 - (e) a Senior officer;
 - (f) a Support Staff;
 - (g) a Contracted Staff.

3.4 Staff Members not entitled or eligible for government residential housing

- (1) A staff member must not occupy a government residential house if he or she is not entitled or eligible for government residential housing
- (2) To avoid doubt, a staff member who is not entitled or eligible for a government house include;
 - (a) temporary salaried employees;
 - (b) daily rated workers;
 - (c) interns and cadets;
 - (d) a person engaged on a contract basis (unless otherwise specified in his or her terms of contract of employment);
 - (e) a member of Parliament who does not hold a ministerial portfolio;
 - (f) provincial and Municipal Councillors;
 - (g) a political appointee.

4. Housing Allowance

4.1 Definition of housing allowance

A housing allowance is a form of payment or an allowance that a staff member receives whether occupying, his or her own house or renting a private house.

4.2 Staff members entitled to receive housing allowance

- (1) A staff member including a person who is on a probationary period and who is renting a private house must complete and submit an application form for housing allowance (**PSC FORM 8-1**) to his or her Director General, Director or equivalent position.
- (2) A staff member including a person who is on a probationary period and who is residing in his or her own house must complete and submit an application form for housing allowance (**PSC FORM 8-2**) to his or her Director General or Director or equivalent position.
- (3) If both spouses are staff members of the public service and are both eligible to receive a housing allowance, both of them are to be paid the allowance.
- (4) If both spouses are staff members of the public service and are both eligible and are residing in a government house, only one of them is to receive housing allowance.
- (5) The staff member who is entitled or allocated a government house is liable to 12% deduction of his or her fourthly salary and he or she must not receive a housing allowance.

4.3 Staff Members not entitled to receive housing allowances

To avoid doubt, a staff member who is not entitled to receive housing allowance includes:

- (a) a daily rated worker; and
- (b) an intern or cadet; and
- (c) a person engaged on a contract basis (unless otherwise specified in the terms of his or her contract of employment);
- (d) a temporary salaried employee.

4.4 Rate of Housing Allowances

- (1) The rate of housing allowance payable to an eligible staff member under clause (4.2) is VT30,000 per month subject to periodic review.
- (2) The HMC is responsible to review and make recommendations on the rate of allowances under subsection (1) to the Commission for its approval.
- (3) In reviewing and making recommendations on the rate of housing allowances under subsection (2), the HMC must take into consideration, the cost of living, the current market value of rental houses and the salary level of staff members.
- (4) The Commission may determine the rate of a housing allowance of a staff member who is entitled or eligible to a housing allowance and the staff member is undertaking studies overseas for a period of more than twelve (12) months.

- (6) If the application under section 4.2 is received within three (3) months from the date of appointment to the Public Service, payment of the allowance is to be backdated to the appointment date of a Staff member. However, if the application is received later than three (3) months, payment of housing allowance shall be effective from the first day of the month following submission of application.

5. Tenancy Agreement

5.1 Parties to a Tenancy Agreement

A Tenancy Agreement is to be made between a staff member who is entitled or eligible to use and occupy a government house and the Public Service Commission who is the employer of the staff member.

5.2 Contents of the Tenancy Agreement

A Tenancy Agreement must contain the following substantial provisions:

- (a) parties to the Agreement;
- (b) maintenance and repair;
- (c) inspection;
- (d) market value;
- (e) variation of Agreement;
- (f) eviction;
- (g) Period of Agreement;
- (h) Termination of Agreement;
- (i) Damage and Loss;
- (j) Rental Deduction;
- (k) Extension work;
- (l) Type and number of domestic animals allowed.

5.3 Signing of Tenancy Agreement

- (1) A Staff member who is entitled or eligible to use or occupy a government residential house must sign a Tenancy Agreement in the prescribed form with the Secretary of the Public Service Commission (**PSC FORM 8-3**).

- (2) If a staff member refuses or fails to sign a Tenancy Agreement, he or she must vacate the government residential house in the event that the staff member is currently residing in the government residential house.
- (3) The Tenancy Agreement is for a term of 4 years and may be renewed upon the outcome of an inspection of the government residential house by the HMC.

6. Termination of Housing Allowance

The housing allowances of a staff member must be ceased in the following circumstances:

- (a) cessation of employment; or
- (b) death in service; or
- (c) conviction by a court to a term of imprisonment.

7. Government Residential Rent

- (a) A rent is to be paid by an employee or tenant who is occupying a Government house.
- (b) A rent payable under subsection (1) is to be made by way of an employee's salary deduction by the Department of Finance.
- (c) The HMC is to review, on an annual basis, rent payable by an employee occupying a Government houses, taking account of market rental fluctuations and may make recommendations to the Commission.
- (d) A tenant or employee residing in a Government houses is personally responsible to meet the cost or charges of all bills including water, electricity and telecommunication. A tenant being an employee who fails to comply with this paragraph commits a disciplinary offence.
- (e) In the event that water and electricity are not separately metered, the responsible Ministry may apply an estimated flat rate charge, which is to be paid by the tenant or employee. However, in the case of a dispute, the HMC will determine the payment rates.
- (f) A tenant or employee may jointly occupy a government house with another employee on the prior approval of the HMC. In this case, the rent payable:
 - (i) is equivalent to that payable by a sole tenant and is not divisible proportionally between the number of employees occupying the house. For example, if a two (2) bed room house is worth 60,000vt per month, each staff member jointly occupying the same government house is to pay the same amount due at the end of the month; or

- (ii) is to be divided among the number of employees occupying the house regardless of the differing levels of salary. For example, if the rental rate is 60,000vt per month (or other rate which may be determined) and two unrelated staff members jointly occupy a government house, then each staff member is to pay a rent of 30,000vt per month.
- (g) A staff member may retain a house during a period of absence and shall continue to pay the normal rent. If the absence is for a period in excess of two (2) months, a prior approval is required from the respective HMC. In the event that a prior approval is not obtained, the HMC may re-allocate the house.
- (h) Where a government house is in an extremely substandard condition and is not planned to be restored within one month, a tenant or employee occupying the house may apply to the relevant Ministry to make a submission to the HMC for a rent reduction.
- (i) The HMC is to review an application under paragraph (h) on a 'case by case' basis and may in writing approve the rent reduction and inform the departments of the approval. The lack of or quality of furniture will not be considered a reason or justification for a rent reduction.

7.1 Surplus residential housing for public rent

- (2) The primary purpose for Government housing is to provide an essential resource to public service employees, aimed at ensuring that employees have access to affordable and adequate accommodation and, the priority for allocation of government residential houses must be given to public servants.
- (3) Where there are no eligible public servants interested in a vacant residential house, the members of the general public may be offered an opportunity to occupy the vacant house either for residential purposes or as an Office space for rent.

7.2 Residential Rent of surplus housing

- (1) Where a surplus government house is available for rental, a Residential Tenancy Agreement must be entered into with the following rental rates for a fully furnished and fenced home:
 - (a) One (1) Bedroom residential house = 40,000vt per month;
 - (b) Two Bedroom residential house = 60,000vt per month
 - (c) Three (3) bedroom Residential house = 120,000vt per month
 - (d) Four (4) bedroom Residential house = 200,000vt per month
- (4) Rental of the Government house is available for a maximum period of two (2) years. Tenants must leave the house in the condition similar to which it was first occupied-

- (5) A bond of equivalent to the rental rate, is required along with one month payment in advance before the tenant may take possession of the house. Upon vacation, the house must be left in the condition it was first occupied any damage is deductible from the bond held. A failure to pay rent in advance will result in an immediate termination of the Residential Tenancy Agreement.

7.3 Surplus housing for conversion to office space for public rent

- (1) Where a surplus house is available for conversion to office space for rental purposes (either to a government department or private office space), a Commercial Residential Agreement must be entered into by the parties prior to the conversion.
- (2) The office space must be rented at the market rates and the price of the conversion must be met by the tenants.
- (3) The term of the Commercial Residential Agreement must not be less than 3 years.

8. Disciplinary Action

A staff member who makes a false claim to obtain or who attempts to obtain a housing allowance to which he or she is not entitled or who contravenes any provision of this Chapter commits a disciplinary offence and is subject to a disciplinary procedure under Chapter 6 of this manual.

FORMS FOR CHAPTER 8: HOUSING

RENTED HOUSING ALLOWANCE APPLICATION FORM

SECTION 1: TO BE COMPLETED BY APPLICANT

DATE: _____

NAME OF OFFICER: _____

EMPLOYING MINISTRY/DEPT: _____

PAYROLL NO: _____ TELEPHON (W): _____

EMPLOYMENT STATUS: Probation / Permanent: _____

MARITAL STATUS: MARRIED YES/NO: _____

(IF YES) IS SPOUSE A GOVERNMENT EMPLOYEE: _____

NAME OF SPOUSE: _____

MINISTRY/DEPT/AGENCY SPOUSE IS ATTACHED TO: _____

DOES SPOUSE RECEIVE HOUSING ALLOWANCE: YES/NO: _____

DATE YOU ACTUALLY OCCUPIED THE PROPERTY: _____

PLEASE ATTACH RENTAL RECEIPTS

SECTION 2: SECTION TO BE COMPLETED BY LANDLORD

A) NAME: _____

B) LOCATION OF PROPERTY: _____

C) ARE YOU THE TRUE OWNER/AGENT OF THE PROPERTY DESCRIBED ABOVE? PLEASE INDICATE BELOW AND PROVIDE EVIDENCE

SECTION 3: CERTIFICATE OF OWNERSHIP (COMPLETE BY LANDLORD)

I, _____, CERTIFY THAT I AM THE TRUE

LANDLORD/LANDLADY/AGENT OF THE PROPERTY DESCRIBED AND
THAT

I AM RENTING IT TO:

MR/MRS/MS: _____

FOR VT _____ PER MONTH, FROM: / /

SIGNATURE: _____ DATE: _____

POSTAL ADDRESS: _____

SIGNATURE OF WITNESS: _____ DATE: _____

SECTION 4: TO BE COMPLETED BY THE APPLICANT

I, CERTIFY THAT THE ABOVE DETAILS ARE TRUE AND CORRECT AND SHOULD ANY OF THESE DETAILS CHANGE, I WILL NOTIFY THE SENIOR HOUSING OFFICER, PSC IN WRITING IMMEDIATELY.

SIGNATURE OF OFFICER: _____

SECTION 5: DIRECTOR OF MINISTRY/DEPARTMENT'S SIGNATURE AND RECOMMENDATION

SIGNATURE: _____ DATE: _____

SECTION 6: FOR DIRECTOR GENERAL ONLY

APPROVED/NOT APPROVED

SIGNATURE: _____

NAME: _____ DATE: / /

OWNED HOUSING ALLOWANCE APPLICATION FORM

SECTION 1: (TO BE COMPLETED BY APPLICANT)

- A) DATE: _____
- B) NAME OF OFFICER: _____
- C) EMPLOYING MINISTRY/DEPT: _____
- D) PAYROLL NO: _____ TELEPHONE (W): _____
- E) EMPLOYMENT STATUS: (PROVIDE EVIDENCE): _____
- F) MARITAL STATUS: MARRIED YES/NO: _____
- G) (IF YES) IS SPOUSE A GOVERNMENT EMPLOYEE: _____
- H) NAME OF SPOUSE: _____
- I) MINISTRY/DEPT SPOUSE ATTACHED TO: _____
- J) DOES SPOUSE RECEIVE HOUSING ALLOWANCE: YES/NO: _____
- K) DATE YOU ACTUALLY OCCUPIED YOUR OWN HOUSE: _____

SECTION 2: WITNESSES REQUIRED TO CERTIFY OWNERSHIP OF THE PROPERTY, WITNESSES MUST PROVIDE EVIDENCE

- A) NAME: _____
- ADDRESS: _____ PHONE: _____
- OCCUPATION: _____
- B) NAME: _____
- ADDRESS: _____
- PHONE: _____
- OCCUPATION: _____

SECTION 3: PLEASE COMPLETE THE FOLLOWING

- LOCATION OF THE PROPERTY: _____
- ARE YOU THE TRUE OWNER OF THIS PROPERTY: YES/NO: _____
- (IF YES) PROVIDE EVIDENCE: _____

SECTION 4: CERTIFICATE OF OWNERSHIP

I, _____ HEREBY CERTIFY THAT THE HOUSE I AM CURRENTLY RESIDING IN BELONGS TO ME. I ALSO CERTIFY THAT THE ABOVE DETAILS ARE TRUE AND CORRECT AND SHOULD ANY OF THESE DETAILS CHANGE, I WILL NOTIFY THE SENIOR HOUSING OFFICER, PSC IN WRITING IMMEDIATELY.

SIGNATURE OF OFFICER: _____

SECTION 5: FOR DIRECTOR OF MINISTRY/DEPARTMENT'S SIGNATURE AND RECOMMENDATION

SIGNATURE: _____ DATE: _____

SECTION 6: FOR DIRECTOR GENERAL ONLY

APPROVED/NOT APPROVED

SIGNATURE: _____

NAME: _____ DATE: / /

GENERAL TENANCY AGREEMENT

Lessor

GOVERNMENT OF THE REPUBLIC OF VANUATU

Name of Tenant

Address of Government House

Department/Ministry

Tenants Contact: Phone

Email:

Term of Agreement
Starting on

End of Contract:

Rent per month

Signed on behalf of the Lessor by

Signed by the Tenant

Name (PRINT)

Name (PRINT)

Date

Date

Terms and Conditions for Tenancy of a Government Residential House

This tenancy is subject to the terms and conditions of eligibility for Government residential housing incorporated in the Housing Policy.

- a) The tenant must use the premises for residential purposes and to accommodate members of his or her nuclear family only.
- b) The tenant must be given five (5) working days' notice for quarterly periodic inspections.
- c) If any variation or depreciation in value is identified on the government residential house during the periodic inspection, this would be appreciated as a variation to the current market value and would be accounted for but it does not change any other terms and conditions within the Tenancy Agreement.
- d) If the tenant ceases to be entitled or eligible for a Government residential house, the tenant must vacate the house within the 3 months period specified in the Housing Policy.
- e) During the tenancy, the tenant must:
 - i. Abide by Municipal laws and by-laws;
 - ii. Not interfere with the reasonable peace, comfort or privacy of a neighbour of the tenant;
 - iii. Not do anything that might block any plumbing or drains on the premises;
 - iv. Regularly mow the lawns and keep grounds clean;
 - v. Keep the premises free from pests and vermin;
 - vi. Not intentionally or negligently damage the premises and inclusions;
 - vii. Be allowed to keep only two (2) cats and one (1) dog per house so that due care is taken of the animals and they are not a nuisance to neighbours or the public;
 - viii. Not erect any buildings or extensions on the premises without the written consent of the respective Ministry or Department and authorization from the Commission.
 - ix. Understand that any request for repairs or maintenance shall be in writing and submitted to the Director General or Director or equivalent position concern to be forwarded to the Commission for approval.
 - x. Carry out any repair and/or maintenance works only if approved by the Commission. Any staff member who wishes to meet the cost of such works should obtain prior written approval from the Director General or Director or equivalent position or Secretary for possible future refund upon presentation of receipts of payments to the Commission.
 - xi. Understand that upon approval by the Commission, any maintenance and/or repairs done on the said government property shall become the state property once the Tenancy Agreement ends.
 - xii. Ensure that upon termination, expiry of Contract of employment or retirement, he or she is expected to receive a three (3) months' notice from Commission to vacate the said government property.
 - xiii. Understand that Commission as a good employer allow EXIT staff member from service either by way of termination or any form of retirement a maximum period of three (3) months to vacate the said property.
 - xiv. During the given period of 3 months, any claim against the government will be considered as a separate issue and does not extend the right of the tenant to remain in the said government property.

- xv. Vacate the property within the given time frame. Failure to vacate within the three (3) months' timeframes will result in Commission imposing the full market value against the tenant who is obliged to pay the full rental value of the said property.
- xvi. Ensure that noncompliance with clause E (o) above will result to an eviction order to be issue from relevant authorities.
- xvii. Note that the Commission is yet to have an insurance policy on government residential housing. However, all government tenants should be responsible in taking good care of the house and other government properties within the premises. The same should apply during times of unforeseen accidents/disasters and natural disasters. Any damages caused by natural disaster to the building will be assessed and shall be the responsibility of the government.
- xviii. This Agreement overrides any other previous arrangement or Tenancy Agreement entered into by the parties either verbally or in writing.

FURNITURE INVENTORY FORM

Address: _____

House No.: _____ Move In/Out Inspection _____ Date: _____

Location Items for checking	Lounge/Dining Room	Kitchen	Main Bedroom	Bedroom 2	Bedroom 3	Bedroom 4	Bathroom	Comments on Condition
Settee								
Armchair								
Coffee Table								
Carpet Squares								
Bookcase								
Ceiling Fan								
Dining Table								
Dining Chairs								
Buffet								
Stove								
Refrigerator								
Water Heater								
Double Mattress								
Single Mattress								
Chest of Drawers								
Dressing Table								
Mirror								
Bedside Table								
Chair								
Wardrobe								
Medicine Cabinet								
Linen Cupboard								

I hereby certify that this inventory of furniture items and condition of same is a true record and I acknowledge that I am liable for any damages to such furniture and will replace any or all items which are not accounted for at any future inspection.

Name of Tenant: _____

Signature of Tenant: _____

Inspector (Print): _____

Inspector's Signature: _____

Date: _____

GOVERNMENT RENTED HOUSING APPLICATION FORM**SECTION 1: TO BE COMPLETED BY APPLICANT**

DATE: _____

NAME OF OFFICER: _____

EMPLOYING MINISTRY/DEPT: _____

PAYROLL NO: _____ WORK TELEPHONE: _____

EMPLOYMENT STATUS: _____

MARITAL STATUS: MARRIED YES/NO: _____

(IF YES) IS SPOUSE A PUBIC SERVANT: _____

NAME OF SPOUSE: _____

MINISTRY/DEPT SPOUSE IS ATTACHED TO: _____

DATE YOU WILL ACTUALLY OCCUPIED THE PROPERTY: _____

SECTION 2: SECTION TO BE COMPLETED BY HOUSING OFFICER

1. NAME: _____

2. LOCATION OF PROPERTY: _____

SECTION 3: CERTIFICATE OF OWNERSHIP (COMPLETE BY HOUSING OAFFICER)

I, CERTIFY THAT I AM THE TRUE /AGENT OF THE PROPERTY DESCRIBED AND THAT
I AM RENTING IT TO:

MR/MRS/MS: _____

FOR VT _____ PER MONTH, FROM: / /

SIGNATURE: _____ DATE: _____

POSTAL ADDRESS: _____

SIGNATURE OF WITNESS: _____ DATE: _____

SECTION 4: TO BE COMPLETED BY THE APPLICANT

I, CERTIFY THAT THE ABOVE DETAILS ARE TRUE AND CORRECT AND SHOULD ANY OF THESE DETAILS CHANGE, I WILL NOTIFY THE SENIOR HOUSING OFFICER, PSC IN WRITING IMMEDIATELY.

SIGNATURE OF OFFICER: _____

SECTION 5: DIRECTOR OF MINISTRY/DEPARTMENT'S SIGNATURE AND RECOMMENDATION

SIGNATURE: _____ DATE: _____

SECTION 6: FOR DIRECTOR GENERAL ONLY

APPROVED/NOT APPROVED

SIGNATURE: _____

NAME: _____ DATE: / /

CHAPTER 9– MANAGING THE PROCUREMENT, USAGE AND DISPOSAL OF PUBLIC SERVICE ADMINISTRATIVE FLEET

1. Introduction

- (a) The procurement, use, maintenance and disposal of the Public Service Administrative Fleet (PSAF) is to be made in accordance with the Public Service Administrative Fleet policy PFEM Act and this manual.
- (b) A PSAF is to be used for government programs and services only. A PSAF must be operated in a safe manner and in compliance with the applicable laws including the Government Fleet Policy.
- (c) This manual establishes the requirements for the use of PSAF for official purposes. A staff member is not permitted to use PSAF for personal purposes, comfort or benefit unless specify in the terms and conditions of his or her employment contract.
- (d) To avoid doubt, a government vehicle allocated under the *Official Salaries Act [CAP 168]* or by any statutory body is not part of the PSAF and is not subject to the requirements of this manual.

1.1 Composition of the National Government Fleet

The National Government Fleet includes but is not limited to the following Government vehicles;

- (a) Government Vehicle (G);
- (b) Republic of Vanuatu (RV) vehicles;
- (c) Office of the Attorney General (OAG) vehicles;
- (d) Office of the Public Prosecutor (OPP) vehicles;
- (e) Project Vehicles (4VE, 3VE, 2VE) as specified in the terms and conditions of the Project Agreement;
- (f) Public Solicitors Office (PSO) vehicles;
- (g) Government statutory Bodies vehicles.

1.2 Public Service Administrative Fleet (PSAF)

In this manual, a Public Service Administrative Fleet includes a common vehicle, outboard motor boat, heavy duty vehicle, motor bike and quad bikes used for public service administrative purposes only.

1.3 PSAF Usage Guideline

The-PSAF usage guideline is to provide for the following:

- (a) the responsibilities of a Director General or equivalent position, Director or equivalent position and a staff member;
- (b) ensure proper registration, management, repair and maintenance of the PSAF;
- (c) set out terms and conditions of the PSAF usage to be transparent, fair and just;
- (d) ensures the Public Service line agencies take ownership of PSAF and maintain it for official duties;
- (e) resolve disputes, take proper internal disciplinary measures in an effective and efficient manner;
- (f) increase awareness on PSAF usage and disposals with the Public Service line agencies;
- (g) ensure proper planning and budgeting for purchase and maintenance of PSAF.

1.4 Fleet Management Unit (FMU)

The FMU within the OPSC is responsible for the following:

- (a) ensure that a staff member is safe and working in a conducive environment while using a PSAF;
- (b) ensure that a PSAF is safe to drive before assigning it to the designated staff member;
- (c) ensure that a PSAF is periodically maintained and remain in good condition;
- (d) ensure that all PSAF must have GPS tracking system and comply with annual fleet inspection that is to be conducted by the FMU in collaboration with the Asset Management and Valuation Unit and the Department of Public Works;
- (e) liaise with all Public Service line agencies to ensure that a non-operational PSAF is properly reported to the FMU;
- (f) conduct assessment on a PSAF for disposal;
- (g) keep proper records of both GPS that are operational and non-operational;
- (h) ensure all Public Service Line Agencies have maintenance funds for the vehicles under their respective institutions and regular service to maintain its market value and usability;
- (i) keep proper updated records of all PSAF.

2. Fleet Management Committee (FMC)

2.1 Establishment and Roles of the FMC

- (1) The Public Service Commission is to appoint the Fleet Management Committee (FMC) which consists of the following members:
 - (a) the Secretary of the Public Service Commission or in his or her absence, the Deputy Secretary;
 - (b) a representative of the Asset Management and Valuation Unit;
 - (c) a representative of the Public Works Department;
 - (d) representative of the Department of Customs and Inland Revenue.
- (2) The Secretary is to be the Chairperson of the FMC and during his or her absence, the Deputy Secretary is to preside at a meeting.
- (3) The FMC may make a decision by way of a Flying Minute for purchase of a new PSAF in urgent matters upon requests of the Chairperson of the Fleet Committee or Chairman of the Commission.
- (4) The Manager of the Fleet Management Unit must provide secretarial duties to the FMC.
- (5) The FMC is responsible to approve all submissions for the procurement of all new PSAF on behalf of the Public Service Commission.
- (6) The FMC must conduct at least two (2) meetings each month.
- (7) The Chairperson of the FMC reserves the right to switch off a GPS in a PSAF at 5.00pm except for PSAF that has been granted approval to be used after official working hours and those that provide essential services.
- (8) Ensure that the Director General, Director or equivalent position are consulted prior to use of a department or Ministry's PSAF during a particular event.

2.2 PSAF Focal Officer

- (1) The PSAF focal officer of a Public Service Line Agency designated by the Public Service Commission in consultation with the relevant Director General, Director or equivalent position is responsible to assist in monitoring a PSAF and any other related matter under his or her respective Ministry or Department.
- (2) The focal officer must assist the Director General, Director or equivalent position in implementing and enforcing the Public Service Administrative Fleet policy at the Ministry and Department level.

2.3 Registration and Trade in

- (1) The Department of Customs and Inland Revenue must register all PSAF.
- (2) A Fleet officer within the FMU and a representative of the Department of Public Works must be involved in the Trade in process of a PSAF.
- (3) The persons referred to under subsection (2) must ensure that a PSAF complies with the Trade in process.
- (4) The FMC may approve a request to purchase a new PSAF and to determine the right sizing and types of a PSAF.

3. Procedures to be followed in the procurement of the PSAF

3.1 PSAF Procurement

- (1) A PSAF procurement application must be made using the [**PSC Form 9-1**] as authorized by the Director General, Director or equivalent position of the Department and submitted to the FMC for deliberation and approval.
- (2) A staff member who is involved in a procurement without the approval of the FMC commits a disciplinary offence.
- (3) The PSAF procurement form consists of the following:
 - (a) PSAF details for purchase; and
 - (b) fuel types; and
 - (c) manufacture and supplier options, at least three (3) quotations; and
 - (d) approval note from the relevant Director General, Director, or equivalent position; and
 - (e) recommendation from the Department or Ministry; and
 - (f) funding confirmation in writing; and
 - (g) PSAF replacement (all PSAF over five (5) years old must be replaced); and
 - (h) accessibility for people with special needs (if applicable); and
 - (i) PSAF right sizing.
- (4) The FMC must obtain approval from the Department of Finance on the confirmation of the availability of funds prior to endorsement of the purchase of the PSAF.
- (5) A project donor and the relevant public service line agency must obtain the approval of the FMC for the purchase of a project PSAF prior to the purchase of such PSAF.

3.2 Government Pool of PSAF

- (1) A common solution for public service line agencies that are interested in increasing fleet utilization and reducing vehicle count is to pool vehicles together, allowing government users to share assets instead of assigning them to specific users or public service line agencies.
- (2) The FMU must establish and manage a government “PSAF Pool” to ensure the effective and efficient usage of the PSAF by the public service line agencies.
- (3) The purpose of the PSAF pool is to provide access for public servants to use PSAF upon approval and on occasional and exceptional basis by the government. The PSAF pool consist of at least 20-30 vehicles
- (4) The Pool of PSAF is to be located at the Public Works Department (PWD) or any other convenient location as approved by the FMC. This includes the provincial government which is to be administered by the provincial local authority or the Secretary General.
- (5) A PSAF pool vehicle may be allocated for a designated time (including a date and time of return) on submission of an authorized and reasonable request to the FMC.
- (6) The FMC is to manage a fleet of VIP PSAF in collaboration with the Department of Foreign Affairs for purposes of protocol.
- (7) The PSAF pool must be standardized with a colour and aimed at a range of PSAF types and specifications to gather for the different needs within the departments and managed by the FMU.
- (8) For purposes of usage for political reasons, approval for use of PSAF must be obtained from the Prime Minister and details of the approval must be submitted to the FMC for record and monitoring purposes.
- (9) A public servant who has obtained approved to use a PSAF from the PSAF pool is liable to meet the cost of damages he or she has caused to the PSAF.

3.3 PSAF disposals

- (1) The relevant public service line agency must not dispose a PSAF unless it has obtained the prior approval of the FMC to do so.
- (2) The valuation of PSAF for purposes of disposal must be carried out in collaboration with the Manager of the FMU, the Valuation Unit within the Public Works Department and the Asset Management Unit within the Department of Finance and Treasury.
- (3) The procedure for PSAF disposal is as required by the *Public Finance and Economic Management Act [CAP 244]* and the *Government Contracts and Tenders Act [CAP 245]*.
- (4) A public service line agency must not keep in its possession a PSAF that is more than 5 years since it was first purchased.

3.4 Disposal criteria of a PSAF

The criteria for disposal of a PSAF are as follows:

- (a) a PSAF is used for more than 5 years; and
- (b) a PSAF odometer reaches 80,000 km; and
- (c) the cost of maintenance of a government administrative vehicle is more than VT300,000; and
- (d) a PSAF is not operationalized; and
- (e) a PSAF is seriously damaged with a very high cost of repair; and
- (f) a PSAF is written off.

3.5 PSAF Maintenance

- (1) A PSAF must be closely monitored by a Director General, Director or equivalent position within the Public Service line agencies.
- (2) A person referred to under subsection (1) must ensure that each PSAF is kept in road-worthy condition.
- (3) In addition to subsection (2), the Director General, Director or equivalent position must:
 - (a) identify the service date(s) in line with the PSAF maintenance manual and ensure the service of a PSAF is carried out within the specified date; and
 - (b) monitor the PSAF mileage.
- (4) A PSAF must be cleaned internally and externally at all times and be monitored by the FMU on regular basis.

3.6 PSAF Alteration

- (1) A staff member must not carry out any alteration or have a stereo equipment fitted into or install fog lamps, bull bars or tinted windows or any other accessories into a PSAF without prior approval of the FMC.
- (2) In addition to subsection (1), a staff member must not make any of the following:
 - (a) remove any PSAF part without the written approval of the FMC; or
 - (b) remove a GPS from a PSAF;
 - (c) fly any country flag on any PSAF during any sport events domestically or internationally;
 - (d) place any stickers, pictures, or extra fancy accessories without prior written approval of the FMC;

- (e) A staff member who contravenes paragraphs (a) to (d) commits a disciplinary offence.

3.7 Fuel Purchasing Arrangements

- (1) A single fuel provider is to be sourced every two (2) years through a tender process to facilitate bulk procurement and implementation of a fuel management system. In order to ensure an effective fuel management system, the following measures must be observed:
 - (a) fuel and oil purchased by a staff member for PSAF may only be claimed for reimbursement by using the “Vehicle Expense Reclaim Form” supported by genuine receipts.
 - (b) a staff members must not refill his or her private vehicle using Government fuel cards or using public funds unless authorized in writing by the Director or equivalent position Generals or Director or equivalent position for a specific official task.
- (2) Subsection (1) does not apply to fuel purchasing arrangements in a province where a single fuel provider is not available.
- (3) A person who fails to comply with paragraph 1(a), (b) and (c) commits a disciplinary offence.

3.8 One Card One PSAF

- (1) A staff member must use one (1) card for each PSAF for purchasing of fuel.
- (2) For purposes of controlling fuel consumption, public service line agencies may rely on a GPS notification system to:
 - (a) identify and to provide the mileage of the PSAF; and
 - (b) geographically locate the PSAF; and
 - (c) provide for the fuel consumption.
- (3) A staff member must not use a PSAF fuel card allocated for that particular PSAF to purchase fuel for another PSAF without prior approval in writing from his or her Director or equivalent position General or Director or equivalent position.
- (4) A staff member who contravenes subsection (3) commits a disciplinary offence,

3.9 Standardization of PSAF

- (1) All PSAF are standardized cars with specifications as approved by the FMC.
- (2) Despite subsection (1), any public service line agency that intends to purchase a PSAF other than a standardized car must submit its request including its justification to the FMC for approval.
- (3) A staff member who contravenes subsection (2) commits a disciplinary offence.

3.10 Prerequisites to drive a PSAF

- (1) A staff member is permitted to drive a PSAF or a project fleet if he or she:
 - (a) has a valid driver's license; and
 - (b) provides a medical certificate every 2 years certifying that he or she is medically fit to drive; and
 - (c) has a good driving record for at least two (2) years. (*He or she must not be at fault for a PSAF or private vehicle accident, or arrested on charges of violating traffic laws (e.g., driving under the influence of alcohol or other prohibited substance)*); and
 - (d) completes a form (**PSC Form 9-1**) and obtains the approval of his or her Director General, Director or equivalent position to drive.
- (2) To avoid doubt, all request to drive a PSAF after working hours must be in the prescribed form referred to under paragraph 1(d). A request made orally via phone calls, text messages or other social media platform must not be considered for approval.
- (3) The dependents of staff members including a person employed under a contract basis must not drive or operate any PSAF unless stated otherwise in his or her contract of employment.
- (4) A staff member who allows his or her dependant to drive a PSAF or who fails to comply with subsection (3) commits a disciplinary offence.
- (5) A Staff member may be required to submit his or her schedules to justify the use of PSAF.
- (6) Despite the requirements of this section, a staff member may be authorized to drive a PSAF by the relevant Director General, Director, or equivalent position in an emergency or unforeseen circumstances.

3.11 Staff members with special needs

- (1) A staff member who has special needs may drive a PSAF upon approval by his or her Director General, Director, or equivalent position.
- (2) A staff member who is on medication which severely affects his or her sense of orientation, vision or reflexes must not be permitted to drive a PSAF.

3.12 Staff member's Obligations when driving PSAF

- (1) A staff member who drives a PSAF must:
 - (a) drive safely and be sober (not under influence of alcohol or kava);
 - (b) comply with all traffic laws and respect fellow drivers;
 - (c) park a PSAF in a secure and allocated parking zone or area;
 - (d) report any damages caused to a PSAF by completing an incident report as soon as practicable;

- (e) not engage in other traffic violations that may result in traffic fines.
- (2) If a staff member's driving license is suspended, revoked, banned or expired, he or she must immediately inform the relevant Human Resource Manager and must refrain from driving a PSAF.
- (3) A staff member referred to under subsection (2) may be re-considered for driving a PSAF upon the uplifting of the suspension, revocation and ban of his or her driving licence by the relevant authority.
- (4) A staff member who fails to comply with subsection (3) commits a disciplinary offence.

3.13 Staff Members additional obligations

- (1) In addition to the obligations under section 3.12, a staff member must not:
 - (a) smoke inside a PSAF;
 - (b) wear a cap while driving a PSAF;
 - (c) lease, sell or lend a PSAF;
 - (d) use a PSAF for activities outside of official duties and programs;
 - (e) violate a traffic law;
 - (f) use a PSAF to learn how to drive;
 - (g) leave a PSAF unsafe and unsecure;
 - (h) make calls, answer calls or text while driving. (If a phone call is necessary, the driver must pull safely to the side of the road or a parking area and then initiate the call);
 - (i) eat or drink alcohol or kava while driving;
 - (j) allow a pet in a PSAF.
- (2) A staff member who contravenes subsection (1) commits a disciplinary offence.

3.14 Accidents

- (1) A staff member who drives a PSAF and causes an accident when carrying out his or her official duties during or after working hours- must immediately inform the relevant Director General, Director or equivalent position, the Human Resource Manager or the Asset Officer.
- (2) A staff member referred to under subsection (1) must complete and submit an incident report to his or her Human Resource Manager or Asset Officer within 5 working days from the date of the accident.
- (3) In the event that a staff member under subsection (1) is seriously injured during

the accident, he or she must complete and submit an *Incident Report (PSC Form 9-5)* within 2 months of the accident to his or her Director General, Director or equivalent position, Human Resource Manager or Asset Officer.

- (4) If the incident report and the police report shows that the staff member is fully liable for the accident referred to under subsection (1), the staff must be held partly responsible for the cost of the damages caused to the PSAF.
- (5) A staff member who drives a PSAF during or after working hours and is sober and involved in an accident caused by a driver of the other vehicle, he or she must immediately inform the Director General, Director or equivalent position, the Human Resource Manager or the Asset Officer.
- (6) If the incident report and the police report show that the staff member is not liable for the accident referred to under subsection (5), the staff must not be held responsible for the cost of the damages caused to the PSAF.
- (7) A staff member who drives a PSAF during or after working hours but is not performing an official duty while involved in an accident that is fully caused by him or her, commits a disciplinary offence
- (8) A staff member must not accept a responsibility or guarantee payment from another party in an accident caused by that other party. A staff member who contravenes this subsection commits a disciplinary.
- (9) A damaged PSAF must be kept in the nearest Government premise that is safe and secure awaiting the Fleet Management assessment and valuation of cost of damage to be carried out within a period of 2 weeks.
- (10) All reports referred to under this section concerning PSAF damages must be reported to OPSC. A Director General, Director or equivalent position, the Human Resource Manager or the Asset Officer who fails to comply with this subsection commits a disciplinary offence.
- (11) A staff member who drives a PSAF during or after working hours and is under the influence of alcohol or any other prohibited substance, causing an accident which results in the PSAF being written off and causing death is personally liable to meet the cost of the replacement of the PSAF and funeral expenses of the deceased.

4. Authorized PSAF Form

- (1) The prescribed PSAF [**PSC FORM 9-1**] must specify:
 - (a) the person to use the vehicle; and
 - (b) the particular vehicle; and
 - (c) the period of use; and
 - (d) the official duties for which the vehicle is to be used; and
 - (e) the address where the vehicle is to be kept; and
 - (f) the date the vehicle will be returned; and
 - (g) the focal officer has certified that the information provided is accurate.

- (2) A staff member who drives a PSAF and not on official duty and is spotted near the close vicinity of kava bars, night clubs, bars or for occasions such as picnics, death, custom, or marriage ceremonies, church activities or other related events outside the official working hours must be reported for disciplinary action.
- (3) Subscetion (2) does not apply to a staff member who has obtained prior approval for the use of the PSAF and those who are entitled under the terms and conditions of their employment contract.

4.1 Use of PSAF by another Public service line Agency

A Public Service line agency that intends to use a PSAF of another Public Service line agency must comply with the following process:

- (a) the applicant and the FMU Manager must complete and sign the PSAF liability form.
- (b) prior to the release of a PSAF to the applicant, an inspection and assessment of the PSAF condition must be made by the applicant and the FMU Manager supported with photo images of the current condition of the PSAF.
- (c) Upon return of the PSAF, an inspection and assessment of the PSAF condition must be made instantly after its return by the applicant and the FMU Manager supported with photo images of current condition of the PSAF.
- (d) If the inspection identifies that a damage has occurred during its usage, the requesting public service line agency must meet all the repair cost.
- (e) A requesting public service line agency that incurs damage to a PSAF of another public service line agency causing it to be written off must meet the cost of a new PSAF for replacement.

4.2 Use of Rented Vehicle

- (1) A Director General, Director or equivalent position may, in exceptional circumstances approve the use of a rented vehicle for official work purposes if a PSAF or public transport is not available.
- (2) In this section, *exceptional circumstances* include, official events or state of emergencies and the available PSAF pool is not sufficient for the requesting Ministry.
- (3) Subsection (1) and (2) does not apply to a privately owned vehicle.
- (4) Despite subsection (3), the Secretary may approve the rental of a public transport or a private vehicle in exceptional circumstances.

4.3 Temporary possession of PSAF for travel purposes

- (1) A Director General, Director, or equivalent position may authorize an employee to park a government vehicle at a private residence or an allocated parking space overnight for travel purposes or other special purposes.

- (2) Subsection (1) only applies if an employee arrives at an unusual early hour or depart at an unusual late hour. A temporary overnight parking is allowed to prevent the employee from any inconvenience or hardship when he or she is about to travel.
- (3) Prior to authorizing a temporary overnight parking, the Director General, Director or equivalent position must consider other payment options when using an employee's personal vehicle or public transport.

5. Entitlement and Eligibility for Public Service Administrative Fleet (PSAF)

(a) Criteria for entitlement and eligibility

- (1) The criteria for entitlement and eligibility for a PSAF is to be determined by the Fleet Policy.
- (2) The Commission through the FMC must work in collaboration with the Public Service line Ministries for allocation of PSAF to Director Generals or entitled Public Servants under the *Official Salaries Act*.
- (3) A Director General's vehicle must be a standardise SUV car and the sticker on both sides of the front doors must indicate the relevant ministry logo.
- (4) The Official Salaries Act (OSA) Vehicle plate number change to G OSA 01 A, B or C.

6. Misuse of a PSAF

- (a) Subject to the terms and conditions of his or her employment contract, a misuse of PSAF by a Director General, Town Clerk or Provincial Secretary General is considered as a disciplinary offense.
- (b) A misuse of a PSAF by a staff member including a director or equivalent position is a disciplinary offense.

**FORMS FOR CHAPTER 9: – MANAGING THE PROCUREMENT, USAGE
AND DISPOSAL OF PUBLIC SERVICE ADMINISTRATIVE VEHICLES**

USE OF GOVERNMENT VEHICLE DURING NON-OFFICIAL HOURS

NOTE: This form only has to be used by staff who would not usually work during non-official hours or use a vehicle during this time

Personal Details:

Name: _____ Position: _____ Department or Ministry: _____

I, _____, request permission to use Government Vehicle No. G_____ for the period from: _____ to: _____ on official duties outside official hours, especially for the following official duties:

Address where vehicle is to kept:

Date the vehicle will be returned: _____ Time: _____

I certify that the above information is true and correct and that I will be held responsible for any damages caused and shall pay by direct deduction from salaries the costs of such damages, unless justified otherwise.

Applicant - Name: _____ Signature: _____ Date: _____

I support the application and recommend approval be given.

Director or equivalent position - Name: _____ Signature: _____

Name of Department: _____ Date: _____

Director or equivalent position-General - Name: _____ Signature: _____

Name of Ministry: _____ Date: _____

APPROVAL BY THE OFFICE OF THE PUBLIC SERVICE COMMISSION

Approval is granted to use the above vehicle within the above circumstances. This approval is void should the vehicle be used for private purposes.

Manager/ Principal Fleet Management Unit (FMU) Name: _____

Signature: _____

Office of the Public Service Commission

Date: _____

Secretary General (PSC) - Name: _____ Signature: _____

Office of the Public Service Commission

Date: _____

(* Note: All request to use a government vehicle after official working hours must be submitted to the PSC with relevant documents attached to the form to justify the purpose for using that particular vehicle two days prior using the Government vehicle(s). Failure of which will result to the non- approval of the request.)

UNAUTHORISED USE OF GOVERNMENT VEHICLES

PART A: To be completed by the person witnessing the possible misuse of the vehicle.

Name of driver of vehicle: _____

Department of driver of vehicle: _____

Registration No. of vehicle: _____

Location of alleged misuse: _____

Date and time vehicle seen being driven: _____

If name of driver is not known should PSC investigate further: **Yes/No (Please circle answer)**

Department of person sighting vehicle (name not required): _____

Position in Public Service: _____

Contact Phone number: _____

You should send this form, along with an independent record of your name, to the Secretary of the PSC (PMB 9017 or Fix line 33360) once you have completed PART A.

PART B: To be completed by the Director or equivalent position-General who has responsibility for the vehicle (or PSC Chairman in case of alleged misuse by DG). If this form is not returned to the Public Service Commission within the next 15 working days where the Public Service Commission has no record of the officer having completed form 4-9, it will take the appropriate action as specified in Chapter 6 of the Public Service Staff Regulation Manual.

Director or equivalent position General who is responsible for vehicle: _____

Is there a completed Form 4-9 permitting use of the vehicle at the date and time the vehicle was cited as above: **(Yes/No) (Please circle answer)**

Name of Director or equivalent position General:

Signature of Director or equivalent position General: _____

Date: _____

VEHICLE PURCHASE APPLICATION FORM

NOTE: This form is to be used by Ministries and Departments to request to purchase a new vehicle or replacement and Trade In of government vehicle.

Requesting Ministry/Department: _____

Department Requirements:

(A) Replacement:

- Do you want to replace your vehicle? _____ (Yes/No)
- If yes, give registration No. of previous G Plate: _____
- Attach photo/Picture of an old vehicle: _____
- Acquisition date of old vehicle: _____
- Odometer reading of the vehicle (in KM): _____
- Give reasons why the Ministry or Department want to replace their old vehicle:

(B) Request for additional Vehicle: *(If necessary, a budget analysis report from the DoFT is required. This is ensuring some controls in place on the purchasing of new vehicles for some government ministries and department)*

Give reasons why you want to purchase new vehicle:

Specification of Purchase:

Make: **Type:**

Model: **Engine Capacity:**

Year Manufactured:

Saloon Car () Pickup single cabin () Double Cabin () Other ()

Type of Final Wheel drive: 4X4 () or 4X2 () *(Please tick your preference)*

Cost of Vehicle: VT _____ *Please attach quotations from Supplier*

Budget allocation for this purchase: () Yes () No

Please attached current budget printout

Method of payment: _____

Expected Date of vehicle delivery: _____

I support the request and recommend approval be given.

Director or equivalent position - Name: _____ Signature: _____

Name of Dept: _____ Date: _____

Director General Name: _____ Signature: _____

Name of Ministry: _____ Date: _____

Fleet Management Committee Decision:

Approved/Not Approved at FMC Meeting No: _____ **Held on:** _____
Please circle

Date Director or equivalent position or Director or General Advised of Decision

VEHICLE USAGE AGREEMENT FORM

VEHICLE USAGE AGREEMENT FORM

REQUEST DETAILS

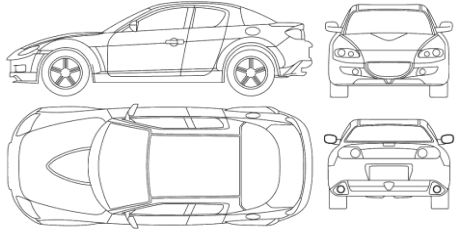
Name:	Phone:	Email:
Ministry/Department:	Address:	
Occupation:	Valid Driver's License:	Yes No

VEHICLE DETAILS

Vehicle Registration:	Make:	Model:
Ministry:	Department:	

	Time	Day	Month	Year	Mileage	Fuel Tank		
Date /Time Out						Full	Medium	Low
Date / Time In						Full	Medium	Low

CHECKOUT INSPECTION

Key	Check Out	Comments	
1 = Dent:			
2 = Scratch:			
3 = Scuff:			
4 = Broken:			
5 = Cracked:			
6 = Chipped:			

GENERAL CONDITIONS OF AGREEMENT

- ❖ A physical Inspection MUST be carried out by Fleet Officers and the Requested officer before /after the vehicle return.
- ❖ Any damage spotted or identify from the inspection after return of vehicle will paid by the Department/Officer concern.
- ❖ Failure to return the vehicle as per agreement, the vehicle will be forced to retain by Police.
- ❖ This Vehicle is strictly use for official purpose only.
- ❖ Provide a valid Driving License attached.

- ❖ Vehicle MUST be wash and clean upon return.
- ❖ Vehicle MUST retained with half tank, or as it was release.

We acknowledge receiving the vehicle and accept the condition of this agreement

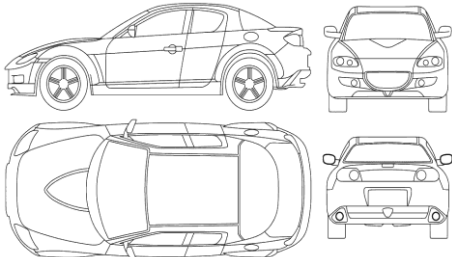
Fleet Management Unit

Requested Department/Officer

Authorized Signature

Authorized Signature

CHECK IN INSPECTION

Key	Check In	Comments	
1 = Dent:			
2 = Scratch:			
3 = Scuff:			
4 = Broken:			
5 = Cracked:			
6 = Chipped:			

Fleet Management Unit

Requested Department/Officer

Authorized Signature

Authorized Signature

TO BE REPRODUCED ON DEPARTMENT OR MINISTRY LETTERHEAD]

INCIDENT REPORT**Details of the Officer**

Name of the Staff Member	
Post title	
Department	
Ministry	
Contact or email	

Incident					
Date of Incident		Time		Place of Incident	
Location where Incident occurred		Island		Witness of the incident	

INCIDENT

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Reporting Staff Member		Date	
Signature:			

Attachments

CHAPTER 10 – PERFORMANCE MANAGEMENT

1. Introduction

- (1) The Public Service Commission under Article 60 of the Constitution is committed to enhance the performance management system within the Public Service, as outlined in the guiding principles of the Public Service under subsection (1)(2) and the Commission under subsection (1)(1) of Chapter 1 of this manual, focusing on achieving results and managing performances.
- (2) Individual Performance management is a structured approach to develop, monitor and evaluate the staff member and organizational performance, highlighting issues and responding in a timely manner.
- (3) Organizational performance management is the process by which the Organization aligns its resources, systems and staff members to strategic objectives and priorities. Effective Organizational performance ensures that:
 - (a) resources are being appropriately used in pursuit of their goals and are being translated into positive results;
 - (b) goals are consistently being met in an effective and efficient manner;
 - (c) performance at various levels, including employees, teams, systems, programs and processes are focused on achieving Organizational objectives.
- (4) Effective management of performance is important in the public service. Without performance measurements, there would be no clear indication of goals being achieved and no evaluation of how the public service is performing in implementing government priorities.

2. Purpose

- (1) The purpose of this chapter is to:
 - (a) improve efficiency and effectiveness in the public service; and
 - (b) assist the organization to sustain the continuous improvement in quality, cost, safety, and in meeting the Commission's obligations; and
 - (c) highlight the visible performance gaps and areas of improvement in the staff member and organizational performance.
 - (d) provide timely feedback on the effect of the individual and Organizational performance assessment.
- (2) In this Chapter, Organization means the Public Service, as specified in subsection 3.1 of Chapter 1.

3. Scope

The Performance Management system, as outlined in paragraph 8(j) of the Public Service Act, is to be consistently and fairly applied throughout the Public Service, including its staff member.

4. General Principles

- (1) In alignment with the guiding principles of the Public Service and the Public Service Commission, the Performance Management systems must address the following:
 - (a) strengthening the performance of Organizations to ensure they are productive, cost-effective and well-resourced to deliver quality public services to the clients; and
 - (b) strengthening, monitoring and evaluating the individual and Organizational performance;
 - (c) ensuring that Organizations align their plans and reporting to national plans and priorities;
 - (d) rewarding and recognising Organizations for exceeding expectations in the implementation of government priorities, policy objectives and service delivery;
 - (e) developing innovative performance management practices that will enhance a sustained high-performance culture across the public service which entails the ability to:
 - (i) envision the future, think strategically, develop aligned plans, and communicate clear directives that shall accommodate and adopt changes;
 - (ii) lead the organization and staff members;
 - (ii) convey thoughts, vision clearly and communicate factual and accurate information to all relevant clients in a timely manner;
 - (iii) develop the process of identifying issues, collect information, assess and decide on best solution for implementation;
 - (iv) act with clear sense of ownership and take responsibility for decisions, actions and failures;
 - (v) determine goals and priorities and to assess the actions, time and resources needed to achieve those goals;
 - (vi) monitor a set of activities, staff members, budget, assets and outputs to meet Organizational goals and provide reports in a timely manner;
 - (vii) understand the roles, functions and responsibilities of a specific job;
 - (viii) think in-depth and critically with a logical approach to achieve current and future Organizational goals;
 - (ix) manage resources issues to make decisions aimed at building and planning efficient project workflows and overall organizational performance;

- (x) identify accurate issues in a most efficient manner and find most effective solution to implement;
- (xi) manage risk to protect staff member and clients, mentally and physically in an inclusive health-conscious work environment;
- (xii) develop staff member's contribution and potential. This means a genuine intent to foster the long-term learning and development of staff members, including direct reports, team members.

5. SECTION A: ORGANIZATIONAL PERFORMANCE MANAGEMENT

5.1 Overview of Organizational Performance Management Framework

- (1) The Public Service Act guides the Organizational performance management framework for effective performance management in the public service.
- (2) The Organizational Performance Management framework provides that the Organization must:
 - (a) have the highest ethical standards;
 - (b) be accountable for their actions;
 - (c) provide a workplace that is free from discrimination and recognises the diverse backgrounds of employees;
 - (d) be responsive to the Government in providing timely advice and implementing Government's policies and programs;
 - (e) deliver services fairly, effectively, impartially and courteously to the public and to visitors to Vanuatu;
 - (f) provide leadership of the highest quality;
 - (g) focus on achieving results and managing performance; and
 - (h) ensure transparency in the performance of their functions.

5.1.1 Roles and Responsibilities

- (1) The roles of the Commission in managing Organizational performances are:
 - (a) to provide guidance, monitoring and assessment of a Ministry's corporate plan and implementation of the Organization Performance Management system;
 - (b) to facilitate and provide support to organizations to ensure compliance with procedures and requirements for improving organizational performance;
 - (c) to develop standards and guidelines to ensure performance management policy is implemented and aligned with other human resource management policies;

- (d) to ensure that organizational assessment committee is established;
 - (e) to endorse all recommended awards and recognition programs to ensure the sustainability of this policy implementation;
 - (f) to assess organizational performance every year based on Annual Report of Ministries and reward the best performing Ministry;
 - (g) to ensure that organizational performance must be audited by an independent panel.
- (2) The roles of a Ministry and Department in managing Organizational performance are:
- (a) to foster and promote an inclusive organizational culture that encourages best practices and behaviours;
 - (b) to promote a culture in which performance is of importance, through effective job design and recruitment where a staff member is confident to engage in interactions that contribute to building high self-esteem;
 - (c) to create an environment in which a staff member is secured and motivated to provide their opinion on ambitions and aspirations to set targets and goals without any fear and to better engage in the performance improvement processes;
 - (d) to build a culture in which a staff members feel secure and motivated to express their opinion on ambitions and aspirations, set targets and goals without fear, and actively participate in the performance improvement processes;
 - (e) to identify and manage talents not only for the benefit of their own agency, but for the whole of the public service;
 - (f) to make resources available to support incentives for reward and recognition programs to encourage best behaviours and distinguished and high performer ;
 - (g) to assist the Commission in guiding, coordinating and implementing the Performance Management system;
 - (h) to produce five (5) years Corporate Plan, Yearly Business Plan and Annual Report.

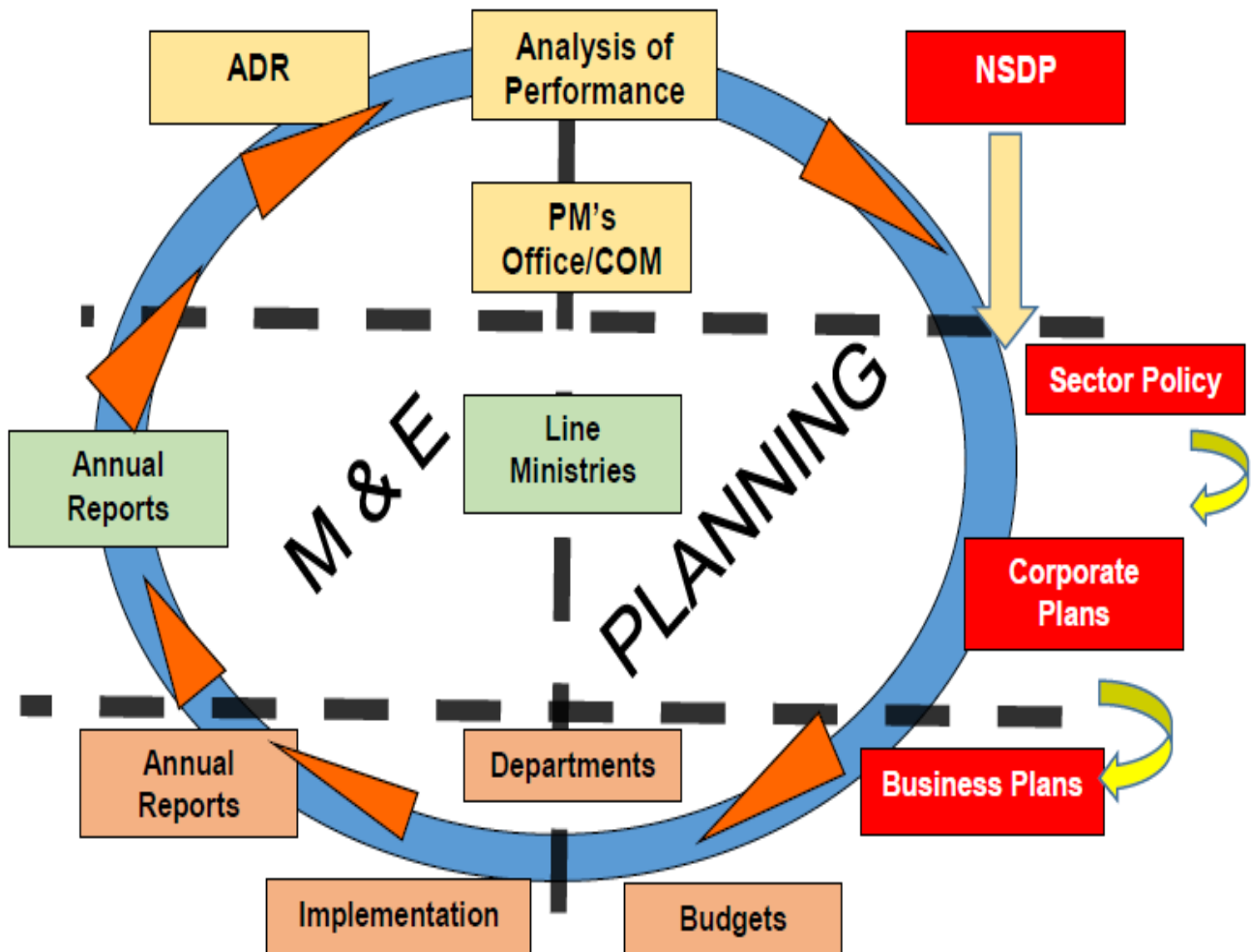
5.2 Organizational Performance Process and Procedure

5.2.1 Procedures for Organizational Performance Management

- (1) The processes and procedures for guiding Organizational performance management are outlined as follows:
- (a) each Ministry must put in place a five (5) year Corporate Plan, aligned with national policies and priorities, which will form the basis of its organization performance assessment.

- (b) each Ministry must develop a Corporate Plan that reflects the Country Development Plan such as NSDP or Peoples Plan 2030.
- (2) Planning, Monitoring and Evaluation are expressed through the following essential documents, designed to organise Government's policy and implementation cycle:
 - (a) the Corporate Plan (CP) which must reflect the NSDP;
 - (b) the priorities detailed in the Corporate Plans (including indicators) for each ministry are updated annually;
 - (c) the Business Plan (BP) to be aligned with the Corporate Plan. The annual work plan for each Department and Agency must be submitted to OPSC as Ministry consolidated document no later than 28 February each year.
 - (d) the Annual Report, to be sent to the Public Service Commission at the end of each financial year (Ministry consolidated document no later than 31st March each year), and which should be presented in Parliament by each relevant Minister.

National Planning Framework: Planning Cycle



Source: National Planning framework, DSPPAC

- (3) OPSC is tasked with conducting appropriate training on the use of the Organization performance forms and tools for reporting employees with the roles of planning, monitoring and evaluating organizational performance.
- (4) Information and expected outcomes about the Organization must be established and shared for continuous improvement to meet changing internal and external demands.
- (5) A Director General, Director or equivalent position must provide an Annual report of achievements of his or her Ministry against the budget narrative service target.

- (6) The OPSC, DSPPAC and DOFT must consistently and continuously provide honest, evidenced-based feedback on the assessment of the Annual report under subsection (5) to enable monitoring and adjustment of Organizational performance.
- (7) Organizational performance must be managed and strengthened through processes that are procedurally fair and transparent.
- (8) In the interest of ensuring that Organizational performance gaps are addressed, a Director General, Director or equivalent position must inform through OPSC to take corrective measures to improve these performance gaps.
- (9) Organizational performance assessment must be conducted yearly in accordance with submitted Annual Reports, Business Plan, Corporate Plan, and the relevant guidelines.

5.2.2 Organizational Performance Assessment

- (1) An assessment is to be carried out to identify whether Organizational service targets are achieved. The outcome of the assessment will assist the Commission to determine whether an organization is performing exceptionally, satisfactorily or have exceeded expectation.
- (2) Organizational performance assessment is evaluated according to the following criteria:
 - (a) Compliance - emphasizes whether the agency adheres to the official Annual Report Guidelines. This involves assessing the quality and quantity of information, ensuring HR and Finance information is appropriately covered in the AR.
 - (b) Relevance - addresses the importance of applying common underlying principles when developing plans and reports. This involves ensuring objectives are related to the agency's functions and activities. The AR should show evidence of integrating different systems, departments, units, and languages.
 - (c) Coherence - focus on alignment of plans and their components, including objectives, activities, targets.
 - (d) Performance - focus on the level of achievement of targets. The evaluation considers how many activities and targets have been completed, partially completed or not carried out, showcasing different levels of agency performance.
 - (e) Integrity - focus on how the values and principles are applied. Examining relevant information allows inference on whether the agency has applied good ethical practices.
- (3) A Director General, Director or equivalent position or Secretary must ensure the following:
 - (a) that employees of the public service are knowledgeable and have good understanding of the government priorities;
 - (b) the Corporate Plan, Business Plans and Annual Reports are accessible to all employees and to the Commission;

- (c) the employees are actively involved in the development of the Corporate and Business plan;
 - (d) Conducting the annual performance assessment of an organization based on the Corporate and Business Plans and Annual Reports;
 - (e) Organization's must be assessed through their respective organizational goals as reflected in the Business Plans, Corporate Plans, Budget Narratives, Annual Reports and Annual Development Reports.
- (4) In order to carry out a proper assessment of an Organizational performance, a Director General, Director or equivalent position or the Secretary must ensure that:
- (a) there are appropriate performance management tools and mechanisms in place. This includes institutional capacity assessment forms and annual Organizational performance template;
 - (b) the Organizational Corporate Plan, Business Plan, Annual Reports and Budget Narratives/Service Targets must be submitted to the OPSC for purposes of Organizational Performance Assessment;
 - (c) an Organizational Annual Report must be submitted to OPSC each year for assessment purposes.

5.3 Confidentiality

Confidentiality of Organizational performance, discussions and outcomes must be maintained by all relevant parties.

6. SECTION B: INDIVIDUAL PERFORMANCE

6.1 Guiding Principles of Individual Performances Management System

In alignment with the guiding principles of the Public Service and the Public Service Commission, the PSC Performance Management Policy must address the following principles:

- (a) a reporting officer must consistently and continuously provide an honest and evidenced-based feedback to enable monitoring and adjustment of performance.
- (b) the Public Service must endeavour to attract and retain individuals who align with its vision, strategic goals, and objectives, committing themselves to contribute to their achievement.
- (c) staff members responsible for conducting performance management must undergo appropriate training to effectively fulfil their roles.
- (d) information and expected outcomes related to individual responsibilities and goals must be shared to foster continuous improvement, adapting to evolving internal and external demands.
- (e) staff member performance must be managed through processes that are procedurally fair, accountable and transparent.
- (f) before a formal action is taken under this procedure, appropriate managers must attempt to resolve difficulties on an informal basis by discussing the situation with the staff member. Reporting officers should handle any issues internally within respective units or sections as the first instance of resolution.

6.2 General Process of Performance Management

6.2.1 General process of Performance Agreement of Director General, Director and Others.

The general process of Performance Agreement of the Secretary, a Director-General, a Director or equivalent position, a Provincial Secretary General and a Town Clerk, are as follows:

- (a) The performance agreement process must be conducted in accordance with the Performance Agreement Guideline and the following provisions of the Public Service Act:
 - (i) section 13 for the Secretary;
 - (ii) section 17A(1A) for a Director General;
 - (iii) section 18(1A) and (1B) for a Director;
 - (iv) section 18A (2) for a Secretary General of a Provincial Government Council;
 - (v) section 18D (2)- for a Clerk of a Municipal;

- (b) Any changes to this process must be endorsed by the Commission.

6.2.2 General process of Performance Appraisal for Staff Members

- (1) The general process of Performance Appraisal of a staff member are as follows:
 - (a) An annual work plan must be established based on the Business plan and Job Description by the appraiser and appraisee.
 - (b) Upon the consent of the appraiser and appraisee, including the reviewer, the work plan is signed by all parties before submission to the OPSC by February 28 each year.
 - (c) A mid-year review is conducted by the appraiser and appraisee, along with the reviewer, before submitting to the relevant Director or Director General–by 30th June each year.
 - (d) An end of year review must be conducted by the appraiser and appraisee prior to endorsement of the reviewer.
 - (e) After the endorsement of the reviewer, the performance appraisal must be submitted to the OPSC by 31st December of each year.
- (2) An employee or staff member who contravenes this section commits a disciplinary offence.

6.3 Probationary Period

6.3.1 Newly appointed Staff Member

- (1) A staff member who is first appointed to the public service through a normal recruitment process may, on the discretion of the Commission, be on probation for not more than three (3) months.
- (2) A work plan, based on the key result areas of the job description, must be developed and discussed by the appraiser and appraisee (staff member) to focus on performance output expected at the end of the probation period.
- (3) The newly recruited staff member must be coached and mentored by the immediate supervisor or the appraiser during the probationary period.
- (4) An assessment of the performance of the newly recruited staff member for the probation period must be submitted to the OPSC by the second week of the last month of the probationary period. The appraiser and the HRO of the Ministry must ensure that the appraisal is submitted to the Commission for its consideration.
- (5) If the employee's performance assessment meets the satisfactory level of 3.5 or above, the Commission must approve the confirmation of the staff member to the position.
- (6) If the staff member does not meet the satisfactory requirement at the end of the probationary period, the Commission is to terminate his or her employment pursuant to subsection 14 (2) of the Employment Act.

6.3.2 Employee Appointed to another Position within the Public Service.

- (0) Upon appointment to a new position in the Public Service, the employee must undergo a performance appraisal within three (3) months.
- (2) The assessment of performance will be conducted, and the report submitted to the Commission for endorsement before the probationary period concludes.

6.4 Roles and Responsibilities

6.4.1 Roles of the Appraisee

The appraisee is responsible to:

- (a) participate in the development of the department Business Plan;
- (b) develop an individual work plan based on his or her Job Description in consultation with his or her appraiser;
- (c) complete the mid-year review of the individual work plan in consultation with his or her appraiser;
- (d) self-assess and honestly rate himself or herself, in consultation with the appraiser to address differences in ratings;
- (e) develop an individual work plan based on the annual business plan, in the case of an employee.

6.4.2 Roles of Appraiser in the Performance Appraisal Process

The appraiser must ensure that the following is carried out during the performance appraisal process:

- (a) establish the work plan of the appraisee in consultation with the appraisee;
- (b) conduct a mid-year review of the appraisee in consultation with the appraisee;
- (c) rate the performance appraisal of the appraisee in consultation with the appraisee.

6.4.3 Roles of Appraiser in the Performance Agreement Process of the Secretary, Director General, Director and equivalent position, Secretary General of Province and Town Clerk

- (1) The Commission may appoint an independent panel consisting of four (4) members to appraise the Secretary, a Director-General, Secretary-General and Town Clerk according to their signed Performance Agreement.
- (2) The Panel must appraise a person referred to under subsection (1) pursuant to his or her signed Performance Agreement.
- (3) The Director or equivalent position is responsible to appraise a Deputy Director or Manager in cases where there is no deputy Director in the department.

6.4.4 Roles of Appraiser in the Performance Appraisal of the Deputy Director and positions below

- (1) If a Deputy Director is employed within a department, he or she is responsible for appraising a manager or equivalent position.
- (2) A Manager is to appraise a principal. In cases where there is no Manager in the department, a Deputy Director, Director or equivalent position is responsible to appraise the Principal Officer. However, in cases where there is no Deputy Director or Manager in the structure, the Director or equivalent position is to conduct the appraisal of the Principal Officer.
- (3) A Principal Officer is responsible for appraising a Senior Officer and other officers below the principal position. In cases where there is no Principal Officer within a department, the Manager is responsible to appraise the Senior Officer and officers below. If there is no Manager to appraise a senior officer and officers below, the Deputy Director is responsible to appraise these officers. In cases where there is no Deputy Director, the Director is responsible to appraise the senior officers and officers below.
- (4) An appraiser is obliged to appraise the appraisee as required under this section unless he or she provides a reasonable justification. The Appraiser has the responsibility to provide feedback to the appraisee.
- (5) A person who fails to appraise an appraisee under subsection (1), (2) or (3) commits a disciplinary offence.

6.4.5 Roles of Reviewer in the Performance Appraisal Process

- (1) The Reviewer must ensure that the performance appraisal is conducted in consultation between the appraiser and the appraisee before signing off the appraisal.
- (2) The Secretary must review and sign off the Performance Agreement of the Director General, Director or equivalent position, a Provincial Secretary General and Town Clerk.
- (3) The Director must review and sign off the appraisal of the Deputy Director, Manager, Principal, Senior Officer and officers below these positions.
- (4) A person who fails to appraise an appraisee or fails to appraise the appraisee appropriately under subsections (1), (2) or (3) commits a disciplinary offence.

6.4.6 Auditing of Performance

- (1) An Audit of performance may be carried out by a Director General, Director or equivalent position for the purpose of verifying the results if:
 - (a) there is suspicion of lack of correlation between the Department and Ministries public performance compared to the individual performance;
 - (b) a staff member is rated highly compared to the overall Performance or achievement of the Ministry or Department or vice versa; or
 - (c) there are discrepancies or disagreements in rating between the appraiser and the appraisee; or

- (d) a staff member is being recommended to be redundant or demoted due to performance issues.
- (2) The audit performance under subsection (1) requires a verification of information compiled through a 360-degree process from Ministry/Department staff. This is to ensure there is consistency and accuracy of performance standard across the line Ministry.
- (3) The details of the 360-degree process are as follows;
 - (a) to cross- check evidence of process or work that the officer has engaged in through his or her supervisor, work colleagues and office records;
 - (b) to gather information from subordinates, co-workers, and managers who will anonymously rate the employee;
 - (c) to submit an Audit Report with all relevant documents to the Commission.
- (4) The 360-degree audit of performance must be carried out in the prescribed form *360 Degree performance evaluation sample form (PSC Form 10-5)* and *Audit of performance summary form (PSC Form10-6)*

6.5 Work Plans, Mid Year Review Assessment and Feedback Procedure

6.5.1 Individual Work Plan

- (1) A staff member must establish a work plan at the beginning of January of each calendar year. The work plan must be aligned with the Business Plan of the relevant department and the Job description of the relevant position.
- (2) The Performance agreement of a Director General, Director or equivalent position, a Provincial Secretary General or Town Clerk must be established in consultation with:
 - (a) the Secretary; and
 - (b) an independent committee comprise of four (4) members appointed by the commission; and
 - (c) the relevant minister (if applicable).
- (3) Any other process for performance agreement work plan may be specified in the terms and conditions of employment contract and the guideline of performance agreement.

6.5.2 Mid-Year Review

Any changes in the priorities of any staff member during the mid-year review period must be reflected in the appraisal form.

i. Assessment and Feedback Procedure

- (1) A performance assessment must be evidence-based.

- (2) Annual Assessment of all employee including those on acting basis must be done by completing the *Staff performance appraisal form (PSC Form 10-2)*, except for probationary employee to use the *Probationary employee performance appraisal form (PSC Form 10-1)*.
- (3) Temporary salaried and contract employees must have their performance assessed at the end of their employment contract. Section C of the *Staff performance appraisal form (PSC Form 10-2)*, may be used for their performance assessment employment for six (6) months or below.
- (4) A decision for renewal of contract must be based on performance assessment report.
- (5) An employee's performance appraisal must be conducted at the end of each calendar year, including allocation of performance rating which must reflect the quality of work achieved.
- (6) The rating system adopted is a "traffic light" type assessment with description guiding performance progression. It facilitates performance progression as staff members attempt to move away from colours indicative of slow or poor performance.
- (7) A uniform rating system must be used to evaluate performance in the annual performance assessment using the *Staff performance appraisal form (PSC Form 10-2)*. The rating scale is categorised into five (5) -levels of performance of employees as specified in the table below for Directors or equivalent position including staff members.

KRAs	Performance Level & Performance Rating Scale
5	Distinguished Performer -Achieved all targets producing excellent quality and quantity of work before allocated time- shows excellent example in achieving all work behaviours (100%). The officer is eligible for an increment or a promotion.
4	High Performer - Achieved majority of targets producing high quality and quantity of work meeting allocated time- shows excellent example in achieving majority of work behaviours (80-99%). The officer is eligible for an increment or a promotion.
3	Satisfactory Performer - Achieved majority of targets producing acceptable quality and quantity of work within allocated time- shows acceptable example in achieving majority of work behaviours (60-79%).
2	Improving Performer - Achieved only a few targets producing acceptable quality and quantity of work within allocated time- shows acceptable example in achieving some of work behaviours (50-59%). The officer must be placed on a Performance Improvement Plan (PIP) and the officer should be offered capacity building training and mentoring.
1	Poor Performer - Not able or willing to perform at all expected level. Consistently shows poor work behaviours. (below 50%). The annual performance report MUST be submitted to the Commission for deliberation.

- (8) The rating scale is categorized into four(4) levels of performance specified in the table below for a Director General, Provincial Secretary General, Town Clerk and Auditor General.

KRAs	Performance Level & Performance Rating Scale
4	Distinguished Performer -Achieved all targets producing excellent quality and quantity of work before allocated time- shows excellent example in achieving all work behaviours (100%).
3	High Performer - Achieved majority of targets producing high quality and quantity of work meeting allocated time- shows excellent example in achieving majority of work behaviours (80-99%).
2	Satisfactory Performer - Achieved majority of targets producing acceptable quality and quantity of work within allocated time- shows acceptable example in achieving majority of work behaviours (60-79%).
1	Poor Performer - Not able or willing to perform at all expected level. Consistently shows poor work behaviours. (20-59%).

- (9) The rating system for probation must be differentiated into three (3) levels of performance:
- (a) Satisfactory
 - (b) Needs improvement
 - (c) Unacceptable.
- (10) A rating of performance must be objective, fair, equitable and without any form of discriminations or favour.

ii. Appraisal and Assessment of a Director General

- (1) The Commission through the Panel of Peers is responsible to appraise a *Director-General* in consultation with the following persons:
- (a) the relevant Minister;
 - (b) Directors of relevant departments;
 - (c) Managers (or Principal Officers if there are no Managers);
 - (d) Executive Officer of the Ministry;
 - (e) Provincial Secretary Generals and Managers (if applicable);
 - (f) any other relevant stakeholders.
- (2) Any other detail of the appraisal process of a Director-General is to be specified in the terms and conditions of the employment contract and the Performance Agreement Guideline.

iii. Appraisal and Assessment of Provincial Secretary Generals and Town Clerks

- (1) The Commission through the panel of Peers is responsible to appraise a Provincial Secretary General and a Town Clerk in consultation with the following persons:
- (a) the Director of the department of Local Authorities; and

- (b) the President of the relevant Local Government Council; and
 - (c) the Provincial Planner, in the case of a Provincial Secretary General; and
 - (d) Provincial Managers, in the case of a Provincial Secretary General; and
 - (e) the Area Administrators, in the case of a Provincial Secretary General; and
 - (f) the Municipal Lord Mayor, in the case of a Town Clerk; and
 - (g) the Municipal Accountant, in the case of a Town Clerk; and
 - (h) the Town Planner, in the case of a Town Clerk; and
 - (i) the Provincial Technical Advisory Committee (PTAC).
- (2) Any other detail of the appraisal process of a Provincial Secretary General and a Town Clerk is to be specified in the terms and conditions of their employment contract and the Performance Agreement Guideline.

6.6 Feedback of Performance Agreement

i. Feedback of the Secretary, a Director General, Director or equivalent position, Provincial Secretary General and Town Clerk

The feedback process of the Secretary, a Director General, Director or equivalent position, Provincial Secretary General and Town Clerk to be specified in the Performance Agreement Guideline is as follows:

- (a) A renewal of the employment contract of Secretary, a Director General, Director or equivalent position, Provincial Secretary General and Town Clerk is based on the performance feedback report for a respective term of the contract.
- (b) The Secretary, a Director General, Director or equivalent position, Provincial Secretary General and Town Clerk must consistently be a high performer and Distinguished performer (as stated in the Performance Agreement ratings) during the period of contracts for purposes of the renewal of contracts of employment.
- (c) For purposes of the Secretary, a Director General, Director or equivalent position, a Provincial Secretary General and Town Clerk incremental award, performance must at least achieve high performer level to be awarded one (1) salary incremental point in the following year.
- (d) If re-appointed for another contract term, the starting salary of the Secretary, a Director General, Director or equivalent position, Provincial Secretary General and Town Clerk in any re-appointment must be the same as the starting salary in the first term of contract.
- (e) If the Secretary, a Director General, Director or equivalent position, Provincial Secretary General and Town Clerk performance rating falls in the poor performer category for any assessment year, the contract must be terminated.

ii. Appraisal, Assessment and Feedback of positions below Director level

A Reviewer must ensure that the appraisals and feedback of a staff member is carried out in a timely manner.

iii. Feedback Process of Appraisals

- (a) An appraiser must provide a period of not more than five (5) working days for an employee to provide comments on his or her appraisal and must agree with the employee on an interview date for the assessment reports to be discussed.
- (b) The Human Resource Manager or officer of an organization must compile a summary of Performance Assessment and submit the Report to the Assessment committee comprising of a Director General, relevant Director or equivalent position, Executive officer and the Human Resource Manager or officer to verify the report. Final assessment ratings of an individual will be determined through the Assessment committee's verification process and submit to OPSC by 31st December each year.
- (c) For purposes of assisting the Organizations Assessment committee, a sub-provincial Assessment Committee is to be established to verify performance assessment of provincial employees comprising of a Provincial Secretary General and relevant PTAC members and submit to OPSC by 31st December each year.
- (d) The Commission may award a Manager and his or her subordinate for excellent performance or may instigate performance improvement plan process against those with poor performance rating.
- (e) The Secretary must in writing inform a Director General, Director or equivalent position on the Commission's decision in relation to the summary and recommendations of the assessment reports of their organization staff member's performance.

6.7 Resolving Performance Issues

i. Resolving issues involving a Staff Member

- (1) If a staff member believes that his or her performance appraisal is carried out in an unfair manner, and he or she fails to come to an agreement with the appraiser, the Reviewer may intervene to resolve the matter.
- (2) If the disagreement under subsection (1) is not resolved, the Director-General, Director or equivalent position or the Human Resource Manager or officer at the Ministry or department must intervene to resolve the matter as per section 35 of Public Service Act.
- (3) If the disagreement is not resolved, it must be referred to the OPSC within two (2) weeks from the date it fails to be resolved under subsection (2).

ii. Resolving issues involving the Secretary, Director General, Director or equivalent position, Town Clerks, Provincial Secretary

- (1) If the Secretary, Director General, Director or equivalent position, Provincial Secretary General and Town Clerk fails to reach a mutual agreement concerning his or her

performance, the independent panel appointed by the Commission must intervene to resolve the matter.

- (2) If the Director General, Director or equivalent position, fails to reach a mutual agreement concerning his or her performance, the Commission must intervene to resolve the matter.
- (3) If a Town Clerk or Provincial Secretary General fails to reach a mutual agreement concerning his or her performance, the Director General of the Ministry of Internal Affairs must intervene to resolve the matter.

iii. Addressing Poor Performance

- (1) An appraiser must act promptly and professionally to address an employee's performance which does not meet the expectations and continuously fails to meet the requirements of the key result areas of his or her position.
- (2) To avoid doubt, poor performance amounts to failure to:
 - (a) achieve the expectations of the Key Result Areas (KRAs) and Key Performance Indicators (KPIs) of the position;
 - (b) achieve the performance targets set in the performance plan;
 - (c) meet a satisfactory standard in the work completed;
 - (d) carry out duties in the expected work competency levels.
- (3) In preventing an employee from reaching poor performance, the appraiser must discuss with him or her the areas for improvement. Ongoing monitoring, coaching, mentoring and feedback must be provided at all times to address any performance-related issues that may arise during the review period.
- (4) In the case where an employee's performance reaches the Poor performer (below 50%) level, the Commission must terminate the employment of the employee.

iv. Performance Improvement Plan

A Performance Improvement Plan (PIP) is a compiled plan that needs to be followed to assist an employee with performance-related issues. It is a given opportunity to an employee to be assisted first by his or her appraiser and the Organization before any other action is taken. This is to ensure that performance management process must be used as a tool to support the employee's performance first, instead of being immediately disciplined by using the *Performance improvement plan (PIP) form (PSC Form 10-4 (a))*.

An employee with performance-related issues must demonstrate a commitment through the work he or she has agreed to undertake in the PIP.

v. Process of Performance Improvement Plan

If an employee is identified as having poor performance, the following process is to be followed:

(a) Phase 1. Informal discussions

- i. This is the first stage of informally discussing identified performance issue with an employee. The appraiser should meet with the employee whenever necessary to discuss the area identified as poor performance.
- ii. It is the appraiser's responsibility to ensure that an employee understands the expected behaviour and work standard. An employee and the appraiser must meet to discuss the establishment of the PIP with an agreed period for assessment.
- iii. The appraiser should not wait for the annual appraisal process time to complete before initiating this process. Informal discussions and the development of a performance improvement plan should occur whenever an employee consistently exhibits signs of poor performance.
- iv. Although this is called an informal discussion for improvement plan, the appraiser must keep a record of the conversation done as evidence that this first part of the process has been completed.
- v. This informal discussion for improvement must be carried out for a period of not more than one (1) month.

(b) Phase 2: Formal Meeting

- i. According to the timeframe to improve performance as discussed in Phase 1 of PIP, the appraiser must monitor and observe whether or not an employee's performance has improved.
- ii. If an employee's performance has not improved or has slightly improved, the appraiser must proceed with Phase 2 where a formal meeting is arranged and a PIP form is filled during the process.

(A) The *Performance Improvement Plan (PSC Form 10-4(a))* must be used for this purpose

(B) All sections of the Performance Improvement Plan Form under subparagraph (A) must be filled;

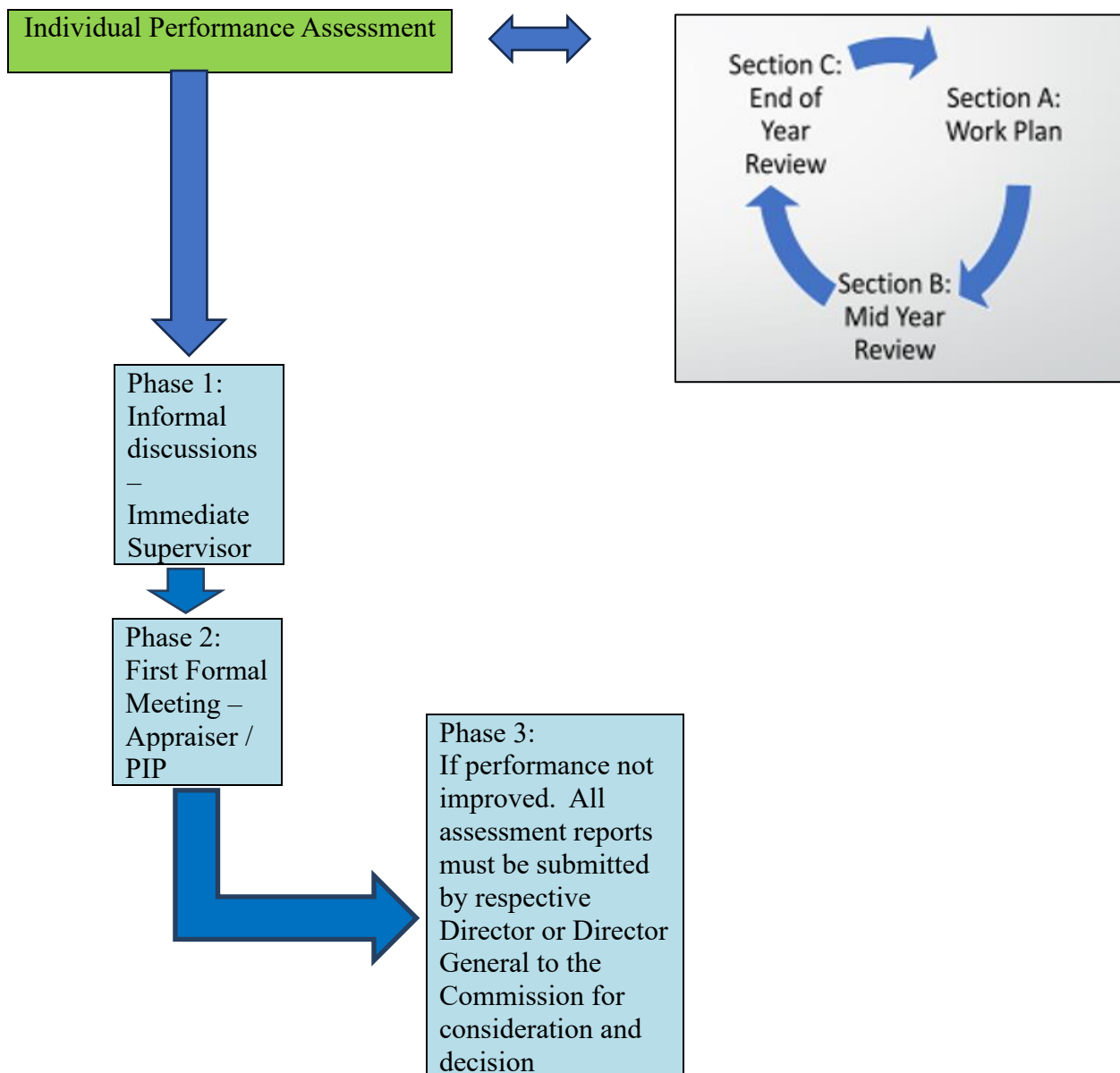
(C) Both the appraiser and the employee must discuss the PIP before signing the *Performance Improvement Plan (PSC Form 10-4(a))*.

(D) The employee must be given a copy of the signed PIP after the meeting is conducted.

- iii. Where an employee **exceeds or meets the expectations** in his or her performance assessment, a report of this exercise must be submitted to the Commission with the completed *Performance Improvement Plan Feedback form (PSC Form 10-4(b))*. The Commission after being satisfied with the PIP report may approve the employee's performance. This performance monitoring case must be closed upon the decision of the Commission.

- iv. If after the first formal meeting and monitoring, the employee still fails to achieve or has slightly achieved the goals agreed in the PIP, the employee's report of performance should be prepared and submitted to the Commission for further consideration for termination of employment of the employee.
- v. The PIP must be carried out for a period of not more than three (3) months.

6.4.2 Performance Improvement Cycle



7 SECTION C: REWARDS AND RECOGNITION

7.1 Awards

- (a) Organizations that perform exceptionally well in achieving their goals or perform exceptional acts that have positive impacts on the country may be awarded.
- (b) Organizational award must be conducted by the Commission.

7.1.1 Organizational Performance Awards

- (1) The Commission may appoint an Assessment Committee to undertake an Organizational performance assessment. The Organizational Performance Assessment Committee comprises of representatives of OPSC, DSPPAC, MFEM, Chamber of Commerce, and Civil Society Organizations.
- (2) The role of the Assessment Committee is to screen, analyse and assess all Organizations annual performances and make proposals to Commission for best Organizational performance awards.
- (3) Sectorial and public feedback must be obtained to guide assessment of Organizational performances.

7.1.2 Types of Organizational Awards

- (1) There are two types of Organizational awards for recognizing a highly performing Organization:
 - (a) **PSC Organizational Award:** Given to Organizations demonstrating outstanding performance throughout the year. The Independent Organizational Performance Assessment Committee recommends awards in this category based on overall annual performance assessment scores/ratings.
 - (b) **Organizational Innovation Award:** Awarded to Organizations that meet the following criteria:
 - (i) implementation of new initiative out of the common practices. The new initiative can be replicated across other line agencies; and
 - (ii) cost efficiency in quality service delivery benefiting mass population; and
 - (iii) sustainable projects that are relevant to government priorities; and
 - (iv) tangible results.

7.1.3 Staff Member Performance Awards

- (a) It is the duty and responsibility of an appraiser to ensure that:
 - (i) a monetary award is linked to performance achievement and is sufficiently budgeted;

- (ii) recognition program is based on merit;
communication processes are in place to ensure that staff members are familiar with the recognition program;
 - (iv) the Commission, Ministry or Department provide an award to staff members.
- (b) Staff members earning performance ratings of distinguished performer and high performer may be provided with a performance award during the Public Service Day or any other occasion. Details of the award must be approved by the Commission.
 - (c) Staff members earning performance ratings of Improving performer, Satisfactory performer and Poor performer are not eligible for any performance award.
 - (d) A Director General, Director or equivalent position must ensure that performances are rewarded accordingly using any other means of award including but not limited to incremental award.

7.2 Role of the Assessment Committee for Individual Awards

7.2.1 Committee for Assessing Individual Awards

- (1) Each Ministry must establish an Assessment Committee. The assessment committee comprises of:
 - (i) the Director-General; and
 - (ii) Directors of all departments under the ministry; and
 - (iii) a representative of OPSC; and
 - (iv) HRO of the Ministry; and
 - (v) independent representative (approved by the Commission).
- (2) The role of the Assessment Committee is to assess individual employee performance summary report of the Ministry and make proposal to the Commission for best performance awards using the *Staff performance appraisal form (PSC Form 10-2)*.
- (3) Any other form of award established by the Ministry must follow the same process as mentioned in subsection (2).

7.2.2 Process of Assessment Committee for Individual Awards

- (1) The Assessment Committee for individual awards must comply with the following process:
 - (a) selecting of individuals from the summarized performance report of the Ministry who are rated distinguished performer or high performer;
 - (b) reassessing the performance appraisals of the selected individuals;
 - (c) ranking of selected individuals based on the reassessment under subsection (b) and submit to the Commission for endorsement to receive best performers award of the Ministry using the *Public Service award of excellence Form (PSC Form 10.3)*;

- (d) identify individuals not selected under paragraph (a) to be eligible to receive a certificate of recognition for that current year of assessment.
- (2) Staff members consistently demonstrating high performance for three consecutive years are eligible for other forms of rewards and recognition determined by the Commission.
- (3) Best performers awards are to be presented during the Public Service Day or as may be determined by the Commission.

7.2.3 Types of Individual Awards

- (1) There are two types of individual awards, which are categorized as follows:
 - (a) Ministerial Individual Award (maximum of five best awards); and
 - (b) inspirational Leadership Award (for emergent leaders).
- (2) The recognition program may include:
 - (a) Organizational award (Department or Ministry awards); or
 - (b) Individual awards (bonus, salary increment, education and training, promotion and any others as determine by the Commission); or
 - (c) The Commission may determine the provision of special awards at any time or periodically to specific individuals or organizations resulting from innovative achievements.
- (3) A recipient of an award for a particular year may receive an award in the following year if he or she meets the eligibility criteria.
- (4) Any form of recognition must be based on the principle of performance management and comply with the process and procedure of screening of awards, individual awards or Organizational awards process (whichever is applicable).
- (5) Any recommendation for an award must be approved by the Commission before it is awarded to the recipient.
- (6) In the case of a Ministerial award, all member of the Assessment committee must sign the nomination form before endorsement by the relevant Director General and approval by the Commission.
- (7) A Manager or any other permanent staff of the Public Service who has performed exceptionally well during the year and who consistently display emergent leadership skills to his or her Organization in every aspect of duty may be given an award.
- (8) This section does not restrict staff members from receiving awards and recognition from any other authorities or institutions, whether within or outside the public sector.

7.3 Timelines

7.3.1 Work Plans:

- (1) An individual work plan has the following timelines:
 - (a) it is due to a Ministry at the end of January of each calendar year;
 - (b) a Mid-term review is due at the end of July of each calendar year;
 - (c) an end of year assessments of a staff member is due at the end of December of each calendar year.
- (2) An Organization has the following timelines:
 - (a) a business plan for the next calendar year must be drafted by April, with the final version submitted to the Commission on or before 31st December of that year;
 - (b) a new corporate plan must be developed every five (5) years and must be updated annually;
 - (c) an Organizational performance assessment must be conducted yearly.

7.4 Confidentiality

Confidentiality of performances, discussions and outcomes must be maintained by all relevant parties.

7.5 Monitoring and review existing policy

- (4) The Public Service Staff Regulation Manual may be periodically reviewed, as approved by the Commission to ensure:
 - (a) effectiveness;
 - (b) appropriateness;
 - (c) efficiency.
- (5) A staff member who fails to comply with any provision in the Manual commits a disciplinary offence.

FORMS FOR CHAPTER 10: PERFORMANCE MANAGEMENT

3-MONTH'S PROBATIONARY EMPLOYEE PERFORMANCE APPRAISAL FORM

Appraisee name: _____ Position: _____ Title: _____
Min/Dept. _____

Payroll No. _____

For Probation period from: ____/____/____ to: ____/____/____ Appraiser's
name: _____

Appraiser's Position title: _____

MAJOR OBJECTIVE OF EMPLOYEE PERFORMANCE APPRAISAL:

- Provide a frank and honest assessment of the employee's contribution and achievements over the past three months.
- The evaluation should focus on the employee's ability to perform the job duties listed in the job description.
- Given the three months period of probation, it is the immediate supervisor to identify priority that can be achieved.

THIS FORM IS DIVIDED INTO THREE SECTIONS:

SECTION 1: Assessment of job Duties listed in the Job Description

SECTION 2: Assessment of Employee Attributes

SECTION 3: Overall Rating

Indicate the Evaluation of the Employee's Job Performance by using the following scale:

A = Satisfactory

B = Needs Improvement

C = Unacceptable

SECTION 1: ASSESSMENT OF JOB DUTIES

(This process should be one to one assessment)

Job Duty Objectives (refer to KRA of Job Description)	Comments on progress report (progress on the job duties)	Self- Assessment	Final Rating A. Satisfactory, B. Needs Improvement C Unacceptable
1			
2			
3			
4			
5			

Appraisee Comments

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Appraiser Comments

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SECTION 2. Appraisal of Employee Attributes

Conduct & Behaviour	Performance Indicators	Self-Assessment	Final Rating A. Satisfactory B. Needs Improvement C. Unacceptable
Knowledge of the Job	The extent to which the employee knows and demonstrates how and why to do all phases of assigned work, given the employee's length of time in his/her current position		
Quantity of Work	The extent to which the employee accomplishes assigned work of a specified quality within a specified time period		
Quality of Work	The extent to which the employee's work is well executed, thorough, effective and accurate		
Relationship with Supervisor	The manner in which the employee responds to supervisory directions and comments. The extent to which the employee seeks counsel from supervisor on ways to improve performance and follows same		
Cooperation with Others	The extent to which the employee gets along with other individuals. Consider the employee's tact, courtesy, and effectiveness in dealing with co-workers, subordinates' supervisors, and customers		
Attendance and Reliability	The extent to which employee arrives on time and demonstrates consistent attendance; the extent to which the employee contacts supervisor on a timely basis when employee will be late or absent		
Initiative and Creativity	The extent to which the employee is self-directed, resourceful and creative in meeting job objectives; consider how well the employee follows through on assignments and modifies or develops new ideas, methods, or procedures to effectively meet changing circumstances		

Capacity to Develop	The extent to which the employee demonstrates the ability to learn and willingness to accept new/more complex duties/responsibilities		
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Rating section C-i				Rating section C-ii			
1. Work performance				2. Attributes			
Total (A)	_	Multiply by 4	=	Total (A)	_	Multiply by 4	=
Total (B)	_	Multiply by 2	=	Total (B)	_	Multiply by 2	=
Total (C)	_	Multiply by 0	=	Total (C)	_	Multiply by 0	=
Grand Total (X)	_	Grand Total (Y)		Grand Total (X)	_	Grand Total (Y)	

SECTION 3. Overall Rating of Performance during the Probationary Period

	Section C-i	Section C-ii	Grand Total	Overall Rating (Grand total Y / by grand total X)	
Total X					
Total Y					

Grades	Description	Actions
3.5 – 4.0	Satisfactory	Recommend for Permanent Position
2.0-3.4	Need Improvement	Not fully meet Job Requirements
0	Unacceptable	Terminate Employment Contract

Summarise Employee's Performance and Progress over the period

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Is the employee's Permanent Appointment to be confirmed?	YES / NO
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Employee' signature:

Date:/...../.....

Line Manager' signature:

Date:/...../.....

Director General's Comments and Signature:

Date:/...../.....

STAFF PERFORMANCE APPRAISAL FORM

Appraisee name: _____ Position title: _____
 Position No. _____ Min/Dept. _____

VNPF. _____ For the 12 month period from: ____/____/____ to: ____/____/____
 Appraiser's name: _____

Appraiser's Position title: _____

OVERVIEW OF THE ROLE OF PERFORMANCE MANAGEMENT

Performance management process is designed to monitor our performance against key objectives to see whether we are delivering better outcomes for our people and to help identify what might be done to improve performance. The Staff Performance Appraisal documents the expectations of individual employee and ministry performance, by providing a meaningful process by which employee can be assessed for noteworthy contributions to the public service, and provide a mechanism to improve individual/ministry performance as necessary, and assist in identifying training and development needs of individual employee.

MAJOR OBJECTIVE OF STAFF PERFORMANCE APPRAISAL AND DEVELOPMENT PLAN:

- Provide a frank and honest assessment of the employee's contribution and achievements over the past twelve months against agreed project tasks and major duties of the post.
- Recognise employee's strengths and identify any areas where further training & development may contribute to enhanced performance.
- Where appropriate, establish work development plan for the employee to complete during the 12 months.

THIS FORM IS DIVIDED INTO THREE SECTIONS:

SECTION A: This section deals with the supervisor and the staff developing the work plan for the 12 month period

Part I: provides for development/establishment of the employee's agreed project tasks for the 12months period.

Part II: provides for training & development plan needed by the employee to achieve his/her performance targets agreed to or to perform his/her work effectively.

SECTION B: This Section deals with the Mid-year Review

-Part I: Review of work activities achieved to date.

-Part II: Review of work activities not achieved to date.

-Part III: Overall Mid-year work performance

SECTION C: This section deals with the End of the Year Review of Staff Performance

-Part I: Appraisal of work objectives.

-Part II: Appraisal of other tasks/projects undertaken during the year.

-Part III: Appraisal of employee's work ethics.

-Part IV: Overall Staff Performance Rating

THIS REPORT IS MADE OUT FOR [__] YEARLY APPRAISAL[__] ACTING

PERFORMANCE RATINGS CODES - DEFINITIONS & POINTS	
EXCELLENT (A):	The objective has been achieved with outputs and to standards well beyond those anticipated at the beginning of the year – despite any contingencies that may have made it more difficult to achieve than anticipated. The output has made a major contribution to the work plan of the Department, well beyond what was originally expected.
VERY SATISFACTORY (B):	The work objective has been achieved and has exceeded the standards expected and recorded at the beginning of the year, in terms of quality and impact of output. This may be despite some contingencies or unexpected circumstances, making achievement of the required outputs more difficult than expected. Contribution to the Departmental work plan has been higher than anticipated.
SATISFACTORY (C):	The work objective has been achieved according to the standards expected and recorded at the beginning of the year. If the objective has not been fully met, there must be contingencies or mitigating circumstances to justify this. A valuable contribution has been made to the Departmental work plan.
UNSATISFACTORY (D):	The work objective has not been achieved, or achieved to very poor standards in relation to those expected and recorded at the beginning of the year. There are no contingencies or mitigating circumstances to justify this, and there has been no contribution to the Department's work plan.

SECTION A: WORK DEVELOPMENT PLAN (To be completed at the start of the year together during an interview by the supervisor and the staff member, with reference to the Departmental work plan and the staff member's Job description.)

Work Objectives

Work objective (refer to Departmental work plan and Job description)	Performance Indicators (Describe what measures and milestones will be used to assess work performance)	Training and development plan: indicate below the training needed by the staff member to help him/her achieve the performance targets agreed, or to perform his/her work more effectively	Target Date (If applicable put in finishing date)
1			
2			
3			
4			
5			

Appraiser's Signature.....Appraisee's signature.....Date:

Reviewers Signature.....

Date.....

For OPSC Official use:

Brief Comment:

Checked by.....

Sign:

Date.....

SECTION B: MID YEAR REVIEW

To be completed by the supervisor during a discussion with the staff member at the mid-point of the year, with reference to Section A above.

Review of Work Objectives

Work objective (refer to Departmental work plan and Job description)	Comments on progress report (progress on the work objectives) <i>1. Up-to date, 2. In-progress 3. Not yet started</i>	Training and development plan: Is training needed, or has been undertaken to complete work. <i>1. Training undertaken, 2. Training in-progress 3. Training yet to be taken</i>
1		
2		
3		
4		
5		

Appraisee Comments

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Appraisers Comments

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Appraiser's Signature.....

Appraisee's signature..... Date:

Date:

Reviewers Signature.....

Date.....

For OPSC Official use:

Brief Comment:

Checked by:

Sign:

Date:

SECTION C: APPRAISAL OF PERFORMANCE: END OF YEAR REVIEW

(i) Appraisal of Work Objectives

Work objective (refer to Departmental work plan and Job description)	Comments on progress report (progress on the work objectives) <i>1. Up-to date, 2. In-progress 3. Not yet started</i>	Training and development plan: Is training needed, or has been undertaken to complete work. <i>1. Training undertaken 2. Training in-progress 3. Training yet to be taken</i>	Self- Assessment	Rating A. Excellent, B. Very satisfactory, C. Satisfactory D. Unsatisfactory
1				
2				
3				
4				
5				

Appraisee Comments

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(ii) Appraisal of work ethics

Conduct & Behaviour	Performance Indicators	Rating A. Excellent, B. Very satisfactory, B. C. Satisfactory D. Unsatisfactory
Attendance	Punctuality	
	Reliability	
Personal Presentation	Appearance	
	Facilitates Co-operation & partnership	
	Customer & Client Services	
	Promoting Governance Services	
Capacity	Ability to Learn	
	Initiative	
Receiving & Following Instructions	Public Service Rules & Manual	
	Following Instructions from Supervisor	
	Judgement	
	Reporting Annual, Quarterly & Monthly	
Attitudes towards the Job	Interest	
	Corporation	
	Responsibility	
	Attendance to Official Commitment (e.g. DCO and regular meetings)	
Job Performance	Quality	
	Quantity	

Rating section C-i				Rating section C-ii			
1. Work performance				2. Work Ethics			
Total (A)	_ Multiply by 4	=	_____	Total (A)	_ Multiply by 4	=	_____
Total (B)	_ Multiply by 3	=	_____	Total (B)	_ Multiply by 3	=	_____
Total (C)	_ Multiply by 2	=	_____	Total (C)	_ Multiply by 2	=	_____
Total (D)	_ Multiply by 1	=	_____	Total (D)	_ Multiply by 1	=	_____
Grand Total (X)	_ Grand Total (Y)		_____	Grand Total (X)	_ Grand Total(Y)		_____

(iii) Appraisal of other tasks/projects undertaken during the year

Description of other tasks/projects (rank in descending order of importance)	Comments on progress report (progress on the work objectives) <i>1. Up-to date, 2. In-progress 3. Not yet started</i>	Training and development plan: Is training needed, or has been undertaken to complete work. <i>1. Training undertaken, 2. Training in-progress 3. Training yet to be taken</i>	Self-Assessment	Rating A. Excellent, B. Very satisfactory, C. Satisfactory D. Unsatisfactory
1				
2				
3				
4				
5				

Rating Section C-iii

3. Work performance for Other tasks/projects

Total (A)	_____	Multiply by 4	=	_____
Total (B)	_____	Multiply by 3	=	_____
Total (C)	_____	Multiply by 2	=	_____
Total (D)	_____	Multiply by 1	=	_____
Grand total (X)		Grand Total (Y)		_____

(iv) Overall rating of performance during the year

	Section C-i	Section C-ii	Section C-iii Only if applicable	Grand Total	Overall Rating (Grand total Y / by grand total X)
Total X					
Total Y					

Relative to other staff in identical positions or if in sole position the overall performance rating is:

Present Index Level

Recommended level

Appraiser's Signature.....Date:/...../.....

Appraisee's signature..... Date:/...../.....

Grades	Description	Actions
4.00	Excellent	Reward be considered
3.75		
3.50	Very Satisfactory	
3.25		
3.00		
2.75	Satisfactory	Meets Position Standard
2.50		
2.25		
2.00		
1.75	Some shortfall	Identified areas of training & Performance Gaps
1.50		
1.25	Major shortfall	Counselling & Performance Improvement Plan (PIP)
1.00		

Comments from appraised officer:

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Reporting officer: additional comments on the performance appraisal

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○ **Reviewer's signature**.....

Date:/...../.....

For OPSC Official use:

Brief Comment:

Checked by:

Sign:

Date:

**PUBLIC SERVICE AWARD OF EXCELLENCE
NOMINATION FORM**

MINISTRY: _____

YEAR: _____

1. Please tick the appropriate Award category for which you are making your nomination.

AWARD CATEGORIES:

- | | |
|---|--------------------------|
| ❖ EXCEPTIONAL PERFORMANCE AWARD | ☐ |
| ❖ INSPIRATIONAL LEADERSHIP AWARD | ☐ |
| ❖ INDIVIDUAL AWARD - PSC | ☐ |
| ❖ ORGANIZATIONAL AWARD - PSC | ☐ |

2. Please complete details of the following:

- ❖ **Exceptional Performance Award Nominees** (*insert a separate list of eligible nominees with overall rating of Excellent or Very Satisfactory and recommend best 8 below*):

Ranking	Name	Position	Overall, PA Rating	Competency Assessment Rating	Department	Ministry
1 st						
2 nd						
3 rd						
4 th						
5 th						
6 th						

EXCEPTIONAL AWARD NOMINATION / PSC INDIVIDUAL AWARD

NAME OF NOMINEE FOR 1ST AWARD:

Explanation: -----

EXCEPTIONAL AWARD NOMINATION / PSC INDIVIDUAL AWARD

NAME OF NOMINEE FOR 2ND AWARD:

Explanation: -----

EXCEPTIONAL AWARD NOMINATION / PSC INDIVIDUAL AWARD

NAME OF NOMINEE FOR 3RD AWARD:

Explanation: -----

❖ EXCEPTIONAL AWARD NOMINATION / PSC INDIVIDUAL AWARD

NAME OF NOMINEE FOR 4TH AWARD:

Explanation: -----

3. INSPIRATIONAL LEADERSHIP AWARD NOMINATION:

NAME: _____

POSITION TITLE: _____

WORK UNIT/DIVISION: _____

DEPARTMENT: _____

MINISTRY: _____

ANNUAL PERFORMANCE OVERALL RATING: _____

COMPETENCY ASSESSMENT RATING: _____

Explanation:

4. Contact Details of the Key Person submitting the Nomination:

NAME: _____

POSITION: _____

DEPARTMENT: _____

UNIT: _____

SIGNATURE: _____

DATE: _____

5. Person Seconding Nomination (*only applicable to **Inspirational Leadership Award***):

- Please Provide details of 2 or more seconding your nomination and have them sign the nomination form
- Person supporting the nomination must not be a near relative of person being nominated
- And must not be the actual person being nominated.

- Person seconding your nomination must provide supporting explanation indicating reasons why they support your nomination in the spaces provided below. You can attach separate sheet of paper if the space is not enough.

SUPPORT PERSON 1		
POSITION		
DEPARTMENT		
UNIT		
REASON FOR SUPPORTING NOMINATION		
SIGNATURE / DATE		
SUPPORT PERSON 2		
POSITION		
DEPARTMENT		
UNIT		
REASON FOR SUPPORTING NOMINATION		
SIGNATURE /DATE		
SUPPORT PERSON 3		
POSITION		
DEPARTMENT		
UNIT		
REASON FOR SUPPORTING NOMINATION		
SIGNATURE/DATE		

6. ORGANIZATIONAL AWARD NOMINATION:

MINISTRY: _____

DEPARTMENT/UNIT NOMINATED FOR AWARD:

Provide explanations to justify the reasons this organization has been nominated for the award.

In providing your explanation, please note the following:

- ❖ There is a minimum of 500 words limit (support letter to be attached to nomination form)
- ❖ You will need to describe the Achievements for the Organization being nominated and why it is relevant to the award category for which you have nominated them;
- ❖ You will need to describe and provide sufficient information relating to the exact role that the Organization you are nominating in the development, implementation or delivery of the selected initiative;
- ❖ You will need to address all the selection Criteria for the Award;

Endorsed by Director General:

Name: _____

Signature: _____

Date: _____

PERFORMANCE IMPROVEMENT PLAN (PIP)*(This is a confidential document and should only be seen by relevant individuals)***TO:** *(insert employee's name)***POSITION:**_____ **DEPARTMENT:** _____ **MINISTRY:** _____**FROM:** *(insert manager's/supervisor's name)* **POSITION:**_____ **DEPARTMENT:** _____ **MINISTRY:** _____**DATE:** *(insert date)*

The purpose of this Performance Improvement Plan (PIP) is to address serious areas of concern, gaps in work performance, reiterate **in the Vanuatu Public Service Performance Management Policy** and work expectations to give the opportunity to demonstrate improvement and commitment.

Areas of Concern:

List the issues and how employee's lack of performance and/or behaviour has affected his/her co-workers, the department/ ministry and business plan.

Observations, Previous Discussions or Counselling:

Record dates/times you have addressed the issues. Provide evidence of previous documents where applicable.

Step 1: Improvement Goals and Expected Outcomes: These are the goals related to areas of concern to be improved. Expected outcome is the performance standards that must be accomplished to demonstrate progress towards achievement of each Improvement goal:
(Indicators of the performance standards should be listed)

	Improvement Goals	Expected Outcome
1.		
2.		
3.		

Step 2: Activity Goals: List below activities that will help you reach each goal:

Goal #	Activity	How to Accomplish	Start Date	Projected Completion Date

Step 3: Resources: List below available resources that will assist the officer to complete his/her Improvement activities.

(May include other people's time or expertise, funds for training materials and activities.)

1.	
2.	
3.	

Step 4: Management Support: *[OPTIONAL: This can be incorporated as part of Step 3: Resources, above]* Listed below are ways in which your manager will support your Improvement activities.

1.	
2.	
3.	

Step 5: Progress Checkpoints: The following schedule will be used to evaluate your progress in meeting your Improvement activities. (This will be included in the Feedback Form; PSC Form 10.5B)

Goal #	Activity	Checkpoint Date	Type of Follow-up (memo/call/meeting)	Progress Expected	Supervisor's Comments to help the officer	Officer's Comment

Follow-up Updates: You will receive feedback on your progress according to the following schedule: *(The supervisor should decide with the officer the expected time for receiving the feedbacks before filling in the schedules below)*

Date Scheduled	Activity	Conducted By	Date Sent To officer	Date Received by the Officer
----------------	----------	--------------	----------------------	------------------------------

	15-day Update Memo/email	[Supervisor/Manager]		
	First month Update Memo/Email	[Supervisor/Manager]		
	Second month update Memo/Email	[Supervisor/Manager]		
	Third month status mem/email			

Timeline for Improvement, Consequences & Expectations:

Effective immediately, you are placed on a (***no..... of months***)-months PIP. During this time, you will be expected to make regular progress on the plan outlined above. Failure to meet or exceed these expectations, or any display of gross misconduct will result in further strict action such as a transfer and or demotion or even up to and including termination.

The PIP does not alter the employment-at-will relationship. Additionally, the contents of this PIP are to remain confidential. Should you have questions or concerns regarding the content, you will be expected to follow up directly with your supervisor or Secretary of the PSC.

We will meet again on the time noted above to discuss your Performance Improvement Plan. Please schedule accordingly.

Signatures:

Print Employee's Name: _____

Employee's Signature: _____

Date: _____

Print Supervisor/Manager Name: _____

Supervisor/Manager Signature: _____

Date: _____

(Include official stamp after the supervisor's signature)

Print PSC Officer's Name: _____

Signature: _____ Date: _____

PERFORMANCE IMPROVEMENT PLAN (PIP) FEEDBACK FORM

(This is a confidential document and should only be seen by relevant individuals)

NAME OF OFFICER: _____ POSITION TITLE: _____

NAME OF SUPERVISOR: _____ POSITION TITLE: _____

DEPARTMENT/WORKPLACE: _____

MINISTRY: _____

FEEDBACK ON PERFORMANCE IMPROVEMENT PLAN

Goal #	Activity	Checkpoint Date	Type of Follow-up (memo/call/meeting)	Comments (Exceeded Expectation-A, Below Expectation- D)	Supervisor's Comments to help the officer	Officer's Comment

Further Comments

Officers Comment:

Supervisor's Comments & Recommendation:

(Circle the appropriate response below)

Performance Improvement Plan is Satisfactory and is now closed? YES/NO Recommend
to continue on next phase of PIP? YES/NO

Signature of Officer: _____

Date:

Signature of Supervisor: _____

Date:

OPSC Staff: _____

Date:

(Only applicable on PIP 2)

360-DEGREE PERFORMANCE EVALUATION SAMPLE FORM

[Appraisal period from: _____ to _____]

BACKGROUND: This officer's performance has been subjected for auditing purposes to verify the report submitted by his immediate supervisor and will not subject to legal proceedings against the accessor.

This process will be highly confidential

SPECIFIC AREA NEEDING VERIFICATION

1. _____
2. _____
3. _____
4. _____

PURPOSE: This form will assist PSC/Supervisor in preparing the performance evaluation report for the individual listed below and be used to base important decision regarding the officer's employment.

As someone who works with this person on a regular basis, your feedback regarding his or her performance will be useful to the overall review process. *(You are not required to put your name on this form.)*

Employee Name: _____

Relation to Employee: _____ colleague worker/ manager/ work below the officer. **Please circle the appropriate one.**

Name of interviewee (Optional): _____

Time Spent	Every Day	A few times a week	A few times a month	Every few months	NA (Never)
Your interaction with employee					

(The area of performance below can be altered to suit the required attributes that needing verification)

Quality of Work	Strongly Agree	Agree	Disagree	Strongly Disagree	Not Applicable
Sets high standards for quality of work					
Work is delivered efficiently and effectively					
Helps others improve the quality of their work					

Communication	Strongly Agree	Agree	Disagree	Strongly Disagree	Not Applicable
Communicates well orally and in written-form					
Displays good listening skills					
Shares information freely with others					

Teamwork	Strongly Agree	Agree	Disagree	Strongly Disagree	Not Applicable
Follow instructions					
Contributes positively					
Encourage Team Work					
Reliable					

Personal Qualifications and Leadership	Strongly Agree	Agree	Disagree	Strongly Disagree	Not Applicable
Display professionalism					
Is friendly and easy to work with					
Adapts well to changes					
Display ethical standards					

Please provide additional comments in the space below

[Type/Write comments here]

(Circle the appropriate response below)

Performance Improvement Plan is Satisfactory and is now closed? YES/NO

Recommend to continue on next phase of PIP? YES/NO

Signature of Officer: _____

Date: _____

Signature of Supervisor: _____

Date: _____

OPSC Staff: _____

Date: _____

(Only applicable on PIP 2)

AUDIT OF PERFORMANCE SUMMARY FORM
(Attach all PSC Form 10.6 filled for this audit purposes)

[Appraisal period from: _____ to _____]

BACKGROUND: This officer's performance has been subjected for auditing purposes to verify the report submitted by his immediate supervisor. Below is the summary of report collated after the audit process.

Employee Name: _____

Position Title: _____

Department: _____

Ministry : _____

1. Immediate Supervisors Report

Name of Supervisor: _____ Position: _____

Date of Report: _____

Please briefly write to summarize the report of the officers Supervisor: *(Attach additional Page or other additional information if need to)*

2. Colleagues Report

No. of Colleagues Interviewed: _____ Date: _____

Please briefly write to summarize the report of the colleague workers: *(Attach additional Page or other additional information if need to)*

3. Other Managers/Supervisors

No. of other Managers/Supervisors Interviewed: _____

Date:

Please briefly write to summarize the report of the colleague workers: *(Attach additional Page or other additional information if need to)*

4. PSC Staff Conducting the Audit

Name of PSC Staff Undertaking the
Audit _____

Position: _____ Date: _____

Please briefly write to summarize the overall feedback from the Auditing report. Comment on the overall similarity or differences arising from the report collected. *(Attach additional Page or other additional information if need to)*

Final Recommendation about the Officer:

Signature: _____

Date: _____

